1 BF 7JAN2022

United States v. Jones
US Court of Appeals for the Seventh Circuit
Opinion Date: January 6, 2022

Tags: seizure of a person, consent to search

Allen County Officers received an arrest warrant for a woman named Whitney Gosnell. An anonymous tip indicated that Gosnell was staying at a Fort Wayne motel. The motel manager stated that Gosnell was staying in a room with Jones. The officers discovered that Jones had arrests dating back to the 1990s and was listed as a "known resister," "convicted felon," and "substance abuser." The officers went to room and knocked and called out Jones's street name "Crunch" and said: "It's police. We're not here for you." Jones responded, "She's not here." The officers asked Jones to open the door. He requested some time, which the officers acknowledged. Less than a minute later, Jones opened the door. The officers estimated that 30-60 seconds elapsed between the first knock and when Jones opened the door. Upon opening the door, in conversational tones, the officers reiterated that they were not there for Jones, showed him the warrant, and explained that they would like to "verify" Gosnell was not there. Jones said, "fine," and moved away from the door. One officer lifted a bed to look under it. The other officer lifted the second bed and discovered a firearm. Jones sought to suppress the firearm arguing he was seized upon opening the door (tainting his consent to search) and that the officers exceeded the scope of the consent by looking in a very small space (8-10 inches) under the beds. Jones pled guilty to possessing a firearm as a convicted felon, 18 U.S.C. 922(g)(1) after the denial of his motion to suppress. The Seventh Circuit affirmed the denial of the motion. The court held Jones was not seized prior to the search. Under the totality of the circumstances, a reasonable person in Jones's position would have felt free to decline the officers' request to open the door. Furthermore, Jones voluntarily consented to a search of his motel room and that it was reasonable for the officers to believe the scope of consent extended to the space under the beds.

United States v. Shaffers
US Court of Appeals for the Seventh Circuit
Opinion Date: January 5, 2022

Tags: Seizure of a Person, Terry Stop, Reasonable Suspicion

Around midnight, four people were in Shaffers' car, with Shaffers in the driver's seat, smoking and listening to music while parked. Chicago Police Officers Streeper and Bruno heard loud music coming from the car and smelled marijuana. They blocked Shaffers' car with their car, then approached, identified themselves, and instructed the occupants to put their hands up. Streeper testified that Shaffers initially failed to comply and made "furtive movements with his hands below the [driver's] seat." Shaffers fled. Streeper recovered a gun from the floorboard

between the driver's seat and the console. Months later, Shaffers was arrested while appearing in state court for a traffic infraction. Shaffers was charged as a felon in possession of a firearm, 18 U.S.C. 922(g)(1). Denying Shaffers' motion to suppress, the court concluded that the officers' approach was a seizure because Shaffers could not move his car and a reasonable person would not have felt free to leave but that the seizure was permissible under "Terry" because the officers had reasonable suspicion. The Seventh Circuit upheld his convictions, rejecting arguments that the gun should have been suppressed.

United States v. Brooks
US Court of Appeals for the Eighth Circuit
Opinion Date: January 6, 2022

Tags: independent source doctrine

The Eighth Circuit affirmed the district court's order denying defendant's motion to suppress, concluding that the evidence seized under the warrant should not be excluded. The court concluded that the record supports the district court's implicit finding that the disputed information was independent of any unlawful seizure. The court also concluded that the district court did not err in finding that investigators independently discovered the baggage incident from November 2016. In this case, it is reasonable to infer that once defendant's suspicious activities with currency were tied to the airport, investigators would review airport records on that basis alone to determine whether defendant had engaged in other suspicious activity at the airport. Even if the detention of defendant at the airport was unlawful, his voluntary and warned statements to investigators at the police station were sufficiently disconnected from the unlawful seizure to make them admissible. Therefore, it was proper for the district court to consider defendant's statements from that interview about structuring cash withdrawals in evaluating whether the search warrant affidavit established probable cause to search his home. Finally, after redacting from the affidavit evidence that resulted from the airport detention, the court concluded that the remaining information established probable cause to search.

Hyde v. City of Wilcox
US Court of Appeals for the Ninth Circuit
Opinion Date: January 6, 2022

Tags: use of force, qualified immunity

Hyde, a 26-year-old with bipolar disorder, schizophrenia, and ADHD, took six prescription medications. After his arrest on suspicion of DUI, Hyde submitted to a blood draw. He tested negative for alcohol but positive for amphetamines, consistent with his prescriptions. After several hours without his medications, Hyde charged the door, fell, and injured his head. Hyde emerged from his cell calmly, then sprinted away. He reached a dead end, Officers deployed their Tasers multiple times, then tackled Hyde. After Hyde was in a restraint chair, Pralgo again

used his Taser. Callahan-English used her arms to force Hyde's head into a restraint hold. Minutes later Hyde rolled his head back, gasping for air, as officers passed by. He stopped breathing. Officers tried to revive him. Days later, Hyde died. Hyde's causes of death included blunt force injuries, kidney damage caused by muscle breakdown, enlarged heart, and coronary artery atherosclerosis. The Ninth Circuit affirmed in part the denial of a motion to dismiss a 42 U.S.C. 1983 suit. Officers Pralgo and Callahan-English used excessive force and violated clearly established law when they used a Taser and put Hyde in a head restraint after Hyde, handcuffed and shackled, posed no threat. Other officers reasonably used force when Hyde resisted. The complaint did not adequately allege that the officers knew of Hyde's mental health condition or that he was in distress after the altercation; qualified immunity barred the claim that they violated Hyde's right to adequate medical care. With respect to the failure-to-train and municipal liability claims, the court stated that an inadequate training policy itself cannot be inferred from a single incident.

United States v. Bullcoming
US Court of Appeals for the Tenth Circuit
Opinion Date: January 6, 2022

Tags: search of a bag, probable cause

Linda Zotigh was murdered, and her trailer, in which her boyfriend Tommy Bullcoming also periodically resided, was set on fire. The day after law enforcement found Zotigh's body, they arrested Bullcoming pursuant to a warrant for failure to appear in court on an earlier marijuana possession charge. At the time of his arrest, Bullcoming had a black duffel bag in his possession, and he asked law enforcement to bring the bag with them during his transport to the courthouse. Law enforcement searched the bag on three separate occasions and used information from these searches in the affidavit filed in support of the search warrant. Following issuance of a search warrant, law enforcement found a pair of sandals spotted with blood inside the bag. Authorities later matched the blood to Zotigh. Prior to his trial, Bullcoming moved both for an order to access Zotigh's trailer and to suppress evidence from the duffel bag. The district court denied both motions. A jury ultimately convicted Bullcoming of felony murder, kidnapping, carjacking, and arson. On appeal, Bullcoming challenged the denial of both of his motions. At the time Bullcoming filed his motion for access to the trailer, a third party, not the Government, possessed it. The district court ultimately held it did not have authority "to order entry and inspection of property that is not within the government's possession, custody, or control." The Tenth Circuit concurred the district court lacked authority to grant Bullcoming access to the trailer. With regard to the search of the bag, Bullcoming argued the searches were illegal. The Tenth Circuit concluded probable cause supported the search warrant for Bullcoming's bag. The district court's denials of Bullcoming's motions were affirmed.

State v. Gardner
Montana Supreme Court
Opinion Date: January 4, 2022

Tags: reasonable suspicion, traffic stop

The Supreme Court reversed the order of the district court affirming the denial of Defendant's motion to suppress evidence, holding that law enforcement officers lacked particularized suspicion to justify their investigatory stop of Defendant. Defendant was stopped by law enforcement officers based solely on his "flicking" his high beams on and off once. Defendant entered a conditional guilty plea to aggravated driving under the influence, third offense, reserving the right to appeal the justice court's denial of his motion to suppress. The district court affirmed. The Supreme Court reversed, holding that the totality of the circumstances did not give rise to particularized suspicion, and therefore, the seizure violated Defendant's constitutional right to be free from unreasonable searches and seizures.

State v. Sargent
Minnesota Supreme Court
Opinion Date: December 29, 2021

Tags: traffic stop, mission-related activity, extended stop, Rodriguez Rule

The Supreme Court reversed Defendant's conviction of illegal possession of ammunition, holding that the district court erred by denying Defendant's motion to suppress. During a traffic stop, law enforcement officers questioned Defendant, who was a passenger in the stopped vehicle, regarding the conditions of his pretrial release. After Defendant was arrested for violating a condition of his pretrial release, a pat-down search revealed ammunition in Defendant's pocket. Defendant filed a motion to suppress, arguing that the officer’s questions about the conditions of his pretrial release improperly expanded the scope of the traffic stop. The district court denied the motion, and the court of appeals affirmed. The Supreme Court reversed, holding (1) violation of a condition of pretrial release does not constitute criminal activity allowing a law enforcement officer to expand the scope of a traffic stop; and (2) the officer's questioning of Defendant about the conditions of his pretrial release exceeded the permissible scope of a traffic stop.

2BF 2022 – January 14, 2022

Betts v. Brennan
US Court of Appeals for the Fifth Circuit
Opinion Date: January 11, 2022

Tags: Excessive Force, Qualified Immunity, Traffic Stop
Summary: Use of taser during traffic stop was objectively reasonable.

The Fifth Circuit reversed the district court's denial of defendant's motion for summary judgment based on qualified immunity in an excessive force action brought by plaintiff. During a routine traffic stop, plaintiff repeatedly challenged defendant's reasons for stopping him, refused to comply with his orders, batted his hand away, called him a liar, warned him to call in backup, and dared him to use his taser. The court concluded that defendant did not violate the Fourth Amendment by tasing plaintiff one time in order to arrest him. Even assuming a Fourth Amendment violation, the court concluded that it was not clearly established at the time that defendant's single use of the taser was constitutionally excessive. Therefore, the district court erred in concluding otherwise. The court remanded for further proceedings.

Cortesluna v. Leon
US Court of Appeals for the Ninth Circuit
Opinion Date: January 12, 2022

Tags: Excessive Force, Monell Liability, Duty to Intervene
Summary: This case was on remand to the Ninth Circuit from the US Supreme Court

A 12-year-old girl called 911 to report that her mother's boyfriend, Cortesluna, was threatening her and her family with a chainsaw and that they were hiding from him in a bedroom that he was trying to enter. Cortesluna subsequently brought 42 U.S.C. 1983 excessive force claims concerning his arrest. In 2020, the Ninth Circuit affirmed summary judgment in favor of officer Leon. Even taking Cortesluna's version of the facts as true, a reasonable jury would find that Leon's acts were objectively reasonable in the circumstances. Leon faced an immediate threat; Cortesluna had a knife in his pocket and had lowered his hands towards the knife when the first shot came from the beanbag shotgun; his hands remained near the knife in his pocket at the time of the second beanbag shot. The court found that there was a genuine issue of fact as to whether the force that officer Rivas-Villegas used when he kneeled on Cortesluna's back was excessive. Officer Kensic lacked any realistic opportunity to intercede or to stop the excessive force. On remand from the U.S. Supreme Court, the Ninth Circuit affirmed the dismissal of the federal claims against Rivas-Villegas and remanded for consideration of the other elements of a Monell claim. With respect to state-law claims relating to Rivas-Villegas’s conduct, and other remaining claims, including against other defendants, the 2020 opinion remains intact

State v. Correa
Connecticut Supreme Court
Opinion Date: January 11, 2022

Tags: Destruction Exigency, K9 Sniff,
Summary: Connecticut Supreme Court holds that K9 sniff at a hotel door is a search under the Connecticut Constitution and exigent circumstances justified warrantless visual sweep.

The Connecticut Supreme Court reversed the judgment of the appellate court affirming Defendant's conviction, holding that the warrantless canine sniff conducted by law enforcement officers of the exterior door to a motel room for the purpose of detecting the presence of illegal drugs inside the room violated the warrant requirement of Conn. Const. Art. I, 7. After Defendant was charged with several drug-related offenses he filed a motion to suppress the evidence that had been seized from his motel room pursuant to a search warrant. The trial court denied the motion. Thereafter, Defendant entered a conditional plea of solo contenders. The appellate court affirmed. The Connecticut Supreme Court reversed, holding that the appellate court erred in concluding (1) the canine sniff was not a search that violated Defendant's rights under article 1, section 7; and (2) the visual sweep of Defendant's motel room was justified by the exigencies of the situation. The Court remanded the case to determine the applicability of the Independent Source Doctrine.

State v. Peoples
Montana Supreme Court
Opinion Date: January 11, 2022

Tags: Probation Search

The Montana Supreme Court affirmed the judgment of the district court denying Defendant's motion to suppress evidence obtained as a result of warrantless search of his apartment, holding that the district court did not err in denying Defendant's motion to suppress. In this case, three probation officers and a deputy federal marshal made a warrantless entry into Defendant's apartment without his consent to investigate his reported methamphetamine use and possible drug overdose in violation of the law and Defendant's probation. The district court concluded that the warrantless entry into Defendant's apartment was a constitutional search. The Montana Supreme Court affirmed, holding that the district court (1) correctly concluded that the warrantless entry and probation search of Defendant's apartment was lawful on reasonable suspicion under the probation search exception to the warrant requirement of Mont. Const. art. II, 10-11; and (2) did not err in denying Defendant's motion to suppress based on the manner in which the officers entered the apartment or treated Defendant thereafter.

3BF 21JAN2022

United States v. Reyes
McClendon v. Long

State v. Thompson
State v. Wilson

United States v. Reyes
US Court of Appeals for the First Circuit
Opinion Date: January 19, 2022

Tags: Traffic Stop

The First Circuit affirmed Defendant's conviction of one count of conspiracy to possess with intent to distribute and to distribute 500 grams or more of cocaine, in violation of 21 U.S.C. 846, and one count of possession with intent to distribute 500 grams or more of cocaine, in violation of 21 U.S.C. 841(a)(1), holding that there was no error. Specifically, the First Circuit held (1) the district court did not err in denying Defendant's motion to suppress evidence obtained during a traffic stop and admitting items seized from the vehicle at trial;

McClendon v. Long
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: January 19, 2022

Tags: First Amendment

In October 2018, Butts County Sheriff's Office deputies placed signs in the front yards of the residences of all 57 registered sex offenders within the County, warning "STOP" and "NO TRICK-OR-TREAT AT THIS ADDRESS." The Sheriff also posted an explanation of the signs on Facebook, in order to associate the signs with the registrants who lived on the properties. Before Halloween 2019, three registered sex offenders living in Butts County sued, seeking to enjoin the Sheriff from placing the signs again. Contrary to the Sheriff's initial assertions, Georgia law does not forbid registered sex offenders from participating in Halloween. The district court rejected the suit on summary judgment. The Eleventh Circuit vacated. The Sheriff's warning signs are compelled government speech, and their placement violates a homeowner's First Amendment rights. The forced display of a government message on private property violates the "right to refrain from speaking at all," and the signs are not a narrowly tailored means of serving a compelling government interest. The Sheriff's interest in protecting children from sexual abuse is compelling but the Sheriff has not provided any evidence that the registrants actually pose a danger to trick-or-treating children or that these signs would serve to prevent such danger.

State v. Thompson
Court: Arizona Supreme Court
Opinion Date: January 19, 2022

Tags:

The Supreme Court affirmed Defendant's convictions for multiple counts of first degree murder and sentence of death, holding that no prejudicial error occurred in the proceedings below. After a ten-day trial, a jury found Defendant guilty of the 2012 first degree murders of Penelope Edwards and Troy Dunn under both premeditated and felony murder theories. After the penalty phase of trial, the jury returned death verdicts for both murders. The Supreme Court affirmed, holding (1) the trial court did not err in denying Defendant's motion to suppress evidence recovered during a traffic stop and any fruit of that search; (2) the trial court did not err in the way it conducted voir dire; (3) Defendant's evidentiary challenges were without merit; (4) one instance of prosecutorial error occurred, but the error was not prejudicial; (5) any error during the aggravation phase was harmless; and (6) Defendant's challenges to the death penalty were unavailing.

State v. Wilson
Court: Iowa Supreme Court
Opinion Date: January 14, 2022

Tags:

The Supreme Court reversed Defendant's conviction for possession of cocaine and affirmed her conviction of interference with official acts, holding that the warrantless entry into Defendant's apartment to arrest her was unlawful. After Defendant was charged, she filed a motion to suppress, alleging that law enforcement officers made an illegal entry into her home and then used the information obtained from the legal entry to secure a search warrant. The motion to suppress was denied, and the trial court found Defendant guilty of the interference charge and possession of cocaine charge. The Supreme Court reversed in part, holding (1) evidence related to Defendant's conviction of possession of cocaine obtained from the unlawful warrantless entry into her apartment must be suppressed; and (2) Defendant's conviction of interference with official acts was sufficiently attenuated from the officers' unlawful entry to permit admission of Defendant's own illegal conduct under the "new crime exception" to the exclusionary rule.

State v. Scheuerman
Court: Kansas Supreme Court
Opinion Date: January 14, 2022

Tags:

The Supreme Court affirmed Defendant's conviction for possession of methamphetamine for insufficient evidence, holding that the evidence was sufficient to support the conviction and that Defendant could not challenge the underlying search of the vehicle in which he was a passenger. On appeal, the court of appeals reversed Defendant's conviction of methamphetamine possession for insufficient evidence based on the parties' stipulation of facts. The Supreme Court reversed, holding that the court of appeals;

and (2) correctly concluded that Defendant's status as a passenger did not confer standing for purposes of the Fourth Amendment to challenge the search of the car.

New Jersey v. Radel
Court: Supreme Court of New Jersey
Opinion Date: January 20, 2022

Tags:

Consolidated appeals presented an issue of first impression for the New Jersey Supreme Court: whether police have a right to conduct a protective sweep of a home when an arrest is made outside the home and, if so, the requisite justification for a warrantless entry and protective sweep. In doing so, the Court balanced two important values: an individual's fundamental privacy right in the home and the significant state interest in officer safety. The Court concluded that when an arrest occurs outside a home, the police may not enter the dwelling or conduct a protective sweep in the absence of a reasonable and articulable suspicion that a person or persons are present inside and pose an imminent threat to the officers' safety. "This sensible balancing of the fundamental right to privacy in one's home and the compelling interest in officer safety will depend on an objective assessment of the particular circumstances in each case, such as the manner of the arrest, the distance of the arrest from the home, the reasonableness of the officers' suspicion that persons were in the dwelling and likely to launch an imminent attack, and any other relevant factors. A self-created exigency by the police cannot justify entry into the home or a protective sweep." In the case of Christopher Radel, a protective sweep was not warranted, but was constitutionally justified in Keith Terres' case.

United States v. Clark

Court: US Court of Appeals for the Sixth Circuit

Docket: 20-5722

Opinion Date: January 24, 2022

Judge: Batchelder

Areas of Law: Criminal Law

An undercover Kentucky police detective used a computer program to search for individuals who were illegally trading and downloading child pornography on a peer-to-peer file-sharing network, and, on several occasions in May-June 2017, downloaded child pornography from a computer with an IP address located in Independence, Kentucky. Officers used the information to obtain a warrant to search Michael Clark's residence. In April 2018, officers executed the search warrant. Clark and others were home. The officers seized multiple computers, interviewed Clark, and recorded the interview. They told Clark that he was not under arrest, and they did not give him Miranda warnings. Clark stated that the MacBook laptop was his work computer. The three seized computers were sent to a forensic examiner. An examination of the MacBook computer found 295 images and 62 videos of child pornography, a user profile named "Mike," and evidence suggesting the former presence of additional illegal content and filesharing programs. The Sixth Circuit affirmed Clark's conviction on five counts of knowingly distributing child pornography, 18 U.S.C. 2252(a)(2), and 192-month sentence, rejecting challenges to the sufficiency of the evidence to support the interstate-commerce and "knowing distribution" elements of the conviction, to the admission of the recorded interrogation, to the admission of evidence concerning old computers found in Clark's home, and to evidence of Clark's computer knowledge.

United States v. Goodwill

Court: US Court of Appeals for the Seventh Circuit

Docket: 20-3188

Opinion Date: January 21, 2022

Judge: St. Eve

Areas of Law: Civil Rights, Constitutional Law, Criminal Law

Detectives Roseman and Hunt stopped Goodwill for a window tint violation. After asking Goodwill to sit in the squad car, Roseman began the paperwork while both detectives asked Goodwill questions. A canine unit arrived minutes later, before Roseman finished the warning form. The dog alerted to the presence of drugs. A search revealed two kilograms of cocaine. Goodwill, charged with possession of cocaine with intent to distribute, moved to suppress the drugs, arguing that the officers unlawfully prolonged the search by asking unrelated questions and conducted the dog sniff without his consent. The district court found that the questioning did not extend the stop and denied the motion. The Seventh Circuit affirmed. Roseman needed to check the driver's license and vehicle information—which involved typing in the motorist's name and date of birth or driver's license number plus the vehicle's registration information—then complete, by hand, the warning—which included the date, time, vehicle information, driver's information, and the location. Roseman's testimony at the suppression hearing and the traffic-stop video indicated that he worked expeditiously. Roseman worked on the ticket continuously without any breaks. An officer does not need a driver's consent to conduct a dog sniff during a lawful traffic stop, if it does not prolong the stop.

Baude v. Leyshock

Court: US Court of Appeals for the Eighth Circuit

Docket: 20-2864

Opinion Date: January 27, 2022

Judge: Erickson

Areas of Law: Civil Rights, Constitutional Law, Criminal Law

The plaintiff alleged that during the September 17, 2017 protests of the acquittal of a St. Louis police officer on murder charges, police officers violated his civil rights when they boxed or "kettled" him in with other protestors and then pepper-sprayed him, arrested him, and restrained him with zip ties. In the plaintiff's suit under 42 U.S.C. 1983, the district court denied the officers' motion for summary judgment based on qualified immunity. The Eighth Circuit affirmed. The plaintiff alleged sufficient facts to indicate his seizure was unreasonable. With respect to the excessive force claims, based on the record and plaintiff's allegations, the court could not conclude as a matter of law that the force used against the plaintiff was objectively reasonable. The plaintiff's claim of excessive force against the supervising police officers was sufficient at this stage of the case to defeat the officers' claims of qualified immunity. "There are simply too many unknowns and factual disputes" to determine as a matter of law that the subordinate police officers reasonably relied on their superiors' orders to arrest the crowd at the downtown intersection.

Ex parte Nancy Powers.

Court: Supreme Court of Alabama

Docket: 1200764

Opinion Date: January 21, 2022

Judge: Sellers

Areas of Law: Constitutional Law, Criminal Law

In 2018, pursuant to a premises search warrant, police in Mobile, Alabama searched the residence of Joshua Moyers, seeking evidence of drug activity. Although Moyers was referenced in the affidavit supporting the issuance of the warrant, no individuals were named in the warrant itself. Police entered Moyers's house and discovered Nancy Powers sleeping on a couch in the first room of the house. Powers's purse was sitting on a table next to the couch. After confirming with Powers that the purse belonged to her, police searched the purse and discovered methamphetamine, a digital scale, and cash. Relevant to these proceedings, Powers was charged with possession of methamphetamine with intent to distribute. The circuit court denied Powers's motion to suppress the evidence found in her purse. Thereafter, Powers pleaded guilty and appealed to the Court of Criminal Appeals, challenging the trial court's denial of the motion to suppress. The Court of Criminal Appeals unanimously affirmed the trial court's ruling. The Alabama Supreme Court granted Powers's petition for a writ of certiorari to consider a question of first impression: whether police improperly searched Powers' purse, or whether, as the State argued, the purse was simply a container in the House that fit within the scope of the premises warrant. The Supreme Court agreed with the State that the purse was a container that came within the scope of the warrant, and that Powers' right to privacy was not violated.

California v. Rorabaugh

Court: California Courts of Appeal

Docket: C090482(Third Appellate District)

Opinion Date: January 25, 2022

Judge: Andrea Lynn Hoch

Areas of Law: Constitutional Law, Criminal Law

When executing a search warrant at defendant Donald Rorabaugh's home, police learned that one of his cars was a short distance away, at a ranch. Police went to the ranch and towed the car away to be stored until they could obtain a warrant to search it. Later, the trial court denied defendant's motion to suppress evidence found in the car. In closing argument to the jury, the prosecution argued DNA evidence found in the car corroborated its theory of defendant's culpability for murder. After the jury found defendant guilty of first degree murder, the trial court imposed a term of 25 years to life in prison. On appeal, defendant contended the trial court erroneously denied: (1) his suppression motion; and (2) his motion for acquittal. The Court of Appeal agreed with defendant's first claim, but disagreed with his second. The Court found police violated the Fourth Amendment when they conducted a warrantless seizure of defendant's unattended car on private property. Furthermore, the Court concluded the trial court's failure to suppress evidence obtained after a search of the car was prejudicial error. Accordingly, the Court reversed defendant's conviction and remanded for further proceedings.

Wright v. Mississippi

Court: Supreme Court of Mississippi

Citation: 2020-KA-00505-SCT

Opinion Date: October 21, 2021

Judge: Josiah D. Coleman

Areas of Law: Constitutional Law, Criminal Law

Senque Wright was convicted by jury of possessing a dirk knife as a convicted felon. The trial court adjudged Wright a habitual offender under Mississippi Code Section 99-19-81 (Rev. 2020) and sentenced him to serve ten years in the custody of the Mississippi Department of Corrections. The trial court denied Wright's motion for a judgment notwithstanding the verdict or a new trial. Wright appealed, arguing the trial court erred by denying Wright's motion to suppress evidence. Wright argued police lacked reasonable suspicion to support his detention and a patdown search. Wright further argued the evidence was insufficient to support the verdict because the State failed to meet its burden to prove beyond a reasonable doubt that Wright's knife was a prohibited dirk knife. The Mississippi Supreme Court concluded the officer had a reasonable suspicion to conduct an investigative stop, therefore the trial court did not err by denying Wright's motion to suppress evidence. Further, because the knife found in Wright's possession was shown to the jury, sufficient evidence was presented for a reasonable juror to conclude that the knife was a dirk knife primarily used for stabbing. Therefore, the Supreme Court affirmed the trial court's decision.

New Jersey v. Nyema

Court: Supreme Court of New Jersey

Docket: a-39-20

Opinion Date: January 25, 2022

Judge: Pierre-Louis

Areas of Law: Constitutional Law, Criminal Law

Around midnight on May 7, 2011, a 7-Eleven was robbed. Approximately three-quarters of a mile from the 7-Eleven, Sergeant Mark Horan saw a car approaching in the oncoming traffic lane. Using the spotlight mounted to his police vehicle to illuminate the inside of the car, he observed that the occupants were a man and a woman and let them pass. Sergeant Horan testified that as he continued on, a second set of headlights approached. He illuminated the inside of the vehicle and observed three Black males; “[t]he description of the suspects was two Black males so at that point I decided to issue a motor vehicle stop on the second vehicle.” Horan later explained that he was also struck by the lack of reaction to the spotlight by the occupants of the car, and that he “took into consideration the short distance from the scene, as well as the short amount of time from the call” as he made the stop. Horan radioed headquarters with the license plate number and a description of the car, and two more officers arrived. Defendant Peter Nyema was sitting in the passenger seat and Jamar Myers was in the rear passenger-side seat. The dispatcher advised Horan that the vehicle had been reported stolen. All three occupants were placed under arrest. The question this case presented was whether a reasonable and articulable suspicion existed when a police officer conducted an investigatory stop of the vehicle in which defendants Peter Nyema and Jamar Myers were riding with co-defendant Tyrone Miller. The New Jersey Supreme Court concluded the only information the officer possessed at the time of the stop was the race and sex of the suspects, with no further descriptors. "That information, which effectively placed every single Black male in the area under the veil of suspicion, was insufficient to justify the stop of the vehicle and therefore does not withstand constitutional scrutiny."

Williamson v. City of National City

Court: US Court of Appeals for the Ninth Circuit

Docket: 20-55966

Opinion Date: January 24, 2022

Judge: Forrest

Areas of Law: Civil Rights, Constitutional Law

The Ninth Circuit reversed the district court's denial of defendants' motion for qualified immunity in an action brought under 42 U.S.C. 1983 and state law, alleging that police officers used excessive force when they removed plaintiff from a city council meeting where she and others were protesting. When the protest prevented the meeting from continuing, the officers warned the protesters that they had to leave the meeting room or would be arrested. After the protestors refused and passively resisted, the officers handcuffed them and carried or pulled them by their arms from the meeting room. The panel concluded that the officers did not use excessive force in violation of the Fourth Amendment where the type and amount of force used by the officers was minimal. In this case, the officers did not strike plaintiff, throw her to the ground, or use any compliance techniques or weapons for the purpose of inflicting pain on her. Rather, they held her by her arms and lifted her so they could pull her out of the meeting room after she went limp and refused to leave on her own or cooperate in being removed. Furthermore, the inherent risk of two officers pulling someone who has gone limp and refuses to move by her own power is not significant. The panel also concluded that although the City's interest in forcibly removing plaintiff was low, it was not nonexistent, and the balance of interests favors defendants. Consequently, plaintiff's Bane Act claims also failed.

4FEB2022

Stanton v. Elliott
Court: US Court of Appeals for the Fourth Circuit
Opinion Date: February 1, 2022

Use of Force, Deadly Force, Qualified Immunity

West Virginia State Troopers Elliott and Cornelius received three 911 calls about Spencer Lee Crumbley. Two different callers stated that Crumbley was armed and dangerous and keeping his family hostage. Another caller stated Crumbley made threats about shooting the police. It was also rumored that Crumbley had drug connections. Having all this information, the troopers went to Crumbley's house. Upon their arrival, Crumbley came out of the house screaming and threatened a shootout. He had nothing in his hands but threatened to get a weapon. Crumbley went between the yard where the troopers were and the house, threatening to get a weapon and shoot the troopers. Crumbley pulled down his pants to expose his genitals while spinning in a circle. Crumbley then got a shovel, threatened the troopers with it, then ran, throwing the shovel. Trooper Cornelius fell in the snow. When Trooper Elliott turned a corner, he saw Crumbley turned away from him. Crumbley then abruptly turned toward Trooper Elliott and began to raise his hands, causing Trooper Elliot to believe that he might have a gun. Trooper Elliott shot Crumbley, killing him. Crumbley did not have a gun.

In a civil suit under 42 U.S.C. 1983, the Fourth Circuit reversed the district court's grant of qualified immunity to Trooper Elliott. The court noted that the fact Crumbley was shot in the back raised a genuine factual dispute regarding Trooper Elliot's version of events. The disputed facts might show a violation of a clearly established constitutional right (excessive force) and therefore qualified immunity on summary judgment was not proper and the district court's grant of qualified immunity was reversed.

United States v. Hobbs
Court: US Court of Appeals for the Fourth Circuit
Opinion Date: February 1, 2022

Cell Phone Ping, Exigent Circumstances, Emergency Exigency

Erick Hobbs' former girlfriend, Jaquanna Foreman, called Baltimore County police around 7:00 p.m. and stated that Hobbs had come to the back of her home, brandished a semi-automatic handgun, and used the gun to break a window. Hobbs then forcibly entered the home, removed a television, and threatened to kill Foreman and her seven-year-old daughter and other family members. Hobbs then stated if Foreman contacted the police, he would kill any responding officers. Foreman told detectives Hobbs had a criminal record and she had previously seen him armed with assault rifles and that he was "obsessed with firearms." Detective Nesbitt verified that Hobbs had a violent criminal history and concluded that there

was “an extreme urgent threat.” Around midnight, he submitted an “exigent form” to T-Mobile, Hobbs’ cell phone provider. T-Mobile responded with real-time “pings” that alerted Nesbitt to Hobbs’ general location. Another detective used call logs obtained from T-Mobile to determine which of Hobbs’ associates lived within the geographical range of each “ping.” About six hours after the domestic incident, officers attempted a traffic stop of Hobbs’ vehicle. Hobbs tried to flee but collided with a parked vehicle. Officers placed Hobbs under arrest and recovered a loaded handgun. Later that night, Detective Nesbitt secured a search warrant for Hobbs’ car, and two days later obtained a search warrant for the same cell phone information obtained earlier pursuant to the “exigent form.” The police also executed a separate search warrant for Hobbs’ residence and seized 65 rounds of ammunition from his home.

Hobbs moved to suppress evidence of the firearm, arguing that the exigent circumstances exception to the warrant requirement did not justify the use of the cell phone “pings” and call logs. This was a case of first impression for the Fourth Circuit as they had never determined whether the exigent circumstances exception applied in the context of police using a cell phone ping along with call logs from a suspect’s cell phone. The court embraced the Second Circuit’s analysis applying the emergency exigency to cell phone pings. The court held that the officers reasonably concluded that Hobbs was armed and dangerous, that he posed an imminent threat to Foreman, to her family members, and to law enforcement officers, and that these exigent circumstances required them to seek the cell phone location information from T-Mobile without delay. Accordingly, the Fourth Circuit affirmed the denial of the motion to suppress.

United States v. Martinez
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: February 1, 2022

United States Postal Inspector Gary Arias was contacted by a postal employee at the USPS facility in El Centro, California, regarding two suspicious packages. The postal employee informed Arias that: (1) the mailer paid the postage fees for the packages with cash; (2) the information on the shipping labels was handwritten; (3) the handwriting on the shipping labels for the two packages appeared identical, as though the same person filled out both shipping labels, yet the purported senders’ names on the labels were different; (4) both packages were being sent to the same area, Shreveport, Louisiana, but to different addresses there; and (5) the man1 paying the postage fees appeared to be anxious or nervous and did not engage the postal employee in conversation. Based on this information, Arias requested that the packages be forwarded to him at the San Diego field office for further investigation.

Two days later Arias received the packages. He examined the outside of the packages and observed that the size, shape, and appearance of the packages were consistent with USPS drug package profile characteristics. Arias also used a database to check the names and addresses written on the shipping labels of the two packages. Although the database was able to locate the addresses, it was unable to associate the names to those addresses. This information indicated to Arias that that the names provided on the labels did not receive mail at and were

not otherwise associated with the addresses. Six days later, Arias contacted a border patrol officer to perform a canine sniff of the packages. Arias was unable to arrange for a canine examination prior to that date because he had to work on other cases, and he missed work due to illness. The dog alerted to both packages, indicating that the odor or aroma of one or more controlled substances emanated from the packages. Eight days later, Arias obtained search warrants and searched the packages, discovering 2,222 grams of methamphetamine inside.

Martinez moved to suppress the packages and their contents, arguing that the packages were seized in violation of the Fourth Amendment. Martinez argued Arias did not have the requisite reasonable suspicion to detain the packages, that the 17-day delay between the detention of the packages and their search was unreasonable, and that the probable cause determination made on the warrants was invalid because they contained incorrect information.

The Fifth Circuit affirmed the district court's denial of defendant's motion to suppress the drugs found in two packages. Based on the aggregate of factors, and contrary to defendant's contentions, the court concluded that the postal employee had reasonable suspicion to detain the packages. The court also concluded that the 17-day delay between the detention of the package and its search did not constitute an unreasonable, warrantless seizure in violation of the Fourth Amendment. The court noted that the relevant factors to consider in determining reasonableness include investigatory diligence, the length of the detention, and whether there were circumstances beyond the investigator’s control. Under the facts in this case, the eight-day delay between the establishment of probable cause and obtaining the search warrants was reasonable. Finally, defendant's argument that the search warrants were invalid is meritless. Accordingly, the court affirmed defendant's conviction and sentence.

Blue Key Case for USPS packages: United States v. Van Leeuwen, 397 U.S. 249 (1970)

United States v. Cooper
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: February 3, 2022

Inevitable discovery, protective sweep

Several law enforcement agencies executed a warrant for Cooper’s arrest on suspicion of firearms and narcotics charges. Among them was the Shelby County Sheriff’s Department Fugitive Apprehension Team, which had been called in to assist. At a pre-arrest meeting, the Team learned that Cooper was known to be a high-ranking gang member; and the Team was shown a Facebook photo of Cooper holding a Glock handgun with a fully loaded high-capacity magazine. Officers from the Team and other police agencies traveled to the home of Cooper’s girlfriend, Angel Walton, where they expected to find Cooper.

When Officer Joshua Fox knocked on the door, Walton answered. Through the doorway, Fox saw Cooper sitting on the living room couch. Concerned about spooking Cooper into fleeing,

Fox showed Walton a photograph of another individual (someone he knew was not at Walton's home) and asked if that person was there. Walton, as expected, said "no." Fox nonetheless asked whether he could come inside to look for the individual, and, according to Fox's later testimony, Walton agreed.1 Fox proceeded to arrest Cooper while the rest of the officers—at least five more—rushed into the home and spread out to conduct a protective sweep. Aiming to discover any armed confederates who might ambush them, the officers swiftly checked each room of the house, "wherever a body could hide." Jeffrey Jensen, the officer checking the back bedroom, noticed a lump in the mattress, flipped it over, and discovered the Glock handgun depicted in Cooper's Facebook post.

As soon as Jensen called out his discovery, Fox retrieved rights-waiver and consent-to-search forms from his vehicle. He went over both with Walton. The first form listed Walton's Miranda rights and included spaces to fill in information about the recently found firearm; the second asked whether Walton consented to a search of her home. Walton placed her initials next to lines stating that she was consenting freely, that she had not been threatened or coerced, and that she had been treated fairly. With Walton's consent, officers conducted a more thorough search but recovered only a hat matching the one Cooper had been wearing in his Facebook photo.

Charged with possessing a firearm as a felon, 18 U.S.C. 922(g), Cooper unsuccessfully moved to suppress the gun. The district court concluded that although the protective sweep was unlawful, Walton's subsequent consent was voluntary, that her consent was sufficiently attenuated from the illegal sweep, and that officers would have inevitably discovered the gun in the lawful consent search.

The Sixth Circuit vacated and remanded, noting that the district court largely engaged in an attenuation analysis focused on whether Walton's subsequent consent was sufficiently attenuated from the illegal protective sweep. The court held that this was the wrong analysis. The gun was seized during the initial unlawful search, so inevitable discovery is the correct analysis. On remand, the court should focus on whether officers would have sought and obtained Walton's consent to search If the illegal protective sweep had never happened and whether the ensuing consent search would have led to the gun.

United States v. Skaggs
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: February 2, 2022

Border Search, Search of Digital Storage Device, Cellphone Search

Skaggs was charged with 12 counts related to his production and possession of child pornography, based on evidence found in thumb drives seized from him during a warrantless border search at Minneapolis-St. Paul International Airport. The district court denied a motion to suppress, convicted Skaggs of all counts. Believing a life sentence was mandatory because of

his prior state conviction for sexual misconduct with a minor, the court sentenced him to life in prison. The Seventh Circuit affirmed. No court has ever required more than reasonable suspicion for a border search An investigation revealed that Skaggs had a prior sexual misconduct conviction; traveled abroad multiple times and was involved with overseas orphanages; posted suggestive pictures on Facebook of himself with young girls; was the director of Ukrainian Angels, whose name appeared to be borrowed from a well-known child pornography website; and was suspected of child sex tourism and traveling to Ukraine to meet minors. Skaggs lied during his customs interview, stating that he had no thumb drives with him. These facts, taken together, give rise to reasonable suspicion of criminal activity. The district court said it would have imposed a life sentence in any event and discussed the section 3553(a) factors that supported the sentence, any error was harmless.

10FEB2022 CASE SUMMARIES

United States v. Patterson

Court: US Court of Appeals for the Second Circuit

Opinion Date: February 4, 2022

Tags:

At a gas station, police detained the vehicle that Patterson was driving because it fit the description of a car whose occupants had reportedly menaced a woman with a firearm in a nearby supermarket parking lot. They discovered a gun. Patterson was charged as a felon in possession of a firearm, 18 U.S.C. 922(g)(1). The district court granted Patterson's motion to suppress the firearm, stating that the degree of force used in detaining Patterson's vehicle and its occupants—pointing firearms at, shouting orders toward, and blocking an exit route for the vehicle—exceeded that permissible for a reasonable investigatory stop and had to be viewed as a de facto arrest; the arrest was unlawful because, when first effected, it was not supported by probable cause; and the firearm seized from the car's glove compartment after Patterson fled the scene had to be suppressed as a fruit of the unlawful arrest. The Second Circuit reversed. Patterson's initial detention in the vehicle was not an arrest but an investigatory stop supported by the requisite reasonable suspicion. Pointing firearms at, shouting toward, and blocking an exit route for the vehicle driven by Patterson, were reasonable safety precautions given that the officers were investigating a report of menacing with a firearm.

Gambrel v. Knox County

Court: US Court of Appeals for the Sixth Circuit

Docket: 20-6027

Opinion Date: February 8, 2022

Judge: Murphy

Areas of Law: Civil Rights, Constitutional Law, Criminal Law

Mills and his ex-wife struggled with drug addictions and neglected their four children. The children's maternal grandparents obtained custody of the children. Around 10:00 p.m. on June 29, 2016, Mills showed up unannounced at their home, picked up his two-year-old daughter and carried her outside, then drove away with the child. The grandparents called the police. Mills ran out of gas, abandoned his vehicle, and walked up the road carrying his daughter. Officers arrived and ordered Mills to stop, but he ignored their commands. Mills fell and released the girl. Officers engaged in a five-minute struggle with Mills, using a taser, striking Mills with a flashlight, kneeing Mills in the face and head, and repeatedly hitting Mills with a baton. An officer eventually shot Mills twice, killing him. According to the officers and bystanders Mills had threatened to harm the officers, fought them with "super-human" strength, and charged at them. One bystander later claimed that the officers brutally beat Mills although Mills did not resist and that they could have easily handcuffed him. In a suit under 42 U.S.C. 1983, the Sixth Circuit reversed, in part, summary judgment in favor of the officers. The testimonial dispute instead raises a classic jury question. Even accepting the testimony, however, the officers are entitled to qualified immunity with respect to their initial use of force to recover the child, and the local government is entitled to summary judgment on the federal claim.

Commonwealth v. Carrasquillo

Court: Massachusetts Supreme Judicial Court

Opinion Date: February 7, 2022

Tags:

The Supreme Judicial Court affirmed the superior court judge denying Defendant's motion to suppress a video recording Defendant published to his social media account that showed an individual seen from the chest down holding what appeared to be a firearm, holding that no search in the constitutional sense occurred. After accepting a friend request from an undercover police officer, Defendant published the video at issue to his social media account. The officer made a recording of the posting, and that recording was used in the criminal proceedings against Defendant. The trial judge concluded that no search had occurred and denied Defendant's motion to suppress. The Supreme Court affirmed, holding that Defendant did not retain a reasonable expectation of privacy in his social media stories

State v. Grassrope

Court: South Dakota Supreme Court

Opinion Date: February 9, 2022

Tags:

The Supreme Court affirmed the magistrate court's decision granting Defendant's motion to suppress, holding that the magistrate court did not err in determining that the community caretaker exception to the Fourth Amendment did not apply. After Sioux Falls dispatch received a call from a six-year-old boy saying that "daddy was being mean to mom" and that his dad was leaving to go to his car an officer followed the dad (Defendant) in his automobile. The officer initiated a traffic stop and, after further investigation, placed Defendant under arrest for driving under the influence and driving with a suspended license. Defendant filed a motion to suppress, arguing that the officer stopped his car without probable cause or a reasonable and articulable suspicion. The magistrate court granted the motion to suppress. The Supreme Court affirmed, holding that the officer's actions were beyond the scope of a community caretaker, and therefore, Defendant's motion to suppress was properly granted.

Wood v. Eubanks

Court: US Court of Appeals for the Sixth Circuit

Opinion Date: February 8, 2022

Tags:

Wood wore a shirt bearing the words “Fuck the Police” to the county fair. According to Wood, police officers ordered him to leave and escorted him from the fairgrounds because of his shirt. While leaving, Wood made several coarse insults directed to the police and the fairground’s administrator. The officers then arrested Wood for disorderly conduct. After the charges were dismissed, Wood filed a 42 U.S.C. 1983 action against the officers, alleging false arrest and retaliation. The district court granted the defendants summary judgment, citing qualified immunity on the false arrest claim and insufficient evidence of retaliation. The Sixth Circuit reversed. Wood’s speech was protected by the First Amendment. With respect to the retaliation claim, the court held that a reasonable jury could conclude the officers were motivated to surround Wood and require him to leave in part because of his shirt. While Wood’s speech was profane, the circumstances did not create a situation where violence was likely to result. Neither proximity nor Wood’s demeanor and volume provided probable cause for arrest. Because there was no probable cause to arrest Wood for disorderly conduct, and because Wood’s right to be free from arrest was clearly established, the officers are not entitled to qualified immunity.

Powell v. Snook

Court: US Court of Appeals for the Eleventh Circuit

Opinion Date: February 8, 2022

Tags:

Defendant, a police sergeant who was at the wrong house because of imprecise dispatch directions, shot and killed William David Powell, who was innocent of any crime and standing in his driveway. Powell was holding a pistol because he and his wife thought they had heard a prowler. Powell's wife filed a 42 U.S.C. 1983 action against defendant in his individual capacity, alleging that he violated her husband's constitutional right to be free from excessive force. The Eleventh Circuit affirmed the district court's grant of defendant's motion for summary judgment based on qualified immunity, concluding that plaintiff has not identified case law with materially similar facts or with a broad statement of principle giving defendant fair notice that he had to warn Powell at the earliest possible moment and before using deadly force. Therefore, she has not met her burden of showing qualified immunity is not appropriate. The court stated that plaintiff has not shown that defendant's actions were unreasonable for qualified immunity purposes.

Washington v. Howard

Court: US Court of Appeals for the Eleventh Circuit

Opinion Date: February 7, 2022

Tags:

The Eleventh Circuit affirmed the district court's grant of summary judgment in favor of defendant based on qualified immunity in a 42 U.S.C. 1983 action. Plaintiff alleged that defendant violated her right to be free from unreasonable seizures under the Fourth and Fourteenth Amendments because there was no longer probable cause to support her detention when the perpetrator said, "[T]hat's not her." The court concluded that plaintiff cannot prove that defendant violated her constitutional rights for three reasons: first, plaintiff's continued detention was supported by probable cause; second, defendant was entitled to rely on a facially valid and lawfully obtained warrant; and third, defendant did not take an affirmative action to continue the prosecution.

18FEB2022 Cases

United States v. Pimentel
Court: US Court of Appeals for the First Circuit
Opinion Date: February 17, 2022

Tags: Search Warrant Execution, Scope of Search

The First Circuit affirmed Defendant's conviction for being a felon in possession of a firearm, holding that the district court did not err in denying Defendant's motion to suppress. Upon executing a no-knock search warrant following reports of discharged shots the police found two shotguns and related paraphernalia in Defendant's bedroom. In his motion to suppress, Defendant argued that the police exceeded the scope of the warrant by searching his bedroom, which was located on the third floor of the building, because the searched warrant was for "88 Foundation St. 2nd floor." The district court denied the motion, concluding that the good-faith exception to the exclusionary rule applied. The First Circuit affirmed, holding that the officers reasonably believed that the warrant permitted the search of Defendant's third-floor bedroom.

United States v. Russell
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: February 16, 2022

Tags: Vehicle Passenger, Lack of Standing

Russell was a passenger in a car that the East Cleveland Police stopped and searched. They found two handguns, which resulted in a felon-in-possession charge for Russell. After the denial of his motion to suppress, Russell entered a conditional guilty plea. The Sixth Circuit affirmed his conviction. To assert a Fourth Amendment claim, Russell must have “standing” to challenge the search; normally a car passenger without a possessory interest in the car lacks such standing. The government failed to object to Russell’s lack of standing before the district court and raised the argument for the first time on appeal. Fourth Amendment standing, unlike Article III standing, is not jurisdictional and can be forfeited or waived. The government’s failure to raise the argument below was a forfeiture, not a waiver because the government took no steps to “expressly abandon” its objection. Under Sixth Circuit precedent, the government can raise a forfeited argument for the first time on appeal and prevail if it satisfies the plain-error inquiry under Fed.R.Crim.P. 52(b). The government satisfied that test. Even if the government did not object, Russell had at least some burden to establish standing. Allowing Russell to benefit from the exclusionary remedy would lead to a rightfully diminished view of the judicial proceeding.

Taylor v. Hughes
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: February 16, 2022

Tags: No qualified immunity for unreasonable premises search on defective warrant.

A John Doe informant stated that Taylor had showed the informant a gun inside Taylor’s apartment. Taylor was a felon. Chicago police officer Hughes secured a warrant to search Taylor’s apartment. On the record, no one knows Doe’s real name, contact information, or why he came forward Doe knew how

to get to Taylor's apartment, but not his address. Hughes made an incorrect guess. Officers entered Taylor's apartment, which was not the apartment listed on the warrant. Officers found mail addressed in his name from which they learned the correct address. They found a different gun than was described by Doe. Officers found no evidence directly connecting Taylor to the bedroom in which the gun was found. Hughes initiated an alert for Taylor's arrest. Taylor turned himself in and spent four months in jail before a court found the warrant invalid based on the address error and quashed his arrest. Despite Taylor's acquittal, the arrest alert remained active. A month later, Taylor was again arrested. Taylor filed suit, 42 U.S.C. 1983. The district court granted the defendant summary judgment. The Seventh Circuit affirmed as to officers who were not involved in procuring the warrant and affirmed summary judgment for the city on Taylor's Monell claims relating to the investigative alerts policy and policy with respect to John Doe informants. The court reversed the grant of summary judgment for Hughes and remanded for a determination of damages. Hughes is entitled to good-faith immunity only if he could have "reasonably believed" that the search was authorized by a valid warrant. Hughes told the judge that he knew Taylor's address; he did not. Hughes stated that there was probable cause to believe drugs would be found in the apartment; there was not.

Craig v. Martin
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: February 15, 2022

Tags: Use of Force, Basic Force, Body Camera Video, Qualified Immunity

Officer Martin responded to a call about neighbors throwing trash in the caller's yard. A subsequent 911 call came from the man's neighbor, Craig, complaining that the man had grabbed her son by the neck because the boy had allegedly littered. Martin activated his body camera at the scene. Martin got into a verbal altercation with Craig; Craig's 14-year-old, 15-year-old, and adult daughters became involved. Martin used physical force to get them into his squad car. Craig and her children sued Martin for unlawful arrest and excessive force. Craig also sued Martin on behalf of her another minor child, alleging injuries suffered as a bystander. The district court dismissed A.C.'s claim as incognizable; it dismissed the remaining claims for unlawful arrest, holding Martin was entitled to qualified immunity. The court denied Martin qualified immunity on the excessive force claims, concluding that the video evidence submitted by Martin was "too uncertain." The Fifth Circuit reversed the denial of qualified immunity on the excessive force claims, expressing no opinion on the dismissal of the other claims. Martin's actions were sufficiently measured in relation to the plaintiffs' resistance. Martin's conduct was not objectively unreasonable and did not violate any of their Fourth Amendment rights. Plaintiffs failed to provide any controlling precedent showing that Martin's particular conduct violated a clearly established right.

Wade v. Ramos
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: February 17, 2022

Tags:

The Wades live in a second-floor apartment; the first-floor unit is a short flight of stairs up from ground level. Chicago Police officers were seeking Johnson, a purported heroin dealer. A confidential informant had identified the "second floor" of the Wades' building as Johnson's place of operations. Johnson

actually lived on the first floor. No officer confirmed Johnson’s address, surveilled the building, or checked whether anybody else was living in the second-floor unit. Officers obtained a warrant for that unit, ascended both staircases, and kicked in the door. Wade was out. A family friend, Dotson, was at the apartment. Dotson’s account differs from police accounts. Dotson alleges that an officer planted narcotics on his person The officers say that upon entering the apartment they found Dotson and Nero inside. Both fled. Officers caught them on the back porch. Video evidence of the events was lost. A thorough search of the Wades’ apartment turned up no drugs. Large quantities of narcotics were discovered in the downstairs unit. The district court rejected the Wades' suit on summary judgment. Dotson’s claims were settled. The Seventh Circuit affirmed. The Wades have not identified evidence that would allow a reasonable fact-finder to decide in their favor, Given the facially valid warrant and the lack of immediately self-evident ambiguity, the officers were entitled to enter the Wades’ apartment to search.

STATE LAW CASES

Commonwealth v. Comenzo
Court: Massachusetts Supreme Judicial Court
Opinion Date: February 11, 2022

Tags: Pole Camera, Mosaic Theory of Searches

The Supreme Judicial Court affirmed the order of the denying Defendant's motion to suppress evidence obtained after surveillance was conducted at Defendant's apartment building via a hidden video camera placed on a nearby public utility pole, holding that although the pole camera surveillance constituted a warrantless search under article 14 of the Massachusetts Declaration of Rights, it was nevertheless constitutional. Defendant was indicted on child pornography charges. After the surveillance at issue in this case took place but before the superior court decided Defendant's motion to suppress, Commonwealth v. Mora, 485 Mass. 360 (2020) was decided. In Mora, the Supreme Judicial Court decided that pole camera surveillance could, under certain circumstances, constitute a search requiring a warrant. After the motion to suppress in this case was decided, Defendant brought an interlocutory appeal. The Supreme Judicial Court affirmed the order denying Defendant's motion to suppress, holding (1) the pole camera surveillance constituted a search; but (2) probable cause existed to conduct the pole camera surveillance prior to the time the search began.

BF 25FEB2022

Wilson v. City of Bastrop

Fifth Circuit

Opinion Date: February 21, 2022

Tags: Use of Force, Deadly Force

One of two reports of an armed confrontation at the Eden Apartments identified one perpetrator as "Thomas Johnson," who was driving a red truck with rims. Officer Green responded and encountered a stationary red truck near an elementary school, which had been closed for months. When Green exited his car, Johnson stepped out holding a semiautomatic pistol with an extended magazine. His brother was driving. Johnson ran toward the school. As vehicles passed nearby, Green drew his weapon and yelled, "Drop the gun!" Johnson continued to run, Green fired at him. Green chased Johnson into an open field and continued to chase Johnson, ordering him to drop the gun and instructing onlookers to lie on the ground. Officer McKinney, at the opposite side of the field, saw Johnson outrunning Green. Johnson changed direction toward a neighborhood. Johnson ignored orders to stop. McKinney fired at Johnson, who continued to flee. Both officers gave chase, repeatedly ordering Johnson to stop and drop the gun. When in range, both officers shot. Johnson fell and dropped his gun. Johnson died on the scene. In a suit under 42 U.S.C. 1983, the court granted the officers summary judgment based on qualified immunity. The Fifth Circuit affirmed in part. The use of deadly force was not constitutionally excessive. The officers could have reasonably believed that Johnson threatened them and others with serious physical harm.

United States v. Buster

Fourth Circuit

Opinion Date: February 22, 2022

Tags: Terry Frisk

Officers approached Buster as he was walking; 30 minutes earlier, the officers had responded to "a domestic assault where a firearm discharged in the air." The officers believed Buster matched descriptions of the assailant and that he was the person they had seen outside the victim's apartment earlier. Buster declined to stop and eventually ran but tripped. The officers tackled him. Buster was wearing a cross-body bag. The officers pulled the bag to Buster's back and handcuffed him. Buster said the strap was choking him. An officer cut the strap, removed the bag, which felt "[h]ard to the touch," then opened the bag and found a gun and ammunition. The officers questioned Buster without giving the Miranda warnings. At the police station, an officer gave Buster the Miranda warnings, and elicited "'essentially' the same material discussed in the pre-Miranda interview." The government agreed not to use the pre-Miranda statements. The court suppressed Buster's post-Miranda statements, as "the product of an impermissible two-step interview tactic" but concluded the initial stop was valid and that "the pat-down of Buster's person and the search of his bag were reasonable." Buster was sentenced to

51 months' imprisonment. The Fourth Circuit reversed. The "Terry" exception does not cover a warrantless search of a bag recently possessed by a person who was—by the time the bag was opened— handcuffed and face-down on the ground.

United States v. Alloway

Eighth Circuit

Opinion Date: February 22, 2022

Tags: Consent, Scope of Consent

The Missouri Division of Family Services (DFS) hotline received a call reporting drug activity, verbal abuse of children, and weapons at the house where Alloway lived with her boyfriend and his children. A DFS social worker went to the house for a welfare check, accompanied by sheriff's deputies. Alloway met them outside. They stated the reason for their visit. Alloway invited them into the house and told them to wait in the kitchen while she went upstairs to get the older child. While the social worker interviewed the child, a deputy saw three loaded rifles. Where those rifles were was disputed. After confirming that Alloway was a felon, he arrested her. Alloway's boyfriend stated that he was also a felon and that there was another gun in the bedroom safe. He refused to open the safe and was also arrested. While the deputies were on the phone getting a search warrant for the safe, they spotted more guns in plain sight in the bedroom. They obtained and executed two search warrants, finding 13 guns, 125 grams of meth, and other drug evidence. The Eighth Circuit affirmed the denial of a motion to suppress. Alloway consented to the search, and the deputies did not exceed the scope of that consent.

State v. Rincon

Court: Iowa Supreme Court

Opinion Date: February 18, 2022

Tags: Automobile Exception

The Supreme Court affirmed Defendant's conviction that arose from the search of her backpack after police officers encountered a stolen car parked with the engine running, holding that the district court did not err in denying Defendant's motion to suppress. Defendant was one of the three backseat passengers in the parked car at issue. The officers observed an open bottle of liquor on the driver's seat and another open container of liquor standing on the rear seat floorboard. When the passengers were directed to exit the vehicle Defendant took her backpack with her. An officer took the backpack, noticed a bag of marijuana, and discovered illicit drugs in a subsequent search. The district court denied Defendant's motion to suppress the results of the search of her backpack on the basis of the automobile

exception. The Supreme Court affirmed, holding that the district court properly denied Defendant's motion to suppress.

State v. Stevens

Court: Iowa Supreme Court

Opinion Date: February 18, 2022

Tags: Probable Cause, Arrest, Unlawful Search of Passenger, K9< Vehicle Search

The Supreme Court reversed the judgment of the district court denying Defendant's motion to suppress evidence of methamphetamine found in his coat pocket during a traffic stop, holding that the search was unconstitutional, and therefore, the district court erred in denying Defendant's motion to suppress. Defendant was a backseat passenger in a car driven by his brother that was pulled over for a traffic violation. On appeal, Defendant argued that the officer who found methamphetamine in his coat pocket lacked probable cause to search him after a canine indicated drugs were present in the car. The Supreme Court agreed and reversed the denial of Defendant's motion to suppress and vacated his conviction, holding (1) the officers lacked probable cause to arrest Defendant before they searched his person; and (2) therefore, the district court erred by denying Defendant's motion to suppress the evidence found from the unconstitutional search.

CASES – 4MAR2022

Moser v. Etowah Police Department
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: March 3, 2022

Tags: Use of Force, Active Resistance

Plaintiff Linda Moser lived with her daughter Johnnie Moser. One night in September 2017, Johnnie Moser fled to a neighbor's house after Johnnie's boyfriend, James Ferguson, physically assaulted Johnnie. The neighbor, Charles Bearden, reported the domestic violence to the police, and Officers Tim Davis and Austin Parton from the Etowah Police Department were the first to arrive at Bearden's house. Parton spoke with Johnnie Moser and Bearden to gather information about the incident, and Davis conducted a sweep of the outside of Bearden's house to look for the suspect. Johnnie Moser identified Ferguson as her assailant and gave Parton a physical description of Ferguson.
Back at the Mosers' house, Ferguson entered Linda Moser's bedroom, woke her, and asked for Johnnie Moser's keys. Ferguson told Linda Moser that her daughter had run off, and Linda Moser immediately got up and ran outside looking for her daughter. Linda Moser ran toward Bearden's house after spotting an ambulance headed in that direction. Ferguson followed Linda Moser to Bearden's house and, when they both reached the porch of the house, Officer Parton recognized Ferguson as the individual that Johnnie Moser had identified as her assailant.
Parton also observed that Linda Moser was visibly upset and attempted to calm her down by telling her that her daughter was okay. Parton directed Moser to take a seat on the porch while she waited to see her daughter, but Moser did not comply with these directions. Having recognized Ferguson as the assailant, Parton stepped toward Ferguson and told him to turn around and place his hands behind his back. When Parton moved to detain Ferguson, Moser shouted "no" repeatedly, told the officers to leave Ferguson alone because he had not done anything, and stated that Ferguson was with her. Officer Davis was standing out in the yard observing the situation and began moving toward the porch as Moser started yelling. While Parton was attempting to detain Ferguson, Moser placed a hand on Parton. A firefighter on the porch moved toward Moser, presumably to separate her from Parton. Davis then stepped onto the porch, grabbed Moser, and took her to the ground on the porch. Davis stated repeatedly "you don't grab my guy." The body-camera footage does not clearly depict how Davis took Moser to the ground, but Moser claims that Davis grabbed her hair and threw her to the ground. Moser immediately stated that she was hurt.
Moser claims that, once Davis took her to the ground on the porch, he placed his knee on her back and applied his full weight to pin her down. The body-camera footage indicates that Davis could have kneeled on Moser for up to twenty-three seconds, and the footage does not clearly contradict Moser's claim that Davis kneeled on her. Despite this ambiguity in the body- camera footage, Davis asserts that the footage proves he did not press his torso on Moser and that he therefore could not have placed his full body weight on her. But the body-camera footage shows a shadow of Davis's figure that could depict him putting his leg or knee on Moser. Exh. 5, 10:41. Moser remained on the ground until she went to the hospital. At the hospital, Moser learned that she had a fractured hip and femur.

. The district court granted summary judgment to Davis and the City of Etowah for all claims against them. In relevant part, the district court ruled that neither taking Moser to the ground nor pinning her to the ground amounted to excessive force because Moser was actively interfering with Parton's

attempt to arrest Ferguson. In the alternative, the district court ruled that Davis was entitled to qualified immunity because it was not clearly established that either action constituted excessive force.

On these facts, which of course may ultimately be rejected in whole or part by the jury, Davis violated a clearly established constitutional right, and Davis was therefore not entitled to summary judgment on the excessive-force claim. Of course, to prevail on an excessive-force claim, Moser must show that Davis's use of such force amounted to a violation of Moser's clearly established constitutional rights. Pearson v. Callahan, 555 U.S. 223, 232 (2009). By September 2017, it was clearly established in this circuit that a person has a constitutional right to be free from injury-threatening physical force when he or she is not actively resisting the police, and Davis violated this right by taking Moser to the ground with such force that she broke two bones and then pinning her to the ground. Put another way, since a reasonable juror could conclude that Davis knew Moser was not actively resisting arrest, Davis was not entitled to throw Moser to the ground and pin her there.

Davis argues that Moser actively resisted arrest because she admits that she touched Parton and simultaneously raised her other hand, which held her cell phone, somewhere around Parton's head. But some physical contact does not automatically rise to the level of active resistance. In Smith v. City of Troy, we concluded that a jury must decide whether a suspect's pulling his arm away from an officer during a hand-to-hand encounter was active resistance or minimal resistance. 874 F.3d 938, 945 (6th Cir. 2017). A reasonable juror could likewise conclude that Moser offered minimal resistance when she touched Parton's arm and raised her cell phone.
Davis also contends that Moser actively resisted arrest because she was refusing to obey Parton's commands and yelling at Parton to leave Ferguson alone. But Moser's yelling at Parton did not evidence an intent to physically interfere with the arrest. It is true that a person's non- compliance with officer's directions may rise to the level of active resistance when combined with "verbal hostility" or "a deliberate act of defiance."

a reasonable juror could conclude that her statements did not evidence an intent to physically prevent Parton from arresting Ferguson nor did they evidence an intent to physically harm Officer Parton.

Reversed and Remanded

Palma v. Johns
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: February 28, 2022

Tags: Use of Force, Mental Illness, Least Force Necessary

Deputy Johns shot and killed Palma after responding to a 9-1-1 call at Palma's home. Johns knew that there was a dispute about the television and that Palma suffered from mental health issues. Arriving, Johns saw Palma standing outside with his hands in his pockets. Palma did not respond to greetings but began walking toward Johns. Johns repeatedly told Palma to stop and take his hands out of his pockets. Palma did not respond. Johns radioed for backup with "intermediate" priority. Johns warned Palma he would use his taser. Palma did not stop. Johns tased him twice before Palma fell down. As Palma got up, Johns tased him again. Palma walked toward Johns, still not responding to commands. Johns kept retreating; he believed that Palma's intention was to "perhaps obtain [his] weapon." Johns pointed his

gun at Palma, who did not stop. Johns first shot Palma's leg. Palma continued to walk toward Johns, who continued shooting until Palma "no longer came towards [him]." Palma never spoke and never reached toward Johns. Palma was unarmed. The encounter lasted eight-10 minutes. In a suit under 42 U.S.C. 1983, the Sixth Circuit reversed summary judgment of qualified immunity. There are genuine disputes of material fact; a reasonable jury could find that Johns used excessive force when he shot at Palma. In cases involving mental health crises, officers should use the least force necessary to subdue the person.

United States v. Hansen
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: March 3, 2022

Tags: Trash Pull

Officer Deaver learned Hansen's girlfriend had purchased a shotgun, listing her address as the home she shared with Hansen. Knowing Hansen had a prior felony conviction, Deaver rode to the property, on a pickup day, in a garbage truck operated by J&J Sanitation. Deaver retrieved a trash container outside the garage and emptied the contents. Officers sorted the trash and found gun catalogs, a plastic baggie containing marijuana, and a transaction history documenting Hansen's purchases of gun parts. A Nebraska state judge issued a warrant authorizing a search of Hansen's residence, where law officers seized firearms and ammunition. Charged as a felon in possession of a firearm, Hansen unsuccessfully moved to suppress the evidence and sought a "Franks" hearing, alleging that Deaver omitted material information from the warrant affidavit when he failed to mention that his trash container was located on private property. Hansen asserted he had an agreement with J&J not to pick up his trash unless he moved the container "to a public property location" 200 feet from his garage. Hansen claimed he told J&J not to use the "driveway" leading to his house. The district court sentenced Hansen to 36 months' imprisonment. The Eighth Circuit affirmed, noting that it was not clear whether the trash was beside a private driveway or a public street and that Deaver had no way of knowing about any agreement Hansen might have had with J&J.

United States v. Sandell
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: March 3, 2022

Tags: Custody for Miranda Purposes

During an investigation of a peer-to-peer computer file-sharing network being used to acquire child pornography, officers learned from Sandell's neighbor that Sandell had asked to use their Wi-Fi to access the internet to register his sex offender status. Officers knocked on Sandell's door, identified themselves, conducted a sweep of the home, then asked Sandell where he would like to talk. Sandell invited them inside. The officers explained they were attempting to obtain a search warrant for Sandell's home but that Sandell was not under arrest, was not obligated to talk to them, and was free to leave. Officers supervised Sandell while he moved around the house. Sandell admitted to downloading child pornography. He voluntarily turned over a camera and thumb drives, stating that he was likely facing 15 years' imprisonment. The officers ultimately obtained a warrant and collected Sandell's laptop, thumb drives, and DVDs. Sandell was later charged with distribution, receipt, and possession of child pornography. Sandell unsuccessfully moved to suppress statements made at his home. The Eighth

Circuit affirmed. Sandell was not in custody; the officers did not need to advise Sandell of his Miranda rights. Officers informed Sandell repeatedly he was not under arrest and was not obligated to speak to them. Sandell retained his freedom of movement and voluntarily answered questions. Officers did not use strong-arm or deceptive tactics. Sandell was not immediately arrested.

Buehler v. Dear
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: March 3, 2022

Tags: First Amendment, Interference with Police, Use of Force

Plaintiff, a police accountability activist, was arrested on crowded Sixth Street in downtown Austin while "cop watching" (video-recording police activity). After plaintiff and police officers had repeated verbal confrontations about how close to them he was permitted to stand while recording, he was arrested for misdemeanor interference with performance of official duties. Four Austin police officers took plaintiff to the ground and handcuffed him, with plaintiff suffering minor bruises and lesions as a result. The Fifth Circuit reversed the district court's denial of summary judgment as to plaintiff's excessive force claim and affirmed the district court's decision in all other respects. The court held that none of the officers involved in plaintiff's arrest used excessive force in violation of the Fourth Amendment. The court also concluded that summary judgment for the officers on plaintiff's false arrest claim was proper; the officers were entitled to qualified immunity on his First Amendment claim; and his bystander and municipal liability claims fail for lack of an underlying constitutional violation.

Ochoa v. City of Mesa
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: February 28, 2022

Tags: Fourteenth Amendment, Purpose-to-Harm Test

The Ninth Circuit affirmed the district court's grant of summary judgment in favor of police officers in a 42 U.S.C. 1983 action brought by plaintiffs, alleging that defendants violated plaintiffs' Fourteenth Amendment rights to companionship and familial association when they shot and killed Sergio Ochoa. Reviewing the district court's decision de novo and viewing the record in the light most favorable to plaintiffs, the panel concluded that the district court selected the correct legal test to assess whether the conduct here shocks the conscience, and it correctly concluded that it does not. In this case, the officers did not have time to deliberate before firing and the district court correctly applied the purpose-to-harm test in order to determine if the officers' conduct shocked the conscience. The panel explained that Ochoa had engaged in a domestic dispute that allegedly involved a gun while possibly under the influence of drugs, he had entered a stranger's home stating that he was armed with knives, he failed to yield to a police car, and drove erratically. Furthermore, Ochoa ignored repeated commands from the officers, refused to drop two kitchen knives, and then took a large step. Therefore, under the purpose-to-harm test, defendants did not violate plaintiffs' Fourteenth Amendment rights. Rather, the officers' actions reflected their attempts to satisfy legitimate law enforcement objectives: apprehension of an armed, dangerous suspect and protection of the safety of the officers, the home’s inhabitants, and the public.

State v. Smith
Court: Utah Supreme Court
Opinion Date: March 1, 2022

Tags:

The Supreme Court reversed the decision of the court of appeals affirming Defendant's conviction and the denial of his motion to suppress, holding that the State did not meet its burden in rebutting a presumptively unreasonable seizure. The police found Defendant sleeping in his car in a McDonald's parking lot. The officers asked Defendant to exit his vehicle and ordered him to perform a field sobriety test. Defendant was subsequently charged with driving under the influence of alcohol. Defendant moved to suppress evidence and statements as a result of his seizure, arguing that his seizure and subsequent searches were unlawful. The district court denied the motion, concluding that Defendant's seizure was justified by the community caretaking doctrine. The Supreme Court reversed, holding that the State did not meet is burden to rebut the presumption of unreasonableness.

CASE 11MAR2022

Hyman v. Lewis
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: March 8, 2022

Tags: Deliberate Indifference, Pretrial Detainee. Medical Care

At the Detroit Detention Center, officers searched Lipford and did not find any contraband. Lipford denied being under the influence of drugs or carrying any medication. At 9:48 p.m., officers placed Lipford in a glass-walled room used to hold multiple detainees awaiting arraignment. Lipford nodded off. He slid to the floor at 11:02 p.m. Lipford laid on the floor motionless until 2:50 a.m. when he was found unresponsive. He was pronounced dead at 3:50 a.m. Hospital staff found cocaine, heroin, and fentanyl, concealed in Lipford's rectum. The jail's operating procedures required that officers conduct rounds every 30 minutes; "physically open the cell doors" and ensure that detainees are actually there; and check "that every detainee is living and breathing." Although Officer Lewis ostensibly made his rounds that night, he did not physically enter the video-arraignment room nor speak with the detainees. Avoiding interaction with detainees was apparently common because detainees would become agitated at officers waking them up.

The district court dismissed claims by Lipford's estate against several defendants. The Sixth Circuit affirmed summary judgment in favor of Lewis. The estate did not establish that a reasonable officer in Lewis's position would have known that Lipford was potentially concealing drugs, subjecting himself to an excessive risk of harm, and that Lewis's ignoring this risk was objectively reckless. Failure to follow internal policies does not, alone, equal deliberate indifference.

From the Case:

Following our recent decision in Brawner v. Scott County, a plaintiff must show "(1) that [the detainee] had an objectively serious medical need; and (2) that [the defendant's] action (or lack of action) was intentional (not accidental) and [that] she . . . recklessly failed to act reasonably to mitigate the risk the serious medical need posed to [the detainee], even though a reasonable official in [the defendant's] position would have known" of that risk. 14 F.4th 585, 597 (6th Cir. 2021). While Brawner is far from clear, we can distill a couple of principles from it. First, Brawner left the "objectively serious medical need" prong untouched. See id. at 591, 597. Second, under the modified second prong, we know that Hyman must prove "more than negligence but less than subjective intent—something akin to reckless disregard." Id. at 596 (citation omitted). And third, we know that the modified second prong asks whether the defendant acted "'recklessly in the face of an unjustifiably high risk' that is either 'known or so obvious that it should be known'" to a reasonable official in the defendant's position. Britt ex rel. Britt v. Hamilton County, No. 21-3424, 2022 WL 405847, at *2 (6th Cir. Feb. 10, 2022) (quoting Brawner, 14 F.4th at 596–97); see also Greene, 22 F.4th at 607.
With those principles in mind, Hyman needed to show that a reasonable officer in Lewis's position would have known that Lipford was potentially concealing drugs, subjecting himself to an excessive risk of harm, and that Lewis's ignoring this risk was objectively reckless. She has not met this burden. First, there is no evidence that a reasonable officer in Lewis's position would have been aware of Lipford's needs. For one, Lipford never suggested to jail staff that he had narcotics in his possession. And no staff member observed Lipford manifesting an overdose while he was at the jail. Further, there were at least three other detainees present in the room when Lipford was discovered, none of whom signaled any

concern that there might be something wrong with him. On these facts, we cannot say that a reasonable officer would have had reason to know of Lipford's needs.

Second, Lewis's actions that night were not reckless. Hyman has pointed to no evidence that Lewis intentionally ignored Lipford's needs. She repeatedly notes that Lewis "intentionally" did not check on Lipford every 30 minutes. That is insufficient. Lewis's admitted intentional violation of jail operating procedures does not mean he intentionally ignored Lipford's needs. Hyman also argues that "Recklessnes [sic] equals gross negligence" under Michigan law. She cites Mich. Comp. Law § 691.1407(8)(a): "'Gross negligence' means conduct so reckless as to demonstrate a substantial lack of concern for whether an injury results." But this is inapt. On the facts before us, Lewis was at most negligent, not grossly negligent or reckless. His failure to open the doors to the video-arraignment room to check on detainees individually violated operating procedures. When asked why he did not physically enter the arraignment room, Lewis provided several reasons, chief among them that officers did not want to irritate inmates by repeatedly waking them up while they were sleeping. While Lewis's actions might have been imprudent, they do not show that Lewis was acting "in the face of an unjustifiably high risk" that any reasonable officer would have known. Lewis made his rounds, looking into the video-arraignment room and monitoring the inmates inside. He had no reason to know that Lipford had concealed narcotics in his body.
Lewis no doubt violated the jail's operating procedures. But "failure to follow internal policies, without more," does not equal deliberate indifference.

Hyman has not shown that any reasonable officer in Lewis's position would have known that Lipford's undisclosed, concealed drugs created an "obvious" and unjustifiably high risk of harm.

United States v. Price
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: March 9, 2022

Tags: Parole Searches, Probation Searches

Price shot and killed a man for which he was convicted of felony aggravated battery. After being convicted of a felony, Price attempted to purchase a firearm. A gunshop clerk ran a background check after Price placed an order and discovered he was a "prohibited person" under 18 U.S.C. 922(g)(1). The clerk then contacted ATF Special Agent Clancy, and gave Price an inoperable magazine shell. Price purchased ammunition. Price later complained the magazine did not fit "his firearm." SA Clancy impersonated a store employee for Price's return and contacted the Indiana Department of Correction. Parole officers arrived at the store and searched Price's vehicle, as authorized by his parole agreement. Inside the vehicle they found a stolen pistol that was loaded. Special Agent Clancy and the parole officers drove Price to his residence. The officers searched, discovered ammunition, and notified SA Clancy. SA Clancy obtained and executed a search warrant for the home, a van parked in the driveway, and an outbuilding. Officers found a firearm and ammunition. A rifle was found in the van.

Indicted for possessing a firearm as a felon, 18 U.S.C. 922(g)(1), Price unsuccessfully moved to suppress the evidence, arguing the warrantless parole searches violated the Fourth Amendment because the parole officers acted as a "stalking horse" for the ATF, allowing Special Agent Clancy to circumvent typical warrant and probable cause requirements. The Seventh Circuit affirmed holding that the parole officers complied with the parole agreement; they had reasonable cause to believe Price had violated his parole conditions. The court also rejected arguments that there was insufficient evidence that Price had constructively possessed the guns and challenges to sentencing enhancements for multiple firearms, a stolen firearm, and obstruction of justice.

From the Case:

Motions to Suppress and Trial. Before trial, Price moved to suppress the evidence obtained from the searches of the Ford Escape, the Oldsmobile van, and his residence. Price argued the warrantless parole searches violated the Fourth Amend-ment because the parole officers acted as a "stalking horse" on behalf of the ATF, allowing Clancy to circumvent typical warrant and probable cause requirements. The government
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defended the search on multiple grounds. The stalking horse theory was obsolete, the government argued, and the search by the parole officers complied with the parole agreement be-cause they had reasonable cause to believe Price had violated his parole conditions. Even if the stalking horse theory was valid, the government submitted it did not apply here because the parole officers followed standard procedures by conduct-ing a search after receiving information giving rise to reason-able suspicion that Price had violated the terms of his parole. And regardless of the validity of the stalking horse theory, the government invoked the inevitable discovery doctrine be-cause Clancy had probable cause and could have obtained a search warrant at the time he arrested Price, as well as because the Ford Escape would have been subject to an inventory search after Price's arrest.
The district court denied Price's motion to suppress and his request for an evidentiary hearing. After considering several Supreme Court precedents—including Griffin v. Wisconsin, 483 U.S. 868 (1987), United States v. Knights, 534 U.S. 112 (2001), and Samson v. California, 547 U.S. 843 (2006)—the court

concluded that “the stalking horse theory has no application” to Price’s case. Instead, the court framed the inquiry as “whether the Parole Officers’ search of Mr. Price’s vehicle and residence were reasonable under the circumstances.” After weighing Price’s diminished privacy expectations as a parolee against the government’s heightened interest in supervising parolees, the court was satisfied that no Fourth Amendment violation took place.

“[T]he ultimate touchstone of the Fourth Amendment is ‘reasonableness.’” Riley v. California, 573 U.S. 373, 381 (2014) (quoting Brigham City v. Stuart, 547 U.S. 398, 403 (2006)). “[T]he reasonableness of a search is determined ‘by assessing, on the one hand, the degree to which it intrudes upon an in-dividual’s privacy and, on the other, the degree to which it is needed for the promotion of legitimate governmental inter-ests.’” Knights, 534 U.S. at 118–19 (quoting Wyoming v. Hough-ton, 526 U.S. 295, 300 (1999)). A defendant’s status as either a probationer or parolee “informs both sides of that balance.” Id. at 119; see Samson, 547 U.S. at 850–57 (applying the Knights framework to parolees). Two decisions guide our view of this balance of interests. In Knights, the Court examined the constitutionality of a war-rantless search by law enforcement of a probationer’s apartment. 534 U.S. at 114. The Court assessed the privacy in-terests of the probationer, noting that “[p]robation is ‘one point … on a continuum of possible punishments ranging from solitary confinement in a maximum-security facility to a few hours of mandatory community service.’” Id. at 119 (quot-ing Griffin, 483 U.S. at 874). As a result, “probationers ‘do not enjoy the absolute liberty to which every citizen is entitled.’” Id. (quoting Griffin, 483 U.S. at 874). Additionally, the Court emphasized that the probationer was aware of the conditions in his probation agreement that authorized searches with or without a warrant or “reasonable cause,” which “significantly diminished [the probationer’s] reasonable expectation of pri-vacy.” Id. at 114, 120. In contrast, the Court in Knights stressed the government’s legitimate interest in apprehending law-breakers, noting the increased propensity of probationers to commit criminal activities and destroy incriminating evi-dence. Id. at 120. Accordingly, the Court held in Knights that “the balance of these considerations requires no more than reasonable suspicion to conduct a search of [the] proba-tioner’s house.” Id. at 121. “The same circumstances … render a warrant requirement unnecessary.” Id.

Here, as in Knights and Samson, Price’s status as a parolee reduced his privacy expectations and informed the govern-ment’s legitimate interests. As a parolee his privacy expecta-tions were diminished below even those of a probationer, since “parole is more akin to imprisonment than probation.” Samson, 547 U.S. at 850. Price’s parole agreement also in-cluded a provision that permitted parole officers to conduct a search based on “reasonable cause” rather than the Fourth Amendment’s “probable cause” standard. At the same time, Price’s status as a parolee gave the state an “overwhelming interest” in supervising him. This is especially true where, as here, parole officers had reason to believe that Price pur-chased .40 caliber ammunition and a rifle magazine, traveled to Indy Trading Post to use the shooting range, and was ar-rested by Clancy.

In sum, Price’s status as a parolee and the terms of his pa-role agreement lessened his privacy expectations while bol-stering the government’s legitimate interests in conducting a search. The terms of Price’s parole agreement were not breached—either by parole officers, who had “reasonable cause” to believe Price was in violation of parole, or by Clancy, whose searches were authorized by search warrants independent of the parole agreement. Under Knights and Samson, the searches of Price’s property and residence did not offend the Fourth Amendment.

United States v. Mattox
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: March 4, 2022

Tags:

On September 22, 2018, police officers responded to a 911 call about gunshots at an apartment complex in St. Paul, Minnesota. The officers followed a fresh blood trail and found a loaded Desert Eagle .50-caliber semi-automatic pistol with blood on it and the hammer cocked back in the firing position. The officers learned that a man had been shot in his face and right foot and had been taken to the hospital. An officer went to the emergency room at the hospital and entered the man's room. The man's bloody clothes were on the floor, and at the officer's request, a nurse took the identification from the clothes. The identification showed the defendant's name, Marcus Mattox. The officer took the clothes, and the next day, an officer went to the hospital and executed a warrant for a DNA swab from Mattox and asked him some questions for a few minutes. Mattox admitted that he was at the scene of the crime and stated that he did not know who shot him. He declined to answer more questions. The police compared Mattox's DNA sample to gun swabs that tested positive for blood. The swabs matched Mattox's DNA sample. The police also obtained video surveillance footage of the shooting. The video shows Mattox exit the apartment building, approach a male and a female at the back of an SUV in the parking lot, appear to draw a firearm, and take a shooting stance. After Mattox drew his gun, the male appeared to shoot at Mattox.

A federal grand jury indicted Mattox on one count of possessing a firearm as a convicted felon. See 18 U.S.C. § 922(g)(1). Mattox moved to suppress the evidence seized from his hospital room and the statements he made to the police while hospitalized. The district court denied the motions, adopting the magistrate judge's conclusions that (1) the plain-view exception to the warrant requirement applied to the seizure of Mattox's clothes, and (2) the questioning of Mattox was not a custodial interrogation and his statements were voluntary.

The Eighth Circuit affirmed defendant's conviction for possessing a firearm as a convicted felon and the district court's denial of his motion to suppress. In regard to the suppression motions, the court concluded that defendant did not have an objectively reasonable expectation of privacy in his hospital room and thus the officer did not violate his Fourth Amendment rights by entering the room. Because the officer lawfully entered his hospital room and his clothes were in plain view, the court concluded that defendant's Fourth Amendment rights were not violated. The court also concluded that defendant's statements to the police were voluntary in light of the totality of the circumstances where law enforcement did not overbear defendant's will.

From the Case:

The Fourth Amendment permits an officer to seize an object without a warrant under the plain-view doctrine if "(1) the officer did not violate the Fourth Amendment in arriving at the place from which the evidence could be plainly viewed, (2) the object's incriminating character is immediately apparent, and (3) the officer has a lawful right of access to the object itself." United States v. Vinson, 805 F.3d 1150, 1152 (8th Cir. 2015). Mattox does not dispute that the second and third conditions are met here. But he argues that the first condition is not met because the police violated his Fourth Amendment rights by entering his hospital room.

We disagree. Whether the police violated Mattox's Fourth Amendment rights by entering the hospital room depends on whether Mattox had an objectively reasonable expectation of privacy in the hospital room. See United States v. Long, 797 F.3d 558, 564 (8th Cir. 2015). Our determination of whether an individual had a reasonable expectation of privacy may be informed by state law. See, e.g., Rambo, 789 F.2d at 1295-96. True, as Mattox points out, overnight guests in homes and hotel rooms have a reasonable expectation of privacy. Minnesota v. Olson, 495 U.S. 91, 96-97 (1990); United States v. Conner, 127 F.3d 663, 666 (8th Cir. 1997). But that is because hosting overnight guests in homes "is a longstanding social custom that serves functions recognized as valuable by society." Olson, 495 U.S. at 98. Being admitted to the hospital for a gunshot wound does not serve the same valuable societal function. Furthermore, unlike in hotel rooms and residential guest rooms, in a hospital room, people are constantly coming and going from the room to provide medical services. We conclude that Mattox did not have an objectively reasonable expectation of privacy in his hospital room and thus the officer did not violate his Fourth Amendment rights by entering the room. Because the officer lawfully entered his hospital room and his clothes were in plain view, Mattox's Fourth Amendment rights were not violated.

Next, we consider whether Mattox's statements to the police while in the hospital were voluntary. Mattox does not argue that a custodial interrogation occurred. A statement made outside of a custodial interrogation may be suppressed if it is not made voluntarily. See United States v. Brave Heart, 397 F.3d 1035, 1040 (8th Cir. 2005). "A statement is involuntary when it was extracted by threats, violence, or express or implied promises sufficient to overbear the defendant's will and critically impair his capacity for self-determination." Vega, 676 F.3d at 718. "We determine if a defendant's will has been overborne by examining the totality of the circumstances, including both the conduct of law enforcement in exerting pressure to confess on the defendant and the defendant's ability to resist that pressure."

Mattox argues that the statements were involuntary because he was in the hospital recovering from gunshot wounds, he had taken pain medication, the police executed a warrant to obtain a DNA sample, and he was not read Miranda rights. We disagree. The totality of the circumstances shows that law enforcement did not overbear Mattox's will. See Brave Heart, 397 F.3d at 1040. Being on pain medication does not show that a defendant's will has been overborne if there is evidence that the patient answered "reasonably" and understood what was occurring. See United States v. Annis, 446 F.3d 852, 856 (8th Cir. 2006). The court noted that the officer testified "that Mattox answered questions in an appropriate context and manner; Mattox spoke in a normal cadence and pace; Mattox did not slur his words; and that [the officer] was able to totally understand Mattox's answers." Mattox also refused to answer some of the officer's questions, which suggests that the pain medication did not impair his ability to resist police pressure. See Brave Heart, 397 F.3d at 1040. The court also found "that there is nothing in the present record to indicate that [the police officers] employed any strong-arm tactics, deceptive strategems or other coercive acts . . . and made no threats or promises while talking to Mattox." The interview lasted only a few minutes and Miranda warnings were not required because Mattox was not in custody. See United States v. New, 491 F.3d 369, 374 (8th Cir. 2007). After considering the totality of the circumstances, we conclude that Mattox's statements were voluntary.

Williams v. City of Burlington
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: March 9, 2022

Tags: Qualified Immunity, Use of Force, Deadly Force

The Eighth Circuit affirmed the district court's denial of qualified immunity to a police officer in an action brought by Marquis Jones's estate, alleging claims under state and federal law after a police officer shot and killed Jones while he was running away from a traffic stop. In this case, the court agreed with the district court that there are two genuine disputes of material fact for the jury: first, whether the officer saw Jones drop the gun when he ordered him to; and second, whether the officer was unreasonable in believing Jones was taking a firing position rather than surrendering. The court stated that, if, construing the evidence most favorably to the estate, the officer knew Jones was unarmed, then shooting him violated a clearly established constitutional right.

Ballentine v. Tucker
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: March 8, 2022

Tags: First Amendment, Retaliation, Arrest

Plaintiffs filed suit alleging claims under 42 U.S.C. 1983 and Nevada law against individual law enforcement officers and the Las Vegas Metropolitan Police Department. Plaintiffs' claims stemmed from their arrest for chalking anti-police messages on sidewalks. On appeal, plaintiffs challenge the district court's grant of qualified immunity to Detective Tucker.

The panel affirmed the district court's holding that a reasonable factfinder could conclude from the evidence that Detective Tucker violated plaintiffs' First Amendment rights. The panel reversed the district court's holding that Detective Tucker is entitled to qualified immunity because it was clearly established at the time of plaintiffs' arrests that an arrest supported by probable cause but made in retaliation for protected speech violates the First Amendment. The panel stated that plaintiffs have shown differential treatment of similarly situated individuals, satisfying the Nieves exception. In this case, the district court correctly concluded that a reasonable jury could find that the anti-police content of plaintiffs' chalkings was a substantial or motivating factor for Detective Tucker's declarations of arrest. Therefore, a reasonable factfinder could conclude that Detective Tucker violated plaintiffs' First Amendment rights. Furthermore, a reasonable officer in Detective Tucker's position had fair notice that the First Amendment prohibited arresting plaintiffs for the content of their speech, notwithstanding probable cause.

The panel affirmed in part and reversed in part the district court’s summary judgment, on qualified immunity grounds, for Las Vegas Metropolitan Police Department Detective Christopher Tucker in an action brought pursuant to 42 U.S.C. § 1983 alleging, in part, that Tucker violated plaintiffs’ First Amendment rights when he arrested them in retaliation for their chalking anti-police messages on sidewalks.

The panel held that Detective Tucker was not entitled to qualified immunity because it was clearly established at the time of plaintiffs’ arrests that an arrest supported by probable cause but made in retaliation for protected speech violates the First Amendment.

Citing Nieves v. Bartlett, 139 S. Ct. 1715 (2019), the panel first recognized that plaintiffs bringing First Amendment retaliatory arrest claims must generally plead and prove the absence of probable cause because the presence of probable cause generally speaks to the objective reasonableness of an arrest and suggests that the officer’s animus is not what caused the arrest. However, the Supreme Court has also carved out a narrow exception for cases where officers have probable cause to make arrests, but typically exercise their discretion not to do so.

Here, plaintiffs presented objective evidence showing that they were arrested while others who chalked and did not engage in anti-police speech were not arrested. Given that plaintiffs had shown differential treatment of similarly situated individuals, the district court correctly concluded that a reasonable jury could find that the anti-police content of plaintiffs’ chalkings was a substantial or motivating factor for Detective Tucker’s declarations of arrest. Accordingly, the panel agreed with the district court that a reasonable factfinder could conclude from the evidence that Detective Tucker violated plaintiffs’ First Amendment rights.

The panel held that at the time of Detective Tucker’s conduct in July 2013, binding Ninth Circuit precedent gave fair notice that it would be unlawful to arrest plaintiffs in retaliation for their First

Amendment activity, notwithstanding the existence of probable cause. A reasonable officer in Detective Tucker's position had fair notice that the First Amendment prohibited arresting plaintiffs. Accordingly, the district court erred in granting qualified immunity to Detective Tucker.

Colorado v. Brown
Court: Colorado Supreme Court
Opinion Date: March 7, 2022

Tags: Seizure of a Person

The State of Colorado filed an interlocutory appeal to challenge a Denver District Court order suppressing defendant Alexander Brown's statements following his detention by police. The trial court determined that the officers who detained Brown did not have a reasonable and articulable suspicion that a crime had been committed, was being committed, or was about to be committed. After its review, the Colorado Supreme Court concluded that while the trial court erred in considering the officers' subjective intent in effectuating the seizure, it was nonetheless correct that the officers lacked reasonable and articulable suspicion to detain Brown. Accordingly, the Supreme Court affirmed the trial court's order suppressing Brown's statements, albeit on other grounds.

Seizure of people in vehicle was not supported by reasonable suspicion and therefore subsequent evidence and statements were suppressed. (Images in case!)

CASES 18MAR2022

United States v. Swinney
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: March 16, 2022

Tags: Reasonable Suspicion, Terry Stop, Terry Frisk

Around 9:30 a.m. on November 19, 2018, an anonymous woman called 911 to report a man carrying a firearm. From her location at the Bank of America at 79th and Halsted Streets in Chicago, she told the operator that she had just seen a man on the street take out a gun: "He got a big huge gun, it's in his right pocket. He just pulled it out, a silver gun. It's a 45." She said that the man "scared the shit out of" her when she saw him pull the gun out of his pocket. The caller described the man as wearing blue jeans, white gym shoes, a black skullcap, and a black coat with fur around the collar. She explained that she was "watching him" and narrated his route as he came "up the corner where JJ's Fish is" and walked "across the street towards the liquor store." The caller reiterated that the man was "walking over towards the liquor store" and had his hand "in his right pocket to his coat with a gun in it."
As the 911 operator asked a few follow-up questions, the caller became more animated and exclaimed that the man had "just walked into the liquor store. He walked into Aida. A-I- D-A Liquors. He just walked in there." In total, the call lasted around a minute and a half. The call was recorded, and the caller's cell phone number was captured by the 911 system.

The dispatcher relayed the information and stated "no number on the callback" and identified the man as black (although the caller had provided no information as to the man's race). A few minutes after the radio dispatch, several officers from the Chicago Police Department responded to the call and entered the liquor store. They saw Tyshawn Swinney waiting in line at the front register. Swinney was wearing a black coat with a fur-trimmed hood, a black skullcap, blue jeans, and white sneakers. The officers requested Swinney step out of line and patted him down. They found a loaded .45-caliber semi-automatic pistol in Swinney's right coat pocket, which Swinney later told law enforcement he possessed for protection. In Illinois, it is a crime to carry a firearm on a public street and in any place that is licensed to sell alcohol. The police placed Swinney under arrest and he was charged with possessing a firearm as a felon in violation of 18 U.S.C. 922(g)(1).

Swinney filed a motion to suppress the gun as the fruit of an illegal search, arguing that the police did not have reasonable suspicion to conduct a Terry stop because the anonymous tip did not reliably report that Swinney had committed or was committing a crime. The district court denied his motion, finding that there was enough reliable information to establish reasonable suspicion that Swinney was carrying a gun. Swinney appealed.

The Seventh Circuit noted that usually anonymous tips alone "are not reliable enough to establish reasonable suspicion" because they "seldom demonstrate the informant's basis of knowledge or veracity.' But the court noted that in *Navarette v. California*, 572 U.S. 393 (2014) the Supreme Court "identified three factors that make an anonymous tip reliable enough to create reasonable suspicion:
(1) the tipster asserts eyewitness knowledge of the reported event;
(2) the tipster reports contemporaneously with the event; and
(3) uses the 911 emergency system, which permits call tracing."

Because the dispatcher did not relay all of the facts provided in the 911 call, the court held that it was a "close call." But in the final analysis, the officers had enough facts to meet all three factors and establish a reasonable suspicion that the defendant had entered a liquor store with a firearm in violation of Illinois law. Accordingly, the Seventh Circuit affirmed the denial of his motion to suppress the gun as the fruit of an illegal search.

Templeton v. Jarmillo
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: March 11, 2022

Tags: Use of Force, Handcuffs

The Fifth Circuit affirmed the district court's dismissal of the plaintiff's 42 U.S.C. 1983 claims against law enforcement officers and other city employees based on the qualified immunity defense. The plaintiff's claims arose from the officer's actions in handcuffing, detaining, and involuntarily committing him after a welfare check. The plaintiff alleged that he experienced pain in his shoulder from tight handcuffing that occurred over a matter of minutes. The court concluded that the plaintiff failed to state a claim that the officers violated his clearly established rights where tight handcuffing alone, even where a detainee sustains minor injuries, does not present an excessive force claim.

Allen v. Monico
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: March 14, 2022

Tags: Qualified Immunity, False Affidavit, Probable Cause

After a jury found the plaintiff not guilty of a drug trafficking offense, he filed a civil rights action against two police officers alleging they conspired to include false statements in an affidavit of probable cause executed shortly after his arrest.

The Eighth Circuit affirmed the district court's grant of the motion to dismiss based on qualified immunity where the affidavit provided arguable probable cause for the plaintiff's arrest even without the allegedly false statements at issue. The court concluded that the uncontested portions of the affidavit show officers knew at the time that the plaintiff repeatedly had been with the targets of their investigation close in time to cocaine sales. Viewed in totality through the lens of common sense, the court stated that the affidavit with the alleged falsehoods removed still supports probable cause. The court affirmed the dismissal of all plaintiff's claims as they are derivative of the probable cause argument.

Mitchell v. Kirchmeier
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: March 14, 2022

Tags: First Amendment, Use of Force, Protests, Retaliation, Duty to Intervene, Equal Protection

The plaintiff filed suit against Morton County and North Dakota state officials under 42 U.S.C. 1983, alleging that they violated his First, Fourth, and Fourteenth Amendment rights in an incident where law enforcement officials shot the plaintiff with lead-filled bean bags while he was protesting.

The Eighth Circuit concluded that, regarding the First Amendment retaliation claims, the nonconclusory allegations in the complaint do not give rise to a plausible inference that the officers who allegedly shot and arrested plaintiff acted out of retaliatory animus. Regarding the Fourth Amendment however, the court concluded that the district court erred in dismissing the excessive force claims against the officers who shot the plaintiff, as the complaint asserted use of more than *de minimus* force when plaintiff did not threaten anyone, flee, or resist arrest and the law was clearly established. The court stated that, if the allegations in his complaint are true, then Morton County law enforcement engaged in a persistent pattern of excessive force against peaceful protestors that was tacitly authorized by Sheriff Kirchmeier and that led to plaintiff's injury. Furthermore, Sergeant Kennelly is liable for the violation of plaintiff's Fourth Amendment rights because he failed to intervene. Finally, plaintiff's equal protection claims were properly dismissed where he failed to allege facts showing that otherwise similarly situated non-Native Americans were treated more favorably than he was. Accordingly, the court affirmed in part and reversed in part, remanding for further proceedings.

STATE CASE:

Commonwealth v. DeJesus
Court: Massachusetts Supreme Judicial Court
Opinion Date: March 15, 2022

Tags: Reasonable Expectation of Privacy, Search

The Supreme Judicial Court of Massachusetts affirmed the defendant's conviction of possessing a firearm without a license and possessing a large capacity feeding device, holding that the defendant's arguments on appeal were without merit.

On appeal, the defendant argued that the trial court erred by failing to suppress the firearm and the attached large capacity feeding device as the fruits of a warrantless search. The Supreme Judicial Court affirmed, holding the motion judge did not err in denying Defendant's motion to suppress because the defendant did not have REP in the basement of the house where the evidence was found.

25MAR2022 CASES

Washington v. Napolitano

Court: US Court of Appeals for the Second Circuit

Docket: 20-455

Opinion Date: March 23, 2022

Judge: Joseph F. Bianco

Areas of Law: Civil Rights, Constitutional Law

The Second Circuit affirmed the district court's denial of summary judgment as to absolute and qualified immunity in an action raising Fourth Amendment claims of false arrest and malicious prosecution brought pursuant to 42 U.S.C. 1983. The court agreed with the district court that absolute prosecutorial immunity did not apply to appellants' participation in obtaining the arrest warrant for plaintiff. The court explained that long-standing precedent makes clear that swearing to an arrest warrant affidavit and executing an arrest are traditional police functions, and performing such functions at the direction of a prosecutor does not transform them into prosecutorial acts protected by absolute immunity.

The court also concluded that the district court correctly determined that summary judgment on the issue of qualified immunity was unwarranted given the factual disputes here. In this case, the district court identified relevant and exculpatory omissions from the arrest warrant affidavit related to plaintiff's intent and credibility that, construing the evidence in a manner most favorable to plaintiff, could have materially impacted a magistrate judge's determination as to whether probable cause existed for plaintiff's arrest, and such factual issues preclude summary judgment for appellants on the ground of qualified immunity at this stage of litigation. The court remanded for further proceedings.

Estate of Aguirre v. County of Riverside

Court: US Court of Appeals for the Ninth Circuit

Docket: 19-56462

Opinion Date: March 24, 2022

Judge: M. Margaret McKeown

Areas of Law: Civil Rights, Constitutional Law

The Ninth Circuit affirmed the district court's denial of qualified immunity to defendant, Sergeant Dan Ponder, in a 42 U.S.C. 1983 action alleging that Ponder used excessive force in violation of the Fourth Amendment when he shot Clemente Najera-Aguirre six times without warning and killed him. After determining that it has jurisdiction over this interlocutory appeal and that Ponder did not waive his qualified immunity defense, the panel concluded that Ponder's conduct was not objectively reasonable,

and his use of excessive force violated the Fourth Amendment. In this case, nothing in the record suggested that Najera was threatening bystanders or advancing toward them when he was killed. Furthermore, Najera presented no threat at all to the officer in that moment. The panel also concluded that ponder was on notice that his specific conduct was unlawful at the time.

State v. Keanaaina

Court: Supreme Court of Hawaii

Docket: SCWC-17-0000898

Opinion Date: March 22, 2022

Judge: Paula A. Nakayama

Areas of Law: Civil Rights, Constitutional Law, Criminal Law

The Supreme Court affirmed the decision of the intermediate court of appeals (ICA) affirming the judgment of the circuit court denying Defendant's motion to suppress evidence, holding that the police officers' actions did not constitute a breaking and that the search of a gray backpack did not exceed the terms of the search warrant in this case.

On appeal, Defendant argued that the evidence against him should be excluded because police officers failed to comply with the requirements set forth in Haw. Rev. Stat. 803-37 that officers "demand entrance" before entering a building and because the search of his backpack exceeded the terms of the search warrant executed by the officers. The Supreme Court affirmed, holding (1) the purposes of Haw. Rev. Stat. 803-37 were satisfied when the officers' entry did not create any risk of harm; and (2) the searches of Defendant's backpack did not exceed the terms of the search warrant.

State v. Red Cloud

Court: South Dakota Supreme Court

Citation: 2022 S.D. 17

Opinion Date: March 23, 2022

Judge: Kern

Areas of Law: Civil Rights, Constitutional Law, Criminal Law

The Supreme Court affirmed Defendant's conviction of burglary and two counts of simple assault arising from a home invasion, holding that Defendant was not entitled to relief on his allegations of error.

After a jury trial, Defendant was convicted of burglary and simple assault. Defendant was tried on a part two habitual offender information alleging two prior felon convictions. The jury found Defendant to be a

habitual offender. The Supreme Court affirmed, holding that the circuit court (1) did not err in denying Defendant's motion to suppress the show-up identification; (2) did not err in denying Defendant's motion for a mistrial; and (3) did not err in denying Defendant's motion for judgment of acquittal in the habitual offender trial.

CASES 8APR2022

Thompson v. Clark
US Supreme Court
Date: April 4, 2022

Tag Line: Malicious Prosecution as a Constitutional Tort

Thompson was living with his fiancée and their newborn baby in a Brooklyn apartment. Thompson's sister-in-law, apparently suffering from mental illness, called 911 to report that Thompson was sexually abusing the baby. When Emergency Medical Technicians arrived, Thompson denied that anyone had called 911. The EMTs returned with police officers, Thompson told them that they could not enter without a warrant. The police nonetheless entered. Thompson was arrested and charged with obstructing governmental administration and resisting arrest. EMTs took the baby to the hospital where medical professionals examined her and found no signs of abuse. Thompson was detained for two days. The charges against Thompson were dismissed without any explanation. The District Court dismissed Thompson's 42 U.S.C. 1983 claim and the Second Circuit affirmed. The Supreme Court reversed.

Justice Kavanaugh delivered the opinion of the court which held that to demonstrate favorable termination of criminal prosecution for purposes of a Section 1983 Fourth Amendment malicious prosecution claim, a plaintiff need not show that the criminal prosecution ended with some affirmative indication of innocence as several Circuit Courts had held. Rather, the plaintiff need only show that his prosecution ended without a conviction. The court noted that American tort-law consensus as of 1871 (at the time section 1983 was established) did not require a plaintiff in a malicious prosecution suit to show that his prosecution ended with an affirmative indication of innocence. The court went on to opine that Thompson's claim is consistent with "the values and purposes" of the Fourth Amendment. Accordingly, the court held that questions concerning whether a defendant was wrongly charged, or whether an individual may seek redress for wrongful prosecution, cannot reasonably depend on whether the prosecutor or court explained why charges were dismissed. Requiring a plaintiff to show that his prosecution ended with an affirmative indication of innocence is not necessary to protect officers from unwarranted civil suits.

Justice Alito wrote a dissenting opinion in which Justices Gorsuch and Thomas joined.

Gaddis v. DeMattei
US Court of Appeals for the Seventh Circuit
Date: April 1, 2022

Tag Line: Qualified Immunity – Not Clearly Established Search and Seizure Violation

Gaddis cut branches from McCombs's tree that extended into his yard and threw them into McCombs's yard. McCombs asked Gaddis to pick up the branches but he ignored her. Upon learning that a neighbor, Winstead, had spoken to McCombs about the branches Gaddis went to Winstead's home and told Winstead to mind his own business. McCombs called the police. Officers arrived. After talking to neighbors, they told Gaddis through the door that he was being arrested for disorderly conduct. Gaddis refused to come out of his home. He stepped outside after officers stated he could also be charged with resisting arrest. Gaddis was arrested for disorderly conduct. Neighbors claimed that Gaddis was erratic

and threatening. Gaddis brought a 42 U.S.C. 1983 action against the officers, the city of Marion, and the neighbors, asserting false arrest.

The Seventh Circuit affirmed summary judgment in favor of the defendants. The police report provides ample information from which officers could have reasonably believed probable cause existed to arrest Gaddis for disorderly conduct. The consensual discussions between the officers and Gaddis did not amount to a "seizure." At the time of Gaddis's arrest, it was not clearly established that the officers' statements that he would be charged with resisting arrest, followed by his choice to come out and face arrest, would violate the Fourth Amendment's prohibition on routine warrantless arrests inside the home.

United States v. Segoviano
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: April 1, 2022

Tags: No reasonable suspicion to support seizure, tainting consent

An ATF agent was shot. An arrest warrant was issued for Godinez. Agents obtained cellphone location data that placed a known telephone of Godinez at or near Segoviano's apartment building. Agents entered the building to find Godinez. One occupant, Segoviano, stated that there was no one else in his apartment and consented to a search. The agents removed Segoviano, handcuffed him, and conducted a limited search. For 20-30 minutes of questioning, Segoviano remained handcuffed; the agents then removed the handcuffs but continued the questioning. When Segoviano asked whether he was under arrest, they responded that he was "detained." Segoviano acknowledged possessing marijuana and cocaine and the presence of firearms for which he possessed a FOID card. The agents informed Segoviano that based on that admission they could obtain a search warrant, Segoviano then signed a consent to search. The agents never provided Miranda warnings. The search yielded four firearms, marijuana, and cocaine. Segoviano was charged with possession with intent to distribute cocaine and marijuana, and possession of a firearm in furtherance of a drug trafficking crime.

The Seventh Circuit reversed the denial of Segoviano's motion to suppress. The agents had no objective basis to suspect Segoviano of criminal wrongdoing other than his presence in the same building with some potential connection to the fugitive; those facts are insufficient to support a finding of reasonable suspicion and insufficient to support prolonging the detention.

United States v. Jose Perez
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: April 1, 2022

Tags: Traffic Stop not impermissibly extended when K9 called

After a civilian reported a vehicle traveling the wrong way on the highway, a state trooper located Defendant driving a vehicle matching the description. The trooper, who had a K9 unit with him, initiated a traffic stop after noticing the vehicle's tint appeared to violate state law. During the stop, the trooper

discovered the defendant's driver's license was suspended. While the trooper was waiting for backup, he asked Defendant to consent to a K9 search of the vehicle. The defendant declined; however, relying on highway patrol protocol, the trooper proceeded with the K9 search. The K9 unit indicated the presence of narcotics, prompting the trooper to search the vehicle, where he discovered cocaine, methamphetamine and a firearm. A subsequent inventory search of the vehicle revealed two additional handguns and a small amount of methamphetamine. Several days later, the trooper performed a second inventory search, locating 459 grams of methamphetamine.

The district court denied Defendant's motion to suppress based on the prolonged nature of the initial traffic stop and various departures from highway patrol policy in conducting the inventory search.

The Eighth Circuit affirmed, finding the traffic stop was not impermissibly extended due to the discovery of narcotics and a firearm. The court also held that the trooper substantially complied with departmental policy in conducting the inventory searches. Finally, the court rejected Defendant's claim that the district court erred in denying his motion for a mistrial based on claims the prosecutor violated the prohibition against mentioning the defendant's failure to testify.

USA V. ANTHONY HYLTON, JR.
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: April 5, 2022

Tags: Traffic stop not unreasonably delayed

Defendant was charged with robbing the same bank two times. The first robbery occurred in October 2016. In December 2016, officers found the defendant passed out behind the wheel of a vehicle that was stopped in traffic. Officers found a firearm during a search of the vehicle. It was subsequently determined that the firearm in the defendant's vehicle was the firearm used in the October 2016 robbery. The defendant was charged with robbery and the gun was confiscated. In January 2017, the bank was robbed a second time, by seemingly the same person. This time, the robber used a silver firearm. The defendant was ultimately charged with the second robbery of the bank.

The Eighth Circuit affirmed the denial of the defendant's motion to suppress, finding that officers did not unreasonably delay the traffic stop. Even if there was an unreasonable delay, the district court's application of the inevitable-discovery rule was not erroneous.

The court also rejected the defendant's claim that robbery was not a crime of violence and, therefore, he could not be charged with using a firearm during a crime of violence. Under binding circuit court precedent, robbery is a crime of violence.

Finally, the court affirmed the denial of the defendant's motion for judgment of acquittal, finding the evidence was sufficient to find that the defendant committed both robberies.

USA v. Romeo Valentin Sanchez
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: April 5, 2022

Tags: Consent searches and probable cause

In March 2017, a woman contacted police explaining that the defendant, her ex-boyfriend, was having sex with her 14-year-old sister. When the girl's family confronted her, she acknowledged that she was communicating with the defendant over social media, had sent him nude pictures, and that they had sex. The defendant's cell phone contained nude pictures of the girl. The defendant was charged with various sex offenses in a seven-count indictment. During his arrest, officers confiscated the defendant's second cell phone, which contained additional inculpatory evidence.

The district court denied the defendant's motion to suppress evidence found in his home during a warrantless search, from one of his cellphones obtained from his work, and his statements to detectives. The defendant was ultimately convicted and sentenced to life imprisonment plus a consecutive ten-year mandatory minimum sentence.

The Eleventh Circuit affirmed. The officers had consent to enter the defendant's home to obtain his cell phone. Once officers reviewed the phone, they then developed probable cause to search the defendant's second cell phone. The court also rejected the defendant's challenges to the computation of his sentence.

State v. Goodro
Court: Kansas Supreme Court
Opinion Date: April 1, 2022

Tags: Post Arrest inventory search and strip search.

The Supreme Court affirmed Defendant's convictions of felony possession of methamphetamine, misdemeanor possession of drug paraphernalia with intent to use, and misdemeanor theft, holding that the district court did not err in denying Defendant's motion to suppress.

Defendant was detained at Walmart for trying to leave the store without paying for merchandise. Defendant was arrested and taken to jail, where a booking deputy conduct an inventory search of Defendant's possessions. Upon discovering illicit drugs the deputy did a strip search of Defendant's person, discovering more illicit drugs. Defendant moved to suppress the drugs and paraphernalia based on an illegal misdemeanor arrest. The motion was denied, and Defendant was convicted. On appeal, Defendant argued that the evidence should have been suppressed because the officer illegally arrested her rather than issuing her a notice to appear. The Supreme Court affirmed, holding that the officer had probable cause to believe Defendant committed misdemeanor theft and would not be apprehended.

State v. Croteau
Court: Maine Supreme Judicial Court
Opinion Date: April 5, 2022

Tags: Consent for warrantless blood draw was free and voluntary

The Supreme Judicial Court vacated the judgment of the trial court suppressing Defendant's blood test results in the State's prosecution of Defendant for operating under the influence, holding that the findings of the court did not support its legal conclusion that Defendant did not voluntarily give his consent.

In suppressing the blood test results the trial court concluded that the blood draw was a result of simple acquiescence to the trooper's authority. On appeal, the State argued that the trial court erred in concluding that Defendant did not voluntarily consent to the blood draw. The Supreme Judicial Court agreed and reversed the trial court's order suppressing the evidence, holding that, in the totality of the circumstances, holding that Defendant's response to the trooper's request objectively manifested free and voluntary consent.

Kirby Ingram v. Louis Kubik, et al.
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: April 7, 2022

Tags: No qualified immunity for supervisor (supervisor liability) for clearly established excessive force.

Plaintiff, an Iraq War veteran, suffered from post-traumatic stress disorder. Two sheriff's deputies conducted a welfare check after a report that the plaintiff had slit his wrist with a knife. When the deputies arrived, the plaintiff was calm and posed no threat to them. Although the plaintiff expressed his willingness to be arrested, one of the deputies suddenly body-slammed him headfirst, causing a serious neck injury.

The Eleventh Circuit held that the deputy had probable cause to seize the plaintiff; therefore, the deputy and supervisor are entitled to qualified immunity from unlawful seizure claims. However, the deputy is not entitled to qualified immunity because the way he did so was excessive. The plaintiff satisfied his burden of proving that the supervisor violated his constitutional right, and the right was clearly established at the time of the alleged violation. Therefore, the sheriff's supervisor was not entitled to qualified immunity from the plaintiff's claim of supervisory liability. Finally, vicarious liability is unavailable under the Title II of the Americans with Disabilities Act.

CASES 15APR2022

United States v. Hurtt
US Court of Appeals for the Third Circuit
Opinion Date: April 13, 2022

Tagline: Evidence was excluded when traffic stop was unlawfully prolonged resulting in tainted Terry Frisk

Around 2:00 a.m., Philadelphia Police Officers Cannon and Gonzalez, patrolling a "very violent" North Philadelphia area, saw a pickup truck roll through a stop sign and fail to signal a turn. They stopped the truck. While collecting the driver's license and registration, the officers smelled alcohol. The front seat passenger was heavily intoxicated; Hurtt, from behind, attempted to calm him. Hurtt volunteered his identification. When the driver stepped out for a sobriety test, leaving the door open. Cannon got into the truck and pointed his flashlight around the vehicle. Cannon instructed the two passengers to keep their hands visible three times. They did not comply and kept putting their hands in their pockets or the front of their pants. Although he had not yet run the driver's license or vehicle identification nor finished the sobriety test, Gonzalez put the driver in the patrol car to help clear the passengers. After Hurrt twice appeared to be reaching into a tool bucket, Cannon searched him and found a loaded handgun in his waistband. After being arrested Hurtt made several statements without any Miranda warnings. Hurtt was charged as a felon in possession of a firearm, 18 U.S.C. 922(g)(1).

The Third Circuit reversed the denial of Hurtt's motion to suppress. Cannon created a safety concern while off-mission from the purpose of the original traffic stop and thereby wrongfully prolonged Hurtt's detention. The disputed evidence was only uncovered after the officers went off-mission.

US v. Joffrey Perez
US Court of Appeals for the Fourth Circuit
Opinion Date: April 7, 2022

Tagline: Traffic stop could have been more efficient but was not unreasonably extended.

Defendant argues that the district court erred in denying his suppression motion because the officers abandoned the purpose of the traffic stop and deliberately delayed their investigation so the canine unit could conduct its dog sniff. He also contends that the court clearly erred by crediting the officer's testimony after he impeached the officer with a prior inconsistent statement.

The circuit court found that though the stop could have been shorter (and begun more efficiently), it wasn't impermissibly prolonged, and the officers' actions were reasonably related to investigating an expired license plate. Reasoning that the acceptable length of a routine traffic stop can't be stated with mathematical precision," but the officers here were diligent enough to pass constitutional muster. United States v. Digiovanni, 650 F.3d 498 (4th Cir. 2011).

Regarding the other officer's testimony, the circuit court was not persuaded that the district court erred in finding him credible. The district court acknowledged that the defendant impeached the officer with a prior inconsistent statement yet otherwise found the officer credible. The circuit court declined to

disturb the district court's credibility assessment. As such, the circuit court affirmed the district court's judgment.

LaPlante v. City of Battle Creek
US Court of Appeals for the Sixth Circuit
Opinion Date: April 8, 2022

Tagline: Issue of fact precluded qualified immunity for excessive use of force but qualified immunity granted to other officer who did not have time to intervene.

Battle Creek Officers Ziegler and Kerschen stopped LaPlante's vehicle. LaPlante's passenger, Robbins, exited the vehicle. As Kerschen dealt with Robbins, LaPlante exited the vehicle with an open beer and did not comply with orders to put the beer down and stop moving. Ziegler eventually pulled LaPlante to the ground in a prone position. The officers struggled to handcuff LaPlante. It took approximately 90 seconds to effectuate LaPlante's arrest. Ziegler notified dispatch that LaPlante was experiencing pain and loosened the handcuffs at LaPlante's request. LaPlante was transported to a hospital before being taken to jail. LaPlante had dislocated his elbow and sustained a small avulsion fracture. LaPlante pleaded guilty to felony DUI and a high misdemeanor charge of attempted obstruction of a police officer. LaPlante had an outstanding felony warrant for absconding parole and the officers recovered marijuana from LaPlante's vehicle. LaPlante subsequently sought medical support for a variety of injuries.

In his 42 U.S.C. 1983 excessive force action, LaPlante alleged that Ziegler threw him to the ground and Kerschen failed to intervene. The Sixth Circuit affirmed the denial of qualified immunity as to Ziegler and reversed the denial of qualified immunity as to Kerschen. There is a genuine issue of material fact as to whether LaPlante resisted arrest; the use of a takedown maneuver, in some scenarios, can amount to excessive force. Kerschen did not have enough time to perceive what was going on and intervene.

United States v. Andre Johnson
US Court of Appeals for the Eighth Circuit
Opinion Date: April 13, 2022

Tagline: Terry Stop was supported by reasonable suspicion and use of handcuffs did not turn the detention into a de facto arrest.

Defendant moved to suppress evidence obtained after police stopped Defendant upon suspicion of criminal activity. He later pled guilty and appealed the district court's denial of his first motion to suppress, arguing that officers violated his Fourth Amendment rights by conducting a Terry stop without reasonable suspicion and by arresting him without probable cause.

The court found that the officer and a particularized and objective basis for suspecting Defendant of wrongdoing, which provided the officer with reasonable suspicion to conduct a Terry stop. The court reasoned that the officer stopped Defendant at the direction of a detective who was investigating Defendant for drug-related crimes and as a person of interest in a homicide investigation. Defendant argues his past convictions and his involvement in a suspected drug deal two months earlier were "stale" and thus could not provide reasonable suspicion of ongoing criminal activity. However, the court found that the argument is unpersuasive because it fails to take into consideration the totality of the

circumstances. Thus, the district court correctly held that the officer had reasonable suspicion to stop Defendant.

Defendant further argues that the Terry stop became an arrest when the officers drew their weapons and handcuffed Defendant. Defendant claims this purported arrest was unlawful because the officers lacked probable cause. The court found that the officers' protective actions here did not turn the stop into an arrest.

United States v. Tanner Halverson-Weese
US Court of Appeals for the Eighth Circuit
Opinion Date: April 7, 2022

Tagline: Use of handcuffs to conduct Terry Frisk of traffic stop passenger did not constitute de facto arrest.

Officers conducted a traffic stop of a car in which the defendant was the passenger. The officers stated they were concerned the defendant was carrying something, so they handcuffed him. Defendant denied carrying anything but told officers they could check, at which point they found a stun gun and a lighter.

A federal grand jury indicted the defendant on three counts, and he moved to suppress the evidence officers discovered during the search. He then pled guilty to the charges. Defendant presented mitigation evidence and asked the district court to impose the minimum sentence; however, they sentenced him to 211 months of imprisonment.

Defendant argued that the officers lacked reasonable suspicion, the officers placed him under de facto arrest without probable cause, and the district court gave too much weight to aggravating factors when sentencing him. First, the circuit court concluded that the totality of the circumstances justified the officer's search. Next, the circuit court found that the officers' reasonable belief that the defendant was carrying weapons allowed them to handcuff him without resulting in a de facto arrest. Finally, the district court did not abuse its discretion by the sentencing defendant at the bottom of the guidelines range.

United States v. Frazier
US Court of Appeals for the Tenth Circuit
Opinion Date: April 13, 2022

Tagline: Traffic stop was unlawfully prolonged when officer called for a drug K9 to sniff car.

Defendant-appellant Antoine Frazier appealed the district court's denial of his motion to suppress evidence obtained during a roadside search of his vehicle in 2019. A Utah state trooper pulled defendant over for speeding. The trooper did not begin the standard procedures necessary to issue a citation. Instead, he immediately began trying to contact a canine handler with the local sheriff's office, so he could come to the scene and perform a dog sniff of the vehicle. At first, the trooper tried contacting the deputy via the instant-messaging system on his vehicle's computer. When the deputy failed to respond to several messages, the trooper tried callling him on the radio. When the deputy again failed to respond, the trooper asked dispatch to locate him and send him to the scene. Approximately thirty

minutes from the initial stop did the canine search defendant's vehicle, alerting to potential contraband. In this time, a records check from dispatch revealed defendant had pled guilty in 2006 to manslaughter; a pat-down search revealed defendant had a .22 caliber pistol in his pants pocket. Defendant was ultimately arrested for being a felon in possession of a firearm, and for possession of fentanyl and cocaine with the intent to distribute. Defendant argued the evidence obtained from that search was inadmissible because the trooper improperly prolonged the traffic stop to facilitate a dog sniff and thereby obtain probable cause to search his vehicle. The Tenth Circuit reversed, finding the trooper departed from the traffic-based mission of the stop by arranging the dog sniff, "an investigative detour that was unsupported by reasonable suspicion and that added time to the stop. ...The trooper's consultation of the DEA database, a second investigative detour, only aggravated that ongoing violation. Accordingly, the evidence discovered because of that seizure is tainted by its unlawfulness and is inadmissible."

USA v. Joseph Isaiah Woodson, Jr.
US Court of Appeals for the Eleventh Circuit
Opinion Date: April 13, 2022

Tagline: Investigator's questioning did not constitute custody for Miranda purposes

Several young girls were locked out of their social media accounts. Shortly after being locked out, Defendant would contact them, demanding pornographic images. Defendant threatened to release the images to the girls' social media followers if they did not follow his instructions. One of the girls called the police, which eventually led them to Defendant's residence. The officer told Defendant he was not under arrest but that he was investigating a crime. Defendant admitted to taking over about 20 girls' social media accounts and provided details about the involvement of several other men. The district denied Defendant's motion to suppress the statements he made to police. Defendant was convicted and sentenced to 50 years' imprisonment followed by a life term of supervised release.

The Eleventh Circuit affirmed the district court denial of Defendant's motion to suppress, holding Defendant was not under arrest at the time he made the statements to the police. The court also affirmed Defendant's sentence, finding it was not procedurally and substantively reasonable.

California Courts of Appeal
Opinion Date: April 13, 2022

Tagline: Terry Frisk of driver during a traffic stop not supported by reasonable suspicion PAAD

Vacaville Officer Hill followed a car and noticed the license plate light and third brake light at the vehicle's back window appeared not to be working. Hill initiated a traffic stop. Pantoja was alone in the car. When Pantoja gave his name, Hill remembered Pantoja "had a history of violence and firearm possession, and he was at the time an investigative lead in a homicide." There was no smell of marijuana and no contraband in plain view. Hill saw no signs that Pantoja was intoxicated. Hill ran a record check and learned Pantoja had a valid license and was not on probation or parole. Hill asked Pantoja if he could look in the vehicle for contraband. Pantoja declined. Hill then asked Pantoja to exit his car and put his hands behind his head because Hill was going to issue a citation for the lighting infractions. Pantoja

did not make any furtive gestures or sudden movements. As Hill patted Pantoja's waistband area, he found a revolver. Pantoja was arrested.

The trial court granted Pantoja's motion to suppress, explaining: "[T]he officer … didn't have any specific or articulable facts to believe that this individual was presently armed or dangerous. The court of appeal affirmed. An officer's knowledge of a suspect's past arrests or convictions is inadequate to furnish reasonable suspicion as is the knowledge that a suspect is merely under investigation.

Barney v. State
Wyoming Supreme Court
Opinion Date: April 11, 2022

Tag Line: Attenuation doctrine applied to prevent suppression under the exclusionary rule

The Supreme Court affirmed Defendant's conviction of possession of marijuana, aggravated fleeing or attempting to elude, reckless endangering, and interference with a peace officer, holding that the district court did not err in denying Defendant's motion to suppress.

Defendant pleaded guilty to the offenses, conditioned on his right to appeal the denial of his motion to suppress the fruits of a traffic stop on the ground that the stop violated the Fourth Amendment. On appeal, the parties disputed whether Defendant waived his constitutional claim by filing an untimely motion to suppress. The Supreme Court affirmed, holding (1) Defendant did not waive his Fourth Amendment claim; and (2) the district court did not err in denying Defendant's motion to suppress.

CASES 22APR2022

United States v. Ochoa-Lopez
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: April 20, 2022

Tagline:

The FBI conducted extensive surveillance, made more than 10 controlled purchases of heroin from Lottie, and secured court orders authorizing the interception of Lottie's cellphone communications. Agents learned that Lottie agreed to a large heroin purchase. The supplier, who had recently suffered a leg injury, planned to arrive at a Rockford location to complete the transaction. To prepare for the deal, Lottie went to houses where he stashed drugs and money before returning to his residence. Shortly after, a white Corolla pulled into his driveway for 10-15 minutes before leaving. Law-enforcement officers followed the car and pulled it over after observing two traffic violations. Ochoa-Lopez was the driver; the suspected supplier was the passenger. One officer noticed that the passenger had a leg injury that required the use of an assistive device. Ochoa-Lopez claimed the two men were transporting the car for a company. Agents searched the vehicle and discovered a backpack containing $47,000 in cash.

The Seventh Circuit affirmed the denial of a motion to suppress the evidence recovered during the warrantless search of the car. The agents had probable cause to search the car; based on the totality of the circumstances, there was a "fair probability that contraband or evidence of a crime" would be found there.

United States v. Roy Norey
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: April 14, 2022

Tagline:

A confidential informant told police that Defendant was importing heroin from Chicago and selling it at an apartment. A detective applied for a search warrant for Defendant's apartment to seize evidence of drug distribution. Defendant moved to suppress the evidence arguing that the warrant application incorrectly stated he was listed on the utility bills—one of the seven facts the detective used in his affidavit for a search warrant.

Defendant argues that the good-faith exception does not apply because the affidavit in support of the warrant was so lacking in "indicia of probable cause to search for evidence of drug trafficking" at Defendant's apartment that the existence of probable cause was entirely unreasonable. The court disagreed, reasoning that the detective had had an objectively reasonable belief in the existence of probable cause, and the affidavit contained sufficient indicia of probable cause, thus the good-faith exception applies. There is no evidence the detective acted in bad faith, and the issuing judge found that the affidavit provided a substantial basis to find probable cause to search for evidence. Further, information known to the detective reinforces the objective reasonableness of his belief in probable cause.

Defendant counters that there was not a sufficient nexus between his drug trafficking and this apartment. However, the good-faith exception applies even if there is no direct nexus between a defendant's continuous course of drug trafficking and his residence. As a result, the court affirmed the district court's ruling.

Levenson v. State
Court: Wyoming Supreme Court
Opinion Date: April 20, 2022

Tagline: Traffic stop not valid at inception.

The Supreme Court reversed the judgment of the district court convicting Defendant of possession of marijuana, holding that the traffic stop in this case was unreasonable under the totality of the circumstances.

Defendant was the passenger in a vehicle that was stopped for following a semi-truck too closely. The officer requested a drug-detection canine to be dispatched to the location and subsequently found approximately forty-two pounds of marijuana. Defendant was subsequently charged with two drug-related counts. Defendant moved to suppress the evidence, arguing that the initial traffic stop was unreasonable. The district court denied the motion to suppress, and Defendant entered a guilty plea to count two. The Supreme Court reversed, holding (1) the traffic violation for following too closely was not objectively justified and was unreasonable at its inception; and (2) therefore, the district court erred by denying Defendant's motion to suppress.

Melissa Knibbs v. Anthony Momphard, Jr.

Court: US Court of Appeals for the Fourth Circuit

Docket: 20-2243

Opinion Date: April 19, 2022

Judge: G. Steven Agee

Areas of Law: Civil Rights, Constitutional Law, Personal Injury

In the course of responding to a dispute between neighbors, a Deputy fatally shot a man while he was standing inside his home holding a loaded shotgun. The personal representative of the deceased's estate ("the Estate"), subsequently brought an action under 42 U.S.C. Sec. 1983, claiming that the Deputy used excessive force in violation of the deceased's Fourth Amendment rights, along with various related state law claims.

The Fourth Circuit vacated the district court's grant of summary judgment on the following claims and remand the case for further proceedings: (1) the 1983 claim against the Deputy in his individual

capacity; (2) the wrongful death claim for both compensatory and punitive damages under North Carolina law against the Deputy in his individual capacity; and (3) the claims under the Macon County Sheriff's Office's surety bond against the Deputy and Sheriff in their official capacities, and against Western Surety, for up to $25,000 in damages.

Notably, the court found that parties' factual disputes are quintessentially "genuine" and "material." Assuming that a jury would credit the Estate's expert evidence over the Deputy's competing testimony and expert evidence, leads to the conclusion that the Deputy's use of force was objectively unreasonable.

The court affirmed the district court's conclusions that: (1) the Estate's Fourteenth Amendment claim fails as a matter of law; (2) Macon County's liability insurance policy preserves the Sheriff's Office's governmental immunity from suit; and (3) the Estate's claims brought directly under the North Carolina Constitution are precluded.

COREY HUGHES V. MICHAEL RODRIGUEZ

Court: US Court of Appeals for the Ninth Circuit

Docket: 20-17144

Opinion Date: April 21, 2022

Judge: Carlos T. Bea

Areas of Law: Civil Rights, Constitutional Law, Personal Injury

Plaintiff alleged that law enforcement officers used excessive force in apprehending him after he escaped from a County Jail highway work crew and lived on the lam for three weeks.

The Ninth Circuit affirmed in part and reversed in part the district court's summary judgment in favor of law enforcement officials. The court held that the bodycam footage and audio did not blatantly contradict all of Plaintiff's testimony. The court viewed the facts blatantly contradicted by the bodycam footage in the light depicted by the videotape and its audio to conclude that Plaintiff did not attempt to surrender to the officers. However, the court viewed all other facts, including Plaintiff's allegation of the post-handcuff beating, in the light most favorable to Plaintiff on summary judgment.

The court found that there were genuine issues of material fact regarding whether the alleged post-handcuff beating and dog-biting were proportional to the threat the officer reasonably perceived by Plaintiff while handcuffed. The court also found that the officer was not entitled to qualified immunity under Sec. 1983 as to the claimed post-handcuff beating and dog-biting because it was clearly established law that beating a handcuffed convict violates the Eighth Amendment. Finally, the court found that the excessive force claims based on failure to intervene and failure to intercede against the other defendants failed.

IMPLICIT BIAS CASE

United States v. Murry

Court: US Court of Appeals for the Tenth Circuit

Docket: 20-1214

Opinion Date: April 19, 2022

Judge: Carson

Areas of Law: Constitutional Law, Criminal Law

Three out of four defendants in consolidated cases identified as minorities, and two were illegal immigrants. They claimed the district court abused its discretion in failing to ask the potential jurors whether they harbored racist views. One defendant posited that if "America as an institution harbors racial prejudice in the context of immigration law, it stands to reason that some members of that same institution also harbor similar views." But the Supreme Court had long held that no constitutional presumption of juror bias existed for or against members of any particular racial or ethnic groups. The Tenth Circuit declined to create such a presumption in these cases, finding that without any substantial indication that racial or ethnic prejudice likely affected the jurors, the district court did not abuse its discretion in denying Defendants' requests to directly examine the jurors about the subject.

CASES 29 APR 2022

United States v. Batista
Court: US Court of Appeals for the First Circuit
Opinion Date: April 25, 2022

Tagline: de facto arrest without probable cause

The First Circuit affirmed Defendant's conviction of possession with intent to distribute forty grams or more of fentanyl, holding that the district court did not err in denying Defendant's motion to suppress evidence seized during a stop and warrantless search of his vehicle.

After Defendant was indicted he filed a motion to suppress the evidence obtained a result of the stop and search in this case. The district court denied the motion and found Defendant guilty. On appeal, Defendant argued that the district court abused its discretion in failing to hold an evidentiary hearing on his motion to suppress and that, alternatively, the district court erred in denying his motion to suppress because he was de facto placed under arrest without probable cause. The First Circuit affirmed, holding (1) if there was an arrest it was a lawful one; and (2) no evidentiary hearing was necessary in this case.

United States v. Leamon Smith
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: April 22, 2022

Tagline: Pat down frisk during traffic stop justified by reasonable suspicion

Smith was a passenger in Naylor's car. Chicago police officers pulled them over for running a red light. Smith was "shaking." Officer Holden asked Smith to step outside. Smith complied but immediately rested the front of his pelvis against the car. Holden asked Smith to step back, then performed an initial pat-down focused on Smith's waistband, pockets, and lower leg. Holden did not find any contraband but placed Smith in handcuffs. Holden asked Smith to walk several steps. Smith "had that side-to-side walk, as if he was holding something in his crotch area." Smith then rested his pelvis against the front of the police car. Holden performed the second pat-down by jiggling Smith's pant legs. Nothing fell out. Holden then asked Smith to walk again and observed an exaggerated limp. About one minute later, Holden conducted the final pat-down, focusing on Smith's groin area, and removed a loaded handgun from Smith's underwear. Approximately 11 minutes elapsed between the initiation of the stop and the discovery of the gun.

Smith was charged as a felon in possession of a firearm. The district court granted Smith's motion to suppress certain statements but denied his motion to suppress the gun. The Seventh Circuit affirmed. Under the totality of the circumstances—a nighttime traffic stop of an individual who appeared very nervous, walked strangely, and repeatedly rested his pelvis against cars as if to prop something up—reasonable suspicion supported the final pat-down.

Solis v. Serrett
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: April 21, 2022

Tagline: Use of force was not excessive and not clearly established

Appellee sued officers asserting various Section 1983 claims including excessive force, unreasonable seizure due to an arrest without probable cause, malicious prosecution, violation of her First Amendment rights for arresting her in retaliation for filming the officers, and violation of her Fourteenth Amendment rights. The district court held that disputed issues of material fact barred summary judgment on the excessive force claim and that, viewing the facts in Appellee's favor, the officers violated a clearly established right.

The Fifth Circuit denied Appellee's motion to dismiss, reversed the district court's order denying Appellant's motion for summary judgment, and remanded with instructions that Appellee's claims be dismissed.

The court analyzed the officers' actions and found that their conduct was not so objectively unreasonable as to violate Appellee's constitutional rights. First, Appellee's minor injuries weigh in favor of finding qualified immunity. Second, qualified immunity can apply even when only one factor weighs against the plaintiff. Finally, it was reasonable of Appellants to believe that, in light of Appellee's interjections, comments, resistance, and indignation, some degree of force would be necessary to subdue her. The court further held that even if the officers violated Appellee's constitutional rights, the right was not clearly established at the time of the alleged violation.

Colorado v. Moreno
Court: Colorado Supreme Court
Opinion Date: April 25, 2022

Tagline: reasonable suspicion existed to extend traffic stop into investigatory detention

In January 2021, the Northern Colorado Drug Task Force ("NCDTF") received an anonymous tip that claimed two residents of a home in Berthoud were dealing a variety of drugs, including methamphetamine. Marcelo Moreno left the house, driving to a truck stop. A patrol car followed Moreno into the truck stop parking lot and parked in a far corner where the officer could observe Moreno from a distance. Moreno and a woman went into the truck stop, returned to sit in the vehicle for a short time, and then drove to another part of the parking area. At no point did they pump gas. A short while later, another surveilling officer, still back at the residence, witnessed a husband and wife leave the house in their SUV. The officer followed the couple to the truck stop where Moreno was waiting. The couple pulled in next to Moreno, who exited his own truck carrying a black backpack and got into the backseat of the couple's SUV, and the three drove off together. The second officer in the patrol car then stopped the SUV on suspicion of drug trafficking activity. In this interlocutory appeal of a suppression order, the issue presented for the Colorado Supreme Court's review centered on whether the trial court erred when it found that the police lacked reasonable articulable suspicion to support an investigatory stop. The Court held that under the totality of the circumstances, the officers had

reasonable suspicion to conduct the stop. The Court therefore reversed the trial court’s order suppressing evidence obtained from the search and remanded for further proceedings.

State v. Hauge
Court: Iowa Supreme Court
Opinion Date: April 22, 2022

Tagline:

The Supreme Court affirmed the judgment of the district court denying Defendant's motion to suppress and convicting him of possession of methamphetamine, second offense, holding that law enforcement acted reasonably under the Fourth Amendment and Iowa Const. art. I, 8 by ordering Defendant out of the vehicle.

Defendant was the passenger in a vehicle that was stopped for speeding. Officers asked Defendant to exit the vehicle in order to facilitate the lawful arrest of the back-seat passenger. Officers then asked if they could check Defendant for weapons. The officer's pat-down revealed a methamphetamine pipe and a baggie containing methamphetamine. Defendant moved to suppress the evidence obtained after the exit order, which the district court denied. The Supreme Court affirmed, holding (1) Defendant's consent was voluntary based on the totality of the circumstances; and (2) the Iowa Constitution does no require that subjects of a search must be informed of their right to decline the search in order for their consent to be voluntary.

State v. Williams
Court: Iowa Supreme Court
Opinion Date: April 22, 2022

Tagline: Pat down of Lyft passenger sup[ported by reasonable suspicion.

The Supreme Court affirmed the decision of the court of appeals affirming the judgment of the district court denying Defendant's motion to suppress and convicting him of being a felon in possession of a firearm, holding that there was no error in the denial of the motion to suppress.

Defendant was a passenger in a Lyft vehicle that was stopped for traffic violations. The officers recognized Defendant from past eluding incidents and ordered him out of the vehicle to conduct a pat-down for weapons. Defendant moved to suppress the evidence, arguing that the officer lacked reasonable and articulable facts to justify ordering him out of the vehicle and patting him down. The district court denied the motion to suppress, and the court of appeals affirmed. The Supreme Court affirmed, holding that the officer had reasonable suspicion to justify ordering Defendant out of the vehicle and subsequently patting him down for weapons.

State v. Hudgen
Court: Rhode Island Supreme Court
Opinion Date: April 27, 2022

Tagline: Motions to suppress denied

The Supreme Court affirmed the judgment of the superior court convicting Defendant of first-degree murder, first-degree robbery, and other crimes, holding that Defendant was not entitled to relief on her allegations of error.

On appeal, Defendant argued that the trial justice erred in denying her motion to suppress the evidence found at her apartment, denying her motion to suppress the evidence found in her vehicle, and violating her right to confront a witness. The Supreme Court affirmed, holding (1) there was no error in the trial justice's denial of Defendant's motion to suppress the evidence obtained in the apartment based on insufficient probable cause; (2) the trial justice did not clearly err in denying Defendant's request for a Franks hearing; (3) the warrantless seizure of Defendant's vehicle did not violate her rights under either the State or Federal Constitution; and (4) Defendant's Confrontation Clause argument was waived.

CASES 6MAY2022

United States v. Pierre Stewart

Court: US Court of Appeals for the Eighth Circuit

Docket: 20-3321

Opinion Date: April 28, 2022

Judge: KELLY

Areas of Law: Constitutional Law, Criminal Law

Defendant was convicted of conspiracy to distribute heroin and possession of heroin with the intent to distribute. He appealed the district court's denial of his motion to suppress and its ruling to limit the cross-examination of a law enforcement witness at trial. The Eighth Circuit affirmed the denial of Defendant's motion to suppress and the judgment of the district court. The court held that the district court did not err in its credibility finding.

Defendant argued that the arresting Trooper lacked a reasonable, articulable suspicion that the occupants of the vehicle Defendant was involved in any criminal activity and, thus, the traffic stop was unlawful. He asserted that the district court clearly erred in its credibility finding and that the trooper's testimony was "plainly contradicted" by the squad car videos. The court held that Defendant is correct that the video footage does not confirm the Trooper's testimony concerning each of the three traffic violations, however, nothing in the video footage undermined that testimony.

Next, Defendant argued the district court improperly limited his cross-examination of the Trooper at trial. At trial court sustained the government's objection to the defense's line of questioning regarding the Trooper and his DRE training, specifically about allegations that officers participating in the training program supplied drugs to young people in Minneapolis. The court held that the district court acted within its discretion to curtail the inquiry.

USA V. DAREN PHILLIPS

Court: US Court of Appeals for the Ninth Circuit

Docket: 20-10304

Opinion Date: April 29, 2022

Judge: Korman

Areas of Law: Constitutional Law, Criminal Law

Defendant's ex-fiance discovered child pornography on his computer, which she then brought to the Sheriff's Office. While the ex-fiance was there, the Detective asked her to show him only images that she

had already viewed when she had accessed the laptop by herself. The ex-fiance complied with that request. Defendant moved to suppress on the ground that, because the Detective directed Defendant's ex-fiance to access the computer without Defendant's permission to show the Detective what she had already seen, the search of the computer at the sheriff's office was an unlawful law-enforcement search.

The Ninth Circuit affirmed Defendant's conviction. The court held Defendant's objections to the use of evidence obtained from his computer all failed. The court reasoned that because U.S. Attorney does not dispute Defendant's assertion that his ex-fiance acted as a state agent when she accessed the computer at the sheriff's office, the court assumed that this was a government search. However, the court applied United States v. Jacobsen, 466 U.S. 109 (1984), and United States v. Bowman, 215 F.3d 951 (9th Cir. 2000), and held that the search was permissible because, when the ex-fiance accessed the child pornography on Defendant's computer at the sheriff's office, she merely mimicked her earlier private search.

Wilkins v. City of Tulsa, et al.

Court: US Court of Appeals for the Tenth Circuit

Docket: 21-5052

Opinion Date: May 3, 2022

Judge: Scott Milne Matheson, Jr.

Areas of Law: Civil Rights, Criminal Law

Three Tulsa police officers were dispatched late at night to a parking lot, finding plaintiff-appellant Ira Lee Wilkins asleep in the driver's seat of a running vehicle. They smelled alcohol on him, ordered him out of his car, and eventually forced him to the ground, where they pepper sprayed him. Wilkins sued the officers under 42 U.S.C. 1983, alleging they used excessive force in violation of the Fourth Amendment. The district court granted summary judgment to the officers, concluding they were entitled to qualified immunity because they did not use excessive force. The Tenth Circuit reversed, finding a reasonable jury could have found that the officers' use of pepper spray was excessive force. The Court thus remanded this case for further proceedings, including consideration of the municipal liability claim against the City of Tulsa.

USA v. Freddie Clark

Court: US Court of Appeals for the Eleventh Circuit

Docket: 20-10672

Opinion Date: April 28, 2022

Judge: Tjoflat

Areas of Law: Criminal Law

Defendant was convicted of possessing a firearm as a convicted felon, possessing methamphetamine and possessing a firearm in furtherance of a drug trafficking crime. On appeal, he raised five claims as to why he should either receive a new trial or, alternatively, be resentenced.

The Eleventh Circuit affirmed Defendant's conviction holding that Defendant did not experience a cumulative error required to reverse a jury trial verdict. The court concluded that the only errors it identified were invited errors with respect to the jury instruction and potential harmless error with respect to the handling of the records of conviction.

The court reasoned that while the special agent's misconduct in handling evidence in a previous case was egregious enough for him to be barred from bringing cases in at least one United States Attorney's Office, it is not clear that the failure to disclose his prior mishandling of evidence would serve to render this trial unfair. Further, the court found that Defendant's contentions sought to impermissibly heighten the probable cause standard to require officers to have perfect memory as to why they stopped an individual. Finally, the court held that Defendant cannot show that his trial outcome would have been different if all these supposed errors had not been made.

Novak v. City of Parma, Ohio

Court: US Court of Appeals for the Sixth Circuit

Docket: 21-3290

Opinion Date: April 29, 2022

Judge: Thapar

Areas of Law: Civil Rights, Communications Law, Constitutional Law, Internet Law

Novak created "The City of Parma Police Department" Facebook account to exercise his "fundamental American right" of "[m]ocking our government officials." He published posts "advertising" free abortions in a police van and a "Pedophile Reform event." Some readers called the police station. Officers verified that the official page had not been hacked, then posted a notice on the Department's page, confirming that it was the official account and warning that the fake page was "being investigated." Novak copied that post onto his knockoff page. Officers asked Facebook to preserve all records related to the account and take down the page. Lieutenant Riley issued a press release and appeared on the nightly news. Novak deleted the page. The investigation continued. Officers got a search warrant for Facebook, discovered that Novak was the author, then obtained an arrest warrant and a search warrant based on an Ohio law that makes it illegal to use a computer to disrupt or impair police functions. Officers arrested Novak, searched his apartment, and seized his phone and laptop. He spent four days in jail before making bond.

Indicted for disrupting police functions, Novak was acquitted. In Novak's subsequent suit, 42 U.S.C. 1983, the Sixth Circuit affirmed summary judgment in favor of the defendants. The officers reasonably believed they were acting within the law. The officers could reasonably believe that some of Novak's Facebook activity was not parody, not protected, and fair grounds for probable cause.

Idaho v. Stonecypher

Court: Idaho Supreme Court - Criminal

Docket: 48561

Opinion Date: April 29, 2022

Judge: Brody

Areas of Law: Constitutional Law, Criminal Law

Paul Stonecypher was stopped by law enforcement for vehicle equipment violations while driving through Idaho on a trip from California to Montana. Stonecypher contended his seizure was unlawfully prolonged to allow for a sniff of the vehicle by a drug-detection dog. After review of the trial court record, the Idaho Supreme Court disagreed, finding the extension of the stop was justified by reasonable suspicion of illegal drug activity.

CASES 13MAY2022

US v. Jovon Medley
Court: US Court of Appeals for the Fourth Circuit
Opinion Date: May 11, 2022

Tagline: Sixth Amendment Right to Counsel During Questioning

Defendant appealed his felon in possession of a firearm conviction and sentence. Regarding his conviction, Defendant challenged the district court's denial of his motion to suppress statements he made to the police, without the benefit of counsel, about the gun involved in the felon-in-possession charge. Regarding his sentence, he argues that the district court's application of a Sentencing Guidelines enhancement, based on its finding that Defendant used the firearm to commit a carjacking, violated his Sixth Amendment right to a jury trial because it was based on acquitted conduct.

The Fourth Circuit rejected Defendant's Sixth Amendment violation claims and affirmed the district court's judgment. The court held that the district court did not violate Defendant's Sixth Amendment right to counsel by admitting the uncounseled statements that he made to Maryland police after he was appointed counsel in his D.C. case. The court reasoned that Defendant did not request his attorney, ask for the interview to stop or say anything that a reasonable police officer in the circumstances would understand to be a request for an attorney.

Further, the court held that Defendant's Sixth Amendment challenge to the use of acquitted conduct as the basis for his Guidelines sentence enhancement is foreclosed by Supreme Court and Fourth Circuit precedent. Finally, the district court did not err by enhancing Defendant's sentence when it found, based on a preponderance of the evidence, that he used the firearm in connection with the carjacking at issue.

Lee v. Russ
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: May 6, 2022

Tagline: Deadly Force was clearly established as excessive when officer shot person with knife

Groom tried to refill a prescription for a drug that treats opioid addiction. A technician informed Groom that he could not use a coupon. Groom grabbed the prescription and left without paying. The pharmacist followed him out, offering a lower-cost drug. Groom kept walking. The dispatcher alerted police officers that a man carrying a large knife had robbed the pharmacy and that the suspect, Groom, ran toward another store. Captain Russ and Officer Lee responded. Russ was familiar with Groom, having heard that Groom suffered from mental illness and had attempted suicide. They spotted Groom in a parking lot and exited their vehicles. Russ announced himself. Groom pulled a large knife out of a sheath, saying: "Not today David." Both officers drew their firearms. Groom ignored several commands to drop the knife and walked toward Russ, waving his knife, stopping 30 feet from Russ. He repeatedly told Russ to shoot him. Lee testified that, although Groom at first was "being very belligerent," he stopped walking and eventually stopped waving the knife. After 20 seconds, Groom took another step. Russ shot Groom. He died from the wound.

In a suit under 42 U.S.C. 1983, the trial court granted Russ summary judgment based on qualified immunity. The Sixth Circuit reversed, citing “[p]recedent involving similar facts” putting this case “beyond the otherwise hazy border between excessive and acceptable force" to "provide an officer notice that a specific use of force is unlawful.”

USA v. Ronald Tai Young Moon, Jr.
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: May 10, 2022

Tagline: Search of videotapes not outside the scope of the warrant

Defendant, a physician who operates a medical clinic, was under investigation for healthcare fraud and related charges. During the investigation, law enforcement officers obtained a search warrant permitting them to search the clinic. During the search, one officer found a bag of videotapes. The officer played the tapes, which led to Defendant being charged with several child pornography offenses. Defendant unsuccessfully sought suppression of the tapes at trial.

The Eleventh Circuit affirmed the district court's denial of Defendant's motion to suppress. The search warrant application specifically mentioned "videotapes" among the items to be searched. Thus, the officer's search of the tapes was covered by the search warrant.

The Eleventh Circuit also rejected Defendant's claim that his right to a public trial was violated when the district judge closed the courtroom during several witnesses' testimony. Defendant agreed to most of the closures and failed to object to any of the other closures.

P. v. Delgado
Court: California Courts of Appeal
Opinion Date: May 6, 2022

Tagline: Sufficiency to establish probable cause in warrant

Defendant was a known gang member. While police officers were surveying Defendant's home, they observed what they believed to be a narcotics transition as Defendant handed an unknown package to the occupants of a vehicle. The officers stopped the vehicle containing the alleged buyers, recovering cash, narcotics, and illegal firearms. Officers then obtained a warrant to search Defendant's home. Police recovered a cell phone containing videos of Defendant ordering the assaults of minors so they could be "jumped" into his gang. The trial court denied Defendant's motion to suppress and Defendant pleaded no contest to one count of assault by means of force likely to produce great bodily injury and two counts of solicitation or recruitment of another person to participate in a criminal gang.

The Second Appellate affirmed the district court's denial of Defendant's motion to suppress, finding that the warrant relied upon to search Defendant's home established probable cause. The warrant affidavit supports the officers' belief that they had witnessed a narcotics or illegal weapons transaction. The visit

was three to five minutes long and was consistent with a pick-up or drop-off. Additionally, the location was a known gang hangout.

The court also rejected Defendant's claim that the warrant affidavit was stale because it omitted the dates of Defendant's prior convictions. The dates of Defendant's convictions were immaterial based on the other evidence of Defendant's gang membership.

Idaho v. Karst
Court: Idaho Supreme Court - Criminal
Opinion Date: May 11, 2022

Tagline: Traffic stop impermissibly extended to call for a K9 Unit

Defendant-appellant Desiree Karst appealed a district court's partial denial of her motion to suppress evidence obtained during a traffic stop. Karst argued on appeal that the police sergeant impermissibly extended the traffic stop when he briefly interrupted his traffic-related investigation to contact dispatch and request a drug-dog unit at the scene. The Court of Appeals affirmed the district court's decision, citing its recent decision in Idaho v. Still, 458 P.3d 220 (Ct. App. 2019). The Idaho Supreme Court granted Karst's petition for review, overruled Still, reversed the district court's decision, and remanded for further proceedings. The Supreme Court found that an unlawful extension of a traffic stop occurs when an officer's detour prolongs, or adds time to, the original purpose for the stop. The Court of Appeals' decision in Still improperly required "abandonment" of the traffic mission for a stop to become unlawfully extended. Here, the Court found the arresting sergeant indeed impermissibly extended the duration of the traffic stop when he requested the drug- dog unit, in violation of the Fourth Amendment.

State v. Cobb
Court: North Carolina Supreme Court
Opinion Date: May 6, 2022

Tagline: Automobile License Checkpoint

The Supreme Court reversed the decision of the court of appeals vacating the order of the trial court denying Defendant's motion to dismiss, holding that the trial court did not err.

Defendant was charged with one count of driving while impaired and one count of reckless driving. Defendant filed a motion to suppress evidence obtained at a Harnett County checking station. The trial court denied the motion to dismiss, and Defendant later pleaded guilty to driving while impaired. The court of appeals vacated the trial court's order denying Defendant's motion to suppress, concluding that the trial court could not assess whether the public interest in the checking station outweighed its infringement on Defendant's Fourth Amendment privacy interests. The Supreme Court reversed, holding that the unchallenged findings of fact supported the trial court's conclusion that the public interest served by the checking station outweighed the intrusion on Defendant's liberty interests.

Texas v. Baldwin
Court: Texas Court of Criminal Appeals
Opinion Date: May 11, 2022

Tagline: Sufficiency of boilerplate language to establish probable cause to search cellphone

During a capital murder investigation, investigators obtained a search warrant for Appellee John Baldwin's phone pursuant to Texas Code of Criminal Procedure article 18.0215(c)(5)(B). In a motion to suppress, Appellee objected to the search warrant's supporting affidavit, which contained generic statements about the use of cell phones. The trial court and the court of appeals both concluded that the affidavit did not contain sufficient facts to establish a fair probability that a search of the cell phone found in Appellee's vehicle would likely produce evidence in the investigation of the murder. The Texas Court of Criminal Appeals granted review to address under what circumstances may boilerplate language about cell phones be considered in a probable cause analysis. To this, the Court held that boilerplate language may be used in an affidavit for the search of a cell phone, but to support probable cause, the language must be coupled with other facts and reasonable inferences that establish a nexus between the device and the offense. Because the affidavit in this case failed to do so, the Court found no abuse of discretion on the part of the trial court and no error on the part of the court of appeals.

Crysteal Davis v. Trevor Spear
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: May 10, 2022

Tagline: QI - clearly established that LEO cannot detain suspects at station for three hours without probable cause

Defendants, Des Moines Police Department officers, lacking probable cause, took relatives of a stabbing victim to the station and held them for over three hours during which time the victim died. The district court denied qualified immunity, ruling for the family on their claims of illegal seizure and false arrest.

The Eighth Circuit affirmed the district court's denial of qualified immunity. The court held both the duration and the nature of the seizure at issue exceeded the bounds of the Constitution.

The court reasoned that officers are entitled to qualified immunity unless (1) the evidence, viewed in the light most favorable to the plaintiffs, establishes a violation of a constitutional or statutory right, and (2) the right was clearly established at the time of the violation, such that a reasonable official would have known that his actions were unlawful. Here, the officers seized the family against their will and without probable cause. There was no "reasonable ground" for the officers' action.

The court concluded that there was no minimally-intrusive Terry stop and the detention was the most intrusive means of questioning survivors after a violent crime. Further, officers of the Des Moines Police Department were on notice that they could not detain someone for questioning against their will, even

in a homicide investigation, absent probable cause. The same evidence establishes the officers' violation of sec. 1983 and the Fourth Amendment establishes a violation of the Iowa Constitution.

CASES 20MAY2022

USA v. Rodriguez
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: May 13, 2022

Tagline: Protective Sweep (Terry Frisk) of automobile under Michigan v. Long, 463 U.S. 1032 (1983)

Defendant was the passenger of a vehicle stopped for a traffic violation. During the stop, the officer became suspicious, removed the men from the car, and found a firearm in a jacket on the rear floorboard of the vehicle. Initially, Defendant was charged in state court, but when it was later discovered he was an illegal alien, he was charged with a federal firearms offense.

The district court denied Defendant's motion to suppress the finding that Defendant lacked standing to challenge the search. Defendant subsequently pled guilty.

The Fifth Circuit affirmed the district court's denial of Defendant's motion to suppress a firearm, albeit on substantive grounds. The court noted that the standing question was a difficult one, that it decided to leave for another day to address. However, because the search was a valid protective sweep, the court affirmed the district court's denial of Defendant's motion to suppress.

United States v. Whitley
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: May 18, 2022

Tagline: Traffic Stop converted to Terry Stop supported by reasonable suspicion

Whitley was the subject of a traffic stop for failing to come to a standstill before exiting a driveway onto a street. Before the stop, officers had been surveilling Whitley for suspected drug trafficking. During the stop, officers noticed a digital scale sitting on Whitley’s lap. They asked Whitley to exit the vehicle Whitley initially refused but complied after his mother arrived. A drug-detection dog arrived and alerted to the presence of narcotics in Whitley’s vehicle. The officers then conducted a warrantless search of the vehicle. They found a Glock handgun with an extended magazine, ammunition, $7,600 in cash, a digital scale, and a pound and a half of marijuana.

Whitley unsuccessfully moved to suppress that evidence, and several post-Miranda statements, as fruits of an unlawful stop and search. The Sixth Circuit affirmed. The officers abandoned the permissible traffic stop after seeing the scale but had reasonable suspicion to continue detaining Whitley such that the stop did not violate the Fourth Amendment. In addition to the scale and apparent marijuana residue on the dashboard., the officers observed Whitley entering and leaving a suspected drug house, counting a wad of cash, making short stops, and moving a bag from the seat to the trunk. The drug-detection dog was certified, so its positive alert was sufficient to establish probable cause.

United States v. Edwards
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: May 16, 2022

Tagline: no REP in abandoned vehicle

Police believed one man committed 10 armed robberies in the Madison, Wisconsin area in late 2018. On November 4, 2018, the suspect, subsequently identified as Edwards, robbed Neil's Liquor in Middleton. Security camera footage enabled officers to obtain a warrant for a GPS tracking device on Edwards's vehicle. After another armed robbery and a high-speed chase, police obtained a warrant, searched the vehicle, and recovered a loaded handgun, cash, drugs, gloves, and a ski mask. Police later re-entered the vehicle, without a warrant, to retrieve the property of a witness (Wood)s who had been in the car with Edwards, Edwards was apprehended weeks later.

The Seventh Circuit affirmed his convictions for Hobbs Act robbery, brandishing a firearm in furtherance of a crime of violence, being a felon in possession of a firearm, possession with intent to distribute marijuana, and possession of a firearm in furtherance of a drug trafficking crime. The court upheld the denial of Edwards's motion to suppress the evidence obtained from the GPS tracking device. Security camera footage supported the description in the affidavit. All five "Biggers" factors support the reliability of Woods's photo identification of Edwards; the process did not give rise to a substantial likelihood of irreparable misidentification. Rejecting an argument concerning the unwarranted search of his vehicle, the court stated Edwards had no expectation of privacy in the abandoned vehicle.

CASES 27MAY2022

United States v. Helton
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: May 24, 2022

Tagline: Good Faith exception to exclusionary rule applied for warrant issued without probable cause.

After going to Helton's home to execute a warrant for his arrest, Knox County Deputy Mullins sought a search warrant. His affidavit stated that Mullins had received complaints about Helton selling methamphetamine; that a reliable source advised that a person he was with purchased methamphetamine at the residence; and that when the officers arrived Helton had a clear baggie that appeared to hold residue. Executing the search warrant, deputies found illegal drugs, currency, and multiple firearms. Deputies then obtained a warrant and searched the home of Helton's mother, recovering money, firearms, and drugs.

Helton was charged with conspiracy to distribute methamphetamine, possession with intent to distribute methamphetamine, and being a felon in possession of firearms. The court rejected motions to suppress, upholding both warrants. At trial, Moore testified about a controlled purchase of methamphetamine from Helton. Juror 191 told the judge that she recognized Moore as someone that she would watch during her employment at a shopping center "in case she was going to steal," but that she was not aware of Moore actually shoplifting. Over Helton's opposition, the district court struck Juror 191 on the basis that she personally knew Moore and had twice responded "I think so" when asked if she could set aside her knowledge of Moore. The Sixth Circuit upheld Helton's convictions and 264-month sentence. While the search warrant did not satisfy constitutional requirements, the good-faith exception to the exclusionary rule applied.

United States v. Zabel
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: May 23, 2022

Tagline: No custody for Miranda purposes (National Park Service case)

Rangers, responding to an incident at Mammoth Cave, encountered a female technician who was monitoring a cave restoration project. She explained that Zabel, a contractor, had pinned her against a wall and attempted to kiss her, grabbed her buttocks and breasts, and exposed his penis. The rangers used an elevator to enter the cave and walked 25 minutes through dark, narrow passages until they found Zabel. They recorded the ensuing encounter. The rangers introduced themselves and explained that he was "not under arrest," was "free to go," and that he did not have to talk to them. Zabel made several incriminating statements, including that he had grabbed the woman's butt and showed her his penis, which "may have been a little" erect.

Zabel, indicted under 18 U.S.C. 2244(b), unsuccessfully moved to suppress those statements, arguing that the rangers improperly solicited those statements during a custodial interrogation without reciting his Miranda rights. Zabel then pled guilty, The PSR sought an upward variance and an upward departure (U.S.S.G. 5K2.8) for Extreme Conduct because Zabel's behavior was more egregious than typical abusive

sexual contact. The district court recessed so that Zabel and his counsel could review recorded statements by the victim and provided Zabel an opportunity to testify. Zabel declined. The Sixth Circuit affirmed a sentence of 18 months' imprisonment plus a life term of supervised release. The court upheld the denial of the motion to suppress and the procedural and substantive reasonableness of his custodial sentence and term of supervised release.

DANIEL ANDREWS V. CITY OF HENDERSON
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: May 23, 2022

Tagline: Qualified Immunity denied in use of force case clearly established unreasonable that tackling and piling on a non-resisting suspect without attempting a less violent means of effecting an arrest.

Plaintiff sued the detectives and the City of Henderson (collectively, Defendants) under 42 U.S.C. Section 1983 for excessive force in violation of the Fourth Amendment. The case arose following an incident where Defendants believed they had probable cause to arrest Plaintiff for a series of armed robberies and forcibly tackled him as he was leaving a Nevada state courthouse.

The detectives moved for summary judgment arguing that they are protected by qualified immunity, and the City moved for summary judgment arguing Plaintiff could not establish municipal liability. The district court denied the detectives' motion and denied the City's motion except as to Plaintiff's ratification theory.

The Ninth Circuit affirmed. The court held that the use of force was substantial. Although Plaintiff was suspected of a serious crime, the detectives knew that he was not armed and was not posing an immediate threat to anyone as he exited the courthouse. Under these circumstances, a reasonable jury could find that the degree of force used against Plaintiff violated his Fourth Amendment right against excessive force, and the detectives were not entitled to summary judgment on the question of whether they committed a constitutional violation.

The court held that Blankenhorn v. City of Orange, 485 F.3d 463 (9th Cir. 2007) clearly established, that an officer violates the Fourth Amendment by tackling and piling on top of a relatively calm, non-resisting suspect who posed little threat of safety without any prior warning and without attempting a less violent means of effecting an arrest.

Idaho v. Wharton
Court: Idaho Supreme Court - Criminal
Opinion Date: May 23, 2022

Tagline: Checking passenger ID is a mission-related activity that will not unlawfully extend a traffic stop.

The issue presented for the Idaho Supreme Court's review in this case arose from a March 2020 traffic stop where a single officer, without having reasonable suspicion that a crime involving the passenger was afoot, checked the passenger for outstanding warrants. The officer used her patrol vehicle's

computer and received a “hit” for a warrant and arrested the passenger. After the arrest, the officer discovered methamphetamine in the passenger’s purse, the rear of the patrol vehicle where the passenger was seated, and on the passenger’s person. The district court ordered the methamphetamine evidence suppressed after concluding the officer unlawfully extended the traffic stop by checking the passenger for outstanding warrants absent reasonable suspicion or a safety justification particular to that stop. The Supreme Court reversed and remanded the trial court's judgment, finding that the Fourth Amendment permits law enforcement to check passengers for outstanding warrants as a matter of course during traffic stops because of officer safety concerns.

State v. Hunt
Court: Iowa Supreme Court
Opinion Date: May 20, 2022

Tagline: Plain view seizure of drugs under the Plain-Feel Exception during patdown.

The Supreme Court affirmed the decision of the court of appeals reversing the order of the district court granting Defendant's motion to suppress evidence of drugs seized following a pat-down, holding that law enforcement's conclusion that Defendant possessed drugs met the bar to establish probable cause.

The district court concluded that the officer's inability to discern the type of the drugs in the packaging before removing them from Defendant's pocket required suppression of the evidence. The court of appeals reversed, determining that the evidence was sufficient under the plain-feel exception to the warrant requirement that Defendant believed the package contained heroin, powder cocaine, or crack cocaine, despite not knowing which one. The Supreme Court affirmed, holding that the evidence established probable cause for the officer to have arrested Defendant for drug possession.

State v. Zeimer
Court: Montana Supreme Court
Opinion Date: May 24, 2022

Tagline: Unlawfully extended DUI stop (lack of RS for DUI and questions regarding drugs) tainted consent to search vehicle (evidence excluded).

The Supreme Court reversed Defendant's convictions for felony criminal possession of dangerous drugs and misdemeanor criminal possession of drug paraphernalia, holding that the district court erred in denying Defendant's motion to suppress.

On appeal, Defendant argued that the district court abused its discretion in denying his motion to suppress evidence seized after a vehicle search that resulted from an unlawfully prolonged investigative driving under the influence (DUI) stop. The district court denied the motion to suppress on the ground that the initial stop of Defendant was lawful based on a reasonable particularized suspicion of DUI. The Supreme Court reversed, holding (1) while Defendant was lawfully stopped on a reasonable particularized suspicion of DUI, the officers unlawfully prolonged the duration of the stop before

subjecting Defendant to the confirmatory DUI field sobriety testing; and (2) therefore, the district court erroneously denied Defendant's motion to suppress.

State v. Corcoran
Court: Rhode Island Supreme Court
Opinion Date: May 26, 2022

Tagline: Custody for Miranda purposes – statements excluded

The Supreme Court affirmed the order of the superior court granting Defendant's motion to suppress the statements he made to police at the scene of an automobile collision, holding that the superior court did not abuse its discretion in granting the suppression motion.

Specifically, the Supreme Court held (1) the trial justice correctly determined that Defendant was in custody when he made incriminating statements to the law enforcement officer at the scene of the arrest and therefore correctly suppressed the statements Defendant made to the officers at the time; and (2) the state's second contention on appeal was not properly before the Court.

CASES 3JUN2022

United States v. Chiu
Court: US Court of Appeals for the First Circuit
Opinion Date: June 2, 2022

The First Circuit affirmed Defendant's convictions for receipt and possession of child pornography, holding that the district court did not err in denying Defendant's pre-trial motion to suppress evidence obtained pursuant to a search warrant and did not abuse its discretion in excluding certain text-message evidence as inadmissible hearsay.

On appeal, Defendant argued that the district court erred in denying his motion to suppress because the affidavit filed in support of the search warrant failed sufficiently to describe ether pornographic images to be found and that the court erred in excluding from his trial the text message evidence at issue. The First Circuit affirmed, holding (1) there was no error in the district court's denial of Defendant's motion to suppress; and (2) the district court did not err in barring the text messages from Defendant's trial.

United States v. Felipe Noriega, Jr.
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: May 26, 2022

Appellants were charged by superseding indictment with conspiracy to distribute a controlled substance. At sentencing, the district court varied downward, sentencing each Appellant to a term below the United States Sentencing Guidelines ("Guidelines") range. Appellants challenged their sentences, with one Appellant additionally arguing that the district court erroneously denied his motion to suppress evidence obtained as a result of the traffic stop of his vehicle.

The Eighth Circuit affirmed the district court's judgment and first held that the traffic stop was not unlawfully extended based on the facts presented. The court found that viewing the facts cumulatively and considering the Officer's extensive experience and training, the Officer had reasonable suspicion to extend the stop of Appellant's vehicle. Here, Appellant's demeanor was suspicious; he was visibly "shaking," "twitching," and "trembling," his mouth was noticeably dry, he appeared increasingly uncomfortable when pressed about his travel plans, and he attempted to change the topic of conversation.

Next, the court held that the Appellants' sentences were not substantively unreasonable. The court reasoned that a district court may vary from a Guideline on policy grounds, but it is not required to do so. Here, the district court did not commit a procedural error when it denied Appellant's argument that he should receive a mitigating role reduction under Guidelines Sec. 3B1.2(b) as he played multiple roles in the drug trafficking organization. Consequently, the court did not err in applying a three-level reduction pursuant to Guidelines Sec. 2D1.1(a)(5).

United States v. Meamen Nyah
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: May 27, 2022

A police officer initiated a traffic stop of a vehicle after the officer observed it traveling 20 miles per hour over the posted speed limit. The driver did not stop and led the officer on a high-speed chase before crashing. Two people exited the vehicle and fled. The officer pursued Defendant, who was the passenger. The officer used his taser on Defendant, who then grabbed a nearby firearm and pointed it at the officer. The officer shot Defendant, who was later indicted for unlawfully possessing a firearm as a felon.

The district court denied Defendant's motion to suppress any evidence recovered after he was tased, and a jury ultimately convicted Defendant. Defendant appealed.

On appeal, the Eighth Circuit affirmed Defendant's conviction and sentence, affirming the district court's denial of Defendant's motion to suppress. By tasing Defendant, the officer executed a warrantless arrest. However, this arrest was supported by probable cause based on the traffic stop and Defendant's subsequent flight despite the officer's demands to stop. The court determined that the officer reasonably thought that Defendant was the driver of the vehicle.

The Eighth Circuit rejected Defendant's remaining challenges to his conviction and sentence.

New Jersey v. O.D.A.-C.
Court: Supreme Court of New Jersey
Opinion Date: May 2, 2022

In this appeal, a detective administered Miranda warnings but repeatedly undermined them throughout an interrogation. The New Jersey Supreme Court concluded the detective here repeatedly contradicted and minimized the significance of the Miranda warnings -- starting at the outset of the interrogation and continuing throughout -- meaning the State could not prove beyond a reasonable doubt, that defendant knowingly, voluntarily and intelligently waived his rights. The Appellate Division concluded defendant's statement made to police in violation of his Miranda rights had to be suppressed, and the Supreme Court affirmed.

Sims v. Griffin
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: June 1, 2022

Plaintiffs filed a 42 U.S.C. Section 1983 action shortly after her son’s death, alleging that officers violated her son’s constitutional rights by failing to provide him with medical treatment while he was dying in a jail cell. The officers moved for summary judgment based on qualified immunity. The district court denied the officers’ motion. It found genuine disputes of material fact surrounding Plaintiff’s claims that the officers were deliberately indifferent to the man’s serious medical needs. And it concluded that the law was clearly established at the time of the alleged violation.

The Fifth Circuit affirmed the district court's ruling and found that (1) the fact disputes identified by the district court are material to Plaintiff's deliberate indifference claims, and (2) the court's decision in Easter clearly established the man's rights before the officers allegedly violated them.

The court explained that in reviewing qualified immunity it looks to: (1) whether the defendant violated the plaintiffs' constitutional or statutory rights; and (2) whether those rights were clearly established at the time of the violation. The court reasoned those it lacks jurisdiction to review the genuineness argument because the officers' arguments do not address why the fact disputes the district court did find cannot affect the outcome of Plaintiff's lawsuit—the materiality inquiry. Further, in reviewing Easter v. Powell, 467 F.3d 459 (5th Cir. 2006), the court held that a reasonable jury could find that the officers each refused to treat the man, ignored his cries for help, and overall evinced a wanton disregard for his serious medical needs.

Wiley v. City of Columbus
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: June 2, 2022

Thomas called 911, stating that he believed he was overdosing from cocaine. Law enforcement officers customarily secure suspected drug overdose scenes before paramedics enter. Officer Pinkerman knocked on the door, which burst open. Thomas ran into the lawn, disobeying officers' commands. When Thomas fell, Pinkerman fell on top of him. Thomas actively resisted. Four officers handcuffed Thomas and signaled to paramedics to approach. Thomas was kicking and dropping his weight, so the officers laid him down and called for a hobble strap to prevent him from kicking paramedics. Officer Shaffner applied his knee to Thomas's lower back/hip area. Stephens had his knees against Thomas's shoulder. Thomas was kept in this position for approximately 90 seconds while waiting for a hobble strap. Officers noticed that his breathing slowed and rolled Thomas onto his side. Paramedics administered Narcan to increase his respiratory rate and deemed Thomas to be in stable, non-life-threatening condition; minutes later he went into cardiac arrest. Thomas arrived at the hospital in critical condition. A drug screen detected marijuana, cocaine, and opiates. Thomas died of "anoxic encephalopathy" resulting from cardiac arrest.

Thomas's estate alleged that his cardiac arrest was caused by "forcible restraint that precluded adequate breathing." The Sixth Circuit affirmed the summary judgment rejection of the estate's 42 U.S.C. 1983 claims. The estate cannot establish that Thomas had a clearly established right against the type of force that was used; the officers are entitled to qualified immunity.

N.S. v. Kansas City Board of Police
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: May 31, 2022

Kansas City Officer ("Officer") shot and killed the victim during a foot chase. Family members of the victim filed suit and the district court concluded that the Officer was entitled to both qualified and official immunity. In addition to contesting the grant of summary judgment on appeal, Plaintiffs argued they should receive a trial on their claims against the Kansas City Board of Police Commissioners and the other municipal officials named in their complaint.

In evaluating the family's excessive-force claim against the Officer, the Eighth Circuit affirmed the district court's decision. The court explained that the key issue requires answering whether the officer's actions violated a constitutional right and then whether the right was clearly established. The court reasoned that the Supreme Court has explained that "the focus" of the clearly-established-right inquiry "is on whether the officer had fair notice that [his] conduct was unlawful." Kisela v. Hughes, 138 S. Ct. 1148 (2018). Here, "judged against the backdrop of the law at the time of the conduct," a reasonable officer would not have had "fair notice" that shooting the victim under these circumstances violated the Fourth Amendment.

Additionally, to prevail in this case under Kisela, the family would need to establish "the right's contours were sufficiently definite that any reasonable official in the defendant's shoes would have understood that he was violating it." Here, the family failed to show that the Officer acted in bad faith or with malice. Finally, there is not enough evidence to find that the municipal defendants liable under a deliberate indifference theory.

CASES 10 JUNE 2022

United States v. Tevin Maurstad
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: June 3, 2022

Tagline:

Defendant was sentenced to 270 months of incarceration followed by five years of supervisor release following a conviction for various drug and gun crimes. The Eighth Circuit affirmed Defendant's convictions and sentences on all charges, rejecting each of his appellate issues.

The trial court did not err in denying Defendant's motion to suppress. The tint on Defendant's window was dark enough to give the officer reasonable suspicion that Defendant's vehicle was in violation. The second traffic stop of Defendant was also supported by probable cause because Defendant's vehicle was missing license plates and he was speeding.

The court also found that the evidence against Defendant was sufficient to support his convictions and that the district court did not err in applying a sentencing enhancement for obstruction of justice.

United States v. William Kennedy

Court: US Court of Appeals for the Eighth Circuit

Docket: 21-2377

Opinion Date: June 3, 2022

Judge: Jane Louise Kelly

Areas of Law: Constitutional Law, Criminal Law

Defendant was pulled over after an officer observed excessive braking. During the stop, the officer observed both driver and passenger appeared to be nervous. Upon a subsequent pat-down, the officer observed a clear glass smoking device with burnt residue inside Defendant's open pocket. After another search, an additional 20 grams of methamphetamine were recovered from Defendant.

The trial court denied Defendant's motion to suppress. He ultimately entered a conditional guilty plea and was sentenced to 216 months in prison.

On appeal, Defendant challenged the district court's denial of his motion to suppress. The court affirmed the district court's decision, finding the officers did not unconstitutionally extend the traffic stop. The court also held that the officer was permitted to ask Defendant out of the car and that Defendant consented to the pat-down by raising his arms.

The court also found that the district court did not commit any error in the sentencing factors under 18 U.S.C. Sec. 3553(a).

State v. Sagapolutele-Silva

Court: Supreme Court of Hawaii

Docket: SCWC-19-0000491

Opinion Date: June 3, 2022

Judge: Mark E. Recktenwald

Areas of Law: Civil Rights, Constitutional Law, Criminal Law

The Supreme Court vacated the order of the district court suppressing Defendant's statements, vacated the judgment of the intermediate court of appeals (ICA) affirming that Defendant was in custody during the traffic stop, and remanded this case for further proceedings, holding that Defendant was not entitled to suppression of her statements.

Defendant was arrested after a traffic stop and charged with operating a vehicle under the influence of an intoxicant and excessive speeding. Defendant filed a motion to suppress statements she made during the traffic stop on the basis that she was not advised of her rights under Miranda v. Arizona, 384 U.S. 436 (1966), during the incident. The district court agreed and granted the motion. The ICA affirmed. The Supreme Court reversed, holding (1) under the totality of the circumstances, Defendant was not in custody when she was pulled over during the administration of the standardized field sobriety test; and (2) because Miranda warnings were not required, there was no illegality that would taint Defendant's subsequent statements as fruit of the poisonous tree.

New Jersey v. Myers

Court: Supreme Court of New Jersey

Docket: A-40-20

Opinion Date: January 25, 2022

Judge: Pierre-Louis

Areas of Law: Constitutional Law, Criminal Law

Around midnight on May 7, 2011, a 7-Eleven was robbed. At approximately 12:15 a.m., Sergeant Mark Horan of the Hamilton Township Police Department received a transmission about the armed robbery, which “had just occurred.” Horan testified that the dispatch described the suspects “as two Black males, one with a handgun.” Horan activated the lights and sirens on his marked patrol car and drove towards the 7-Eleven. Approximately three-quarters of a mile from the 7-Eleven, Horan saw a car approaching in

the oncoming traffic lane. He illuminated the inside of the vehicle and observed three Black males; “[t]he description of the suspects was two Black males so at that point I decided to issue a motor vehicle stop on the second vehicle.” Horan later explained that he was also struck by the lack of reaction to the spotlight by the occupants of the car, and that he “took into consideration the short distance from the scene, as well as the short amount of time from the call” as he made the stop. Defendant Peter Nyema was sitting in the passenger seat, and defendant Jamar Myers was in the rear passenger-side seat. The dispatcher advised Horan that the vehicle had been reported stolen. All three occupants were placed under arrest. More officers arrived on the scene, and while several officers secured the arrestees, others assisted Horan in searching for a weapon. Officers searched other parts of the vehicle, locating additional clothing in the trunk and a black semi-automatic handgun under the hood. Searches of the men themselves yielded just under $600 cash. Approximately $600 was reported stolen from the 7-Eleven. The vehicle was then impounded, and police transported the three men to the police station. The issue this case presented for the New Jersey Supreme Court's review in this case was whether reasonable and articulable suspicion existed when Horan conducted an investigatory stop of defendants' vehicle. The Supreme Court determined the only information the officer possessed at the time of the stop was the race and sex of the suspects, with no further descriptors. "That information, which effectively placed every single Black male in the area under the veil of suspicion, was insufficient to justify the stop of the vehicle and therefore does not withstand constitutional scrutiny."

New Jersey v. Terres

Court: Supreme Court of New Jersey

Docket: A-45-20

Opinion Date: January 20, 2022

Judge: Barry T. Albin

Areas of Law: Constitutional Law, Criminal Law

In June 2011, defendant Christopher Radel pled guilty to a weapons offense. In October 2015, the court entered an order directing the local police department to confiscate any firearms at Radel's residence. Before carrying out the order, police learned: Radel resided at an address different than on the court order; Radel had two active municipal arrest warrants; and he possessed firearms other than a Beretta listed on the order. Police thereafter set in motion a plan to enforce the order to retrieve weapons and arrest Radel on the outstanding warrants. Performing a protective sweep, officers observed in plain view imitation firearms, butterfly knives, hatchets, bows and arrows, a ballistic vest, simulated police identification badges, marijuana, drug paraphernalia, a glass pipe, and a safe capable of storing firearms. Police obtained a search warrant, netting the multiple weapons, drugs and related paraphernalia, and over $8,000 in cash found in the protective sweep. The trial court denied Radel’s motion to suppress the evidence, and the Appellate Division reversed, finding “no support for the [trial court’s] conclusion that the police had a reasonable and articulable suspicion that there were other persons inside the home or that they posed a risk to the police or others.” In 2017, a warrant for Tyler Fuller’s arrest was issued. Police learned Fuller might have been staying at a trailer park, in possession of a "large amount of narcotics." Four officers went directly to the front building where the trailer's owner (Terres) had said Fuller might be found. As police approached the front door, which was wide open, they observed two

men inside, later identified as Mark Boston and William Willis. The officers announced their presence, Boston ran toward a bedroom, with one officer pursuing, believing that he might be Fuller. The officer struggled with Boston and eventually handcuffed him. A computer check revealed that both Boston and Willis had outstanding warrants for their arrest. During a protective sweep of the trailer, an offer peered into a hole in the floor, "large enough for a person to hide" under the residence. The next day a search warrant was issued, and multiple weapons were seized from the trailer. The trial court denied Terres's motion to suppress the evidence, and the Appellate Division affirmed. The New Jersey Supreme Court found that "a self-created exigency by the police cannot justify entry into the home or a protective sweep." Here, the Court found a protective sweep was not warranted in the Radel case, but was constitutionally justified in the Terres case.

CASES 17JUN2022

USA v. Henry
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: June 10, 2022

Tagline: Traffic stop lawfully extended with reasonable suspicion

Defendant was arrested and indicted on federal drug charges following the seizure of 400 grams of heroin 26 minutes into a traffic stop. At trial, Defendant unsuccessfully litigated a motion to suppress and then entered a conditional guilty plea. Defendant then appealed the denial of his motion to suppress.

The Fifth Circuit affirmed the district court's denial of Defendant's motion to suppress. The traffic stop leading to the discovery of the narcotics was justified at its inception because Defendant was speeding, driving on the shoulder of the road, and littered a cigarette out his window. The court also held that the length of the traffic stop was justified. While a traffic stop must be temporary and last no longer than necessary, upon the development of reasonable suspicion, officers can extend the stop. Here, three minutes into the stop the officer determined Defendant's license was suspended. The officer could have arrested Defendant at this point for driving on a suspended license. However, as the stop progressed, the officer developed reasonable suspicion that Defendant was involved in the sale of heroin, leading to the permissible extension of the stop.

Bell v. City of Southfield
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: June 14, 2022

Tagline: Use of force at a traffic stop removing driver from vehicle

Bell asked why Officer Korkis pulled him over. Korkis responded that Bell first needed to provide his driver’s license, registration, and car insurance and that more officers were on their way. Bell claims the officers forcefully removed him from his vehicle, despite Bell volunteering again to exit on his own. Dash-cam videos show Korkis and Bell arguing for three minutes. Korkis asked for Bell’s information about 20 times, then reached into the window to unlock the door. A physical struggle ensued, not fully visible in the videos. Officers eventually pried open the door and told Bell to get on the ground; he repeatedly refused. Officers wrestled him to the pavement, where he refused to comply. An officer warned Bell about the taser. Bell still did not put his hands behind his back. An officer tased him.

Bell sued the officers (42 U.S.C. 1983), claiming they violated the Fourth Amendment’s bar against excessive force. The district court dismissed, citing qualified immunity. The Sixth Circuit affirmed in part after holding that the video footage could be considered at the motion-to-dismiss stage to determine whether allegations in the complaint were implausible. The court dismissed the appeal with respect to claims concerning the officers removing Bell from his car, noting that factual issues remain. With respect to claims concerning the tasing, Bell had not shown that the officers violated his clearly established rights.

United States v. Mosley Williams
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: June 9, 2022

Tagline: Apparent authority to consent to search of a bag.

Defendant moved to suppress items found during a warrantless search of the apartment he shared with his girlfriend. The district court granted the motion as to the narcotics found in a black bag, concluding the search that led to the discovery of the narcotics exceeded the scope of his girlfriend's consent to search the apartment. As to the other evidence, the court denied the motion.

The government filed an interlocutory appeal, asserting the district court erred when it focused on ownership of the bag rather than his girlfriend's authority to give consent for the search and the Eighth Circuit reversed.

The question before the court was whether Defendant's girlfriend had apparent authority to consent to the search of the bag. The court held that consent is an exception to the warrant requirement, which may be given by a third party with common authority or apparent authority over the premises or effects. Here, at the time of consent, law enforcement officers knew: (1) Defendant had directed his girlfriend to move the gun owned by and registered to her to a specific place within the apartment; (2) she voluntarily led the officers to the location of the gun; and (3) she had access to the bag and never indicated it was Defendant's bag or that her ability to use or access the bag was limited. As the sole lessee, Defendant had actual and common authority over the apartment and consented to the search of the entire apartment for Fourth Amendment purposes.

Nicholas C. Wade v. Solomon Daniels, et al.
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: June 13, 2022

Tagline: excessive use of force by pistol-whipping and deliberate indifference to medical needs

Plaintiff brought a 42 U.S.C. Section 1983 action against several DeKalb County, Georgia investigators, alleging that they violated his constitutional rights during his arrest. Plaintiff claimed that S.D. used excessive force when he shot him three times, that V.J. used excessive force when he pistol-whipped him, and that all three Defendants were deliberately indifferent to his serious medical needs. The district court granted summary judgment for Defendants on every claim.

The Eleventh Circuit reversed the district court's grant of summary judgment for V.J. on the pistol-whip claim. But affirmed the district court's grant of summary judgment for S.D. on the shooting claim and for all Defendants on the deprivation of medical care claim.

The court held that V.J. used excessive force in pistol-whipping Plaintiff and that Plaintiff's right to be free of V.J.'s use of force was clearly established at the time. Further, viewing the facts through the appropriate lens, V.J. could not have reasonably believed that Plaintiff was resisting when he tried to sit up after communicating that he needed to do so to breathe. And because "a handcuffed, non-resisting [suspect's] right to be free from excessive force was clearly established" at the time, V.J is not entitled to qualified immunity on Plaintiff's excessive force claim against him.

Finally, even though Plaintiff met his burden that Defendants violated his Fourteenth Amendment rights, the court concluded that there was no established law on how long before officers must request medical care for a suspect that has been shot to constitute deliberate indifference.

Idaho v. Riley
Court: Idaho Supreme Court - Criminal
Opinion Date: June 10, 2022

Tagline – 28 seconds of questions did not extend the traffic stop (TIMELINE DIAGRAM)

The State appealed the district court's order granting Sunny Riley's motion to suppress evidence obtained when a drug dog alerted on her vehicle while she was being cited for a traffic offense. Riley's motion was granted by the district court after it concluded that the police officer's deviations from the traffic stop measurably and unlawfully extended the duration of Riley's seizure under the Fourth Amendment. The Idaho Supreme Court reversed, finding that while there were two deviations from the initial course of this traffic stop, the combined deviation was insufficient to change the overall length of the stop beyond the time when the drug dog alerted on the vehicle. When this occurred, it gave rise to a reasonable suspicion of drug activity and allowed officers to continue to investigate.

People v. Aljohani
Court: Supreme Court of Illinois
Opinion Date: June 16, 2022

Tagline: Emergency aid exigency to enter based on 911 call

In 2015, Aljohani was indicted on five counts of first-degree murder in connection with the stabbing death of Talal and one count of armed robbery. The circuit court denied a motion to suppress evidence. The court concluded that the officers' entry into an apartment fell "squarely within the community caretaking function." In 2018, Aljohani was convicted and sentenced to 23 years in prison. The appellate court affirmed, citing the emergency aid exception to the warrant requirement.

The Illinois Supreme Court affirmed, finding that the evidence was sufficient to prove guilt beyond a reasonable doubt. The police officers had reasonable grounds to believe an emergency existed, having responded to a 911 call about a suspected battery in progress and spoken to a witness, who was "adamant" that someone was seriously hurt. The officers saw an apartment door "wide open," received no response, and found the victim unresponsive on a bed. The totality of the circumstances at the time of entry provided an objective, reasonable basis for believing someone was injured inside the apartment.

Commonwealth v. Reed
Court: Kentucky Supreme Court
Opinion Date: June 16, 2022

Tagline: Real-time CSLI is a search requiring a warrant or exception.

The Supreme Court affirmed the decision of the court of appeals reversing the judgment of the trial court denying Defendant's motion to suppress location data obtained from the police's search of his real-time cell-site location information (CSLI) and the evidence obtained from the search, holding that suppression was required.

Defendant entered a conditional guilty plea to one count of first-degree robbery, one count of possession of a handgun by a convicted felon, and one count of receiving stolen property. The court of appeals reversed, concluding that the trial court erred in denying Defendant's motion to suppress because the police's acquisition of Defendant's real-time CSLI constituted a warrantless, unreasonable search. The Supreme Court affirmed, holding that the officers illegally obtained Defendant's real-time CSLI and that the evidence obtained therefrom should be excluded from evidence.

Hawken v. State
Court: Wyoming Supreme Court
Opinion Date: June 16, 2022

Tagline: No implied consent to enter dwelling

The Supreme Court reversed the judgment of the district court denying Defendant's motion to suppress evidence obtained after law enforcement entered her home without a warrant or consent, holding that the district court erred.

Defendant entered a conditional plea of guilty to felony driving under the influence. On appeal, Defendant challenged the district court's denial of her motion to suppress, arguing that the record did not support a finding that her husband consented to a law enforcement officer's entry into their home. The Supreme Court reversed and remanded the case, holding (1) the district court erred in concluding that the officer had implied consent to enter the home; and (2) therefore, the officer violated the Fourth Amendment to the United States Constitution.

CIVIL RIGHTS CASES

Salazar v. Molina
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: June 16, 2022

Tagline: Material facts preclude qualified immunity in excessive use of force (taser) claim

Plaintiff led police on a high-speed chase through a residential neighborhood. Once Plaintiff exited his vehicle, Defendant sheriff's deputy tased Plaintiff. Plaintiff sued the deputy, claiming he violated Defendant's Fourth Amendment Rights. The District Court denied the deputy's claim of qualified immunity, finding there were material factual disputes as to whether a reasonable officer would have viewed Plaintiff as an immediate threat; whether Plaintiff's apparent surrender was a ploy to evade arrest; and whether Plaintiff was tased once or twice.

The Fifth Circuit reversed. After considering the threat posed by Plaintiff in fleeing law enforcement as well as the force used by the deputy, the court determined that the deputy did not violate Plaintiff's

clearly established constitutional rights under the Fourth Amendment. Thus, Plaintiff was unable to overcome the bar of qualified immunity.

Hopkins v. Nichols
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: June 16, 2022

Tagline: Open fields doctrine allowed for entry to farm but not seizure of cattle and an order to exit the dwelling is a seizure of the person.

The Hopkinses kept cattle on their Marshall County, Tennessee farm. Detective Nichols received a complaint about the treatment of those cattle, drove by, and observed one dead cow and others that did not appear to be in good health. Nichols returned with Tennessee Department of Agriculture Veterinarian Johnson. Wearing his gun and badge, Nichols knocked and. according to Mrs. Hopkins, "demanded that [she] escort them to see the cattle," refusing to wait until Mr. Hopkins returned or until she fed her children. Johnson completed a Livestock Welfare Examination, as required by law, noting that the cattle were not in reasonable health, that they lacked access to appropriate water, food, or shelter, and that major disease issues were present; she determined that probable cause for animal cruelty existed. Nichols returned to the Hopkins's farm several times and discovered a sinkhole containing the remains of multiple cattle. Nichols and Sheriff Lamb eventually seized the cattle without a warrant and initiated criminal proceedings. The cattle were sold.

The Sixth Circuit affirmed the denial of a motion for qualified immunity in a suit under 42 U.S.C. 1983. Forced compliance with orders is a Fourth Amendment seizure; words that compel compliance with orders to exit a house constitute a seizure. While the open fields doctrine allowed the officers to lawfully search the farm, it did not give them lawful access to seize the cattle; they lacked exigent circumstances when they seized the cattle.

Andrea Martinez v. Ronnet Sasse
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: June 16, 2022

Tagline: Use of force (shove) to deny entry may be a tort but it is not a seizure and therefore is not a Fourth Amendment excessive use of force claim.

Plaintiff sued Defendant, a law enforcement officer employed by the United States Immigration and Customs Enforcement agency (ICE). Martinez claims that Sasse violated her rights under the Fourth Amendment by effecting a seizure through the use of excessive force. Sasse moved for judgment on the pleadings and argued that she was entitled to qualified immunity. denied the motion, reasoning that Martinez's allegations stated a claim for the violation of a clearly established right.

The Eighth Circuit reversed and remanded the case with directions to dismiss the Fourth Amendment claim against Defendant. The court concluded that Plaintiff has not adequately pleaded that Defendant violated a clearly established right, because it was not clearly established as of June 2018 that Defendant's alleged push was a seizure under the Fourth Amendment. Accordingly, Defendant is entitled to qualified immunity. The court explained that although the claim here alleges the use of

excessive force, the parties dispute the threshold question of whether Defendant seized Plaintiff at all within the meaning of the Fourth Amendment. Plaintiff argues that Defendant effected a seizure when she pushed Plaintiff to the ground before locking the doors to the ICE facility. Defendant maintains, however, that when an officer's use of force is designed only to repel a person from entering a facility, there is no seizure. On that view, Plaintiff may have a tort claim against Defendant for assault or battery if the officer used unjustified force, but Defendant did not violate the Fourth Amendment.

Dana Harrison v. Brodie Faughn
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: June 10, 2022

Tagline: Qualified Immunity granted in 1983 suit against officer for fourth amendment violations and chief and mayor for failure to supervise

Plaintiffs, filed suit against Arkansas, patrolman in his individual capacity. Plaintiffs pleaded claims under 42 U.S.C. Section 1983, alleging that the patrolman had violated their constitutional right to be free from unreasonable searches and seizures. Plaintiffs also sued the Wynne police chief, and the mayor, in their individual capacities, for failing to supervise the patrolman.

Defendants moved for summary judgment based on qualified immunity. The district court denied the motion. The Eighth Circuit reversed. The court held that Defendants are entitled to qualified immunity unless their actions violated a constitutional right that was clearly established. The court concluded that Plaintiff has not set forth evidence showing that the patrolman is responsible for the alleged Fourth Amendment violations.

Further, Plaintiffs allege that the Police Chief and Mayor are liable for the patrolman's alleged unconstitutional acts because they had received notice of his behavior and failed to stop it. A supervising officer may be liable for the actions of his subordinates when "he (1) had 'notice of a pattern of unconstitutional acts committed by subordinates'; (2) was deliberately indifferent to or tacitly authorized those acts; and (3) failed to take 'sufficient remedial action'; (4) proximately causing injury to" the plaintiffs. Here, no evidence in the record supports a finding that either the Chief or Mayor subjectively knew of and deliberately disregarded a substantial risk of unconstitutional harms posed by the patrolman.

CASES 24JUNE2022

United States v. Capelli
Court: US Court of Appeals for the Second Circuit
Opinion Date: June 21, 2022

Tagline: The Automobile Exception applies to the search of a private airplane if plane is readily mobile.

Defendant was convicted of possessing marijuana with intent to distribute, and of conspiracy to distribute and possess with intent to distribute, 100 kilograms or more of marijuana following a jury trial.

On appeal, Defendant argued that (1) the district court erred in denying his motion to suppress marijuana that was obtained during a warrantless search of a private single-engine airplane; (2) the government improperly bolstered the testimony of its cooperating witnesses at trial; and (3) he received ineffective assistance of counsel at sentencing.

The Second Circuit affirmed the denial of the motion to suppress, the judgment of conviction, and the sentence. The court held that the vehicle exception to the Fourth Amendment's warrant requirement applies to the search of the private aircraft used to transport Defendant's marijuana and that there was probable cause to search the plane. Further, the court wrote there is no merit to Defendant's remaining challenges.

The court explained unlike a traffic stop, law enforcement agents may conduct a ramp check absent an antecedent violation or even reasonable suspicion of one. Here, the ramp check by itself was therefore a proper exercise of regulatory authority. Further, the mobility of an airplane in flight is so obvious that it needs no elaboration. And even when a plane is on the ground, it is no less capable of being moved than, say, a non-residential unhitched tractor-trailer. The fact that the search here occurred while the plane was sitting on the tarmac and the pilot was not in the pilot's seat does not alter the calculus.

United States v. Hawkins
Court: US Court of Appeals for the Second Circuit
Opinion Date: June 23, 2022

Tagline: Observations created the requisite reasonable suspicion to conduct a Terry Frisk

Police received reports of a gunshot fired from the roof of a building. Officers responded to the scene within two minutes, at which point they observed Defendants exiting a building. While officers were not sure which building the shots were fired from, the building Defendants were exiting was in the immediate area. Officers noticed one of the Defendants bladed his body away from them, and both Defendants had their hands in their pockets. When asked to remove their hands from their pockets, Defendants complied. However, at this point, officers noticed a bulge in one of the Defendant's pockets. A passerby informed officers that he had seen Defendants coming down from the building's rooftop. Officers frisked one of the Defendants, recovering a firearm.

Defendants entered guilty pleas each to a single count of being a felon in possession of a firearm in violation of 18 U.S.C. Sections 922(g)(1) and 2, preserving their right to appeal the court's adverse decision on their motion to suppress.

The Second Circuit affirmed the district court's denial of Defendants' motion to suppress, finding that the police had reasonable suspicion to initiate a pedestrian stop as well as to conduct a pat-frisk of the Defendant who had a bulge in his pocket.

United States v. Lewis
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: June 21, 2022

Tagline: No REP in hotel exterior hallway and “even if” real-time CSLI was a search, the good-faith exception applied.

Areas of Law: Civil Rights, Constitutional Law, Criminal Law

An FBI informant provided a cell phone number for Lewis, a distributor in a drug-trafficking operation. The government obtained a tracking order under the Stored Communications Act, 18 U.S.C. 2703(d). Cell-site location information (CSLI) from Lewis’s cell phone provider showed that his phone was within a 1,099-meter radius of Greenwood, Indiana. From there, officers searched parking lots and hotels where a deal might take place. Officers eventually saw a woman resembling Lewis’s wife enter a room at a hotel, drop off a duffel bag, and drive away in a car registered in Lewis’s name. After a drug-sniffing dog alerted at the room, officers obtained a search warrant. The team executed the warrant the same day. Inside the room, officers found Lewis, $2 million in cash, and 19.8 kilograms of cocaine.

The Seventh Circuit affirmed Lewis’s conviction for possession with intent to distribute five kilograms or more of cocaine. The court rejected his arguments that the dog sniff violated his reasonable expectation of privacy or, in the alternative, that the application for the section 2703(d) order lacked probable cause. Lewis lacked a reasonable expectation of privacy in the hotel's exterior hallway, where the dog sniff occurred. Regardless of whether the government’s use of real-time CSLI amounted to a search, the good-faith exception applies.

State Cases

Colorado v. Trujillo-Tucson
Court: Colorado Supreme Court
Opinion Date: June 21, 2022

Tagline: Question regarding ability to make telephone call was not unambiguous request for a lawyer.

While in police custody, during a pause in an interrogation, Isaiah Trujillo-Tucson waited in an interview room with a non-interrogating officer while the interrogating officer was off getting Trujillo-Tucson a soda. The non-interrogating officer was patting Trujillo-Tucson down without pressing for information while Trujillo-Tucson repeatedly initiated mostly casual conversation. Shortly thereafter, Trujillo-Tucson asked, "Am I able to get a phone call? . . . To my lawyer, [E.K.]?" The officer spoke over Trujillo-Tucson during the latter portion of his question to say, "Yeah." After a brief silence, casual conversation continued. When the interrogating officer joined the two men in the room to continue questioning, Trujillo-Tucson made incriminating statements. After the State charged Trujillo-Tucson with various offenses, Trujillo-Tucson moved to suppress his statements, arguing that questioning should have ceased because he had invoked his right to counsel. The trial court agreed. The State filed an interlocutory appeal of the trial court's suppression order arguing that Trujillo-Tucson's question, posed to the non-interrogating officer, was not an unambiguous and unequivocal invocation of his right to counsel. Based on its independent review of the video- and audio-recorded interrogation, the Colorado Supreme Court concluded Trujillo-Tucson's question about a phone call to an attorney did not constitute an unambiguous and unequivocal request for counsel during the interrogation. Accordingly, the Court reversed the trial court's suppression order and remanded for further proceedings.

McBride v. Colorado
Court: Colorado Supreme Court
Opinion Date: June 21, 2022

Tagline: Traffic stop not valid at its inception.

One night, while surveilling an area near a hotel for illegal drug trafficking, a sheriff's deputy in an unmarked patrol car watched a Lincoln Town Car with two occupants pull into the hotel's parking lot, park for less than ten minutes without anyone exiting the vehicle, and drive away. As she followed the Lincoln, a second deputy noticed that the car's tail lamps were broken and that someone had tried to fix them with red tape but that the tape had melted, allowing the bulbs to emit "some white light." The second deputy also observed the driver of the Lincoln commit what she perceived to be a second traffic infraction, namely, failing to use a turn signal when exiting a roundabout. At that point, the second deputy relayed to a third deputy, what she had seen and asked the third deputy to execute a traffic stop. Petitioner Timothy McBride was identified as the Lincoln's driver, and police found he had an outstanding warrant for his arrest. Incident to the arrest, a search of the car netted a baggie containing methamphetamine and a handgun. McBride was charged on weapons and drug possession charges; he moved to suppress all evidence, arguing among other things, that the stop was unlawful because the deputies did not have a reasonable suspicion that McBride had committed any traffic offenses. Specifically, as pertinent here, McBride asserted that section 42-4-206(1) required that a vehicle's tail lamps emit a red light plainly visible from a distance of five hundred feet to the rear. He argued that even if the deputies observed a white light, it was inconceivable that they did not also observe a red

light, and “there is no statutory prohibition to any white light so long as the red light is visible.” The Colorado Supreme Court concluded the statute was plain and unambiguous: there is liability under that section when a motor vehicle’s tail lamps do not “emit[] a red light plainly visible from a distance of five hundred feet to the rear.” Nothing in that section mandated that a vehicle’s tail lamps must “shine only red light.” And because the prosecution did not present substantial and sufficient evidence that would have allowed a reasonable jury to find that the tail lamps of the car that McBride was driving failed to emit a red light plainly visible from a distance of five hundred feet to the rear, the Supreme Court concluded the evidence was insufficient to support his conviction for a tail lamp violation.

State v. Tripp
Court: North Carolina Supreme Court
Opinion Date: June 17, 2022

Tagline: A Summers Detention leads to a Terry Frisk

The Supreme Court reversed the decision of the court of appeals reversing the trial court's denial of Defendant's motion to suppress, holding that the trial court's findings of fact were supported by competent evidence and that Defendant's search and seizure did not violate the Fourth Amendment of the United States Constitution.

Following the trial court's denial of Defendant's motion to suppress Defendant pleaded guilty to various drug offenses. The court of appeals vacated the convictions, concluding that the trial court erred in denying Defendant's motion to suppress. The Supreme Court reversed, holding (1) competent evidence supported the trial court's findings of fact; (2) Defendant was lawfully detained pursuant to Michigan v. Summers, 452 U.S. 692 (1981) and State v. Williams, 490 S.E.2d 583 (N.C. 1997); and (3) the frisk of Defendant was reasonable under the totality of the circumstances.

State v. Nimmer
Court: Wisconsin Supreme Court
Opinion Date: June 23, 2022

Tagline: ShotSpotter alert combined with defendant’s actions created reasonable suspicion to conduct Terry Stop and Terry Frisk.

The Supreme Court reversed the decision of the court of appeals reversing the decision of the circuit court denying Defendant's motion to suppress evidence, including a handgun, obtained as a result of an investigative stop, holding that, based on the totality of the circumstances, the officers had reasonable suspicion to believe Defendant was involved in criminal activity.

Defendant was charged with being a felon in possession. Defendant filed a motion to suppress, arguing that the investigative stop leading to the discovery of the handgun violated his Fourth Amendment right against unreasonable seizure. The circuit court denied the motion, but the court of appeals reversed. The Supreme Court reversed, holding that the officers did not violate Defendant's Fourth Amendment rights because they reasonably suspected Defendant was involved in criminal activity presenting an imminent threat to public safety.

Cases 1JUL2022

Vega v. Tekoh
Court: US Supreme Court
Opinion Date: June 23, 2022

Tagline: Failure to issue Miranda warnings does not create a cause of action under 42 USC 1983

Los Angeles County Deputy Vega questioned Tekoh at the medical center where Tekoh worked regarding the reported sexual assault of a patient. Vega did not inform Tekoh of his Miranda rights. Tekoh eventually provided a written statement and was prosecuted for unlawful sexual penetration. His written statement was admitted against him at trial. After the jury returned a verdict of not guilty, Tekoh sued Vega under 42 U.S.C. 1983. The Ninth Circuit held that the use of an un-Mirandized statement against a defendant in a criminal proceeding violated the Fifth Amendment and could support a section 1983 claim.

The Supreme Court reversed. A violation of the Miranda rules does not provide a basis for a section 1983 claim. In Miranda, the Court concluded that additional procedural protections were necessary to prevent the violation of the Fifth Amendment right against self-incrimination. Miranda did not hold that a violation of the rules it established necessarily constitute a Fifth Amendment violation. The Miranda rules have been described as "constitutionally based" with "constitutional underpinnings," but a Miranda violation is not the same as a violation of the Fifth Amendment right.

Miranda warnings are "prophylactic," and can require balancing competing interests. A judicially crafted prophylactic rule should apply only where its benefits outweigh its costs. While the benefits of permitting the assertion of Miranda claims under section 1983 would be slight, the costs would be substantial.

United States v. Radford
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: June 30, 2022

Tagline:

The DEA was watching a suspected drug house near Indianapolis, Indiana. Detective Maples was monitoring traffic on Rockville Road. DEA agents reported that a white Audi had just departed from the suspected drug house and was heading towards Rockville Road. Maples observed the Audi pass him at approximately 40-45 miles per hour, following the car in front of it by less than a car length. He decided to conduct a traffic stop for the infraction of following too closely. During a pat-down search, Maples saw a vacuum-sealed plastic bag in Radford's inner pocket that Maples believed contained heroin. Minutes after Radford was taken into custody, Maples learned that there was an outstanding warrant for Radford's arrest based on charges for operating a vehicle after a lifetime suspension of his license. An inventory search of the Audi revealed a gun. The substance in the bag was fentanyl rather than heroin. Radford was charged with possession with intent to deliver a controlled substance, 21 U.S.C. 841(a)(1). Radford moved to suppress the evidence, arguing that he was driving under the speed limit, was operating his vehicle in a safe manner, and did not commit any traffic violations.

The Seventh Circuit affirmed the denial of Radford's motion. The court made appropriate findings in crediting Maples' testimony over Radford's with respect to both the traffic offense and Maples' observations leading to the search.

Reyes v. Nurse
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: June 29, 2022

Tagline: Photo array was unduly suggestive but did not prejudice.

In 2004, six men robbed a marijuana dealer, Thomas, at gunpoint in his home. Two of the robbers shot Thomas, who died. One of those shooters also shot Landon, Thomas's business partner. Landon survived. Reyes was convicted of Thomas's murder, Landon's attempted murder, and home invasion. The state's evidence against Reyes included Landon's identification of Reyes as the shooter after viewing a photo array. It took the police five attempts to extract that identification from Landon; several times, he seemed to confuse Reyes with another man who was not a suspect in the robbery. Reyes moved, unsuccessfully, to suppress the identification.

After Reyes exhausted state-court review, he sought federal collateral relief, 28 U.S.C. 2254, arguing that the identification procedure was impermissibly suggestive and that Landon's identification was too unreliable to pass constitutional muster. The Seventh Circuit affirmed the denial of his petition. While the identification procedure was unnecessarily suggestive, as noted by the state court, it did not taint the conviction. Error alone is not enough to entitle Reyes to relief. A section 2254 petitioner must also show prejudice. Reyes cannot because the jury that convicted him heard significant evidence of his guilt beyond the identification and had the opportunity to evaluate most of the evidence bearing on the reliability of the identification.

Jody Lombardo v. City of St. Louis
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: June 29, 2022

Tagline:

On remand, the Supreme Court directed the Eighth Circuit to "to employ an inquiry that clearly attends to the facts and circumstances" of the incident between Plaintiffs' son and the officers in considering whether the officers used unconstitutionally excessive force or, if they did, whether the Plaintiffs' son's right to be free of such force in these circumstances was clearly established at the time of his death.

The court affirmed the district court's ruling and concluded that the officers are entitled to qualified immunity because the right in question was not clearly established at the time of Plaintiffs' son's death and the City is not liable for a policy of deliberate indifference in the absence of a clearly established constitutional right.

The court explained that the Supreme Court has never addressed whether prone restraint generally, or a particular use of prone restraint, more specifically, is unconstitutional. And the Supreme Court has never answered the question of whether a right may be clearly established without a Supreme Court case specifically recognizing it. Thus, assuming, as the Supreme Court has, that a court of appeals decision may constitute clearly established law, the precedent in this area is insufficient to demonstrate that the facts, in this case, show a violation of a clearly established right of a detainee to be free from prone restraint while resisting.

Thus, the Plaintiffs' son's right to be free from prone restraint while engaged in ongoing resistance, even where officers applied force to various parts of his body, including his back, was not clearly established in 2015 when the incident occurred.

PRESTON SEIDNER V. JONATHAN DE VRIES
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: June 30, 2022

Tagline: Use of Force – Roadblock is intermediate force not clearly established.

Plaintiff sued Defendant officer, under 42 U.S.C. Section 1983, alleging that Defendant violated Plaintiff's Eighth and Fourteenth Amendment rights when the officer used a roadblock to stop Plaintiff, who was suspected of committing a minor traffic violation, from fleeing on a bicycle. The district court construed Plaintiff's allegations as asserting a Fourth Amendment excessive-force claim and found that his claim was plausible.

The Ninth Circuit reversed the district court's denial of qualified immunity Defendant. The court held that the question of whether Defendant used excessive force against Plaintiff would be a question for a factfinder. The roadblock was a use of intermediate force that was capable of inflicting significant pain and causing serious injury. Given the circumstances, a jury could conclude that Defendant should have taken additional steps to stop Plaintiff before using an intermediate level of force given Plaintiff's minor offense and the lack of any safety risk to de Defendant or anyone else. However, even if Defendant did use excessive force, the law as it existed at the time of the incident did not clearly establish that his actions violated the Fourth Amendment. Therefore, Defendant was entitled to qualified immunity.

Colorado v. Smith
Court: Colorado Supreme Court
Opinion Date: June 27, 2022

Tagline:

Colorado State Patrol Trooper Christian Bollen, acting on a hunch, initiated a traffic stop on what ended up being a rental car. The vehicle had out of state plates, and because it was a rental, the trooper though the car might be involved in the transportation of illegal narcotics. The driver informed him that she and her passengers were traveling from California to Maryland, but the trooper did not believe that story. Asking the passengers, their respective stories did not match the driver's. A drug detection dog made no alert on a sniff of the vehicle. Acting on a hunch, the trooper searched the vehicle to find a

kilogram of cocaine in the glove box and some fentanyl in a prescription bottle. In this interlocutory appeal brought by the prosecution, the parties agreed that Trooper Bollen performed a lawful traffic stop. The question before the Colorado Supreme Court was whether the district court erred in granting the defendant's motion to suppress on the ground that Trooper Bollen lacked probable cause to search the vehicle. "Because probable cause to search was measured against an objective standard of reasonableness and cannot be established by piling hunch upon hunch or by ignoring facts that militate against it," the Colorado Supreme Court affirmed the district court's order and remanded for further proceedings.

Idaho v. Huntley
Court: Idaho Supreme Court - Criminal
Opinion Date: June 29, 2022

Tagline:

This case involved an investigatory detention of Jeremey Huntley based on a series of tips, corroborated in part, from a known confidential informant that Huntley was trafficking methamphetamine into Idaho. Huntley moved to suppress the methamphetamine evidence found on his person and in his vehicle found during a search after the stop. The district court granted Huntley's motion after concluding the officers lacked reasonable suspicion for the stop and that it was unlawfully prolonged. The State appealed. The Idaho Supreme Court reversed, finding that the tips and corroboration supplied the officers with reasonable suspicion to stop Huntley, and the stop was not unlawfully extended because the detectives never deviated from the original purpose of the stop.

Miller v. State
Court: Supreme Court of Indiana
Opinion Date: June 29, 2022

Tagline:

The Supreme Court affirmed Defendant's convictions of six offenses, including unlawful possession of a firearm by a serious violent felon in violation of Ind. Code 35-50-2-8, holding that none of Defendant's allegations of error required reversal.

On appeal, Defendant argued that the trial court erred in giving Preliminary Instruction 18, and that the error was fundamental. The court of appeals agreed and reversed. The Supreme Court granted transfer and affirmed, holding (1) Defendant invited any error that arose from Preliminary Instruction 18, which precluded relief on direct appeal; (2) the traffic stop leading to Defendant's arrest did not violate the Fourth Amendment; and (3) Defendant waived his last allegation of error.

Commonwealth v. Garner
Court: Massachusetts Supreme Judicial Court
Opinion Date: June 24, 2022

Tagline:

The Supreme Judicial Court affirmed the order of a judge of the superior court granting Defendant's motion to suppress evidence of a firearm discovered during what Defendant alleged was an unlawful patfrisk, holding that the motion to suppress was properly granted.

The Commonwealth filed an interlocutory appeal challenging the grant of Defendant's motion to suppress, arguing that the officers' suspicion that Defendant was armed and dangerous was reasonable. The Supreme Judicial Court disagreed, holding (1) the motion judge properly found that Defendant's behavior did not create reasonable suspicion that he was armed and dangerous; and (2) Defendant's reactions to the traffic stop did not justify the subsequent patfrisk.

State v. Burroughs
Court: Supreme Court of Ohio
Opinion Date: June 28, 2022

Tagline:

The Supreme Court determined that a warrantless search conducted in this case did not comport with the Fourth Amendment under the "single-purpose-container exception" to the warrant requirement, holding that when police search a bookbag in a home under circumstances that do not give rise to any exigency they must first obtain a warrant.

After he was charged with illegal possession of drugs Defendant filed a motion to suppress, arguing that the warrantless search of the book bag conducted by a law enforcement officer was unlawful. The trial court denied the motion, concluding that the warrantless search was lawful because the book bag was in plain view and the officer had probable cause to suspect it contained contraband. The court of appeals affirmed. The Supreme Court reversed, holding (1) absent exigent circumstances, the search of a closed container requires a warrant; and (2) the single-purpose-container exception to the warrant did not apply in this case because a bookbag is not a single-purpose drug container.

Guandong v. State
Court: Wyoming Supreme Court
Opinion Date: June 28, 2022

Tagline: Collective Knowledge Doctrine established reasonable suspicion to support stop.

The Supreme Court affirmed Defendant's conviction of felony possession of marijuana, entered following Defendant's conditional guilty plea, holding that the initial traffic stop of Defendant in this case comported with the requirements of the Fourth Amendment to the United States Constitution.

In denying Defendant's motion to suppress, the trial court concluded that the initial traffic stop was justified as a drug trafficking investigation. Defendant appealed, arguing that the district court erred in concluding the officer had reasonable suspicion to stop Defendant based on the collective knowledge doctrine. The Supreme Court affirmed, holding that the initial stop was legally justified under the Fourth Amendment, and therefore, the district court did not err in denying Defendant's motion to suppress.

CASES 8JUL2022

United States v. Sierra-Ayala
Court: US Court of Appeals for the First Circuit
Opinion Date: July 5, 2022

Tagline:

The First Circuit affirmed Defendant's conviction for four offenses relating to Defendant's possession of a handgun with an obliterated serial number and drugs found within the bag that he was carrying, holding that Defendant was not entitled to relief on his allegations of error.

On appeal, Defendant challenged the denial of his motion to suppress evidence recovered during his arrest, alleging that his seizure violated his Fourth Amendment rights and that he was coerced into handing over the bag to law enforcement. The First Circuit affirmed, holding (1) the officer lacked reasonable suspicion to justify the initial seizure of Defendant but an intervening voluntary act provided independent probable cause to arrest Defendant; (2) suppression was not warranted under the fruit-of-the-poisonous-tree doctrine; and (3) the district court did not abuse its discretion in imposing limitations on cross-examination during the trial.

United States v. McCallister
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: July 7, 2022

Tagline:

Akron Police received an anonymous call that men were smoking marijuana in Whitney Park, "a high-crime area." Several officers, including Detective Elam, went to investigate. They arrived at the park in the early evening and saw a group of 10-15 men, including McCallister; they detected the odor of marijuana and began stopping people. Four men, including McCallister, tried to walk away. An officer instructed them to stop moving and place their hands on their heads. McCallister did so. Elam saw a “little bump out on his shirt,” which the detective concluded was a gun, and saw McCallister “turn[] his body in towards the huddle so no one would see.” Elam asked McCallister if he was carrying any weapons; McCallister did not respond. As McCallister raised his hands, his shirt lifted, and Elam saw a firearm magazine tucked into McCallister’s waistband. Elam retrieved the weapon.

McCallister was indicted for illegal possession of a machinegun, 18 U.S.C. 922(o), and possessing an unregistered firearm, 26 U.S.C. 5861(d). The Sixth Circuit affirmed the denial of his motion to suppress. The officers had reasonable suspicion that all of the men were smoking marijuana, justifying the detention, and reasonable suspicion that McCallister was armed and dangerous, justifying the search.

Hartman v. Bowles
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: July 5, 2022

Tagline:

Someone shot a St. Louis fire captain and his passenger. The fire captain described the shooter as a "black male," once on a 911 call right after the shooting, again when responding officers arrived on the scene, and again to an officer at the hospital. He did not give that description to Detective Bowles, who investigated the case. Bowles focused his attention on the Hartman brothers, who are white. Nearby cameras had captured them driving in the area and then stopping shortly before the shooting. Based on this evidence, Detective Bowles requested multiple search and arrest warrants. The paperwork Bowles submitted omitted the fact that the fire captain had described the shooter as black.

The brothers were eventually released and sued Bowles, citing the Fourth Amendment, 42 U.S.C. 1983. The Eighth Circuit affirmed the dismissal of the suit. A detective does not violate a clearly established constitutional right by omitting information from a warrant application that he does not actually know, even if the reason is his own reckless investigation. To succeed, the Hartmans had to show that Bowles omitted facts "with the intent to make, or in reckless disregard of whether they make, the affidavit misleading." Bowles is entitled to qualified immunity.

Torres v. Coats

Court: US Court of Appeals for the Eighth Circuit

Dockets: 21-1918, 21-1761

Opinion Date: July 1, 2022

Judge: Bobby E. Shepherd

Areas of Law: Civil Rights, Constitutional Law, Criminal Law

Isaiah Hammett was killed during the St. Louis Metropolitan Police Department's (SLMPD) execution of a search warrant at his grandfather's home. Hammett's surviving mother and grandfather, Gina Torres and Dennis Torres (Dennis), brought Fourth Amendment excessive force and unlawful seizure claims under 42 U.S.C. § 1983, conspiracy claims under 42 U.S.C. §§ 1983 and 1985, and state law wrongful death and infliction of emotional distress claims against the City of St. Louis and multiple SLMPD officers.The district court denied the City and defendant officers' motion for summary judgment on these claims, and they appealed. The Eighth Circuit determined it lacked jurisdiction to review the denial of qualified immunity "if at the heart of the argument is a dispute of fact." The Court found that in their essence, defendants' arguments were related to the of the sufficiency of the evidence, and whether certain opinion testimony presented at trial created a genuine issue of fact. To the extent that defendants asserted arguments beyond the scope of the Court's jurisdiction, the Eighth Circuit dismissed their appeal. On the few arguments that remained, the Court reversed the district court's denial of the defendant officers' qualified immunity claims: Dennis was not seized for purposes of the Fourth Amendment; (2) the City could not have conspired with itself through the defendant officers acting

within the scope of their employment; and (3) the intracorporate conspiracy doctrine did not apply to § 1983 conspiracy claims. Judgment was dismissed in part, reversed in part, and remanded for further proceedings.

United States v. Green
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: July 1, 2022

Tagline:

Herbert Green previously appealed the denial of his motion to suppress drugs and firearms discovered in his apartment during a law enforcement search outside the scope of the police's warrant. The Eighth Circuit Court of Appeals remanded the case to the district court to make factual findings necessary to determine whether the independent source doctrine supported denial of Green's motion to suppress. After additional briefing and an evidentiary hearing, the district court found law enforcement would have requested and obtained a federal warrant to search the apartment notwithstanding the protective sweep. Based on this finding, the Eighth Circuit held that the independent source doctrine justified the district court's denial of suppression.

United States v. Randle
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: July 5, 2022

Tagline:

Minneapolis police investigated Randle for selling crack cocaine while he was on supervised release for a prior federal offense. After conducting a controlled buy, Officer Hamilton applied for a warrant to search a Brooklyn Park, Minnesota home that Randle listed as his supervised release address. The warrant was executed that day. Randle arrived during the search. Police seized 308 grams of crack cocaine and related evidence from the home and from bags carried by Randle.

The district court denied a motion to suppress, applying the good-faith exception while concluding the affidavit did not create a "fair probability that evidence of Randle's alleged drug trafficking activities would be found at the Residence" because it did not include Hamilton's statement that in his professional judgment drug traffickers typically keep narcotics in their home and did not state that Hamilton followed Randle to the residence directly after the controlled buy and failed to specify when the officers started following Randle. The Eighth Circuit affirmed. The evidence is admissible because "it was objectively reasonable for the officer executing [the] search warrant to have relied in good faith on the [issuing] judge's determination that there was probable cause to issue the warrant." The court also upheld the denial of a "Franks" hearing; Randle failed to make the necessary "substantial preliminary showing" of "deliberate falsehood or of reckless disregard for the truth."

USA v. Devon Cohen
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: July 6, 2022

Tagline:

Defendant appealed his conviction for being a felon in possession of a firearm and ammunition. After pulling Defendant over in a rental vehicle for running a stop sign and arresting him for resisting, the Tampa Police Department ("Tampa PD") conducted an inventory search of the vehicle and located a loaded firearm belonging to him. Defendant challenged the constitutionality of the search in the district court and moved to suppress the gun, but the court found that Defendant did not have Fourth Amendment standing to do so because his license was suspended and he was not an authorized driver on the rental car agreement.

On appeal, Defendant argued that driving with a suspended license does not prohibit him from establishing Fourth Amendment standing. He further asserted that the inventory search violated his Fourth Amendment rights because the government failed to demonstrate that the search complied with department policy.

The Eleventh Circuit concluded that Defendant has standing to challenge the inventory search; nonetheless, it affirmed the district court's denial of his suppression motion on the basis that the inventory search was lawful. The court explained that Defendant's conduct of operating a rental vehicle without a license and without authorization from the rental company, without more, did not defeat his reasonable expectation of privacy giving rise to Fourth Amendment standing to challenge the search. However, the district court did not err in finding that the Tampa PD performed a permissible impound and inventory of Defendant's vehicle because the record supports that it was conducted in accordance with the Department's standard operating procedures.

Finch, et al. v. Rapp
Court: US Court of Appeals for the Tenth Circuit
Opinion Date: July 5, 2022

Tagline:

After Wichita police received a seemingly legitimate call, officers had to make a split-second decision based on fraudulent threats and reports of violence. Unfortunately, that "swatting" call and the subsequent reaction from police resulted in an innocent man's death. Officers rushed to Andrew Finch's house, where the caller claimed a deranged man who had just killed his father and was holding the rest of his family hostage at gunpoint. Finch had not committed any crime and had no way of knowing why police were surrounding his home. As Finch exited the house, multiple officers yelled different commands. Ten seconds later, one officer thought he saw Finch reaching for a weapon and shot him in the chest. Finch's estate brought a lawsuit under 42 U.S.C. 1983, alleging excessive force and other constitutional violations. The district court granted summary judgement in favor of some of the responding officers and the City of Wichita, but denied summary judgment as to the officer who fired the fatal shots. Finch appealed the grant of summary judgment to one officer and the City; the officer appealed the denial of qualified immunity. The district court held that a reasonable jury could have found that Finch was unarmed and unthreatening. The Tenth Circuit concluded it was bound by those

findings for the purposes of this appeal. Thus, the claims against Officer Rapp could go forward. The Court found the claims against the City were properly resolved. In addition, the Court concluded the district court correctly found that Finch did not put forth sufficient evidence to prevail on his municipal liability claim against the City.

People v. Ayon
Court: California Courts of Appeal
Opinion Date: July 6, 2022

Tagline:

After the police saw Ayon commit two minor traffic violations, they stopped him in his car and detained him until a narcotics dog arrived, 12 minutes and 45 seconds into the stop. After the dog indicated the presence of drugs, the police searched the car, wherein they found cocaine, methamphetamine, currency, and a scale. The trial court denied Ayon's motion to suppress, rejecting his argument that the police unlawfully prolonged the duration of the stop in violation of his Fourth Amendment rights.

The court of appeal reversed. "A careful reading of the record shows the stop was actually part of a preexisting drug investigation, and the police used the traffic infractions as a pretext for the stop." While that fact does not by itself render the search unconstitutional, based on the evidence in the record viewed objectively—including police body camera videos of the stop—the police unlawfully prolonged the traffic stop. One officer's body camera continued to record for a total of 61 minutes, at which time the stop and search were still underway.

State v. Athayde
Court: Maine Supreme Judicial Court
Opinion Date: July 5, 2022

Tagline:

The Supreme Judicial Court affirmed Defendant's conviction for murder and his sentence of fifty years in prison, holding that there was no error or abuse of discretion.

At issue on appeal was whether the trial court erred in denying Defendant's motion to suppress his statements to law enforcement while walking them through his home. The Supreme Judicial Court affirmed, holding that the trial court (1) did not abuse its discretion in denying Defendant's motion to suppress a video recording of a walk-through of the crime scene, as there was no police misconduct in the interviews and walk-through with Defendant; (2) did not err in denying Defendant's motion for judgment of acquittal; (3) did not commit obvious error in not instructing the jury on concurrent causation; and (4) did not misapply legal principles or abuse its sentencing power in setting the basic sentence.

State v. Carrywater
Court: Montana Supreme Court
Opinion Date: July 5, 2022

Tagline: Extended traffic stop without RS

The Supreme Court reversed the order of the district court denying Defendant's motion to suppress and remanded this case to the district court to vacate Defendant's conviction of criminal possession of dangerous drugs and use or possession of property subject to criminal forfeiture, holding the district court erred in denying Defendant's motion to suppress.

In his motion to suppress, Defendant claimed that law enforcement exceeded the scope of a lawful traffic stop by asking Defendant for his license and then questioning him behind the vehicle after learning that the license was valid. The district court denied the motion, concluding that the officer lawfully escalated his investigation from a traffic stop to an investigation of other criminal activity. The Supreme Court reversed, holding that the officer did not possess the requisite particularized suspicion to expand the scope of the traffic stop into a criminal investigation.

New Jersey v. Goldsmith
Court: Supreme Court of New Jersey
Opinion Date: July 5, 2022

Tagline:

The issue this case presented for the New Jersey Supreme Court's review centered on whether reasonable and articulable suspicion existed when a police officer conducted an investigatory stop of defendant Nazier Goldsmith on a walkway adjacent to a vacant house. Two police officers were on patrol in Camden in what they believed to be a “high- crime area” known for shootings and drug dealing. Based on his training, 20 years of experience, and his belief that the vacant house was used for the sale of drugs and weapons, Officer Joseph Goonan found it suspicious that defendant was on the walkway next to the vacant house and believed defendant was engaged in drug dealing activity. So the officers approached defendant, blocked his path at the end of the walkway, and began questioning him, asking for his name and for an explanation of his presence on that walkway. Defendant was ultimately charged with weapons and drug offenses. Defendant moved to suppress the gun and drugs, arguing that both the stop and frisk were unlawful because they were not based on reasonable suspicion.
The trial court granted the motion, finding the stop lawful but the frisk unlawful. Because the trial court held the frisk to be unlawful, all the seized evidence (the gun, ammunition, drugs, and money) was suppressed as fruit of the poisonous tree. The Appellate Division reversed, finding that based on the totality of the circumstances -- including defendant’s presence in a high-crime area and his behavior and body language -- the officer’s frisk of defendant was objectively reasonable. The Supreme Court found that the information the officers possessed at the time of the stop did not amount to specific and particularized suspicion that defendant was engaged in criminal activity. Therefore, the officers did not have reasonable and articulable suspicion to initiate an investigatory detention of defendant. The Court reversed the Appellate Division’s judgment and reinstated the trial court’s suppression order.

USA v. Alvarez
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: July 13, 2022

Tagline: Terry Stop, Collective Knowledge Doctrine, Reasonable Suspicion

A grand jury indicted Defendant on one count of being a felon in possession of a firearm and ammunition. Defendant moved to suppress the revolver and ammo, arguing the officers unlawfully stopped him. At an evidentiary hearing, an officer testified for the government, and Defendant introduced bodycam footage from an officer who arrived on scene after the seizure, as well as photographs and maps of the area.

Defendant challenged only whether the officers had reasonable suspicion for the stop; he does not challenge the frisk. He argued the description of the wanted gang member was too general and the detail about the past flight from police on the bicycle was too "sparse" and potentially "stale." The government relied on the description of the subject and the bicycle, the location, and the officers' knowledge of gang activity in the area.

The Fifth Circuit reversed the district court's denial of Defendant's motion to suppress and vacated his conviction and sentence. The court held that the officers' stop of Defendant was not supported by reasonable suspicion. This case involves an outstanding warrant—completed criminal activity—so the information the officers relied on must satisfy a higher level of specificity than if they were responding to a report of ongoing or very recent criminal activity.

Further, the court wrote it does not blindly accept officers' reliance on information obtained through police channels; the government must substantiate the basis of the information. Here, the government has not established reasonable suspicion that could have been transferred between officers, the collective knowledge doctrine does not apply.

USA v. Morris
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: July 13, 2022

Tags: Stop, Seizure, Consent to Search

In a criminal appeal, Defendant presented two issues. First, whether evidence discovered after a consent search of Defendant's car should be suppressed because law enforcement stopped Morris without reasonable suspicion or overbore his free will to obtain consent to search his vehicle. Second, whether at sentencing the district court erred in holding that Defendant was ineligible for a minor role adjustment because the other participants in the crime had not been indicted or otherwise identified.

The Fifth Circuit vacated the district court's denial of Defendant's motion to suppress and remanded for reconsideration of his motion to suppress. The court wrote it was convinced that the sheriff's deputies in the case effected a stop of Defendant under the Fourth Amendment. The court explained that because the district court held that Defendant was not stopped, it did not determine whether the deputies had reasonable suspicion to do so. Thus, the court's decision is a determination that the district

court must make in the first instance, as it usually involves assessing the credibility of witnesses and weighing this evidence under the totality of the circumstances.

Doxtator v. O'Brien
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: July 12, 2022

Tagline: Use of Force, Deadly Force

Green Bay Police Department officers arrested Tubby and transported him to jail for booking. In the jail's secure entryway, Tubby became non-compliant, refusing to exit the squad car and concealing one hand under his shirt while threatening to "do it" if officers came any closer. The officers called for backup. Tubby was eventually forced out of the car with pepper spray. He kept one hand under his shirt in a manner that, to officers, indicated he had a weapon. Exiting the squad car, Tubby refused to surrender but instead rushed toward the exit in an apparent escape attempt. An officer heard a "pop" that he believed to be a gunshot coming from the weapon he presumed Tubby was hiding and discharged his firearm eight times, hitting Tubby with five shots. Tubby died. His estate filed suit, 42 U.S.C. 1983.

The Seventh Circuit affirmed summary judgment in favor of the defendants. The officer's conduct did not violate Tubby's constitutional rights to be free from unreasonable seizures; qualified immunity shields the officer from liability. The officer's conduct was reasonable, given that Tubby intentionally led the officers to believe he was armed and ready to "do it."

United States v. Anthony Redman
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: July 12, 2022

Tagline: Terry Frisk, Seizure, Terry Stop

After the district court denied Defendant's motion to suppress evidence, Redman pleaded guilty to possession of a firearm by a prohibited person in violation of 18 U.S.C. Sections 922(g)(1) and 924(a)(2). Defendant appealed, arguing that the arresting officer lacked reasonable suspicion to seize him and that evidence recovered after the seizure should have been suppressed.

The Eighth Circuit affirmed the district court's judgment denying Defendant's motion to suppress evidence. The court explained, during a Terry stop, an officer may "take such steps as [are] reasonably necessary to protect their personal safety and to maintain the status quo during the course of the stop," including frisking a person for weapons if the officer has "articulable suspicion that the person is armed and dangerous."

Here, the parties agree that Defendant was not seized until the officer physically grabbed his jacket. The court concluded that the officer had reasonable articulable suspicion to detain Defendant at that time. The officer was investigating an early-morning report of shots fired near 1:00 a.m. in a high-crime area. That he had been told that the call may have pertained to fireworks did not alone end his investigation,

however. The officer knew that, among other facts, Defendant was one of only two people present in the dark parking lot that was the alleged location of the shots fired. Given these circumstances, the officer had reasonable suspicion that Defendant may have been involved in a shots fired incident, which justified his decision to seize Defendant and to perform a limited search to determine if Defendant was armed.

United States v. Eric Williams
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: July 13, 2022

Tagline: Scope of Terry Frisk (Reaching into pocket)

After two separate arrests Defendant was charged with nine conspiracy- and drug-related counts in a 19-count second superseding indictment. The district court denied Defendant's motion to suppress the evidence recovered during these stops. At sentencing, the district court varied downward from the United States Sentencing Guidelines range of 360 months to life imprisonment and sentenced Defendant to 180 months imprisonment and 5 years supervised release. Defendant appealed his conviction, arguing that the district court erred in denying his motion to suppress, the evidence was not sufficient to support his conviction on three of the nine counts, and the district court gave an erroneous jury instruction. The government cross-appealed Defendant's sentence, arguing that the district court procedurally erred when it relied on clearly erroneous facts.

The Eighth Circuit affirmed the conviction and sentence. Amongst other claims, Defendant argued that the March 12 stop and accompanying pat-down and inventory searches, as well as the November 1 stop, was unconstitutional and that the district court erred in denying his motion to suppress the evidence recovered pursuant to these illegal stops and searches. The court explained that the detective did not exceed the allowable scope of the pat-down search when he reached into Defendant's pocket. "Because the 'sole justification for such a search is the protection of the officer and others, its scope must be confined to a search reasonably designed to discover concealed weapons."

Further, the court found that the district court did not commit plain error by failing to sua sponte instruct the jury as to some unspecified "heightened showing" required to prove constructive possession.

United States v. Terrell Jason Armstrong
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: July 13, 2022

Tagline: Routine Booking Questions

The district court sentenced Defendant to 264 months' imprisonment for drug trafficking conspiracy. Defendant asserted on appeal that the district court erred by admitting certain evidence at trial and that the court imposed an unreasonable sentence.

The Eighth Circuit concluded that there was no reversible error, and therefore affirmed the judgment. Defendant first challenged the district court's denial of his motion to suppress evidence. He sought to exclude a statement about employment that he made to a detective during the search of his residence in 2019. The court wrote that employment is a standard element of a booking inquiry because a judicial officer is required by statute to consider "employment" in deciding whether to release or detain a defendant pending trial. Employment status is not so central to a drug investigation that it must be excised from the routine biographical information that is collected in the course of arrest and booking.

Further, Defendant claimed that the disputed evidence concerned "other acts" of the defendant and should have been excluded as inadmissible character evidence. The court concluded that the district court properly deemed the evidence probative of the charged conspiracy. The evidence tended to show that Defendant and the co-conspirator acted to protect the "turf" of their drug trafficking organization and to "warn" potential competitors. That sort of activity is relevant to the crime charged.

Finally, in sentencing Defendant, the district court varied downward by eight years from the bottom of the advisory range, and the court did not abuse its discretion by declining to vary downward even further.

Fairchild, et al v. Coryell Cty, et al
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: July 14, 2022

Tagline: Excessive use of force, Pepper Spray, Physical restraint

While awaiting trial a woman began tapping her hairbrush on the cell door. One of the two primary jailers asked the woman to turn around to be handcuffed. When she did not obey, the jailer used pepper spray which caused her to retreat toward the far wall. While the woman remained at the back of her cell facing away from the jailers, one of the jailers sprayed the woman with pepper spray three more times.

The struggle resulted in the woman lying flat on her stomach with her hands handcuffed behind her back, and one of the jailers, who weighed 230 pounds, sitting atop of her with his knee on her back. The other jailer, who weighed 390 pounds, pressed his forearm against her neck for over two minutes. The jailers rolled the woman over to find her unresponsive and she was declared dead. The woman's parents filed a section 1983 suit against the county and the jailers. At summary judgment, the district court held that the jailers' use of force was reasonable.

The Fifth Circuit reversed, explaining that a jury could conclude that the jailers used excessive force. Further, the jailers' continuing to apply that force for more than two minutes after the woman was subdued would violate clearly established law. The court explained any reasonable officer would see that the woman represented a low threat at the moment when the jailer threw her to the floor and applied continuous force. Further, the woman did not actively resist at these critical stages of the encounter. Finally, the amount of force was not proportional to the need for force.

Ifrah Yassin v. Heather Weyker
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: July 14, 2022

Tagline: Officer Liability, State Officer under federal law

Defendant, in addition to her full-time position as a St. Paul police officer, was cross-deputized as a federal agent to investigate an interstate sex-trafficking scheme. Many were charged, but none were convicted. The attention soon turned to Defendant, who faced lawsuits from the people she came across during the investigation, including the Plaintiff in this matter.

Plaintiff became involved because of a dangerous encounter with a witness in the federal sex-trafficking investigation. That witness made a call to Defendant, falsely claiming that Plaintiff started the dispute. In Defendant's affidavit supporting the criminal complaint against Plaintiff, she identified herself as an "FBI Task Force Officer / St Paul MN PD Officer." Plaintiff sought to recover on a wrongful-arrest theory against Defendant, whom she has sued in two different capacities: as a St. Paul police officer and as a deputized federal agent.

The district court granted Defendant's motion for summary judgment on the ground that her actions arose under color of federal law. The Eighth Circuit affirmed, finding that without any actual or purported relationship between Defendant's conduct and her duties as a police officer no section 1983 action is available.

The court wrote that at issue here is whether Defendant acted under color of state law when she allegedly lied to protect a federal witness while serving on a federal task force. The court explained that state law had nothing to do with "the nature and circumstances" of Defendant's conduct. The court wrote that Defendant acted within the scope of her federal duties while dealing with the situation, and she referenced her federal-task-force role during her conversations with officers.

Irizarry v. Yehia
Court: US Court of Appeals for the Tenth Circuit
Opinion Date: July 11, 2022

Tagline: First Amendment retaliation

Plaintiff-appellant Abade Irizarry, a a YouTube journalist and blogger, was filming a DUI traffic stop in Lakewood, Colorado. Officer Ahmed Yehia arrived on the scene and stood in front of Irizarry, obstructing his filming of the stop. When Irizarry and a fellow journalist objected, Officer Yehia shined a flashlight into Irizarry's camera and then drove his police cruiser at the two journalists. Irizarry sued under 42 U.S.C. § 1983, alleging that Officer Yehia violated his First Amendment rights. The district court granted the motion, concluding that the complaint alleged a First Amendment constitutional violation based on prior restraint and retaliation. Although the Tenth Circuit had not previously recognized a First Amendment right to record police officers performing their official duties in public, the district court, relying on out-of-circuit decisions, held that the First Amendment guaranteed such a right, subject to reasonable time, place, and manner restrictions. The district court nonetheless held that Officer Yehia was entitled to qualified immunity because Irizarry had not shown a violation of clearly established law.

The Tenth Circuit found the complaint alleged a First Amendment retaliation claim under clearly established law, so Officer Yehia was not entitled to qualified immunity. Accordingly, judgment was reversed.

CASES 22JUL2022

US v. Chandler Gist-Davis
Court: US Court of Appeals for the Fourth Circuit
Opinion Date: July 18, 2022

Tagline: Social media posts create reasonable suspicion for Terry Stop and Terry Frisk of fanny pack.

Defendant entered a conditional guilty plea to possession of a firearm by a convicted felon, in violation of 18 U.S.C. Sections 922(g)(1), 924(a)(2). He appealed from the district court's denial of his motion to suppress evidence of a firearm seized from his "fanny pack," a small bag strapped around his waist. Defendant argued that the officers (1) lacked reasonable suspicion to stop him as he was walking at a fairground in Winston Salem, North Carolina, and (2) exceeded the scope of any permissible stop and frisk by placing him in handcuffs and by ultimately searching the fanny pack.

The Fourth Circuit affirmed, concluding that the district court did not err in denying the suppression motion. The officers had reasonable suspicion to think that Defendant, a convicted felon and gang member who had posted a recent incriminating statement on social media and whose residence had been the target of recent shootings, was engaged in criminal activity and was armed and dangerous. The court further concluded that the officers did not exceed the scope of the brief detention and frisk by handcuffing Defendant and, after feeling a hard object in his fanny pack, by opening the pack and seizing the firearm. Those actions were justified to ensure the safety of both the officers and other people nearby.

USA v. Coulter
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: July 18, 2022

Tagline: Custody for Miranda purposes

An officer performed a traffic stop on Defendant in the middle of the night. Having been given reason to suspect that Defendant who revealed an aggravated robbery conviction, had a gun, the officer handcuffed him and asked where it was. Defendant answered, and the officer's partner arrived later to find a .40 caliber pistol and .37 ounces of marijuana in Defendant's backpack between the front seats of the van he drove. Before Defendant divulged that information, the officer did not provide Miranda warnings.

A grand jury indicted Defendant for being a felon in possession of a firearm. Defendant then moved to "suppress all statements [he made] in response to the officer's questioning once he was in handcuffs." The district court granted the suppression motion. The government filed an interlocutory appeal from the district court's judgment and the trial has been continued pending resolution of the appeal.

The Fifth Circuit reversed the district court's judgment. The court explained that the admissibility of Defendant's unwarned statements, therefore, depends on whether he was "in custody" as contemplated by Miranda at the time he offered them.

Here, based on the totality of the circumstances a reasonable person in Defendant's position would not have equated the restraint on his freedom of movement with formal arrest. But even if Defendant could have reasonably thought that he was in custody for Miranda purposes after being handcuffed, the environment in which the officer questioned him was not tantamount to a station house interrogation as contemplated by Miranda.

United States v. Olson
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: July 18, 2022

Tagline: Reasonable suspicion for Terry Stop (not a de facto arrest)

Olson arrived in Madison, Wisconsin during the second night of violent civil unrest following the death of George Floyd and armed himself with a gun. Three Madison Police officers observed Olson take the gun from the trunk of his car, then apprehended Olson, who was a felon, retrieved the gun, and placed him under arrest, 18 U.S.C. 922(g)(1). Olson attempted unsuccessfully to suppress the gun.

The Seventh Circuit affirmed the denial of his motion. Olson's initial seizure was a Terry stop, not a de facto arrest. Given the unique circumstances of the night, the officers' use of force when approaching Olson "was eminently justifiable." They saw Olson conceal a gun in the waistband of his pants; saw Olson drinking from a "tallboy" style, suggesting Olson could be intoxicated; and saw Olson carefully scrutinize his surroundings, which suggested avoiding detection. The officers reasonably suspected Olson was engaged or about to engage in criminal activity while the city was experiencing an almost complete collapse of civil order. Any omissions or inaccuracies in the officers' contemporaneous reports are plausibly explained by their sleep deprivation and stress.

United States v. LaSamuel Richardson, III
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: July 21, 2022

Tagline: Search incident to arrest of person and probationary search of a car.

Defendant was convicted of possession of a firearm by a felon in violation of 18 U.S.C. Section 922(g)(1). He appealed the district court's denial of his motion to suppress, two additional evidentiary rulings, and the application of a sentencing enhancement under U.S.S.G. Section 2K2.1(a)(3).

The Eighth Circuit affirmed. The court first concluded that the officers had probable cause to arrest Richardson because the totality of the circumstances at the time of the arrest was sufficient to lead a reasonable person to believe that Defendant committed the offense of indecent exposure.

Further, the court concluded that the officers properly searched Defendant's person and his car after he was arrested. The search of Defendant's person was a proper search incident to arrest. The search of the CR-V was a proper probationary search because Defendant was subject to a probationary search condition and there was reasonable suspicion to believe that he possessed firearms based on the pistol magazine found in his pocket or that he violated the law by committing the offense of indecent exposure, both of which were prohibited by his probation conditions.

Moreover, the court held that the district court did not abuse its discretion in allowing the Government to introduce evidence about Defendant's six prior convictions. Contrary to Defendant's claim, the probative value of the evidence of his prior convictions was not substantially outweighed by the risk of unfair prejudice. Finally, the court explained it need not decide whether North Dakota robbery qualifies as a crime of violence because any alleged error was harmless.

USA V. SHANE NAULT

Court: US Court of Appeals for the Ninth Circuit
Opinion Date: July 21, 2022

Tagline: Traffic stop not prolonged when reasonable suspicion to justify stop was based on outstanding arrest warrant.

Defendant pled guilty to possession with intent to distribute methamphetamine and felon in possession of a firearm, but reserved the right to appeal the denial of the motions. An officer stopped the vehicle after learning that the vehicle— whose registered owner had an outstanding arrest warrant—was in the parking lot of a gas station.

In his motion to suppress, Defendant argued that the officer unconstitutionally prolonged the vehicle stop when he asked Defendant to provide his license, registration, and proof of insurance because the suspicion that motivated the stop had evaporated once the officer determined that Ross was not in the vehicle. The government countered that the stop was supported by independent reasonable suspicion because the officer began to suspect that Defendant was intoxicated shortly after initiating contact.

The Ninth Circuit affirmed the district court's denial of Defendant's motions to suppress. The panel wrote that the circumstances of the officer's encounter with Defendant's implicate the same vehicle safety purpose discussed in Rodriguez v. United States, 575 U.S. 348 (2015), under which a routine document check would remain part of the officer's mission even when the suspicion that justified a stop was based on an outstanding warrant rather than a traffic violation.

The court wrote that Defendant failed to make a substantial preliminary showing that any statement or omission in the affidavit was intentionally or recklessly false or misleading, where an expert report provided by Defendant at most establishes that the canine's alert was unreliable on a single unrelated occasion.

McWilliams v. Dinapoli, et al.
Court: US Court of Appeals for the Tenth Circuit
Opinion Date: July 19, 2022

Tagline: Excessive use of force - chokehold for trespassing

A federal district court concluded that a reasonable factfinder could determine that a law-enforcement officer, Officer Michael DiNapoli, had punched, tackled, and used a chokehold on plaintiff-appellee Greg

McWilliams. At the time, McWilliams was suspected only of trespassing on a marina by riding in a golf cart. McWilliams sued DiNapoli under 42 U.S.C. § 1983, alleging excessive force in violation of the Fourth Amendment. In response, DiNapoli moved for summary judgment, arguing that: (1) his use of force had been reasonable; and (2) he was entitled to qualified immunity. The district court denied the motion. On appeal to the Tenth Circuit Court of Appeals, DiNapoli argued: (1) a surveillance video blatantly contradictd the district court's factual determination that McWilliams had not touched DiNapoli's chest; and (2) even under the district court's factual determinations, DiNapoli did not commit a constitutional violation because his use of force was reasonable. The Tenth Circuit concluded it was bound by the district court's factual assessment, and the district court did not err in denying qualified immunity.

Idaho v. Hollist
Court: Idaho Supreme Court - Criminal
Opinion Date: July 19, 2022

Tagline: Officer did not have reasonable suspicion to demand identification and detain and handcuff suspect.

Brian Hollist challenged a district court's denial of his motion to suppress evidence. Hollist was arrested in Idaho Falls after an officer approached him while he was sleeping on a canal bank. The officer was responding to check on Hollist's welfare. After advising the officer he did not need medical assistance, Hollist attempted to leave several times; however, each time the officer insisted that Hollist remain. When Hollist declined to identify himself, the officer handcuffed him and ordered him to sit down on the grass. The officer later discovered that Hollist had an outstanding warrant for his arrest. Following his arrest, officers found a glass pipe with white residue and a bag with a small amount of methamphetamine inside. Before trial, Hollist moved to suppress the methamphetamine and pipe, arguing: (1) the officer was not performing a community caretaking function at the time he was detained; (2) the officer did not have reasonable suspicion to detain him; and (3) the eventual discovery of the arrest warrant did not purge the taint of his unlawful seizure. The district court denied Hollist's motion to suppress. Hollist timely appealed. The Idaho Supreme Court concluded the officer did not have a reasonable suspicion to detain Hollist, and the officer's unlawful seizure of Hollist was not sufficiently attenuated from the discovery of contraband. The district court's denial of Hollist's motion to suppress was reversed and the matter reversed for further proceedings.

Pennsylvania v. Jones-Williams
Court: Supreme Court of Pennsylvania
Opinion Date: July 20, 2022

Tagline: Results of warrantless blood draw suppressed - no consent or exigent circumstances

On July 5, 2014, at around 4:42 p.m., Appellee Akim Jones-Williams drove his car at approximately two miles per hour across train tracks. An approaching train collided with the car and pushed it nearly one-quarter mile before it stopped. Upon arriving at the scene, emergency personnel found Appellee outside the vehicle. Appellee's fiance, Cori Sisti, and their daughter, S.J., were still inside the car. Medics declared Sisti dead at the scene, but transported Appellee and S.J. to York Hospital for medical treatment. Several individuals told the investigating lieutenant that they smelled burnt marijuana coming from Appellee and the car. Therefore, at approximately 6:00 p.m., the lieutenant asked a sergeant to interview Appellee at the hospital and obtain a "legal blood draw." When the sergeant arrived at the hospital, Appellee was restrained in a hospital bed fading in and out of consciousness and unable to respond to basic questions. As such, the sergeant could not communicate to Appellee the consent of the form. Nevertheless, the sergeant later learned that hospital personnel drew Appellee's blood at 5:56 p.m. The record did not establish why that blood was drawn, but it is clear that it was drawn prior to the sergeant's arrival. The sergeant completed paperwork requesting the hospital's lab to transfer Appellee's blood sample to a police lab for testing for controlled substances or alcohol. The resulting toxicology report revealed that Appellee's blood contained Delta-9 THC, the active ingredient in marijuana. Appellee was arrested in April 2015, and ultimately convicted of homicide by vehicle while driving under the influence; homicide by vehicle; endangering the welfare of a child ("EWOC");

recklessly endangering another person ("REAP"); and related charges. Appellee filed an omnibus pre-trial motion, in which he moved to suppress the blood test results. He argued that police lacked probable cause that he was driving under the influence, that his blood was seized without a warrant and without satisfying the exigency exception, and that 75 Pa.C.S. § 3755 did not justify the seizure in the absence of exigent circumstances. The Pennsylvania Supreme Court concurred with the superior court that evidence from the blood sample should have been suppressed at trial. The matter was remanded for a new trial.

Vermont v. Sinquell-Gainey, Vaz
Court: Vermont Supreme Court
Opinion Date: July 18, 2022

Tagline: Reasonable suspicion for traffic stop

The State appealed a trial court order granting defendants Michael Sinquell-Gainey and David Vaz's motion to suppress evidence obtained by law enforcement after an automobile stop. The State argued a Newport police officer had reasonable suspicion to stop defendants because he observed a traffic violation and because the totality of the circumstances supported reasonable suspicion of impaired driving. After review of the trial court record, the Vermont Supreme Court agreed that the stop was justified based on reasonable suspicion of impairment. The Court therefore reversed and remanded.

July 29 Cases

US v. David Orozco
Court: US Court of Appeals for the Fourth Circuit
Opinion Date: July 25, 2022

Defendant was paid to drive a car with over $100,000 in drug-tainted cash hidden in a secret dashboard compartment. When police pulled him over, he acted suspiciously: He quickly shut down the GPS application running on his smartphone and struggled to answer where he was going with the money. His odd behavior continued when he arrived at the station: When police found five SD cards wrapped in a $100 bill in Defendant's shoe, Defendant tried to destroy them by eating them. When police got a warrant to search the phone and SD cards, things went from bad to worse for Defendant—both the phone and the chips contained graphic and heinous child pornography. Defendant contends that the search warrant for the phone and SD cards should not have been issued.

The Fourth Circuit affirmed Defendant's conviction, holding that the district court's denial of Defendant's motion to suppress was proper. The court explained that this case presents a model example of a proper investigation under the Fourth Amendment. The officers submitted a comprehensive affidavit with detailed facts showing drug trafficking. The magistrate combined those facts with commonsense inferences and determined that probable cause existed. And when the officers discovered evidence of other crimes, they immediately went back and obtained additional warrants to search and seize those files.

US v. Derrick Daniels, Jr.
Court: US Court of Appeals for the Fourth Circuit
Opinion Date: July 25, 2022

Defendant challenged the admissibility of a handgun found in a rental car he had been driving that was parked outside of his hotel. Finding that Defendant had abandoned any legitimate expectation of privacy in the Charger, that Enterprise had given valid third-party consent to the search, and that the Government would have inevitably discovered the gun in the Charger, the district court denied Defendant's motion to suppress.

The Fourth Circuit affirmed the district court's judgment. The court explained that in suppression hearings, criminal defendants have the burden of putting forward evidence to support all elements of their reasonable expectation of privacy. Here, Defendant did not introduce any evidence to support his lawful possession of the Charger.

US v. Dennis
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: July 27, 2022

A jury found Defendant guilty of conspiracy to possess with intent to distribute more than 100 kilograms of marijuana. Defendant appealed his conviction and sentence. Defendant challenged the denial of three pre-trial motions: leave to file untimely motions to suppress, its merits, and a motion for a continuance.

The Fifth Circuit affirmed Defendant's conviction and sentence, including its order of forfeiture. The court explained that to show plain error, Defendant must show a forfeited error that is clear or obvious, which affects his substantial rights. With that showing, the court has the discretion to correct the error, but only if it seriously affects the fairness, integrity, or public reputation of judicial proceedings.

Here, the court found no privacy interest was here invaded— information subject to the daily view of strollers and the community. Thus, Defendant failed to show that the district court clearly erred in not suppressing the video evidence. Next, the court wrote that Defendant offered no proof that the affiant deliberately or recklessly falsified statements about the information from cooperating defendants to mislead the court. Therefore, Defendant cannot show that the district court plainly erred when it declined to suppress evidence from the search of his property.

Further, Defendant challenged the substantive reasonableness of his sentence because the district court did not consider the changing legal status of marijuana. Defendant has already received what he now requests: a downward variance of his sentence to account for the difference between marijuana and other drugs.

Jarvela v. Houk
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: July 22, 2022

Jarvela drank several rum-and-cokes, then drove his Silverado to a Shell station to buy cigarettes. Afterward, the store clerk called the police to report that "a drunk guy" had just left driving a black Silverado. In a nearby police cruiser, Officer Trevino spotted the Silverado, speeding and drifting over the road's center line. Trevino activated his lights and pursued the truck. Jarvela led Trevino on an extended chase. After about five minutes, the road turned to gravel and the Silverado struck a tree. Jarvela fled on foot into a darkened wooded area. Trevino called for backup. Deputy Houk and his service dog, Argo, arrived and began searching with Argo leashed. After about five minutes, Argo found clothing. Moments later Jarvela was visible in the weeds, wrestling with Argo, who was clinging to Jarvela's arm. Jarvela tried to injure Argo. Houk delivered seven blows to Jarvela's back, yelling "Let go of the fucking dog." Trevino shot his taser at Jarvela, who rolled onto his back. Trevino again deployed his taser.

In Jarvela's excessive force suit, 42 U.S.C. 1983, the Sixth Circuit held that Houk had no constitutional duty to shout out a warning to Jarvela before searching for him with the dog and was entitled to summary judgment.

United States v. Sharp
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: July 22, 2022

After a decade in state prison for gross sexual imposition and kidnapping, Sharp was released on parole with conditions that required him to refrain from unsupervised contact with minors; obtain his parole officer's approval of any adult who might supervise his contact with minors; and submit to "warrantless search[es]" of his person and property "at any time." Under Ohio law, a parole officer may search a parolee without a warrant if he has "reasonable grounds" to suspect that the parolee has violated the law or a parole condition. During his parole, a woman told police that, 10 days earlier, Sharp had sexually assaulted her at his house while her children slept nearby and that Sharp had been assisting her children with transportation. Sharp's parole officer concluded that Sharp had violated his parole. Nearly three weeks after the alleged assault, officers arrested Sharp, transported Sharp to his home, then conducted a warrantless search and found a loaded firearm.

Sharp was charged with possessing a firearm as a felon. The Sixth Circuit affirmed the denial of a motion to suppress the gun. Under the special-needs framework, a parolee search is reasonable under the totality of the circumstances if it was supported by reasonable suspicion. Bailey reasonably suspected that he would find evidence of a parole violation at Sharp's home. A parolee's search conditions factor into the reasonableness balance.

Tyson v. County of Sabine
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: July 28, 2022

This appeal arises from an alleged sexual assault committed by a law enforcement officer while he was conducting a welfare check on Plaintiff at her home. The district court found that the officer was entitled to qualified immunity. The district court found that Plaintiff's Fourth Amendment claim of excessive force failed because Plaintiff had not been seized, and that the Eighth Amendment claim failed because she was not a prisoner. Plaintiff appealed the dismissal of her claims under the Fourth Amendment and Fourteenth Amendment, as well as her claims against the County and Sheriff.

The Fifth Circuit affirmed the district court with respect to the dismissal of Plaintiff's Fourth Amendment claim, reversed the order of the district court with respect to the dismissal of Plaintiff's Fourteenth claim, and remanded. The court held that the Deputy's alleged sexual abuse violated Plaintiff's clearly established right to bodily integrity. Thus, the Deputy is not entitled to qualified immunity. The court explained it need not reach the claims against the County and the Sheriff. The court remanded those issues to the district court to address in the first instance.

Trenisha Webster v. Jennifer Westlake
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: July 27, 2022

Des Moines detectives arrested Plaintiff on her porch after she refused to comply with their requests to check on her daughter's welfare. Plaintiff sued them under 42 U.S.C. Section 1983 and Iowa tort law. The district court granted summary judgment to Plaintiff on her Section 1983 claim and denied qualified immunity to the detectives.

Defendants appealed and the Eighth Circuit affirmed. The court explained state officials are entitled to qualified immunity in Section 1983 lawsuits unless they violated a federal "statutory or constitutional right that was clearly established at the time." Here, because the detectives did not have arguable probable cause to arrest Plaintiff for interference with official acts, and they likewise didn't have arguable or actual probable cause to arrest her for another offense, her Fourth Amendment right to be free from warrantless arrests under these circumstances was clearly established. And because the detectives subjected Plaintiff to a warrantless arrest that was unsupported by probable cause, they violated her clearly established rights. The detectives are not entitled to qualified immunity.

Marie Butler v. Bob Gualtieri
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: July 25, 2022

While Plaintiff was intoxicated and handcuffed, former deputy sheriff ("Deputy") pushed Plaintiff onto a concrete floor, breaking Plaintiff's left arm. In response to a complaint from Plaintiff's husband, the Pinellas County Sheriff's Office ("PCSO") investigated the incident and terminated the Deputy's employment. A few months later, Plaintiff sued PCSO Sheriff ("Sheriff"), among others, in the Middle District of Florida, alleging several state and federal constitutional claims. The district court denied the Sheriff summary judgment on this claim.

The parties now agree that the Deputy behaved inappropriately, but disagree over whether the Deputy's behavior was so egregious that the Sheriff could not be held liable for it. Put differently, this interlocutory appeal centers entirely on whether the Sheriff is, as a matter of law, entitled to sovereign immunity with respect to Plaintiff's state law battery claim.

The Eleventh Circuit affirmed, concluding that there is a genuine dispute of material fact as to whether Florida's sovereign immunity statute protects the Sheriff. The court explained that serious factual disputes have often prevented Florida's courts from applying sovereign immunity at the summary judgment stage. Measuring the facts as they have been adduced in this case against Florida's legal standards, the court agreed there are material factual disputes about the precise actions Plaintiff and the Deputy took, the Deputy's state of mind, and the inferences that might reasonably be drawn from them. Moreover, reasonable factfinders could disagree over whether the Deputy's conduct was wanton and willful, malicious, or exhibitive of bad faith.

AUGUST 5 CASES

United States v. Jones
Court: US Court of Appeals for the Second Circuit
Opinion Date: August 1, 2022

Defendant was indicted for knowingly producing child pornography in violation of federal law. He moved to suppress evidence gathered from his electronic devices, arguing that the government's search warrants lacked probable cause and therefore violated his Fourth Amendment rights. The district court denied the motion. Defendant then pleaded guilty but reserved the right to appeal the district court's decision on his motion to suppress.

The Second Circuit affirmed the district court's judgment explained that it disagrees with the district court that Defendant's prior guilty plea to an earlier charge in Tennessee state court precludes him from challenging the search warrants in this case. But the court agreed that even assuming arguendo that the warrants are defective, the good-faith exception to the exclusionary rule applies.

The court explained that there was at least arguable probable cause for the Tennessee Warrants, therefore, the Detective acted based on an "'objectively reasonable good-faith belief' that [his] conduct [was] lawful." The court further wrote that the affidavits at issue here are not so devoid of factual support because they detail allegations from State Victim 1's mother that support the common-sense inference that her daughter told her that Defendant took nude photographs of her.

Gonzalez v. Trevino
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: July 29, 2022

Appellee brought a retaliatory arrest claim against the Mayor and Chief of Police of Castle Hills, claiming that she was arrested for engaging in protected speech. However, Appellee acknowledges that there was probable cause for her arrest. Appellants asserted a qualified immunity defense. The district court denied Appellants' motion to dismiss.

On appeal, the Fifth Circuit reversed the district court's order denying Appellant's motion to dismiss, finding Appellee failed to establish a violation of her constitutional rights in her retaliatory arrest claim because the arresting officer had probable cause to arrest. While probable cause to arrest does not necessarily preclude a retaliatory arrest claim, Appellee failed to establish any of these exceptions.

United States v. Norville
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: August 4, 2022

The Seventh Circuit affirmed the judgment of the district court denying Defendant's motion to suppress without holding an evidentiary hearing, holding that the district court did not abuse its discretion by denying an evidentiary hearing.

A law enforcement officer stopped Defendant while he was riding a motorized bicycle and arrested him under the theory that his bicycle was a motor vehicle requiring a license. During the arrest, police searched Defendant and found various drugs and drug paraphernalia. Defendant filed a motion to suppress, arguing that the government needed to establish probable cause that he was driving a motor vehicle on a revoked license. The district court summarily denied the motion. The Seventh Circuit affirmed, holding that the evidence established that the arresting officer had probable cause to believe that Defendant rolled past a stop sign, which independently supported Defendant's arrest.

United States v. Randy Dabney
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: August 3, 2022

Defendant conditionally pleaded guilty to conspiracy to distribute 500 grams or more of methamphetamine and was sentenced to 360 months in prison. He appealed, arguing that the district court erred by denying his motion to suppress evidence, as well as his request for leave to file a second suppression motion out of time. He also argued that his sentence is procedurally and substantively unreasonable.

The Eighth Circuit affirmed, holding that the relevant search was legal, and the district court did not abuse its discretion by denying Defendant’s leave to file a second, untimely suppression motion. The court explained that the officer had a reasonable suspicion that Defendant was armed and dangerous, and he never exceeded the lawful scope of his Terry frisk of Defendant’s truck. Accordingly, the district court was correct to deny Defendant’s first suppression motion.

Further, even if the district court had erred, any error would have been harmless. The evidence from Defendant’s second traffic stop related to Counts 3–5 of the second superseding indictment—counts that were dropped as part of Defendant’s plea deal. So the evidence didn’t affect Defendant’s conviction. And since the exclusionary rule doesn’t apply at sentencing, United States v. Tauil-Hernandez, 88 F.3d 576, 581 (8th Cir. 1996), the district court was free to consider this evidence when imposing Defendant’s 360-month sentence.

United States v. Shaun Farrington
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: August 1, 2022

A jury convicted Defendant of possession with intent to distribute methamphetamine and conspiracy to distribute methamphetamine in violation of 21 U.S.C. Sections 841(a)(1) and 846. He appealed the district court's denials of his motion to suppress evidence, his motion to strike a juror for cause, and his motion to admit a portion of a video recording.

The Eighth Circuit affirmed Defendant's convictions. Defendant argued that the seizure and detention of the lockboxes was unreasonable under United States v. Place, 462 U.S. 696 (1983). But "Place had nothing to do with the automobile exception and is inapposite." See Acevedo, 500 U.S. at 578 (noting that the Supreme Court has consistently "explained that automobile searches differ from other searches" and has denied the applicability of cases that "do not concern automobiles or the automobile exception" to cases involving the automobile exception). Therefore, the district court did not err in denying Defendant's motion to suppress. Further, the court wrote there was no abuse of discretion because the juror stated that she could remain fair and would listen to the detective's testimony before deciding if she believed it.
Finally, Defendant claimed that the "partial recording and the Government's characterization of it . . . gave a misleading and unfair understanding of the meaning of Defendant's statement to the jury." But he offers no explanation of how the recording was misleading.

State v. Bates
Court: Kansas Supreme Court
Opinion Date: July 29, 2022

The Supreme Court affirmed the decision of the court of appeals affirming the judgment of the district court denying Defendant's motion to suppress evidence obtained during a search that led to the State charging Defendant with possession of drugs and drug paraphernalia with the intent to distribute, holding that the district court properly denied the suppression motion.

This appeal arose after police officers detained Defendant while he sat in a minivan in an alleyway. Defendant filed a motion to suppress the evidence obtained during the search, arguing that the seizure of the minivan violated his constitutional rights. The district court concluded that the detention was reasonable and justified under the public safety exception to the warrant requirement. The court of appeals affirmed. The Supreme Court affirmed, holding that the seizure of the minivan was reasonable under the Fourth Amendment and section 15 of the Kansas Constitution Bill of Rights.

State v. Betts
Court: Kansas Supreme Court
Opinion Date: July 29, 2022

The Supreme Court reversed the judgment of the district court dismissing this case on the grounds that state law immunized Whichita Police Officer Dexter Betts's use of deadly force in self-defense, holding that Kan. Stat. Ann. 21-5231(a) does not extend its immunity to a defendant's reckless acts while engaged in self-defense that result in unintended injury to an innocent bystander.

Betts fired two gunshots at a fast-approaching dog he thought was attacking him and instead injured a young girl sitting nearby. After the State charged Betts with reckless aggravated battery Betts moved to dismiss the charge, arguing that state law immunized his use of deadly force in self-defense even if he did act recklessly. The district court decided a defendant can assert self-defense immunity when charged with a recklessness crime. **The Supreme Court reversed, holding that the self-defense privilege does not extend to reckless conduct injuring an innocent bystander who was not reasonably perceived as an attacker.**

Christopher Lankford v. City of Plumerville, Arkansas
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: August 2, 2022

Plaintiff was severely injured when his motorcycle crashed into a police SUV while he was fleeing from police. Plaintiff sued the City of Plumerville, Arkansas (the "City"), and its police officer for use of excessive force. The district court granted summary judgment to the City and the officer.

The Eighth Circuit affirmed. The court explained that claims against local police for excessive force during a seizure are analyzed under the Fourth Amendment's reasonableness standard. The court wrote it consistently held deadly force is not unreasonable where an officer has probable cause to believe that the suspect poses a threat of serious physical harm, either to the officer or others. The court held that the undisputed evidence reveals that the police officer had probable cause to believe Plaintiff's flight threatened the lives of innocent bystanders as well as police. Accordingly, the court held that the officer's actions were reasonable. Moreover, the court found that the severity of the officer's use of force was mitigated by the opportunity the officer gave Plaintiff to avoid the collision.

Finally, the court explained that it assesses the reasonableness of deadly force for Fourth Amendment purposes from the seizing officer's perspective at the time of the incident. The court found that based on the police officer's knowledge at the time when he was forced to make a quick judgment, the court concluded the Fourth Amendment's reasonableness standard gave the officer more leeway than would have the Morrilton police officers.

J. J. V. CITY OF SAN DIEGO
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: August 2, 2022

Plaintiff's mother was arrested at a traffic stop and fell ill in police custody. Tragically, she died nine days later. Her minor son, J.K.J., brought constitutional claims against the City of San Diego and two officers who participated in the traffic stop. The District Court dismissed J.K.J.'s amended complaint with prejudice. The district court dismissed J.K.J.'s amended complaint with prejudice.

The Ninth Circuit filed (1) an order granting a petition for rehearing, denying as moot a petition for rehearing en banc, and amending the prior opinion and dissent; and (2) an amended opinion affirming the district court's dismissal of an action brought pursuant to 42 U.S.C. Section 1983 alleging constitutional violations by police officers in their treatment of Plaintiff's mother.

The court first held that the district court validly exercised its discretion in choosing to review a bodycam video that Plaintiff had incorporated by reference into the amended complaint. Second, the district court did not assign the video too much weight. Lastly, to the extent the district court found that the video contradicted anything in the amended complaint, it rejected Plaintiff's conclusory allegations regarding whether the officers' conduct met the legal standard of a constitutional violation.

The court held that the district court did not err in dismissing the amended complaint. The court further held that the alleged violative nature of the officers' conduct, in failing to recognize and respond to the woman's serious medical need, was not clearly established in the specific context of this case.

Club Madonna Inc. v. City of Miami Beach
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: August 1, 2022

After a thirteen-year-old victim of human trafficking performed at a City of Miami Beach ("the City") fully nude strip club, Club Madonna, Inc. ("the Club"), the City came down hard on the Club. It enacted two closely intertwined ordinances (collectively, "the Ordinance") that required all nude strip clubs to follow a record-keeping and identification-checking regime in order to ensure that each individual performer is at least eighteen years old.

The district court ruled for the City at summary judgment on the Club's first two claims, ruled for the Club on its federal preemption claim at summary judgment, and ruled for the City on the Club's state law preemption claim at the motion-to-dismiss stage for failure to state a claim. The Club then appealed the court's rulings and the City cross-appealed the district court's ruling on the Club's federal preemption claim.

The Eleventh Circuit affirmed on all counts. First, although the Ordinance implicates the First Amendment because it singles out an industry that engages in expressive activity for special regulation, it satisfies intermediate scrutiny. Second, the Ordinance's warrantless-search provision does not violate the Fourth Amendment because the adult entertainment industry is a closely regulated industry for Fourth Amendment purposes, and the warrantless-search provision satisfies the administrative-search exception because it can be narrowly read to avoid Fourth Amendment concerns. Third, the Ordinance's employment-verification requirement is preempted by federal immigration law. And finally, the Club's state law conflict preemption claim fails because there is no Florida law that cabins the City's ability to levy fines against the Club for violating the Ordinance's requirements.

AUGUST 12 CASES

US v. Ricky Runner
Court: US Court of Appeals for the Fourth Circuit
Opinion Date: August 8, 2022

Appellant pleaded guilty to one charge of being a felon in unlawful possession of a firearm, in violation of 18 U.S.C. Sections 922(g)(1) and 924(a)(2), but reserved his right to appeal the district court's denial of his motion to suppress evidence seized during a warrantless search of his vehicle after officers visually observed a glass stem pipe in the console of his car. Appellant now makes that appeal, arguing the stem pipe was insufficient to trigger the plain view exception to the Fourth Amendment's protection from unreasonable searches.

In finding neither clear factual error nor an error of law in the district court's reasoning the Fourth Circuit affirmed. The court explained that for the plain view exception to apply, the government must show that: "(1) the officer [was] lawfully in a place from which the object [could] be plainly viewed; (2) the officer ha[d] a lawful right of access to the object itself; and (3) the object's incriminating character [wa]s immediately apparent." United States v. Jackson, 131 F.3d 1105 (4th Cir. 1997).

Here, even though a glass stem pipe may be put to innocent uses—uses that continue to expand and should be taken into consideration—here, viewing the evidence in the light most favorable to the government and in its totality, the plain view exception applies, and the search of the vehicle was lawful.

United States v. Stevenson
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: August 9, 2022

The Sixth Circuit affirmed the order of the district court denying Appellant's motion to suppress, holding that there was no violation of Defendant's Fourth Amendment rights under the circumstances of this case.

Defendant entered a conditional plea to being a felon in possession of a firearm. Defendant subsequently brought this appeal challenging the district court's order denying his motion to suppress, arguing that the arresting officer lacked probable cause to initiate the traffic stop leading to the search of his car and unconstitutionally prolonged the stop. The Sixth Circuit affirmed, holding (1) there was sufficient evidence to warrant a prudent person in believing Defendant had violated 4511.431(A); and (2) the officer had probable cause to detain Defendant, investigate the source of a marijuana odor, and continue search the entire vehicle for marijuana.

United States v. Davis
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: August 11, 2022

Police arrested Davis, a convicted felon, on a state warrant for three counts of aggravated battery by discharge of a firearm, just outside of his residence. While being arrested, Davis stated that there were children in the house. Officers entered the house to conduct a limited sweep of areas where a person could be hiding, finding an eight-year-old child and a 19-year-old. An officer observed a rifle, upright in plain view, in an open bedroom closet. About 45 minutes later, after the sweep had concluded, Antionette, a woman with whom Davis was living and the owner of the house, arrived and gave the officers oral and written consent to search the home, acknowledging that she had been advised of her rights.

Davis, charged with illegally possessing a firearm, 18 U.S.C. 922(g)(1), unsuccessfully moved to suppress the rifle on the basis that no valid exception to the warrant requirement justified the initial entry or the later search. The district court found that three separate exceptions applied: a protective sweep following Davis's arrest, exigent circumstances because a child was in the home, and Antoinette's voluntary consent. The Seventh Circuit affirmed. Davis did not dispute that Antoinette's consent was voluntary and not tainted by the initial entry into the house.

United States v. David Allen
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: August 9, 2022

Defendant was charged with one count of being a felon in possession of a firearm, in violation of 18 U.S.C. Section 922(g)(1). He filed a motion to suppress evidence obtained during a vehicle search. The district court denied the motion. Defendant proceeded to trial, where a jury found him guilty. He appealed and raised four arguments: (1) the district court should have granted his motion to suppress; (2) the district court should have admitted impeachment evidence; (3) the district court should have given additional jury instructions; and (4) the evidence was not sufficient to convict.

The Eighth Circuit affirmed, finding that the district court correctly denied Defendant's motion to suppress because the search was supported by reasonable suspicion. At trial, any error in excluding defense Exhibits S and T was harmless because the impeachment information was admitted through the officer's testimony. The district court did not abuse its discretion by rejecting Defendant's proposed jury instructions because the instructions it gave fairly and accurately set forth the law. Finally, the evidence was sufficient to support Defendant's conviction.

United States v. Drake Banks, Sr.
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: August 9, 2022

Defendant was convicted of a firearms offense after police seized evidence during a traffic stop. The district court sentenced Defendant to a term of forty-eight months' imprisonment. Defendant appealed the conviction and sentence on several grounds. The Eighth Circuit affirmed discerning no reversible error.

The court explained that an officer's observance of a traffic violation, no matter how minor, gives the officer probable cause to initiate a stop. Here, the officer reasonably concluded that the driver's following distance was not reasonable and prudent. He thus had probable cause for a traffic stop, and the district court properly denied the motion to suppress. Further, the court wrote that the district court abuse its discretion in concluding that a jury reasonably could infer that Defendant sought to flee the patrol car because he recognized that officers were on the brink of discovering his unlawful possession of firearms in the trunk of the rental car. Defendant's efforts to escape coincided with the officer's search of the Altima's trunk and with Defendant's anxious statements about that search. Thus, the evidence was properly admitted.

Further, Defendant objects that much of the evidence is "merely circumstantial," but circumstantial evidence can support a conviction, and the combination of direct and circumstantial evidence here was sufficient to support a finding that Defendant was guilty beyond a reasonable doubt. Finally, the district court's finding that he constructively possessed the guns is not clearly erroneous in light of the record as a whole.

United States v. Mar'yo Lindsey
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: August 5, 2022

Defendant entered a conditional guilty plea to being a felon in possession of a firearm. The district court sentenced him to 70 months imprisonment followed by 3 years supervised release. Defendant appealed asserting that the district court erred in denying his motion to suppress evidence seized by law enforcement officers during the search of a vehicle in which Defendant was a passenger, as well as evidence obtained under subsequently secured search warrants.

The Eighth Circuit affirmed. The court explained that as a general matter, mere passengers, such as Defendant, who have no ownership rights in a vehicle lack standing to challenge a search of the vehicle. However, Defendant contends that he has standing to challenge the search because it was the direct result of his illegal seizure by officers. In this case, however, the officer had probable cause to detain the vehicle and Defendant, a passenger, based upon traffic violations alone, because any traffic violation, however minor, provides probable cause for a traffic stop.

Defendant also contended that the affidavits in support of the search warrants for his DNA and the two cell phones did not allege facts sufficient to establish probable cause for the issuance of the warrants. The district court found the affidavits constitutionally adequate but alternatively concluded that suppression was inappropriate in any event because the officers acted in good faith in executing the search warrants. Thus, the court affirmed the district court based on this alternate reasoning.

United States v. Johnson
Court: US Court of Appeals for the Tenth Circuit
Opinion Date: August 9, 2022

Defendant-appellant Nathaniel Johnson was arrested on a Greyhound bus after an encounter with Special Agent Jarrell Perry. Law enforcement found two packages of methamphetamine in Johnson's backpack, and Johnson gave several incriminating statements. The district court denied Johnson's motion to suppress the physical evidence and his statements. Johnson appealed. The Tenth Circuit affirmed in part and reversed in part. The Court determined Perry had probable cause to arrest Johnson and to seize the bundle of clothing and backpack. But while seizing the items from the bus, Perry conducted an illegal search of the bundle by reaching inside Johnson's open backpack and feeling the bundle in an exploratory manner. Then later, at the DEA office, still without a warrant, Perry conducted a second illegal search of the backpack and the bundle. And contrary to the government's position, the plain-view exception to the warrant requirement could not apply because at neither point in time were the contents of the bundle or backpack a foregone conclusion.

Baez v. Town of Brookline, Mass.
Court: US Court of Appeals for the First Circuit
Opinion Date: August 11, 2022

The First Circuit affirmed the order of the district court granting summary judgment in favor of the Town of Brookline and its Selectmen and dismissing Plaintiffs' claims of unconstitutional mistreatment by the Town's "deliberate indifference" to complaints of racial discrimination by Brookline police, holding that Plaintiffs' claims on appeal were unavailing.

The five named plaintiffs here claimed that Brookline police officers violated their rights under the Equal Protection Clause by treating them differently because they are Hispanic. The district court granted summary judgment for Defendants. The First Circuit affirmed, holding that the record evidence did not support a finding of deliberate indifference.

Ramirez v. Escajeda
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: August 10, 2022

Defendant, El Paso found Plaintiff's son in the process of hanging himself from a basketball hoop. But it was dark, Defendant was afraid the man might have a weapon, and the man did not respond to Defendant's orders to show his hands. So Defendant tased the man once, took down his body, and performed CPR. To no avail. The man soon after died in the emergency room from the hanging. His parents sued Defendant for using excessive force, the district court denied qualified immunity, and Defendant appealed.

The Fifth Circuit reversed the district court's decision and rendered judgment granting Defendant qualified immunity. The court explained that the district court and Plaintiffs rely on cases holding that officers may not use force against arrestees who are already subdued and in police custody. This case is markedly different. The reason Defendant tased the man was that he was not in custody and Defendant was afraid he might have a weapon. Even if that fear turned out to be groundless—something the court wrote it cannot decide here—Defendant still did not transgress any clearly established law.

Shumate v. City of Adrian
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: August 10, 2022

In a parking lot, Officer Powers approached Shumate's daughter (Amy) to question why her license plates did not match her car's registration. Amy did not have insurance and was not allowed to drive home. After Amy called Shumate for a ride, Powers and Amy began to argue about retrieving items from the car. Shumate arrived and immediately began to argue with Powers; the two had had prior hostile interactions. About 47 seconds after Shumate arrived, Powers fired his Taser. Shumate fell backward, screaming in pain. Powers claims Powers straddled the prone Shumate, yelling "stop resisting," though the video indicates no resistance. Powers deployed his Taser again. Powers apparently punched and kneed Shumate, again deployed the taser, and employed palm-heel, backhand, and knee strikes. Shumate was treated at a hospital and eventually pled guilty to the misdemeanor offense of being a disorderly person. Powers was disciplined for "rudeness to a citizen" (Amy).

In a 42 U.S.C. 1983 civil rights action, the district court denied motions for summary judgment on immunity grounds. The Sixth Circuit affirmed in part; neither qualified nor state law immunity shields Powers from liability. The right to be free from being tased and subjected to physical force (alleged punching, knee strikes, kicking, and hitting) while not actively resisting and while being non-violent was clearly established before 2019, Powers was on "notice that his specific conduct was unlawful."

JUAN HERNANDEZ V. CITY OF PHOENIX
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: August 5, 2022

The City of Phoenix's Police Department concluded that a Sergeant with the Department violated a Department policy by posting content to his personal Facebook profile that denigrated Muslims and Islam. When the Department took steps to discipline the Sergeant, he sued, alleging that the Department was retaliating against him for exercising his First Amendment right to freedom of speech.

The Ninth Circuit affirmed in part and reversed in part the district court's dismissal of Plaintiff's action. In analyzing the content, form and context of the Sergeant's posts, the court concluded that the posts qualified as speech on matters of public concern. While it was true that each of the Sergeant's posts expressed hostility toward, and sought to denigrate or mock, major religious faith and its adherents, the Supreme Court has made clear that the inappropriate or controversial character of a statement is irrelevant to the question of whether it deals with a matter of public concern.

The court, therefore, reversed the district court's dismissal of Plaintiffs' First Amendment retaliation claim and his related claim under the Arizona Constitution. The court held that the district court properly rejected Plaintiffs' facial overbreadth challenge to certain provisions of the Department's social media policy, except as to the clauses prohibiting social media activity that (1) would cause embarrassment to or discredit the Department, or (2) divulge any information gained while in the performance of official duties, as set forth in section 3.27.9B.(7) of the policy. The court affirmed the district court's rejection of Plaintiffs' facial vagueness challenge to the same provisions discussed above and their municipal liability claim.

AUGUST 19 CASES

Meadows v. City of Walker, Michigan
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: August 18, 2022

Walker Officer Dumond began pursuing Meadows after he passed Dumond on the highway while traveling nearly 90 miles per hour. During the subsequent traffic stop, which was captured on dash-camera footage, Dumond instructed Meadows to keep his hands out of his vehicle and to open the door to his vehicle. Dumond and Meadows shouted back and forth as Meadows attempted to open his door. Once Meadows exited the vehicle, Dumond grabbed Meadows and slammed him to the ground. On the ground, Dumond kneed Meadows to try and roll him over, and Officer Wietfeldt punched Meadows multiple times. Wietfeldt fractured Meadows's wrist while handcuffing him.

Meadows sued the officers and the city under 42 U.S.C. 1983. The officers appealed the denial of their summary judgment motions based on qualified immunity. The Sixth Circuit affirmed. The court stated that on interlocutory appeal, it is bound by the district court's determination that a reasonable jury could conclude that Dumond and Wietfeldt did not perceive Meadows as refusing to comply or resisting arrest. The dash-camera footage does not "blatantly contradict" the factual issues identified by the district court.

United States v. Angela Garges
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: August 15, 2022

Defendant entered a conditional guilty plea to a charge of conspiracy to distribute methamphetamine. She reserved her right to appeal an order of the district court denying her motion to suppress evidence that police seized after conducting a protective sweep of a hotel room in which she was staying. See Fed. R. Crim. P. 11(a)(2).

The Eighth Circuit affirmed, concluding that the officers permissibly entered and searched the hotel room. On appeal, Defendant argues that the district court erred in denying the motion to suppress because the police lacked specific and articulable facts suggesting that a person posing a danger to the officers was located inside the hotel room. She maintains that the officers violated her rights under the Fourth Amendment by entering the hotel room without a warrant and that all evidence seized as a result of the entry should be suppressed.

The court explained that a protective sweep of the hotel room was justified here as an inspection of spaces immediately adjoining the place of arrest from which an attack could be immediately launched. It is undisputed that officers were positioned in the doorway to effect the arrest, and that police crossed the threshold into the room under the authority of the warrant. Accordingly, the court held that the officers observed evidence of unlawful drug activity in plain view while conducting the protective sweep did not violate Defendant's rights under the Fourth Amendment.

United States v. Christopher Perez
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: August 18, 2022

Defendant appealed the denial of his motion to suppress, having preserved the right to do so pursuant to his conditional plea of guilty. He also appeals his sentence, challenging his classification as an armed career criminal pursuant to the Armed Career Criminal Act (ACCA), 18 U.S.C. 924(e), and in the alternative, the calculation of his Guidelines range on other grounds.

The Eighth Circuit affirmed the denial of the motion to suppress. The court vacated his sentence and remand for resentencing, however, because Defendant does not have three prior qualifying convictions under the ACCA. The court explained that was reasonable for the officers to rely on our then-applicable precedent that dog sniffs at an interior apartment door are permissible.

Moreover, the court wrote that to be subject to higher statutory penalties under the ACCA, an individual who violates 18 U.S.C. 922(g) must have three or more prior convictions for offenses -6- that are "violent felon[ies]" or "serious drug offense[s]." 18 U.S.C. 924(e)(1). As relevant here, a serious drug offense is defined as: "an offense under State law, involving manufacturing, distributing, or possessing with intent to manufacture or distribute, a controlled substance (as defined in section 102 of the Controlled Substances Act (21 U.S.C. 802)), for which a maximum term of imprisonment of ten years or more is prescribed by law. Accordingly, the court found that Defendant's prior offenses are not serious drug offenses under the ACCA, and the district court erred by sentencing Defendant as an armed career criminal.

United States v. Ramon Simpson
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: August 15, 2022

Defendant was convicted of kidnapping resulting in death and conspiracy to commit kidnapping. On appeal, Defendant challenges several rulings of the district court* and the sufficiency of the evidence in support of the convictions.

The Eighth Circuit affirmed. Defendant's first argument on appeal is that the district court erred by denying his motion to suppress statements from the interviews on November 8 and 21, 2018. He contends that investigators subjected him to custodial interrogations without advising him of his rights under Miranda v. Arizona. The court concluded that there was no custodial interrogation of Defendant on November 8. Defendant responded to the FBI agent's request for a conversation and agreed to let the agent come to his house for the meeting. The agent did not display a weapon or restrain Defendant in any way. The agent was dressed in plain clothes and allowed Defendant's wife to sit nearby for the interview. Further, the court held that there is no indication that Defendant is particularly susceptible to undue influence: he is an adult of average intelligence who has earned an associate's degree and is familiar with the protections afforded by the legal system due to an extensive criminal history.

Moreover, the court held that the district court did not abuse its discretion by concluding that the probative value of the evidence was not substantially outweighed by a danger of unfair prejudice. Further, the court concluded that there was no error in declining to instruct the jury that the government must prove that Defendant knew in advance that death would result from the kidnapping.

USA v. Amistad Veney
Court: US Court of Appeals for the District of Columbia Circuit
Opinion Date: August 12, 2022

Appellant was convicted of unlawfully possessing a loaded firearm. He does not dispute that the bulge of that gun in his waistband gave an arresting officer the reasonable suspicion required to conduct a stop-and-frisk that uncovered the gun. But Appellant argues he submitted to an illegal show of authority several seconds before then when the officer did not yet have a close view of the bulge in Appellant's waistband.

The DC Circuit affirmed the finding that Appellant did not submit to a show of authority. The court explained that Appellant has not described submission to a show of authority. Because the officer's statement ("No.") followed Appellant's declaration that he was "going to walk off," Appellant could not submit while he "continued moving forward." One cannot submit to an order not to "walk off" by walking off. Moreover, even when a show of authority does not expressly prohibit flight, it can do so implicitly. Accordingly, at no point did Appellant voluntarily submit to a show of authority. He, therefore, was not seized until the officer blocked his path. By then, the officer could see the bulge of Appellant's gun in his waistband, and Appellant does not dispute that the bulge gave the officer the reasonable suspicion required for the stop and frisk that followed.

Villarreal v. City of Laredo
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: August 12, 2022

Plaintiff regularly reports on local crime, missing persons, community events, traffic, and local government. Plaintiff published a story about a man who committed suicide and identified the man by name and revealed that he was an agent with the U.S. Border Patrol. Two arrest warrants were issued for Plaintiff for violating Texas Penal Code Section 39.06(c). According to Plaintiff, local officials have never brought a prosecution under Section 39.06(c) in the nearly three-decade history of that provision.

Plaintiff appealed the dismissal of her claims against the officials under the First, Fourth, and Fourteenth Amendments. She also appeals the dismissal of her municipal liability claims against the City of Laredo, but not her claims against Webb County.

The Fifth Circuit reversed the judgment of the district court dismissing Plaintiff's First, Fourth, and Fourteenth Amendments claims, as well as her civil conspiracy claims. The court affirmed the district court's judgment dismissing Plaintiff's municipal liability claims against the City of Laredo. The court explained that it has no difficulty observing that journalists commonly ask for nonpublic information from public officials, and that Plaintiff was therefore entitled to make that same reasonable inference. Yet Defendants chose to arrest Plaintiff for violating Section 39.06(c). The court accordingly concluded that Plaintiff has sufficiently pled the existence of similarly situated journalists who were not arrested for violating Section 39.06(c).

Randy McDaniel v. Markeith Neal
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: August 15, 2022

Plaintiff sued Defendant, a police officer in Pine Bluff, Arkansas, for use of excessive force, pursuant to 42 U.S.C. Section 1983. Defendant moved for summary judgment, raising the defense of qualified immunity. The district court denied Defendant's motion, and Defendant appealed. The Eighth Circuit reversed the denial of qualified immunity and remanded with instructions to dismiss the case.

At this stage, the court viewed the facts in the light most favorable to Plaintiff. Here, Plaintiff did attempt to flee, but Defendant had grabbed him by the time he reached the closed door. The officers knew Plaintiff was unarmed, and the offense they were there to arrest him for was nonviolent. The reasonableness of the use of force is a fact-intensive inquiry. The court held that it affirmed the district court's conclusion that the disputed facts are material to the question of whether Defendant used excessive force and that, viewing those facts in Plaintiff's favor, Defendant's use of force was excessive. However, the court found, that even if his use of force was excessive, Defendant is entitled to qualified immunity unless the excessiveness of the force was clearly established on the date of the incident, August 13, 2017. Thus, the court found that Defendant was entitled to qualified immunity because the court could not identify a case or body of case law that clearly established as of August 13, 2017, that Defendant's use of force was excessive, even viewing the facts in the light most favorable to Plaintiff.

DAVID DEMAREST V. CITY OF VALLEJO
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: August 16, 2022

Plaintiff brought a 42 U.S.C. Section 1983 alleging that the City of Vallejo violated the Fourth Amendment, by adding license checks to what was concededly a sobriety checkpoint. The Ninth Circuit affirmed the district court's summary judgment for Defendants.

Reviewing a line of relevant Supreme Court decisions, the court derived a "two-step analysis" for assessing the validity of a checkpoint under the Fourth Amendment. Applying that two-step analysis to this case, the panel first held that because the City's checkpoint did not have any impermissible primary purpose of advancing the general interest in crime control, it was not per se invalid. The panel then applied the factors for assessing reasonableness set forth in Lidster and concluded that the City's systematic addition of driver's license checks to an otherwise valid sobriety checkpoint was objectively reasonable under the Fourth Amendment.

The court held that, once Plaintiff refused to produce his license for examination at the checkpoint, the officer had probable cause to believe that plaintiff was committing an offense in violation of California Vehicle Code Section 12951(b), and his continued detention and arrest were therefore reasonable under the Fourth Amendment. Moreover, the officer's action of physically removing Plaintiff from his car by grabbing his arm was objectively reasonable as a matter of law given Plaintiff's lack of cooperation with her commands up to that point and the modest nature of the force used.

26 AUGUST 2022 CASES

USA v. Morton
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: August 23, 2022

State troopers arrested Defendant after finding drugs in his car during a traffic stop. Morton also had three cell phones in the car. A state judge later signed warrants authorizing searches of the phones for evidence of drug crime. The warrants allowed law enforcement to look at photos on the phones. When doing so, troopers discovered photos that appeared to be child pornography. This discovery led to a second set of search warrants. The ensuing forensic examination of the phones revealed almost 20,000 images of child pornography. This federal prosecution for receipt of child pornography followed. Defendant argues the evidence discovered during those searches should be suppressed. Defendant principally tries to defeat good faith by invoking the third exception, which involves what are commonly known as "bare bones" affidavits.

The Fifth Circuit affirmed the district court's decision. The court held that law enforcement is usually entitled to rely on warrants and none of the exceptions that undermine good-faith reliance on a judge's authorization applies. The court wrote that the affidavits used to search Defendant's phones are not of this genre. Each is over three pages and fully details the facts surrounding Defendant's arrest and the discovery of drugs and his phones. They explain where the marijuana and glass pipe was discovered, the number (16) and location of the ecstasy pills, and the affiant's knowledge that cellphones are used for receipt and delivery of illegal narcotics. The court explained that it decides only that the officers acted in good faith when relying on the judge's decision to issue the warrants.

Flowers v. Renfro
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: August 19, 2022

A man grabbed Flowers's girlfriend in a bar. After a verbal altercation, the bar's owner asked both men to leave. Flowers protested but left the bar accompanied by a bouncer and Davis, an off-duty police officer employed as a security guard. While Flowers waited in the parking lot for his girlfriend, he and Davis talked. Officer Renfro, another off-duty Springfield police officer employed by the bar, without warning or provocation, grabbed Flowers and slammed him to the pavement face first, knocking out Flowers' tooth. Renfro then placed Flowers under arrest. Flowers had not verbally or physically threatened the officers and was not showing any indication that he would resist arrest. The only conduct that Renfro claims justified slamming Flowers to the ground was that Flowers questioned the command to leave the bar and turned around to face Davis within one to two feet of him. Flowers disputes that he ever turned to face Davis.

Flowers sued the city, Renfro, and Davis under 42 U.S.C. 1983. The district court denied the defendants' motions for summary judgment, which asserted that the officers did not violate Flowers' civil rights and were entitled to qualified immunity. The Seventh Circuit dismissed an appeal for lack of jurisdiction because the district court held that there are genuine issues of disputed fact, material to Flowers' claim against Renfro; the reasonableness of that use of force would inform a decision on qualified immunity.

United States v. Christopher Hay
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: August 23, 2022

Defendant pleaded guilty to one count of illegal possession of firearms and ammunition and two counts of possession of unregistered firearms. Defendant preserved his right to appeal the district court's denial of his motion to suppress and appealed.

Defendant first argued that the warrant application did not establish probable cause to justify the search of his residence because it relied on the confidential Bulletin, which in Defendant's view represents an attempt by the ATF to improperly change the law by defining all fuel filters and solvent traps as silencers regardless of how a person intends to use them. He further asserted that hat the good faith exception does not apply because the search warrant application misstated the law regarding firearm silencers and unmodified fuel filters and omitted the intent element, misleading the judge considering the warrant as to both law and facts. Here, the court explained, that the warrant application was thin, but officers were not "entirely unreasonable" in their belief that the warrant was supported by probable cause, nor was the warrant so deficient that they "could not reasonably presume its validity." The court agreed with the district court that, regardless of whether the warrant was supported by probable cause, the good faith exception applies.

RENO V. RON DAVIS
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: August 19, 2022

The district court issued a certificate of appealability on two issues: Respondent's due process claims regarding the destruction of police records (Claims 17 and 18); and the state trial court's failure to instruct the jury on Cal. Penal Code Section 272, which Respondent asserted was a lesser included offense of one of the felony charges (Claim 48n).

The Ninth Circuit affirmed the district court's denial of Respondent's amended 28 U.S.C. Section 2254 habeas corpus petition challenging his California conviction, on retrial, and death sentence for two first-degree murders and one second-degree murder.

The panel held that the California Supreme Court reasonably applied Arizona v. Youngblood, 488 U.S. 51 (1988), instead of Brady v. Maryland, 373 U.S. 83 (1963), because the record does not support Respondent's assertion that the purged records contained material exculpatory evidence. The panel also held that the California Supreme Court did not act unreasonably when, applying Youngblood, it affirmed the trial court's factual finding that there was no evidence that the police department acted in bad faith.

The panel held that the instructions in Respondent's case—which did not give the jury "an all-or-nothing choice" between the capital first-degree murder charge and innocence, but rather gave the jury the option of finding Reno guilty of the lesser included non-capital offenses of second-degree murder or voluntary manslaughter—did not run afoul of Beck v. Alabama, 447 U.S. 625 (1980), and there was no constitutional error.

Bohanon v. City of Indianapolis
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: August 22, 2022

Indianapolis Police Officers went to Mikie's Pub in Indianapolis. Both officers were off duty and in plain clothes. Bohanon argued with the bartender about his bill. The officers intervened and brutally beat Bohanon in the parking lot. Bohanon sued Indianapolis under 42 U.S.C. 1983 alleging that the officers used excessive force and that his injuries were caused by the city's policies, which prohibit off-duty officers with any alcohol in their blood from performing law-enforcement functions subject to a narrow exception. An officer may do so only in an "extreme emergency situation[]" where police "action is required to prevent injury to the off duty [officer] or another, or to prevent the commission of a felony or other serious offense." Bohanon argued that the city was deliberately indifferent to the obvious risk of constitutional violations. A jury awarded Bohanon $1.24 million. The judge granted Indianapolis judgment as a matter of law.

The Seventh Circuit affirmed. For the city to be liable, a municipal policy or custom must have caused Bohanon's constitutional injury. The narrow exception in the city's substance-abuse policy did not present a policy "gap" that made it glaringly obvious that off-duty officers would use excessive force. Because no extreme emergency situation existed at the time of the incident, those policies expressly prohibited the officers' conduct and were not the "moving force" cause of Bohanon's injury.

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United States v. Johnson
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: August 26, 2022

FBI agents and Chicago police executed a search warrant at Johnson's apartment, which authorized them to search for: Firearms, short-barreled, ammunition, paraphernalia for maintaining firearms, any photographs of individuals with firearms, any records of firearms transactions, which have been used in the commission of, or which constitute evidence of the offense of [unlawful use of a weapon by a felon]. The officers did not find firearms or ammunition but, on the back porch attached to Johnson's apartment, they found over 100 grams of a substance containing heroin and furanylfentanyl, concealed in a cavity at the top of a ceiling beam. Johnson was charged under 21 U.S.C. 841(a)(1), which carries a mandatory minimum of 10 years' imprisonment.

Johnson's motion to suppress was denied The district court found the porch to be curtilage. The Seventh Circuit affirmed his conviction and 132-month sentence. The officers' seizure of the drugs was lawful under the plain view doctrine. The court rejected an argument that furanylfentanyl is not an "analog of [fentanyl]" under the statute; the district court did not plainly err in applying the 10-year enhanced penalty. Johnson qualified as a career offender based on two Illinois convictions for the manufacture and/or delivery of a controlled substance.

Richardson v. State
Court: Maryland Court of Appeals
Opinion Date: August 29, 2022

The Court of Appeals affirmed the judgment of the court of special appeals affirming the decision of the circuit court denying Defendant's motion to suppress the fruits of the warrantless search of his backpack and the warranted search of his cell phone, holding that Defendant was not entitled to relief on appeal.

After a school resource officer broke up a fight in which Defendant was involved, Defendant's backpack dropped to the ground. When the officer picked up the backpack Defendant ran from the scene. The officer subsequently searched the backpack and discovered a stolen firearm and three cell phones. The officers obtained a warrant to search one cell phone. Thereafter, Defendant was charged with robbery and other offenses. After the trial court denied Defendant's suppression motion as to both searches Defendant pleaded guilty to conspiracy to commit robbery and wearing, carrying, and transporting a handgun. The court of special appeals affirmed. The Supreme Court affirmed, holding (1) because Defendant abandoned his backpack the warrantless search of his backpack was constitutionally permissible; and (2) the warrant authorizing the search of the cell phone did not comply with the particularity requirement of the Fourth Amendment, but the good faith exception to the exclusionary rule applied to the fruits of the cell phone search.

State v. Pauli
Court: Minnesota Supreme Court
Opinion Date: August 24, 2022

The Supreme Court affirmed the decision of the court of appeals affirming Defendant's convictions for four counts of possession of pornographic work involving minors, holding that, assuming that Defendant had a reasonable expectation of privacy in his online cloud storage account, the government's search of his account was lawful under the private search doctrine.

At issue in this case was the conduct of law enforcement officers who discovered digital child pornography files stores in Defendant's cloud storage account with Dropbox. Defendant moved to suppress the evidence acquired from his Dropbox account, arguing that the search violated his Fourth Amendment rights. The district court denied the motion to suppress. The court of appeals affirmed. The Supreme Court affirmed, holding that the warrantless search of Defendant's online cloud storage account did not violate the Fourth Amendment.

Campbell v. Cheatham County Sheriff's Department
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: August 29, 2022

Officers were dispatched to the Campbells' residence after a 9-1-1 dispatcher received two hang-up calls from the residence. Officer Fox knocked on the door. He did not announce himself as law enforcement. Through the closed door, Mark asked "you got a gun?" and later stated, "I got one too." Fox drew his gun. Mark opened the door. Mark says he may have had a cell phone in his hand. Both officers contend they thought Mark had a gun. Video footage does not resolve the dispute. Fox fired two shots. Mark fell to the floor and kicked the door shut. He yelled to his wife to call 9-1-1 because somebody was shooting at them. Although Fox fired eight shots, no one was hit. Other officers arrived and apprehended Mark. No firearms were found in the home. Mark was charged with aggravated assault; the charges were ultimately dismissed.

The Campbells sued Fox in his individual capacity under 42 U.S.C. 1983. The Sixth Circuit affirmed the denial of qualified immunity summary judgment. Fox's actions constituted a "seizure" under the Fourth Amendment; a reasonable person would not believe that he was free to leave a house while an officer repeatedly fired at the door. Accepting the Campbells' version of the facts, a reasonable jury could find that Fox's use of deadly force was objectively unreasonable.

JAVIER VANEGAS V. CITY OF PASADENA
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: August 31, 2022

At issue was whether police officers had probable cause to arrest Plaintiff either for reports that he followed and harassed an attorney outside a courthouse or for Plaintiff's refusal to identify himself during an investigatory stop. Defendants asserted that they had probable cause to arrest Plaintiff on two grounds: (1) disturbing the peace under California Penal Code Section 415(2); and (2) obstructing an officer under California Penal Code Section 148(a)(1).

The Ninth Circuit affirmed the district court's summary judgment in favor of the City of Pasadena and Pasadena police officers in an action brought pursuant to 42 U.S.C. Section 1983 alleging that plaintiff was unlawfully arrested. Plaintiff first argued that, because he was arrested under California Penal Code Section 148(a)(1), that means it was disputed whether probable cause existed under Section 415(2). The panel disagreed, stating first that it was well-established that if the facts support probable cause for one offense, an arrest may be lawful even if the officer invoked, as the basis for the arrest, a different offense that lacked probable cause. Second, by the time of Plaintiff's arrest, the officers learned enough facts to believe that Plaintiff had violated Section 415(2) and therefore had probable cause to make the arrest.

Having found no violation of the Fourth Amendment, there was no need to proceed to the second question of the qualified immunity analysis—whether the unlawfulness of the officer's conduct was not "clearly established." Further, the panel held that no "controlling authority" or "robust consensus of cases" prohibited the officer from arresting Plaintiff under the facts confronting him.

RICHARD MANRIQUEZ V. JOEL ENSLEY
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: August 30, 2022

The police officers at first complied with the requirement that a warrant includes a description of the "place to be searched," by obtaining a warrant that listed a motel room suspected of being a hub for drug trafficking. The officers then decided to search the suspect's home as well and asked the judge over the phone to expand the scope of the warrant to include the home. The judge agreed, but the officers did not physically amend the warrant.

The Ninth Circuit reversed the district court's denial of qualified immunity. The panel agreed with the district court that the officers violated the Fourth Amendment because the warrant was facially defective. While a judge had orally approved the search of the home, the text of the Fourth Amendment still requires the warrant to specify the place to be searched. But the panel held that the district court erred in denying the officers qualified immunity because it was not clearly established at the time that the search would violate the Fourth Amendment. An officer could have believed—based on the lack of direct case law at the time—that he or she could search the home because the court had orally approved the search, even if the officer failed to make that change on the warrant.

Monteria Najuda Robinson v. William Sauls, et al
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: August 30, 2022

This case arises out of the shooting death of Plaintiff's son. It required the Eleventh Circuit to decide whether video evidence creates a genuine dispute of material fact concerning whether law enforcement officers used excessive force while trying to arrest Plaintiff's son.

Plaintiff filed claims under Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics, 403 U.S. 388 (1971), against Officers Heinze, Hutchens, and Doyle, alleging that they violated her son's Fourth Amendment rights by using excessive force in attempting to arrest him. The three Task Force officers sought summary judgment on the Bivens claims. They argued that they were entitled to qualified immunity because they used a reasonable level of force under the circumstances

The Eleventh Circuit held that the district court correctly granted summary judgment to Officer Hutchens because he was entitled to qualified immunity. The district court also correctly determined that Officers Doyle and Heinze were entitled to qualified immunity for their actions before the flashbang detonated. Accordingly, the court affirmed those portions of the district court's order. The district court erred, however, by granting qualified immunity to Officers Doyle and Heinze for their actions after the flashbang exploded. The court therefore reversed the district court's order insofar as it granted them summary judgment on Plaintiff's claim that they employed excessive force after the flashbang detonated. The court remanded for further proceedings consistent.

9 SEP 2022 CASES

USA v. Fernandez
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: September 7, 2022

A grand jury indicted Defendant for being an unlawful user of a controlled substance in possession of a firearm. Defendant moved to suppress the statements he made to the police. The district court granted Defendant's motion to suppress in part and denied it in part. At a bench trial, the district court found Defendant guilty and later sentenced him to a within-guidelines term of 10 months of imprisonment and three years of supervised release.

The Fifth Circuit affirmed. The court explained that here, the record does not show that the officers confronted Defendant with his prewarning statements to deliberately circumvent Miranda. Instead, they "merely responded to evidence" that they acquired while investigating Defendant's claim that he was being chased. Further, Defendant does not challenge the voluntariness of his pre-arrest statements, nor does he argue that his post-warning statements were involuntary. At oral argument, however, he argued for the first time that he could not have knowingly and voluntarily waived his Miranda rights because he was "delusional." But Defendant conceded at oral argument that voluntariness was not the "thrust" of his brief before the district court. Generally, arguments not raised before the district court are waived and will not be considered on appeal. That applies where, as here, a party "fail[s] to raise [an argument] in its opening brief. Thus, any argument concerning voluntariness is waived.

USA V. SERGIO GUERRERO
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: September 2, 2022

After the district court denied his motion to suppress, Defendant pled guilty to smuggling ammunition in violation of 18 U.S.C. Section 554(a). Defendant timely appealed the denial of his motion to suppress. This appeal challenges that denial. The Ninth Circuit affirmed the district court's denial of Defendant's motion to suppress because of the consistent conclusions of Judge Gould and Judge Bea, which represent a majority of the panel, even though the reasoning of Judge Gould and Judge Bea in their separate concurrences is different.

The Ninth Circuit noted that one exception to the Fourth Amendment's prohibition of searches and seizures conducted without prior approval by judge or magistrate is a Terry stop, which allows an officer to briefly detain an individual when the officer has a reasonable articulable suspicion that an individual is engaged in a crime, during which stop an officer may also conduct a limited protective frisk if the officer has reason to believe the individual has a weapon. The panel noted that another exception is when an officer has probable cause to arrest an individual.

State v. Patrick M.
Court: Connecticut Supreme Court
Opinion Date: September 6, 2022

The Supreme Court reversed Defendant's conviction of murder and criminal possession of a firearm in connection with the death of his wife, holding that the prosecutor improperly commented on Defendant's invocation of his right to remain silent following his arrest and advisement of rights pursuant to Miranda v. Arizona, 384 U.S. 436, 384 U.S. 436 (1966).

On appeal, Defendant argued that the evidence was insufficient to establish his identity as the perpetrator of the crimes of conviction and that the prosecutor improperly commented on his post-Miranda silence. The Supreme Court reversed his convictions, holding (1) the evidence was sufficient to support the conviction; but (2) the prosecutor's remarks impermissibly used Defendant's post-Miranda silence against him, in violation of Doyle v. Ohio, 426 U.S. 610 (1976), rendering the trial "fundamentally unfair," and the error was not harmless,

State v. Lovell
Court: Maine Supreme Judicial Court
Opinion Date: September 8, 2022

The Supreme Judicial Court affirmed the judgment of conviction entered in the trial court upon his conditional guilty plea to drug-related offenses and endangering the welfare of a child, holding that the trial court did not err when it denied Defendant's motion to suppress.

Based on evidence discovered during the stop of a Honda Civic the grand jury indicted Defendant on the four counts for which he was later convicted. Defendant moved to suppress the evidence obtained during the stop, arguing that the police officer lacked a clearly articulated and objectively reasonable suspicion to justify the seizure. The trial court denied the motion to suppress, and Defendant entered conditional guilty pleas on all counts. The Supreme Judicial Court affirmed, holding that the vehicle stop was constitutionally permissible, and therefore, the trial court did not err in denying Defendant's motion to suppress.

Haymon and Pernell v. Mississippi
Court: Supreme Court of Mississippi
Opinion Date: September 1, 2022

Crystal Pernell and Tajarvis Haymon were convicted of two counts of armed robbery (Counts I and II), kidnapping (Count III) and aggravated assault (Count IV). On appeal, Pernell challenged the weight and sufficiency of the evidence used to support her conviction and argued that her request for a lesser offense jury instruction for simple assault should have been granted. Haymon argued that Danzel Williams’s (Danzel) identification of him in a photo lineup was impermissibly suggestive. Finding no error, the Mississippi Supreme Court affirmed.

Craig v. Martin
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: September 8, 2022

This case concerns the denial of qualified immunity to a police officer. Plaintiff and four of her children sued the officer asserting claims for unlawful arrest, bystander injury, and excessive use of force. The district court denied Defendant's motion for summary judgment on the excessive force claims on qualified immunity grounds. This interlocutory appeal followed.

The Fifth Circuit reversed the district court's denial of qualified immunity on the excessive force claims and render judgment in Defendant's favor as to those claims. The court explained that Defendant's conduct, in this case, was not objectively unreasonable and did not violate any of the Plaintiffs' Fourth Amendment rights. On this basis alone, Defendant is entitled to qualified immunity.

Further, the court wrote, that even assuming Plaintiffs could show that Defendant committed a constitutional violation, Defendant is nonetheless entitled to qualified immunity under the second prong of the qualified immunity analysis. Defendant's use of force, in this case, is also far less severe than the use of force in any of the cases Plaintiffs have identified. Although Plaintiffs need not point to a factually identical case to demonstrate that the law is clearly established, they nonetheless must provide some controlling precedent that "squarely governs the specific facts at issue. Here, Plaintiffs have not provided such precedent here and thus have failed to show that the law clearly established that Defendant's particular conduct was unlawful at the time of the incident.

Sweetin v. City of Texas City
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: September 2, 2022

Texas City's "permit officer" handles applications for ambulance permits for the City. One day, he spotted an ambulance without a permit. He knew he was powerless to issue citations to the drivers himself, so he summoned someone who could (the Fire Marshal). While waiting for the Fire Marshal to show up, the officer repeatedly told the ambulance drivers that they were detained, that they could not leave, and that they must stay. He did not have that power, but he did it anyway. The Fire Marshal showed up about thirty minutes later and issued them citations. The ambulance drivers sued, claiming this violated their Fourth Amendment rights.

The Fifth Circuit affirmed in part finding that because the officer acted beyond the scope of his discretionary duties as "permit officer," he is not entitled to qualified immunity. But the claim against the City fails because the officer did not have final policymaking authority. The court explained that the officer was not acting within the scope of his discretionary authority because state law does not give a permit officer the authority to conduct stops of any kind.

However, the court wrote, that the City cannot be held liable under 42 U.S.C. Section 1983 because Wylie does not have any final policymaking authority. Section 1983 allows suits against persons for violating federal rights. That term includes municipalities like Texas City. But a city cannot be held liable under Section 1983 on a respondeat superior theory of liability. Rather, a city can be liable only if one of its policies or customs caused the injury.

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USA v. Rose
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: September 9, 2022

The government challenged the district court's partial grant of Defendant's motion to suppress. The Fifth Circuit reversed, concluding that the evidence at issue was obtained following a constitutionally valid investigatory stop and thus did not warrant suppression on that account.

The court explained that all three of the Navarette factors favor the government. The tipster identified himself as an eyewitness to the events in the liquor store parking lot; he professed to describe those events as they unfolded, and the setting the officers found on their arrival five minutes later tended to support that timeline; and he used the 911 emergency system, which, as reflected by the record, both traced his number and recorded his call. Accordingly, to the extent that the factor concerning the informant's reliability tends in any direction, it leans the government's way. Second, the court wrote, that the information provided by the informant, despite his requested anonymity, was highly specific. Third, although some discrepancies were encountered, the information conveyed by the informant was mostly consistent with what the officers discovered when they arrived on the scene. Thus, having determined that all the factors weigh in favor of the government, the court concluded that, even when viewing the evidence in the light most favorable to Defendant, no reasonable view of it supports the district court's ruling.

Mwangangi v. Nielsen
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: September 15, 2022

Mwangangi provided roadside assistance around Indianapolis. He set out to jumpstart a car in his used Crown Victoria and activated clear strobe lights on the outside of his car. A driver that Mwangangi passed on the highway twice called 911 to report him as a police impersonator. Shortly after Mwangangi helped the stranded motorist, he found himself at a gas station surrounded by seven police officers. Mwangangi was ordered from his car, handcuffed, patted down twice, and arrested for police impersonation—charges that were not dropped until two years later, when everyone realized he had been telling the truth about his roadside assistance job.

The district court entered summary judgment for Mwangangi on many of his Fourth Amendment-based claims, denying some of the police officers the protection of qualified immunity. The court found for the city and officers on other claims. The Seventh Circuit reversed in part. Officer Nielsen had a "particularized and objective basis" to justify an investigatory Terry stop in the gas station and had the authority to ask Mwangangi to step out of his car to answer questions. Because of the context of the potential crime and surrounding circumstances, Officer Root's decision to pat Mwangangi down did not amount to a constitutional violation. Officer Noland waived any challenge to the determination that his second pat down violated Mwangangi's Fourth Amendment rights. The court stated that claims against officers for "bystander liability" required further factual development.

United States v. Pace
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: September 9, 2022

Officer Crowder observed an SUV outside a closed business. Pace exited that vehicle. sta5int that he was lost and needed directions to Johns's house. Crowder knew of Johns's past methamphetamine use and had received complaints from Johns's neighbors about traffic at her home. Crowder activated his emergency lights, and parked directly behind Pace's SUV; nothing obstructed Pace's ability to drive away. Shining his flashlight inside the SUV, Crowder did not see weapons or contraband but did see multiple musical instrument cases. Pace walked around his SUV and attempted to get one of the instruments. Pace's behavior struck Crowder as odd and overly friendly, yet nervous. Dispatch confirmed that Pace's license was clear and that he had no outstanding warrants but he had a history of drug possession including methamphetamine, narcotic instruments, and drug paraphernalia. Pace denied that he had weapons but declined to consent to a vehicle search. Crowder explained that Pace was not under arrest, but that he was going to place him in restraints during a canine sniff. After the dog indicated the presence of drugs in the SUV. Crowder searched the SUV and found methamphetamine and cannabis. Pace unsuccessfully moved to suppress the evidence.

The Seventh Circuit affirmed that ruling, a 60-month sentence, and a finding that Pace was not eligible for relief from the five-year statutory minimum sentence under the "safety valve" provision of 18 U.S.C. 3553(f). The search was based on reasonable suspicion.

CASES 23 September 2022

USA v. Walker
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: September 21, 2022

Defendant pled guilty to one count of being a felon in possession of a firearm. His plea reserved the right to appeal the district court's denial of his motion to suppress. He challenges the district court's determination that a firearm and cell phone discovered in his car, as well as statements he made to officers, were admissible.

The Fifth Circuit affirmed. The court explained that here, the officers relied on their computer records that listed Defendant's warrants. They did not have the complaints underlying the warrants or other information that might have revealed possible invalidity. Without "deliberate, reckless, or grossly negligent" conduct on the part of the police, excluding evidence has little, if any, deterrent value and is therefore unjustified. In sum, the court wrote, there is nothing in the record that would show that the officers' reliance on the computer records was not objectively reasonable. The district court did not err in applying the good faith exception, and the officers were justified in their reliance on the traffic warrants as a basis for arrest.

Further, the only significant statement was Defendant's answer to being asked if "there is anything [the officer] should know about" in the vehicle. Defendant responded that there is "something you might take me to jail for if I tell you," and he then told the officer about a pistol in the console. The statement is not independently significant. Accordingly, the court rejected any prejudicial error from the admission of the statement.

United States v. Philip Maccani
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: September 20, 2022

Defendant pleaded guilty to one count of possession of an unregistered National Firearms Act firearm. On appeal, Defendant argued that the district court erred in denying his motion to suppress evidence obtained from the trailer he occupied. He contends that the warrant was invalid because it lacked probable cause and failed to describe with particularity the items that police intended to seize.

The Eighth Circuit affirmed. The court reasoned that the description of items found in the warrant meets the pragmatic standards imposed by the Fourth Amendment. Further, Defendant has not shown that the officers' reliance on the warrant was objectively unreasonable. The warrant application affidavit passes muster. It was neither deceptive nor deficient. The district court did not err in admitting evidence found pursuant to the warrant.

Lewis, et al. v. City of Edmond, et al.
Court: US Court of Appeals for the Tenth Circuit
Opinion Date: September 16, 2022

Officer Denton Scherman of the Edmond, Oklahoma Police Department shot an unarmed assailant, Isaiah Lewis, four times. Lewis died as a result of his wounds. Plaintiffs, the representatives of Lewis's estate, brought this civil rights action under 42 U.S.C. § 1983 alleging Defendant Scherman used excessive force against the decedent in violation of the Fourth Amendment. Scherman appealed the district court's decision denying his motion for summary judgment based on qualified immunity. After review, the Tenth Circuit reversed, finding its jurisdiction was limited because at this intermediate stage of the litigation, and controlling precedent generally precluded the Court from reviewing a district court's factual findings if those findings have (as they did here) at least minimal support in the record. In such case, "[t]hose facts explicitly found by the district court, combined with those that it likely assumed, . . . form the universe of facts upon which we base our legal review of whether [a] defendant[] [is] entitled to qualified immunity." The Tenth Circuit's review was de novo; Defendant Scherman did not dispute the facts recited by the district court, when viewed in a light most favorable to Plaintiffs, sufficed to show a violation of the decedent's Fourth Amendment right to be free from excessive force. What Scherman did dispute was the district court's holding that the law was clearly established at the time of the incident such "that every reasonable [officer] would have understood" Scherman's actions, given the facts knowable to him, violated decedent's constitutional right. The Tenth Circuit concluded Plaintiffs failed to meet their burden of showing the law was clearly established such "that every reasonable [officer] would have understood" that the force Scherman used against Lewis was excessive under the facts presented at trial. The judgment of the district court denying Defendant Scherman qualified immunity is reversed and this case is remanded for entry of judgment in his favor.

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United States v. Mulkern
Court: US Court of Appeals for the First Circuit
Opinion Date: September 27, 2022

The First Circuit affirmed Defendant's conviction for drug-trafficking and firearms charges, holding that the district court did not err in denying Defendant's motion to suppress or in finding Defendant eligible for a mandatory minimum sentence under the Armed Career Criminal Act (ACCA), 18 U.S.C. 924 (e).

Reports of a parking-lot confrontation following a road-rage incident led law enforcement to stop Defendant in his vehicle the next day. The ensuing searches of Defendant's car and motor home led to the discovery of evidence supporting drug-trafficking and firearms charges. Defendant pleaded guilty. The First Circuit affirmed Defendant's conviction and sentence, holding (1) there was no error in the district court's denial of Defendant's motion to suppress; and (2) Defendant's sentence under the ACCA was lawfully imposed.

USA v. Malagerio
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: September 23, 2022

Appellant, a Canadian citizen not legally present in the United States, was arrested and charged with various firearms offenses following the execution of an administrative warrant at his trailer. Appellant unsuccessfully litigated a motion to suppress, claiming that agents exceeded the scope of the administrative warrant by arresting him not in a public place -- in the threshold of his trailer. The district court concluded that Appellant was not seized until after he had exited the trailer and that he was not located on any curtilage of the trailer.

The Fifth Circuit affirmed, finding that the district court's resolution of Appellant's motion to suppress was not clearly erroneous. “[A] person standing in the doorway of a house is ‘in a “public” place,’ and hence subject to arrest without a warrant permitting entry of the home.” Illinois v. McArthur, 531 U.S. 326, 335 (2001). The Fifth Circuit also held that the district court did not err in finding that Appellant consented to the search of his trailer following his arrest.

USA v. Igor Grushko, et al.
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: September 23, 2022

Defendants appealed their convictions and the ensuing sentences on multiple counts arising out of their conspiracy to commit access device fraud. On appeal they argued that: (1) law enforcement agents violated their Fourth Amendment rights by illegally entering their house after arresting them; (2) the district court impermissibly lowered the government's burden of proof during voir dire; (3) the district court erred in applying two-level enhancements to their base offense levels for possessing device-making equipment; (4) the district court erred in applying two-level aggravating-role enhancements; (5) their total sentences were procedurally unreasonable; and, finally, (6) their sentences, overall, were substantively unreasonable.

The Eleventh Circuit affirmed. The court the record demonstrates Defendants' deep involvement in the planning and organization of the fraudulent scheme and their vital role in the commission of the offenses, as well as their involvement in decision-making and recruitment, all of which was far more extensive than the role played by the co-conspirator. To the extent Defendants argue that they could not both receive aggravating-role enhancements since they were equally involved, a defendant eligible for an aggravating-role enhancement "does not have to be the sole leader of the conspiracy for the enhancement to apply." The district court did not clearly err in applying the aggravating-role enhancements to the brothers' offense levels. Further, the court wrote that the district court imposed an otherwise substantively reasonable total sentence for each defendant.

Colorado v. Deaner
Court: Colorado Supreme Court
Opinion Date: September 26, 2022

Eduardo Barrera was driving a Jeep SUV eastbound on I-70 with Isaiah Deaner in the passenger's seat. Trooper Bollen, an officer patrolling the highway, saw the SUV pass by and noted that it was an apparent rental vehicle with Arizona plates. Trooper Bollen testified that he was suspicious because I-70 is a major drug corridor where traffickers frequently use rental vehicles to smuggle contraband, bulk narcotics, people, weapons, and cash. He further testified that he specifically noticed the Arizona plates because Arizona borders Mexico, a main source of bulk narcotics in this part of the country. In this interlocutory appeal of a suppression order, the Colorado Supreme Court considered whether a police officer had reasonable suspicion to conduct a traffic stop. Under the totality of the circumstances here, the Court concluded the officer lacked such reasonable suspicion. The Court therefore affirmed the trial court's order suppressing the evidence obtained from the search, and remanded the case for further proceedings.

State v. Barclift
Court: Maine Supreme Judicial Court
Opinion Date: September 27, 2022

The Supreme Court vacated the judgment of the trial court convicting Defendant on two charges of aggravated furnishing of cocaine, which were merged for sentencing, holding that the trial court erred when it denied Defendant's motion to suppress, and the error was not harmless.

At issue was the denial of Defendant's motion to suppress evidence obtained when police officers stopped him after receiving an anonymous tip and searched his belongings outside a bus station. The trial court concluded that the officers had an objectively reasonable, articulable suspicion that Defendant had been engaged in criminal activity when they stopped they stopped him. The Supreme Court vacated the judgment below, holding that the evidence regarding the anonymous tip and the police's efforts to confirm its reliable failed to establish an objectively reasonable, articulable suspicion sufficient to justify the stop.

State v. Mefford
Court: Montana Supreme Court
Opinion Date: September 27, 2022

The Supreme Court reversed Defendant's conviction of sexual abuse of children, holding that the trial court erred by denying Defendant's motion to suppress, and the error was not harmless.

On appeal, Defendant challenged the denial of his motion to suppress the evidence discovered by his parole officer when the officer conducted a warrantless search of Defendant's phone. Defendant argued that the search was unreasonable because it exceeded the scope of his consent and because his parole officer lacked a valid exception to the warrant requirement. The Supreme Court agreed and reversed Defendant's conviction, holding that the probation officer's warrantless search of Defendant's digital photo gallery was not a valid probation search under the Montana Constitution, and the contraband discovered as a consequence of the unlawful search should have been suppressed under the exclusionary rule.

State v. McCall
Court: Supreme Court of Nevada
Opinion Date: September 22, 2022

The Supreme Court affirmed in part and vacated in part the order of the district court granting Defendant's motion to suppress evidence found as a result of and during a protective sweep, holding that a protective sweep does not require a prior arrest.

In granting Defendant's motion to dismiss, the district court determined that the officers did not have an appropriate basis for the protective sweep and that the sweep was per se unconstitutional because it was not preceded by an arrest. The district court concluded that the search was not a lawful protective sweep because it was not based on articulable facts supporting a reasonable belief that the premises harbored a dangerous individual. The Supreme Court affirmed in part and vacated in part, holding that because the district court did not indicate the specific evidence that was improperly seized as a result of the protective sweep or as its fruit, remand was required for clarification of the evidence that fell within the scope of the suppression order and which items were properly seized by law enforcement.

South Carolina v. Frasier
Court: South Carolina Supreme Court
Opinion Date: September 28, 2022

Petitioner Michael Frasier was convicted of trafficking cocaine in excess of 100 grams after police discovered cocaine during a traffic stop for an inoperable brake light. The questions this appeal presented for the the South Carolina Supreme Court's review centered on whether police had reasonable suspicion to prolong the traffic encounter and whether Frasier consented to the search. The trial court concluded the officer had reasonable suspicion and Frasier consented, and the court of appeals affirmed. In deciding these two issues, the Supreme Court clarified the scope of its standard of review in the Fourth Amendment context. Ultimately, the Court reversed the court of appeals because law enforcement lacked reasonable suspicion to prolong the traffic stop, and Frasier did not consent to the search.

Charron v. County of York
Court: US Court of Appeals for the First Circuit
Opinion Date: September 27, 2022

The First Circuit affirmed the judgment of the district court granting summary judgment in favor of the County of York and various County officials in this case alleging violation of Plaintiff's civil right, false arrest, false imprisonment, malicious prosecution, and defamation per se, holding that there was no error.

Specifically, the First Circuit held (1) no reasonable jury could find facts that would lead to a determination that the officers lacked probable cause to arrest Plaintiff, and Plaintiff likewise developed no argument that his false imprisonment claims could survive a finding that probable cause existed to arrest him; (2) Plaintiff failed to raise a triable issue as to his federal and state malicious prosecution claims; (3) none of Plaintiff's constitutional claims against the officers could survive summary judgment; and (4) the district court properly rejected Plaintiff's defamation claims.

McKinney v. City of Middletown
Court: US Court of Appeals for the Second Circuit
Opinion Date: September 26, 2022

Plaintiff appeals the district court's judgment granting Defendants' motion for summary judgment on the ground of qualified immunity. Plaintiff argued that Defendant police officers violated clearly established law by purportedly using a police canine for a purpose for which it was not trained, failing to give Plaintiff a warning before releasing the canine, and allowing the canine to continue biting Plaintiff after he ceased actively resisting, subjecting Plaintiff to a dog bite that may have lasted for two minutes, and otherwise improperly escalating the use of force. Plaintiff further argued that the district court erred by failing to construe disputed facts and draw reasonable inferences in his favor.

The Second Circuit affirmed. The court held that Plaintiff has not shown that Defendant officers violated clearly established law of which a reasonable person would have known and conclude that the defendant officers are entitled to qualified immunity. The court also held that the district court did not commit reversible error in evaluating Defendants' summary judgment motion.

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USA v. Cordova-Espinoza
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: September 30, 2022

Defendant appealed the district court's denial of a motion to suppress evidence obtained by federal agents after a hotel manager opened the door to a room containing Defendant. Defendant moved to suppress the fruits of the hotel-room search, arguing that the hotel manager was acting as a Government agent and that the Government lacked a warrant that authorized the search. The district court held a suppression hearing and denied the motion. Defendant thereafter pleaded guilty to illegal reentry under 8 U.S.C. Section 1326, reserving his right to challenge the district court's denial of his motion to suppress.

The Fifth Circuit affirmed. The court held that the district court properly found that this search was a private search. As private searches do not implicate the Fourth Amendment, the district court correctly denied Defendant's motion to suppress evidence obtained from the search in question.

The court explained that the district court correctly found that the Government did not affirmatively encourage the hotel manager to open the door and thus did not acquiesce to the manager's search. These findings are supported by the record and, given that the district court was in the best position to evaluate the credibility and context of witness statements, are not clearly erroneous.

USA V. CARSTEN ROSENOW
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: October 3, 2022

The Ninth Circuit amended its Opinion filed April 27, 2022, affirming a conviction and sentence on one count of attempted sexual exploitation of a child, and one count of possession of sexually explicit images of children, in a case in which Defendant was arrested returning from the Philippines where he engaged in sex tourism involving minors.

Defendant argued that the evidence seized from his electrical devices upon his arrest should have been suppressed because Yahoo and Facebook were acting as government agents when they searched his online accounts. The panel rejected Defendant's arguments (1) that two federal statutes—the Stored Communications Act and the Protect Our Children Act—transformed the ESPs' searches into governmental action, and (2) that the government was sufficiently involved in the ESPs' searches of Defendant's accounts to trigger Fourth Amendment protection.

The panel declined to reach the question of whether the preservation requests implicate the Fourth Amendment because even assuming that they do, there is no basis for suppression given that the record establishes that the ESPs' preservation of the defendant's digital data had no effect on the government's ability to obtain the evidence that convicted him.

The panel concluded that the affidavit—which described Yahoo's internal investigation and the resulting findings, as well as the information Facebook provided to the National Center for Missing and Exploited Children after searching the defendant's accounts—established a fair probability that child pornography

would be found on the defendant's electronic devices. The panel wrote that there was no impermissible double counting here, as the enhancements were premised on separate exploitative acts.

USA v. Michael Anthony Conage
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: September 30, 2022

Defendant argued that the district court improperly considered as an Armed Career Criminal Act ("ACCA") predicate offense his prior conviction for drug trafficking under Florida Statutes Section 893.135(1)(b)1. Defendant contended that the particular Florida statute did not constitute a serious drug offense under the ACCA because the elements of that statute did not satisfy the requirements of the ACCA.

The Eleventh Circuit certified the question raised by Defendant's challenge to the Florida Supreme Court. The Florida Supreme Court answered the court's certified question, holding that, for purposes of Florida's drug trafficking statute, "a completed purchase requires proof that the defendant both (1) gave consideration for and (2) obtained control of a trafficking quantity of illegal drugs," and further that "the requisite control [consists] of the same range of conduct that qualifies as constructive possession under federal law." In light of this response, the Eleventh Circuit affirmed Defendant's conviction and sentence.

Idaho v. Vivian
Court: Idaho Supreme Court - Criminal
Opinion Date: October 4, 2022

On April 24, 2019, Deputy Brott stopped defendant-appellant Arthur Vivian's car because Vivian's brake lights were not working. Brott recorded the stop using a body camera. Vivian informed Brott that his license had been suspended and Brott began investigating the reason for Vivian's suspended license. After five minutes and forty seconds of interaction with Vivian, Brott returned to his vehicle to run Vivian's license. Brott talked to Officer Short, who had recently arrived at the scene. Short advised Brott that there was a possibility there could be narcotics in Vivian's vehicle. Brott called for a drug detecting K-9 unit nine minutes into the stop. Brott exited his patrol car with the completed citation and Vivian's license at sixteen minutes and forty-six seconds into the stop. Deputy Hickam and a drug detecting K-9 arrived eighteen minutes and thirty-seven seconds into the stop. At nineteen minutes and twenty-nine seconds Brott approached Vivian's vehicle, asked Vivian to exit the vehicle and requested to pat him down. Brott issued the suspended license citation at twenty minutes and forty seconds. During the time Brott explained the citation to Vivian, the drug K-9 alerted to a controlled substance in the vehicle. A subsequent search discovered a bag containing methamphetamine. Vivian appealed the district court's denial of his motion to suppress evidence obtained following his traffic stop, arguing the stop was unlawfully extended, and statements made before and after the delay were gathered in violation of his Fourth Amendment rights. The State contended that evidence of the drugs would have been inevitably discovered, and thus statements made relating to those drugs were admissible under the same doctrine. The Idaho Supreme Court rejected that argument, finding verbal statements were different than physical evidence "because a defendant could choose, if given time for reflection, not to make the

statements or to answer differently." The Court held the inevitable discovery exception did not apply to statements that would otherwise be excluded as “fruit of the poisonous tree.” The district court’s decision that Vivian’s post-Miranda statements were admissible was reversed, Vivian’s judgment of conviction was vacated, and the case was remanded for further proceedings.

USE OF FORCE

Crane v. City of Arlington
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: October 4, 2022

T.C.’s estate and the passengers of T.C.’s car sued an Arlington police officer and the City of Arlington for the use of excessive force during a traffic stop in violation of the Fourth Amendment. The district court dismissed the passengers’ claims, finding that they could not bring claims as bystanders, and granted summary judgment to the police officer and the City after determining that the police officer was entitled to qualified immunity.

The Fifth Circuit affirmed the dismissal of the passengers’ claims and vacated the grant of summary judgment on T.C.’s claims and remanded it to the district court for further proceedings consistent with this opinion. The court reasoned that here, under T.C’s account, he was shot while he was held in a chokehold in a parked car while evading arrest for several confirmed misdemeanors and an unconfirmed felony parole violation. The police officer was on notice that the use of deadly force is objectively reasonable only where an officer has “a reasonable belief that he or the public was in imminent danger . . . . of death or serious bodily harm.” Again, the officer’s alleged belief that T.C. had a gun was not reasonable, nor was his belief that a parked car posed a danger to himself, the passengers, or the other officers standing on the side of the car. Therefore, the district court erred in granting summary judgment to the officer and perforce dismissing the City. However, because there was no unreasonable use of force against the passengers, no constitutional injury occurred.

SEE ALSO

Crane v. City of Arlington (TWO CASE SUMMARIES IN ORIGINAL JUSTIA EMAIL)

Court: US Court of Appeals for the Fifth Circuit
Opinion Date: September 30, 2022

Tavis Crane’s estate and the passengers of Crane’s car sued Arlington Police Officer (Officer) and the City of Arlington for the use of excessive force during a traffic stop in violation of the Fourth Amendment. The district court dismissed the passengers’ claims, finding that they could not bring claims as bystanders, and granted summary judgment to the Officer and the City after determining that the Officer was entitled to qualified immunity.

The Fifth Circuit affirmed the dismissal of the passengers’ claims and vacate the grant of summary judgment as to Crane’s claims and dismiss the appeals of those claims for want of jurisdiction. The court explained that there is no express requirement for a physical injury in an excessive force claim,80 but even if the passengers stated a plausible claim for psychological injuries, the officer is entitled to

qualified immunity. “Fourth Amendment jurisprudence has long recognized that the right to make an arrest or investigatory stop necessarily carries with it the right to use some degree of physical coercion or threat thereof to effect it.” Here, there was no unreasonable use of force against the passengers, so no constitutional injury occurred.

Estate of Eric Jack Logan v. City of South Bend
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: October 3, 2022

During a 3:30 am encounter, while South Bend Officer O’Neill was investigating reports that someone was stealing from parked cars, Logan picked up a hunting knife and approached O’Neill. The officer told Logan to stand still and put down the weapon. Logan held the knife up, came within three steps of O’Neill, and threw the knife, hitting O’Neill in the arm. O’Neill fired his gun, hitting Logan in the torso. O’Neill called for an ambulance, but Logan died at a hospital.

The district court rejected Logan's estate’s suit under 42 U.S.C. 1983 on summary judgment. The Seventh Circuit affirmed, rejecting arguments that one of O’Neill’s multiple descriptions of the events implies that Logan threw the knife a second or so before O’Neill pulled the trigger and that O’Neill was safe (Logan was no longer armed) or that a jury might doubt O’Neill’s version of events because he did not activate his body camera and has been convicted of ghost employment. The physical evidence, such as the bullet track, is consistent with O’Neill’s account. Disbelief of the only witness is not proof that the opposite of the witness’s statements is true. “The fact that many shootings by police eliminate an important source of evidence is troubling, but litigation remains tied to the record," which compels a decision for O’Neill.

Demetrius Rashard Luke v. Jameel H. Gulley
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: October 3, 2022

In Plaintiff’s malicious prosecution claim against Defendant, a detective with the Albany Police Department, the Eleventh Circuit previously vacated an order dismissing Plaintiff’s complaint for failure to allege a favorable termination on a charge of felony murder. Plaintiff appealed the summary judgment in favor of Defendant based on qualified immunity. The district court ruled that, even though Defendant’s affidavit was insufficient to provide probable cause to support the warrant to arrest Plaintiff, the detective had at least arguable probable cause to arrest Plaintiff.

The Eleventh Circuit again vacated the order granting summary judgment in the detective’s favor and remanded. The court concluded that because Plaintiff established that the legal process underlying his seizure was constitutionally infirm and it would not have been otherwise justified, the detective does not enjoy immunity from suit. The court explained that under longstanding Supreme Court precedent, an officer must provide particular information to support an arrest warrant. Here, no “reasonably competent officer” could have concluded that a warrant should issue based on the glaring deficiencies in the affidavit. As a result, the unlawfulness of the detective’s conduct was clearly established when he acted and he was not entitled to qualified immunity.

CASES 14OCT2022

Charette v. State
Court: Minnesota Supreme Court
Opinion Date: October 5, 2022

The Supreme Court affirmed the denial of Appellant's petition for postconviction relief arguing that the district court committed reversible error by denying his pretrial motion to suppress his statements to law enforcement officers, holding that the district court did not abuse its discretion by denying Appellant's request for postconviction relief.

Appellant was convicted of second-degree murder and first-degree arson and sentenced to a total of 528 months in prison. Appellant later filed for postconviction relief, asserting that the district court committed reversible error by denying his pretrial motion to suppress statements he made to law enforcement officers. The district court denied relief on the grounds that Appellant was not subjected to custodial interrogation at the time he made his statements. The court of appeals affirmed on different grounds. The Supreme Court affirmed on the grounds cited by the district court, holding that Defendant could not invoke his Fifth Amendment right to counsel because no custodial interrogation took place.

CASES 21OCT2022

Essence Welch v. Daniel Dempsey
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: October 20, 2022

Plaintiff sued police officer under 42 U.S.C. Section 1983 after the police officer deployed pepper spray in Plaintiff's face. The district court concluded that Plaintiff was engaged in protest activity protected by the First Amendment, and that there was sufficient evidence for a reasonable jury to find that the police officer used force against Plaintiff because she exercised her constitutional right to freedom of speech. Defendant appealed, and argued that he is entitled to qualified immunity from suit.

The Eighth Circuit affirmed finding that there is no reversible error. The court explained that the district court's determination that a reasonable jury could find that the police officer acted with retaliatory motive is a matter of evidence sufficiency that is not appealable at this juncture. The court further held that the police officer's argument based on "arguable probable cause" fails for other reasons as well. Probable cause is a constitutional standard under the Fourth does not argue that this case involves a search or seizure, and he does not explain why the asserted existence of "arguable probable cause" would be dispositive as a matter of law on a claim alleging retaliatory use of force in violation of the First Amendment.

CASES 28OCT2022

Roldan v. Stroud
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: October 25, 2022

Roldan was convicted of criminal sexual assault. Roldan, then 21, allegedly had sex with an intoxicated 16-year-old noncitizen. The Illinois Appellate Court later reversed the conviction, concluding that the state did not prove that Roldan knew the victim was too intoxicated to consent.

Drawing upon information he learned after trial, Roldan sued Cicero, Illinois police officers under 42 U.S.C. 1983, alleging that the officers failed to disclose an agreement to help the victim apply for an immigration benefit—a U visa—in exchange for her testimony. The officers moved to dismiss the complaint based on qualified immunity. The district court denied the motion on grounds that the Supreme Court's 1972 "Giglio" decision and related cases clearly established the officers' duty to disclose the agreement. The Seventh Circuit affirmed that immunity is inappropriate at this early stage but for a different reason. Qualified immunity hinges on a fact that Roldan did not flesh out in his complaint: whether the police officers informed the prosecution about the U-visa agreement with the victim. If the police did, they cannot be liable, for the ultimate disclosure obligation would have rested with the prosecutors.

State v. Garcia
Court: Florida Supreme Court
Opinion Date: October 27, 2022

The Supreme Court quashed the decision of the Fifth District Court of Appeal to grant a writ of certiorari in this case, holding that the district court did not have certiorari jurisdiction.

Defendant was charged with two offenses, after which the State obtained a search warrant to search Defendant's smartphone, which was passcode protected. The trial court granted the State's motion to compel Defendant to disclose the smartphone's passcode, overruling Defendant's objection that such compelled disclosure would violate his privilege against self-incrimination under the Fifth Amendment. The Fifth District granted Defendant's petition for a writ of certiorari contesting the order to compel. The Supreme Court quashed the decision below, holding that because the order before the district court did not cause Defendant irreparable harm the district court did not have certiorari jurisdiction.

CASES 4NOV2022

KURT MICHAELS V. RON DAVIS, ET AL
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: October 18, 2022

Petitioner argued that application of the Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA), 28 U.S.C. Section 2254(d), is unconstitutionally retroactive—i.e., that the relevant event to which AEDPA's legal consequences attached is the automatic appeal of his capital sentence in state court, which occurred before AEDPA's effective date.

In a per curiam opinion addressing all issues except penalty phase prejudice, and a separate majority opinion addressing penalty phase prejudice, the Ninth Circuit affirmed the district court's judgment denying Petitioner's habeas corpus petition challenging his California conviction and death sentence for murder.

The panel wrote that the California Supreme Court's conclusion on direct appeal that Michaels did not unambiguously invoke either his right to counsel or his right to silence with respect to all questioning is fully supported by the record. The California Supreme Court did recognize that Petitioner selectively invoked his right not to answer a specific question as protected by Miranda, but the California Supreme Court neither determined precisely what question Petitioner had declared off-limits nor whether the ensuing interrogation impermissibly violated Petitioner's invocation of his right to silence with regard to the subject covered by that question. The panel held that the California Supreme Court's decision to ignore a defendant's unambiguous and unequivocal selective invocation of his right to silence as to an area of inquiry during a custodial interrogation, requiring instead that the refusal be repeated in response to each question regarding the subject matter as to which the right was earlier invoked, was contrary to the law clearly established by Miranda and its progeny.

USA V. TONY SAELEE
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: October 11, 2022

Defendant was convicted of possession with intent to distribute ecstasy after Government officers discovered large quantities of illegal drugs in two packages falsely labeled as containing documents from a German law firm. Defendant unsuccessfully challenged the admissibility of the evidence in a pre-trial motion to suppress. The Ninth Circuit held that, even if the evidence was seized in violation of Defendant's constitutional rights, admission was justified under the independent source doctrine. The court also rejected Defendant's challenges to the sufficiency of the evidence.

State v. Vasconcellos
Court: Supreme Court of Hawaii
Opinion Date: November 2, 2022

The Supreme Court vacated in part the judgment of the intermediate court of appeals (ICA) affirming the district court's order granting Defendant's motion to suppress statements after finding that Defendant was subject to custodial interrogation without being given Miranda warnings, holding that the ICA erred in affirming the district court's suppression of Defendant's responses to medical rule-out questions.

Defendant was arrested and charged with operating a vehicle under the influence of an intoxicant and reckless driving. Defendant moved to suppress his answers to the medical rule-out questions, asserting that he was subject to custodial interrogation without being given Miranda warnings. The ICA affirmed. The Supreme Court vacated the judgment in part, holding (1) because the circumstances of Defendant's stop did not rise to that of a formal arrest Defendant was not in custody at the time he was asked the medical rule-out questions; and (2) therefore, Miranda warnings were not required.

State v. Sallis
Court: Iowa Supreme Court
Opinion Date: October 28, 2022

The Supreme Court upheld Defendant's convictions and sentences for several drug offenses and other misdemeanors, holding that the trial court did not err in denying Defendant's motion to suppress or in denying Defendant's retained attorney's requests to enter limited appearances.

On appeal, Defendant argued, among other things, that the district court erred in denying his motion to suppress because the arresting officer's recollection that Defendant had a driving status of "barred" as of several months before did not amount to a reasonable suspicion to justify a traffic stop. The Supreme Court affirmed, holding (1) while the officer's information about Defendant's driver's license status was several months old, it gave the officer reasonable suspicion to justify stopping Defendant's vehicle; and (2) if a constitutional right to have a retained attorney enter a limited appearance exists, it is subject to reasonable regulation by the district court, and the district court in this case did not abuse its discretion in denying Defendant's requested limited appearances.

Texas v. Hardin
Court: Texas Court of Criminal Appeals
Opinion Date: November 2, 2022

A police officer stopped Shiela Hardin for committing the traffic offense of “failing to maintain a single marked lane of traffic” when he observed the right rear tire of her rented U-Haul touch and drive on the striped line marking the right side of center lane. No circumstances made this movement unsafe. Based upon evidence collected pursuant to a search of Appellee’s vehicle after the traffic stop, the State charged Appellee with fraudulent possession of identifying information and forgery of a government instrument. Appellee moved to suppress evidence obtained after that warrantless traffic stop, and the trial court granted the motion. The court of appeals affirmed. The Texas Court of Criminal Appeals concurred with the lower courts and affirmed their judgments.

Byrd v. Cornelius
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: October 31, 2022

Appellants, two police officers, arrested Plaintiff, a student, at a school basketball game. The district court denied summary judgment based on qualified immunity, finding a dispute of material fact regarding the events surrounding Plaintiff's arrest. The officers filed an interlocutory appeal challenging the district court’s decision.

The Fifth Circuit dismissed for lack of jurisdiction. The issues raised by Plaintiff create factual disputes that meet the required threshold to overcome Appellant's qualified immunity defense at this stage.

Dean Christiansen v. Christopher Eral
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: October 31, 2022

An officer initiated a traffic stop of Plaintiff. Plaintiff felt the stop was pretextual, and fled. The officer initiated a PIT maneuver to end the pursuit, causing Plaintiff crashed his vehicle into a light pole and was injured. Plaintiff filed various civil rights claims against the police department. The district court granted summary judgment for the police department.

The Eighth Circuit affirmed, finding that the police department guidelines and policies concerning use of a PIT maneuver did not create rights that give rise to a Section 1983 action, and an officer's knowing violation of the guidelines and policies does not transform his actions into unconstitutional behavior.

Dwayne Furlow v. Jon Belmar
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: November 1, 2022

The St. Louis County Police Department ("SLCPD") in Missouri utilizes what it calls a "Wanteds System." This system allows officers to issue electronic notices ("Wanteds") authorizing any other officer to seize a person and take him into custody for questioning without any review by a neutral magistrate before issuance. The Wanteds may pend for days, months, or, in some cases, indefinitely.

The Eighth Circuit affirmed the district court's grant of qualified immunity to Officers and its dismissal of the municipal liability claim and Count Three. The court reversed the district court's grant of qualified immunity to the Detective. The court explained that the Wanteds System is broad enough to encompass situations that do not violate the Constitution, including those involving an arrest immediately after an officer has entered a wanted. The court wrote that Plaintiffs' facial challenge to the Wanteds System fails. Further, the court explained that the SLCPD Wanteds System, although fraught with the risk of violating the Constitution in certain circumstances and/or the danger of evidence being suppressed due to an invalid arrest, is not facially unconstitutional. The burden is then on Plaintiffs to show a persistent pattern of unconstitutional misconduct. The court concluded that the evidence in the record does not show a persistent pattern of unconstitutional arrests so pervasive that it can be said to constitute custom or usage with the force of law. Nor do the proposed classes describe a group of individuals who demonstrate that such a custom or practice exists. The district court did not err in dismissing the Plaintiffs' municipal liability claim.

Megan Green v. Cliff Sommer
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: November 1, 2022

Plaintiff attended protests in downtown St. Louis. While she was leaving, an armored St. Louis Metropolitan Police Department ("SLMPD") vehicle fired tear gas in her direction. Plaintiff sued the City of St. Louis, 12 police officers who were members of the SWAT team on duty that night, and several SLMPD officials for constitutional and state law violations. The district court denied a motion to dismiss based on qualified immunity for four Defendant officers specifically alleged to have been in the armored vehicle at the time of the incident. As to eight Defendant officers not specifically alleged to have been in the vehicle, the district court denied the motion to dismiss on the grounds that additional discovery was needed.

The Eighth Circuit reversed the denial of qualified immunity as to the eight Defendant officers for whom specific allegations were not made. The court affirmed as to the four defendant officers for whom specific allegations were made. The court explained that Plaintiff's allegation, and the district court's finding, that Plaintiff was not committing a crime when she was tear-gassed is enough to plausibly allege the tear-gassing was in retaliation for the First Amendment activity. Further, the complaint did not plausibly allege that the eight officers were personally involved in the violation of clearly established constitutional rights. Accordingly, the court reversed the district court's denial of the Officers' motion to dismiss.

ANDRE VERDUN, ET AL V. CITY OF SAN DIEGO, ET AL
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: October 26, 2022

Plaintiffs brought a putative class action under 42 U.S.C. Section 1983 alleging that tire chalking violated the Fourth Amendment. The Ninth Circuit affirmed the district court's summary judgment for Defendants and held that municipalities are not required to obtain warrants before chalking tires as part of enforcing time limits on city parking spots. The panel held that even assuming the temporary dusting of chalk on a tire constitutes a Fourth Amendment "search," it falls within the administrative search exception to the warrant requirement. Complementing a broader program of traffic control, tire chalking is reasonable in its scope and manner of execution. It is not used for general crime control purposes. And its intrusion on personal liberty is de minimis at most.

GLORIA JOHNSON, ET AL V. CITY OF GRANTS PASS
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: September 28, 2022

This case involves challenges to five provisions of the Grants Pass Municipal Code ("GPMC"). The provisions can be described as an "anti-sleeping" ordinance, two "anticamping" ordinances, a "park exclusion" ordinance, and a "park exclusion appeals" ordinance.

The Ninth Circuit affirmed in part and vacated in part the district court's summary judgment and its permanent injunction in favor of Plaintiffs; affirmed certification pursuant to Fed. R. Civ. P. 23(b)(2), of a class of "involuntary homeless" persons; and remanded in an action challenging municipal ordinances which, among other things, preclude homeless persons from using a blanket, a pillow, or cardboard box for protection from the elements while sleeping within the City's limits.

The panel stated that this court's decision in Martin v. City of Boise, 902 F.3d 1031 (9th Cir. 2018), which held that "the Eighth Amendment prohibits the imposition of criminal penalties for sitting, sleeping, or lying outside on public property for homeless individuals who cannot obtain shelter" served as the backdrop for this entire litigation. The panel held that there was abundant evidence in the record establishing that homeless persons were injured by the City's enforcement actions in the past and it was undisputed that enforcements have continued. The panel further held that the relief sought by plaintiffs, enjoining enforcement of a few municipal ordinances aimed at involuntary homeless persons, was redressable within the limits of Article III. The panel held that based on the record in this case, the district court did not err by finding plaintiffs satisfied the requirements of Fed. R. Civ. P. 23(a) such that a class could be certified under Rule 23(b)(2).

SUSAN PECK, ET AL V. ANTHONY MONTOYA, ET AL
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: October 18, 2022

Five deputies responded to a 911 call reporting that P.M. was acting erratically and threatening someone with a firearm. The deputies asserted that P.M. ignored their warnings, picked up a gun, and began raising it toward them. Two of the deputies shot and killed P.M. His wife claimed that eyewitness testimony and ballistics analysis proved that P.M. was not moving toward the gun, never touched the gun, and did not pose an immediate threat to himself or others. Plaintiff brought this action asserting that the deputies violated P.M.'s Fourth Amendment rights and her own Fourteenth Amendment right to a familial relationship.

The Ninth Circuit affirmed in part and reversed in part the district court's denial of Defendants' motion for summary judgment. On the excessive-force claim, the panel concluded that the deputies who shot P.M. were not entitled to qualified immunity. The panel concluded a jury could conclude that Defendants fired at an unarmed man who, although in the presence of a gun, never picked it up and in fact was moving away from it when he was shot. Officers may not kill suspects simply because they are behaving erratically, nor may they kill suspects who do not pose an immediate threat to their safety or to the safety of others simply because they are armed. Nevertheless, even under this court's case law relating to familial-association claims asserted by parents and children, Plaintiff's claim failed because no showing of a purpose to harm had been made or even attempted.

Lynette Christmas v. Harris County, Georgia, et al
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: October 28, 2022

Appellant was sexually assaulted by a deputy sheriff in Harris County, Georgia, who's now serving an eight-year prison term. In the part of this civil-rights lawsuit, Appellant sued Harris County and the Sheriff of Harris County (Sheriff), alleging that the Sheriff failed in various ways to prevent the deputy from assaulting her. The district court found that the Sheriff was entitled to qualified immunity, and granted summary judgment.

The Eleventh Circuit affirmed. The court explained that Appellant fails the first prong of the court's analysis because she cannot show that, in the course of supervising the deputy, the Sheriff violated her constitutional rights. The court reasoned that "It is well established in this Circuit that supervisory officials are not liable under Section 1983 for the unconstitutional acts of their subordinates on the basis of respondeat superior". Accordingly, the court concluded that because the Sheriff had no notice of the deputy's tendency to sexually assault civilians in his custody—he cannot be held responsible for the unpredictable acts of his subordinate.

NOV 11 CASES

United States v. Matthew Langenberg
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: November 4, 2022

Defendant worked as a salesman at a retail flooring store. The company gave Defendant a cell phone, which he was allowed to take home and use as a personal phone. After a co-worker alleged in 2020 that Defendant had used the phone to record her, the company's co-owner asked Defendant for the phone and its passcode. After Defendant unlocked the phone and provided the passcode, the co-owner discovered images that he believed were child pornography. He thereafter gave the phone and passcode to law enforcement officers,

Defendant moved to suppress the evidence of child pornography that the officers had discovered on the phone. Following the district court's denial of the motion, Defendant pleaded guilty to receipt of child pornography and was sentenced to 60 months imprisonment.

The Eighth Circuit affirmed the district court's judgment. The court held that because it found that the co-owner had apparent authority to consent to the search, the court need not reach Defendant's argument that the warrantless search constituted an unlawful trespass. The co-owners apparent authority also defeats Defendant's argument that the later search of his residence should be suppressed as fruit of the poisonous tree.

United States v. Patrick James
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: November 10, 2022

Defendant entered a conditional guilty plea to being a felon in possession of a firearm, preserving his right to appeal the district court's denial of his motion to suppress. The Eighth Circuit affirmed Defendant's conviction, finding that the traffic stop that led to the discovery of the challenged evidence was supported by reasonable suspicion. The police officer's decision to pull Defendant over after learning that he was driving a vehicle that had been reported stolen was sufficient to at least give rise to reasonable suspicion.

Ex parte Charlie Byrd
Court: Supreme Court of Alabama
Opinion Date: November 10, 2022

After being indicted by a grand jury for unlawful possession of a controlled substance -- delta-9-tetrahydrocannabinol (synthetic marijuana), Charlie Byrd filed a motion to suppress the evidence that was the basis of his indictment on the ground that it was the product of an unlawful search and seizure. The motion was denied, and Byrd conditionally pled guilty, reserving the right to appeal the denial of the motion to suppress. Byrd was sentenced to 60 months in prison, with 12 served and 24 months of supervised probation. The Court of. Criminal Appeals affirmed Byrd's conviction, and he appealed to the Alabama Supreme Court. Finding no reversible error, the Supreme Court affirmed the Court of Criminal Appeals.

State v. Larson
Court: Montana Supreme Court
Opinion Date: November 9, 2022

The Supreme Court affirmed the judgment of the district court denying Defendant's motion to suppress evidence confiscated by a adult foster care group home's manager who subsequently turned the evidence over to the police, holding that the district court did not err when it failed to suppress the evidence.

The manager of the group home contacted the police on several occasions stating that she had confiscated child pornography from Defendant, a resident of the group home, pursuant to the group home's rules. The manager gave the police the confiscated evidence, which led to the grant and execution of a search warrant. Defendant was subsequently charged with possession of child pornography. Defendant moved to suppress the evidence, which the district court denied. Defendant subsequently entered into a plea agreement with the State. The Supreme Court affirmed the denial of Defendant's motion to suppress, holding (1) the group home manager was acting as a private party when she confiscated Defendant's electronic devices containing pornography; and (2) Defendant consented to the manager confiscating his electronic devices by agreeing to the group home's rules.

18NOV2022 Cases

Johnson v. Myers
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: November 16, 2022

Illinois State Police Officer Myers supervised 10 controlled drug purchases by a confidential source (CS) at a Cairo residence. Each purchase was recorded on video. The CS initially said that "Cornelius Dean" was selling crack cocaine at the house. Eventually, the CS found out the dealer's name was Ed. Ed later told the CS that his surname was "Johnson." Myers searched for an image of an "Ed or Edward Johnson" in the Illinois Secretary of State database but found no match. Alexander County Sheriff Brown suggested Ed's last name might be Osborne. Myers again checked the state database and discovered that "Phillip Edward Osborne" resided in Cairo. Myers obtained Osborne's driver's license photo and concluded that it matched the dealer in the drug buy videos. Myers reported that the CS, upon seeing the photo, unequivocally, identified Osborne. Myers obtained an arrest warrant. Osborne was arrested and remained incarcerated for seven days before being released on bond. The state eventually dismissed the charges.

Osborne sued under 42 U.S.C. 1983. The district court dismissed the claims against the county and granted Myers summary judgment on the false arrest claim, finding no evidence to undermine probable cause to arrest Osborne and that Myers was entitled to qualified immunity. The Seventh Circuit affirmed. The plaintiff failed to overcome the presumption of validity afforded to the warrant and the underlying information, with little more than bare allegations that Myers lied in his warrant application.

Foley Bey v. Prator
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: November 17, 2022

Plaintiffs, who identify as Moorish Americans, sought to enter the Caddo Parish Courthouse to file documents with the court clerk. Upon arriving at the security-screening station, plaintiffs informed the officers on duty that they wished to enter without passing through the security screening. After Plaintiffs' repeated refusals to depart, the officers stated they would count to three and, if Plaintiffs refused to leave, they would be arrested. They did not depart and were arrested, charged with violating Louisiana Revised Statutes Section 14:63.3. Plaintiffs brought a litany of claims against various officials serving in Caddo Parish and the Louisiana state government based on their actions taken during the arrest. Plaintiffs also moved for recusal of the magistrate judge, which the district court denied.

The Fifth Circuit affirmed. The court explained that Plaintiffs have pointed to no precedent that abrogates the general "search incident to arrest" rule when religious headwear is involved. Accordingly, the district court correctly granted summary judgment on the ground of qualified immunity. Further, the court held that there was no error in the district court's denial of Plaintiffs' motion for recusal of the magistrate judge. The magistrate judge did not work on this case in private practice nor work with Defendants' counsel in the practice of law while he was working on this case. Nor is there evidence of any bias or knowledge of the case that would have required the district court, in its discretion, to order recusal.

DENISE MEJIA V. WESLEY MILLER, ET AL
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: November 14, 2022

Plaintiff claimed that Defendant used excessive force while attempting an arrest on June 10, 2018, in Berdoo Canyon, which is considered BLM land. Plaintiff and her husband failed to yield to a park ranger, at which point Defendant was called to assist. As Defendant was trying to stop Plaintiff's vehicle, he fired several shots, hitting her in the hand and grazing her head.

Plaintiff filed a Sec. 1983 claim against Defendant. The district court denied Defendant's motion for summary judgment related to Plaintiff's excessive force claim and Defendant appealed.

On appeal, the Tenth Circuit reversed, declining to extend Bivens. The existence of alternative remedial structures is reason enough to not infer a new Bivens cause of action. Similarly, uncertainty about the potential systemwide consequences of implying a new Bivens cause of action is by itself a special factor that forecloses relief. The panel held that there was no Bivens cause of action for Plaintiff's claim, which presented a new context.

Bledsoe v. Board Cty Comm. Jefferson KS, et al.
Court: US Court of Appeals for the Tenth Circuit
Opinion Date: November 15, 2022

Plaintiff-Appellee Floyd Bledsoe spent sixteen years in prison for the November 1999 murder of his fourteen-year-old sister-in-law Camille in Jefferson County, Kansas. In 2015, new DNA testing and a suicide note from Bledsoe's brother Tom supported Bledsoe's longstanding claim that Tom was the killer and Bledsoe was innocent. A state court subsequently vacated Bledsoe's convictions and prosecutors dismissed all charges against him. In 2016, Bledsoe filed this 42 U.S.C. § 1983 action against ten named defendants, most of whom were Kansas law enforcement officers. Bledsoe alleged that Defendants conspired to fabricate evidence implicating him in the murder and intentionally suppressed evidence that would have proved his innocence, thereby causing him to be charged, tried, and convicted without even probable cause to believe he was guilty. At issue in this appeal was the district court's denial of a motion to dismiss filed pursuant to Federal Rule of Civil Procedure 12(b)(6) by Defendant-Appellants, all of whom were law enforcement officers employed by the Jefferson County Sheriff's office. In their motion, Appellants argued they were entitled to qualified immunity because Bledsoe: (1) failed to state claims adequately alleging that Appellants deprived Bledsoe of his constitutional rights; and/or (2) any constitutional violations Bledsoe did adequately allege against Appellants were not clearly established in 1999, when the events at issue occurred. The district court denied Appellants qualified immunity on most of Bledsoe's claims. After review, the Tenth Circuit affirmed in part and reversed in part the district court's judgment. The Court concluded that the Supreme Court's decision in Parratt v. Taylor, 451 U.S. 527 (1981) did not preclude Bledsoe's substantive due process claims. Further, the Court found Bledsoe adequately alleged substantive due process and Fourth Amendment claims against each Appellant for evidence fabrication and for suppressing exculpatory evidence, a malicious prosecution claim, conspiracy claims, and a failure-to-intervene claim. Lastly, the Court concluded all the constitutional violations Bledsoe alleged except his failure-to-intervene claim were clearly established in 1999. The district court, therefore, correctly denied Appellants qualified immunity on all but the failure-to-intervene claim.

Thomas B. Ireland v. Bill Prummell, et al.
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: November 14, 2022

Plaintiffs (the Estate) appealed the district court's grant of summary judgment for the named Defendants. This appeal stems from the circumstances surrounding Plaintiff's son's detention and death at the Charlotte County Jail. The Estate brought a seven-count complaint against the named Defendants. The district court granted each of the summary judgment motions in full, finding that the Estate failed to present evidence sufficient to raise a genuine issue of material fact on any of the claims, and entered final judgment for the Defendants.

The Eleventh Circuit affirmed the grant of summary judgment for the Sherriff of Charlotte County, the jail's health care provider, and the jail's medical personnel. The court also affirmed the grant of summary judgment for the jail's corrections officers. The court agreed with the district court's conclusion that the Estate failed to carry its burden of establishing a reasonable dispute of material fact regarding whether either the prison or the Sheriff advanced an unconstitutional policy or custom. Specifically, the district court found that Ireland's Estate presented "no evidence" of an unconstitutional policy or custom and, at most, that the Estate pointed to isolated incidents by the prison and the Sherriff.

Further, because there is no evidence in the record from which the court can infer that the officers were aware of the man's need for medical aid at any time during the encounter before he ultimately lost consciousness, the deliberate indifference to medical treatment claims against the officers fail and summary judgment in their favor was proper.

25 NOV CASES

Moran v. Calumet City, Illinois
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: November 23, 2022

Moran was convicted of attempted murder and aggravated battery with a firearm for a 2006 Calumet City, Illinois shooting. After the trial, the prosecution learned that exculpatory evidence, including a ballistics report linking the gun used in the Calumet City shooting to a different shooting, had not been turned over to the defense as required by Brady v. Maryland. Moran sought postconviction relief. A state court vacated his conviction. Moran was retried and acquitted in 2017.

Moran then filed a federal suit (42 U.S.C. 1983) against the city, two detectives who investigated the shooting, and a crime scene technician who mishandled the ballistics report, seeking redress for the decade he spent incarcerated. The district court granted the defendants summary judgment, noting that Moran's allegation that an Assistant States Attorney knew about the report was a judicial admission that negated an essential element of the claim; prosecutorial knowledge of exculpatory evidence blocks civil liability for police officers. The court stated that even without that judicial admission, the record could not allow a reasonable jury to find that the evidence had been suppressed. Moran moved for leave to amend his complaint. The Seventh Circuit affirmed the denial of that motion. Moran unduly delayed seeking to amend his complaint; he should have known that his complaint contained factual errors at the outset.

United States v. Berrios
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: November 18, 2022

Mercado, age 41, used an Internet application to meet "Alexis," a profile operated by an FBI agent conducting an undercover investigation of adults with sexual interests in children. After just minutes of texting, "Alexis" told Mercado she was 15 years old. For the next five days, they texted, exchanged photos, and spoke by phone. Mercado raised sexual topics, describing sexual acts he wanted to engage in with "Alexis." Mercado sent "Alexis" sexually graphic and suggestive messages and emojis and asked her to smoke marijuana and drink alcoholic beverages with him. They arranged to meet at a house that was actually an FBI operations center. When Mercado arrived, he was arrested. Mercado exhibited health problems. He was taken to a hospital and administered medication. Later, he was interviewed at the hospital, waived his Miranda rights, and made inculpatory admissions.

Mercado was charged with attempted enticement of a minor, 18 U.S.C. 2422(b), and use of interstate facilities to attempt to transmit information about a minor, section 2425. He unsuccessfully opposed a government motion to preclude an entrapment defense. That court denied Mercado's motion to suppress his statements and evidence obtained in his hospital interview. The Seventh Circuit affirmed, upholding those rulings and rejecting an argument that his statements were involuntary as he was under the influence of drugs when he talked to agents, who coerced his statements.

United States v. Cox
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: November 23, 2022

The FBI was alerted to a predatory scheme involving various Facebook accounts and (apparently) many victims, including minors. The perpetrator used a Facebook account under a false name, telling the victims that he had nude photos of them, taken from a Facebook account he had "hacked." He said he would leak the photos if the victims did not meet his demands—chiefly, sending more explicit material. The FBI tracked the internet address associated with some of the messages to Burns Construction, where Cox worked. Agents went to Burns Construction without a search warrant. An owner agreed to allow the agents to search and image the computer in Cox's office. Cox was not present. The agents then went to Cox's home. They assured Cox that he could end the conversation at any time and that he would not be arrested that night. When Cox proposed helping the FBI investigate the broader sextortion network in exchange for leniency, the agents responded that such an arrangement was beyond their control. Cox nonetheless made numerous incriminating statements and let the agents take his personal laptop.

The Seventh Circuit affirmed Cox's convictions, rejecting Cox's claims of Fourth Amendment violations based on the warrantless search, Fifth Amendment violations based on the failure to give Miranda warning, and Sixth Amendment violations based on the court's evidentiary and procedural decisions. There was sufficient evidence to support his convictions.

Monjaras v. Texas
Court: Texas Court of Criminal Appeals
Opinion Date: November 23, 2022

After a trial court denied his suppression motion, Appellant Tairon Jose Monjaras pled guilty to unlawful possession of a firearm by a felon. He was sentenced to five years imprisonment. On appeal, the Appellant argued the trial court erred in denying his motion to suppress because his interaction with law enforcement was an investigative detention without reasonable suspicion rather than a consensual encounter. A majority of the court of appeals disagreed, finding that the interaction was a consensual encounter. After its review, the Texas Court of Criminal Appeals held that the Appellant's interaction with law enforcement, which started as a consensual encounter, escalated into an investigative detention when one officer placed his hands on the defendant while the other officer said "manos, manos." The Court reversed the court of appeals and remanded the case to that court to determine whether the investigative detention was supported by reasonable suspicion. (Pictures in text.)

State v. Moeser
Court: Wisconsin Supreme Court
Opinion Date: November 23, 2022

The Supreme Court affirmed Defendant's conviction of operating while intoxicated (OWI) sixth offense, in violation of Wis. Stat. 346.63(1)(a), holding that Defendant's constitutional right to be free from abusive governmental searches was satisfied in this case, and therefore, the circuit court did not err in denying Defendant's motion to suppress.

On appeal, Defendant argued that the warrant compelling him to submit to a blood draw was constitutionally defective because, when the affiant signed the affidavit that accompanied the warrant petition, the affiant was not placed under oath or affirmation. The court of appeals affirmed. The Supreme Court affirmed, holding (1) the affidavit fulfilled the oath or affirmation requirement under the state and federal Constitutions; and (2) therefore the circuit court did not err in denying Defendant's motion to suppress.

State v. Wilson
Court: Wisconsin Supreme Court
Opinion Date: November 23, 2022

The Supreme Court reversed the decision of the court of appeals affirming both Defendant's judgment of conviction and the circuit court's denial of his motion to suppress evidence, holding that police officers' warrantless entry in Defendant's fenced-in back yard was not a valid "knock and talk" investigation and that the entry was not permissible under the exigency of hot pursuit.

On appeal, Defendant argued that the police officers lacked an implicit license to enter his backyard, and therefore, the entry violated the Fourth Amendment. The Supreme Court agreed and reversed the decision of the court of appeals, holding (1) the "knock and talk" investigation was not valid because the officers did not have an implicit license to enter Defendant's backyard; and (2) because the officers did not immediately or continuously pursue Defendant from the scene of the crime, the officers' entry into Defendant's backyard was not permissible under the exigency of hot pursuit and therefore violated the Fourth Amendment.

2DEC2022

United States v. Alexander
Court: US Court of Appeals for the Third Circuit
Opinion Date: November 30, 2022

Investigating drug trafficking based on the report of a confidential informant, the police entered the homes of both Alexander and his girlfriend, without search warrants. Officers entered Alexander's home and secured the premises, then waited to conduct a search until a warrant was issued. At Alexander's girlfriend's home, they secured the premises and were applying for a warrant, which was all but certain to issue, when they received what they understood as consent to a search. Alexander was charged with possession with intent to distribute 28 grams or more of cocaine base, 21 U.S.C. 841(a)(1), (b)(1)(B); possession with intent to distribute cocaine; possession of a firearm in furtherance of a drug trafficking crime, 18 U.S.C. 924(c)(1)(A)(i); and possession of a firearm by a prohibited person, 18 U.S.C. 922(g)(1), 924(a)(2).

The Third Circuit affirmed the denial of Alexander's motion to suppress, citing the inevitable discovery exception to the exclusionary rule. There was probable cause to believe Alexander had cocaine and drug-dealing paraphernalia in both houses. Officers had reason to believe that Alexander had been tipped off so that evidence of drug dealing would be imminently destroyed. Exigent circumstances justified the officers entering without a warrant; the search of Alexander's residence was valid because a warrant was properly issued.

US v. Teresa Miller
Court: US Court of Appeals for the Fourth Circuit
Opinion Date: November 29, 2022

Defendant was indicted on one count of unlawfully possessing a firearm. The firearms at issue were uncovered during a traffic stop. Defendant was traveling in the backseat of a vehicle when the vehicle was stopped by the officer for having an inoperable taillight. After printing a warning citation for the driver, the officer used his canine to sniff around the vehicle and then conducted a full search when the dog alerted, uncovering two firearms in Defendant's backpack. The district court denied Defendant's motion to suppress evidence of the firearms, concluding that the officer had reasonable suspicion to extend the stop and conduct the search.

On appeal, Defendant argued that the district court erred by (1) denying her motion to transfer the proceedings to another district pursuant to Federal Rule of Criminal Procedure 21(a) and (2) finding that the officer had reasonable suspicion to extend the traffic stop.

The Fourth Circuit reversed the district court's order denying Defendant's motion to suppress, vacated Defendant's conviction and sentence, and remanded to the district court. The court held that (1) Defendant's motion to transfer was appropriately denied and (2) the officer lacked a reasonable, articulable factual basis for extending the traffic stop to conduct the dog sniff.

United States v. Colbert
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: November 29, 2022

During a traffic stop, a detective and a police officer worked in tandem to search Colbert's vehicle and frisk him, uncovering on his person a brick-shaped package later confirmed to contain a controlled substance. Colbert moved to suppress this evidence, arguing that the frisk violated his constitutional rights. The district court denied the motion. Colbert entered a conditional guilty plea to possession with intent to distribute 40 grams or more of a mixture containing a detectable amount of fentanyl, 21 U.S.C. 841(a).

The Seventh Circuit affirmed. The officers had reasonable suspicion to frisk him based on two officers observing the smell of marijuana coming from the vehicle, Colbert's erratic driving, evasive and nervous behavior, a bulge in his pocket, and unwillingness to follow directions. Colbert had read and signed a form, giving the officer permission to search his vehicle.

Punsky v. City of Portland
Court: US Court of Appeals for the First Circuit
Opinion Date: November 29, 2022

The First Circuit affirmed the order of the district court granting summary judgment in favor of Defendants on the basis of qualified immunity and dismissing Plaintiff's complaint bringing various constitutional claims under 42 U.S.C. 1983 alleging Fourth and Fourteenth Amendment violations and state law tort claims under the Maine Civil Rights Act (MCRA), Me. Stat. tit. 5, 4682, holding that there was no error.

Plaintiff brought this action against the City of Portland and six city police officers alleging that the officers used excessive force and otherwise violated his constitutional rights when they were investigating a domestic violence incident in which he was involved and left him standing outside in his socks in freezing temperatures for several minutes. The district court granted summary judgment in favor of Defendants on the grounds of qualified immunity. The First Circuit affirmed, holding (1) Defendant was entitled to qualified immunity under the circumstances of this case; and (2) the district court properly concluded that Plaintiff's tort claims had been waived and granted summary judgment in Defendants' favor.

Michael Baxter v. Louis Roberts, III, et al.
Court: US Court of Appeals for the Eleventh Circuit
Opinion Date: November 30, 2022

Plaintiff as pulled over by a deputy of the Jackson County Sheriff's Office for erratic driving. During the stop, the deputy noticed an open container of beer and decided to issue a warning citation. The deputy wrote—but never delivered—the ticket. Instead, a few minutes into the stop, he ordered Plaintiff out of the truck so he could walk his drug-sniffing dog around the vehicle. Plaintiff resisted the deputy's commands verbally and then physically. The deputy arrested him for obstruction and Plaintiff suffered minor injuries. His truck was searched, but no drugs were found. The obstruction charge was later dismissed. A couple years after this encounter, Plaintiff filed claims against the deputy and the Jackson County Sheriff under 42 U.S.C. Section 1983 and Florida common law.

The Eleventh Circuit vacated he district court's summary judgment on the Section 1983 claim against the deputy, but only with respect to the issue of whether the deputy unlawfully prolonged the traffic stop in violation of Plaintiff's Fourth Amendment rights. The court also vacated the district court's summary judgment on the false imprisonment claim against both the deputy and the Jackson County Sheriff, but only with respect to the issues of whether the deputy tortiously detained Plaintiff by (1) unlawfully prolonging the traffic stop and (2) arresting Plaintiff without probable cause. The court affirmed the district court's summary judgment in all other respects.

CASES 9DEC2022

United States v. Joshua Dewilfond
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: December 2, 2022

Defendant entered a conditional guilty plea to narcotics and ammunition charges after the trail court denied his motion to suppress GPS locational data and subsequent post0-Miranda statements made to detectivews. Law enforcement, working with a confidential informant (CI), installed a GPS tracker on the CI's vehicle. Subsequently, Defendant borrowed CI's vehicle, which led to his arrest.

The Eighth Circuit held that the district court did not err in denying Defendant's motion to suppress. Defendant did not have a reasonable expectation of privacy in his location and movements in a borrowed vehicle.

Mahdi v. Salt Lake Police Department, et al.
Court: US Court of Appeals for the Tenth Circuit
Opinion Date: December 5, 2022

A police chase ended when the fleeing armed robber crashed into Plaintiff Thaer Mahdi's tailor shop. Officers fired scores of bullets at the driver, and many hit the shop. The shop was badly damaged, and Mahdi was psychologically traumatized. Mahdi filed suit under 42 U.S.C. § 1983 against the Salt Lake City Police Department (SLCPD); the Unified Police Department (UPD); and four officers of the Utah Highway Patrol (UHP)—Superintendent Michael Rapich, Sergeant Chris Shelby, and Troopers Jed Miller and Jon Thompson. Plaintiff alleged: (1) the responding officers used excessive force in violation of his right to substantive due process under the Fourteenth Amendment; and (2) that the officers' unconstitutional use of force resulted from Superintendent Rapich's failure to train and supervise his subordinates and from the defendant law-enforcement agencies' policies and customs, including their failure to properly train or supervise their employees. Defendants moved to dismiss Mahdi's first amended complaint for failure to state any claims. In response, Mahdi moved for leave to file a second amended complaint. The United States District Court for the District of Utah denied the motion as futile and granted the defendants' motions to dismiss. The court held that Mahdi had not adequately alleged that any officers violated his constitutional right to substantive due process and that in the absence of any such violation the police agencies also could not be liable under § 1983. Mahdi appealed, challenging the dismissal of his claims and denial of his motion for leave to file his second amended complaint. Finding no reversible error in the district court's judgment, the Tenth Circuit affirmed dismissal of plaintiffs' claims and denial of his motion.

California v. Avalos
Court: California Courts of Appeal
Opinion Date: December 2, 2022

Police arrested 18-year-old high school student Ismael Avalos on a murder charge and questioned him in an interrogation room at a police station. During the interview, a forensic technician removed his shirt, pants, socks, and shoes. The technician gave him a paper gown to wear. After about five hours of questioning by police, Avalos said, “I wanna talk to a lawyer.” After some further dialog, a detective said, “I respect your decision that you wanna talk to a lawyer, but if for some reason you want to change your mind and you wanna talk to me, you can, just ask for me. I don’t care if it’s 2:00, 3:00 in the morning I’ll come back. Okay? Because I care about you getting your story the right way out. Okay?” After spending the night in a holding cell, Avalos told one of the jailers he wanted to speak to the detectives again. Avalos was brought back to the same interrogation room for a second interview, still apparently wearing the same paper gown from the day before. Avalos asked, “Whatever I tell my lawyer, he’s going to tell you the same thing, right?” After waiving his Miranda rights, Avalos admitted shooting the murder victim, stating: “I, I self-defended myself, you know?” Avalos was convicted of murder with a firearm enhancement and a substantive gang crime. On appeal, Avalos contends the trial court erred by admitting the second interview into evidence over his objection. Avalos also argues that due to a recent change in the law, his substantive gang conviction must be reversed. The Court of Appeal concluded after review of the trial court record that Avalos did not make a voluntary, knowing, and intelligent Miranda waiver prior to the second interview. The Court further found the admission of the interview into evidence was not harmless beyond a reasonable doubt. The Attorney General conceded Avalos’ substantive gang conviction should have been reversed and the Court of Appeal agreed. Thus, it reversed the judgment.

Claypool v. Superior Ct.
Court: California Courts of Appeal
Opinion Date: December 6, 2022

Petitioner Brandon Claypool petitioned for a writ of mandate or prohibition to challenge the denial of a motion to suppress evidence and dismiss the charges. Petitioner was charged with possession of a firearm by a felon, unlawful possession of ammunition by a felon, unauthorized alteration of a firearm, and carrying a loaded firearm in a vehicle, along with an enhancement for a prior strike pursuant to the three strikes law. The evidence at issue was found in a locked glove box in petitioner’s car during a parole search of a back seat passenger. Petitioner, who was both the driver and owner of the car, was neither on searchable probation nor parole at the time. Police used a key to open the glove box and found a gun containing ammunition. The State argued the parole search of the back seat passenger permissibly extended to the locked glove box because officers could reasonably expect the parolee could have hidden contraband there after he became aware of the police. But, absent additional evidence, the Court of Appeal found the facts did not support such an attenuated inference. Therefore, the Court issued a peremptory writ of mandate and directed respondent trial court to grant petitioner’s motion.

Maine v. Jandreaud
Court: Maine Supreme Judicial Court
Opinion Date: December 6, 2022

The Supreme Judicial Court affirmed Defendant's conviction of, among other charges, seventeen counts of sexual exploitation of a minor under the age of twelve, holding that a search of Defendant's smartphone did not violate Defendant's rights under the Fourth Amendment.

On appeal, Defendant argued that the trial court abused its discretion when it declined to reach its argument that the warrant supporting the search of his cellphone was overbroad and violated the particularity requirement of the Fourth Amendment. The Supreme Judicial Court disagreed and affirmed, holding (1) the district court did not err by denying Defendant's motion to suppress; and (2) Defendant's remaining arguments on appeal were without merit.

State v. Jackson
Court: Supreme Court of Ohio
Opinion Date: December 8, 2022

The Supreme Court affirmed the decision of the court of appeals upholding that decision of the trial court to deny Defendant's motion to suppress evidence discovered after a traffic stop, holding that there was no error.

After executing the traffic stop at issue, a law enforcement officer ordered Defendant to step out of the car and opened the door for him to do so. Another officer later looked through the open door and spotted a marijuana cigarette on the floor. A subsequent search of the car led to the discovery of a pistol. Defendant pleaded no contest to firearm-related charges. On appeal, Defendant challenged the denial of his motion to suppress. The court of appeals affirmed. The Supreme Court also affirmed, holding (1) the officers did not violate the Fourth Amendment by ordering Defendant to exit the car; (2) opening the door was not a search; (3) the second officer did not conduct a search; and (4) under the automobile exception to the warrant requirement, the discovery of the marijuana cigarette in plain view allowed the officers to search the car.

Enriquez-Perdomo v. Newman
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: December 5, 2022

In 2004, Enriquez-Perdomo a nine-year-old Honduran national, was ordered removed. INS signed a warrant of removal/deportation but never removed her. The 2012 Deferred Action for Childhood Arrivals (DACA), program applied to persons who immigrated to the U.S. when they were under the age of 16 and were under age 31 in 2012 and meet other specific requirements. In 2013, USCIS approved Enriquez-Perdomo for DACA. She renewed her DACA status through January 2019. In 2017, Enriquez-Perdomo went to an Immigration and Customs Enforcement (ICE) office to post bond for ICE detainees. Enriquez-Perdomo alleges that ICE officers (Defendants) confirmed that she had received DACA, but nevertheless arrested her without a warrant, motivated by her ethnicity and by her assistance of detainees. She claims that Defendants transported her between facilities and deprived her of sleep and food during her eight days in custody. Enriquez-Perdomo sued Defendants in their individual capacities, seeking money damages under "Bivens."

The district court dismissed her claims for lack of subject-matter jurisdiction under 8 U.S.C. 1252(g). The Sixth Circuit vacated in part. Notwithstanding her removal order, Enriquez-Perdomo was eligible for DACA relief and was granted affirmative relief from removal. Although the government could terminate that relief, it did not. Enriquez-Perdomo's arrest and detention were unauthorized so 1252(g) does not preclude her claims; her removal order was not executable. There is no Bivens remedy for First Amendment retaliation claims; the court remanded Fourth Amendment and Fifth Amendment claims.

Kirkland v. City of Maryville
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: December 5, 2022

Kirkland, a Maryville patrol officer, used her Facebook account to criticize the county sheriff. She belittled his public speaking abilities and referred to his supporters as "brainwashed minions." Kirkland had previously worked as a Sheriff's Office corrections officer. Kirkland had previous disciplinary issues. Kirkland's supervisors became concerned that her posts would undermine the Department's relationship with the Sheriff's Office and asked her to stop. They also reprimanded her for other behavioral issues. Following Kirkland's Facebook post claiming the sheriff had excluded her from a training event because she was female and opposed his reelection, Maryville fired Kirkland.

Kirkland sued, citing First Amendment retaliation, Title VII, and the Tennessee Human Rights Act. The Sixth Circuit affirmed summary judgment in the city's favor. Although the statements were made in Kirkland's capacity as a private citizen and Maryville did not show Kirkland made the post with knowledge of, or reckless indifference to, its falsity, the balance of interests favored the city. The court noted the heightened need for order, loyalty, and efficiency in law enforcement. The city has "legitimate and powerful interests" as a law enforcement agency in preserving its working relationship with the Sheriff's Office that outweigh Kirkland's speech rights.

CASES 16DEC2022

USA v. Tenorio
Court: US Court of Appeals for the Fifth Circuit
Opinion Date: December 9, 2022

Following a bench trial, Appellant was convicted of smuggling bulk cash in violation of 31 U.S.C. Section 5332. He was sentenced to sixteen months of imprisonment and three years of supervised release. Defendant appealed his conviction and sentence, arguing that the district court erred in denying his motion to suppress evidence obtained from a stop and search at the border as he was leaving the United States and attempting to enter Mexico.

The Fifth Circuit affirmed. The court explained that the border-search exception allows "routine" searches and seizures without individualized suspicion or probable cause. Here, Appellant first argued that the canine sniff of his person required reasonable suspicion. The court wrote it did not because the canine sniff here was a routine border search and therefore did not require individualized suspicion. Appellant's detention did not exceed the bounds of routine border searches and therefore did not require reasonable suspicion. Finally, the district court did not err in denying Appellant's suppression motion.

United States v. Jones
Court: US Court of Appeals for the Sixth Circuit
Opinion Date: December 13, 2022

Warren, Ohio, police officers responded to a call about an unknown disturbance at a gas station in the early morning hours. They found Jones playing loud music from his SUV in the parking lot. Jones turned off the music. While the officers drove around the building to investigate, Jones drove away. Officers followed Jones, pulled him over, and told him that they had stopped him for a noise ordinance violation. The officers then smelled marijuana and searched the car, finding hidden compartments containing two firearms, drugs, and drug paraphernalia. The district court denied Jones's motion to suppress. Jones was convicted on four gun-and-drug-related counts.

The Sixth Circuit affirmed. The stop of Jones's car was reasonable under the Fourth Amendment. The Fourth Amendment permits officers to warrantlessly arrest—to seize—a person if the officer has probable cause to believe that the suspect has committed a misdemeanor in his presence. The search of Jones's SUV revealed loaded firearms in close proximity to drugs, plastic baggies, and a digital scale; sufficient evidence supports the conviction for possessing the firearms in furtherance of drug trafficking. The court rejected an argument that nine comments made by the prosecutor in his closing argument amounted to prosecutorial misconduct.

United States v. Gary Harris
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: December 9, 2022

Defendant entered a conditional plea of guilty to one count of being a felon in possession of ammunition. Defendant reserved his right to appeal the district court's denial of his motion to suppress and subsequently appealed. Defendant argued the district court erred in denying his motion to suppress because he was unlawfully arrested in his home, and the attenuation doctrine does not apply to render the evidence that was seized during a subsequent search admissible against him.

The Eighth Circuit affirmed. The court concluded that under the circumstances, it cannot say the district court committed a clear error in finding that Defendant's consent to search was voluntary. The court expressly considered the relevant factors for assessing voluntariness before reaching its conclusion, including those weighing against a finding of voluntary consent. Further, the court wrote that weighing the appropriate factors, it concluded that Defendant's voluntary consent to the search of his residence was sufficient to purge the taint of the officers' initial unlawful conduct. The district court did not err in denying Defendant's motion to suppress evidence obtained from the December 14, 2019, search.

United States v. Manuel Flores
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: December 12, 2022

After the district court denied his motion to suppress, Defendant's conditionally pleaded guilty to possession with intent to distribute a controlled substance. The court sentenced Defendant to 126 months imprisonment, varying upward six months from the mandatory minimum of 120 months, his advisory guidelines range. Defendant appealed the denial of his motion to suppress, raising three Fourth Amendment issues emanating from a postal inspector's warrantless seizure of an undeliverable Express Mail package sent to "Defendant Rm 512" at a hotel in Des Moines, Iowa. He also appealed his sentence, arguing it is substantively unreasonable because the district court failed to adequately justify the upward variance.

The Eighth Circuit affirmed. Here, the district court carefully explained why it imposed a six-month upward variance, stating that a mandatory minimum sentence would "ignore" Defendant's "ridiculously problematic" and "offensive" behavior during his pre-sentence detention for this offense. The court did not abuse its discretion by varying upward to account for dozens of serious security and disciplinary violations.

P. v. Castro
Court: California Courts of Appeal
Opinion Date: December 14, 2022

Defendant appealed from a judgment entered after he pleaded no contest to carrying a loaded, unregistered handgun in a vehicle. He contends a warrantless search of his vehicle, during which a police officer discovered the handgun, did not fall within the automobile exception to the Fourth Amendment's warrant requirement, and the trial court should have suppressed the evidence from the vehicle search on his motion under Penal Code section 1538.5.

The Second Appellate District affirmed, concluding that the officers had probable cause to search the car under the automobile exception, and the trial court did not err in declining to suppress the evidence from the vehicle search. The court explained that based on the "strong odor" of "burnt marijuana" emanating from Defendant's car, Defendant's admission he had smoked marijuana, and the fact all occupants of the car were under 21 years of age, the officers had probable cause to believe they would find contraband or evidence of a crime (e.g., marijuana possessed by someone under 21) in the car.

State v. Richey
Court: Wisconsin Supreme Court
Opinion Date: December 9, 2022

The Supreme Court reversed the decision of the court of appeals affirming the decision of the circuit court to deny Defendant's motion to suppress, holding that the police officer in this case did not have particularized reasonable suspicion that a crime or traffic violation took place before performing the traffic stop at issue.

Officer Alexis Meier was told to be on the lookout for a Harley-Davidson motorcycle driving erratically and speeding. Officer Meier spotted a motorcycle that showed to be a Harley-Davidson registered to Defendant. Without seeing any erratic driving, speeding, or other traffic violations, Officer Meier performed a traffic stop. Officer Meier subsequently developed evidence supporting an arrest for Defendant's eighth operating while intoxicated offense. Defendant filed a motion to suppress, arguing that the traffic stop was unconstitutional because it was not supported by reasonable suspicion. The circuit court denied the motion. The Supreme Court reversed, holding that, under the totality of the circumstances, Officer Meier lacked reasonable suspicion to perform the stop.

Mills v. State
Court: Wyoming Supreme Court
Opinion Date: December 13, 2022

The Supreme Court affirmed in part and reversed in part the judgment of the district court convicting Defendant of second-degree murder after denying his motion to suppress, holding that the district court erred in determining when Defendant's interrogation became custodial, and that error required reversal.

Specifically, the Supreme Court held (1) the district court erred in ruling that Defendant was not in custody during his police station interview until he was directed to remain in an interview room; (2) it was not harmless error to admit incriminating statements Defendant made after his interrogation became custodial; and (3) the record supported the district court's conclusion that Defendant's confession was voluntary.

Alison Dreith v. City of St. Louis, Missouri
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: December 15, 2022

Police Lieutenant deployed pepper spray into Plaintiff's face, during a protest in St. Louis, Missouri. Plaintiff sued the police lieutenant and the City of St. Louis, alleging, federal claims under 42 U.S.C. Section 1983 for retaliatory use of force in violation of the First Amendment, as well as tort claims under Missouri law. The district court denied the lieutenant's motion for summary judgment based on his defenses of qualified and official immunity and reserved ruling on whether the City is entitled to sovereign immunity on the state tort claims.

The Eighth Circuit affirmed the denial of summary judgment as to the lieutenant, vacated, in part, the denial of summary judgment to the City, and remanded the case for further proceedings. The court explained that the lieutenant contended that at the time he pepper-sprayed Plaintiff, it was "not clearly established that a use of force that does not violate the Fourth Amendment violates the First Amendment." The lieutenant forfeited this argument by failing to raise it in the district court. In any event, the argument does not undermine the district court's conclusion that Plaintiff's right to be free from a retaliatory use of force was clearly established at the time of the incident. However, the court vacated the denial of summary judgment on the state tort claims and instruct the district court on remand to reach the merits of the sovereign immunity issue.

JAMES KLEISER, ET AL V. BENJAMIN CHAVEZ, ET AL
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: December 9, 2022

Appellants J.K. and Mr. Electric (jointly "Mr. Electric") challenged the district court's grant of summary judgment in this 42 U.S.C. Section 1983 action in favor of Defendants-Appellees, and the Washington State Department of Labor and Industries (together "the Department"). Two Mr. Electric employees provided the Department with copious amounts of Mr. Electric's data, particularly printouts of cell site location information that provided GPS coordinates for company vehicles which showed all movement

of electricians in the field. The Department used the data to write citations and assess administrative fines against Mr. Electric for violations of Washington's electrical code stemming from improper supervision of journeymen electricians in Clark County.

Appellants argued that Carpenter v. United States, 138 S. Ct. 2206 (2018), and Wilson v. United States, 13 F.4th 961 (9th Cir. 2021), foreclosed the Department's use of Appellants' location information because, when read together, the cases extinguished the applicability of the private search exception to the Fourth Amendment to location information.

The Ninth Circuit affirmed the district court's grant of summary judgment for Appellees. The panel noted that although Carpenter held that the third-party doctrine does not apply as an exception to the Fourth Amendment's warrant requirement when the government seeks cell site location information, the private search exception is an altogether separate exception to the Fourth Amendment.

Shepherd v. Robbins
Court: US Court of Appeals for the Tenth Circuit
Opinion Date: December 13, 2022

The issue this case presented for the Tenth Circuit's review centered on whether 42 U.S.C. § 1983 clearly established Defendant Utah Highway Patrolman Blaine Robbins violated Heather Leyva's Fourteenth and Fourth Amendment rights by pulling her over without reasonable suspicion to do so and by sending her flirtatious texts about the administration of a commercial towing relationship between her employer and the Utah Highway Patrol. Leyva served as the liaison between the Utah Highway Patrol ("UHP") and West Coast Towing ("WCT")—one of three towing companies in the Heavy Duty Towing Rotation ("HDTR"). Over time their professional relationship developed into a personal one. Defendant texted Leyva one night asking about work-related matters. In response to one question, Leyva told Defendant to "standby" because she was on the freeway. Defendant asked where and said he would pull her over. Defendant spotted her, turned on his lights, and initiated an apparent traffic stop. Leyva pulled over, not knowing Defendant was the driver of the patrol car, and got her identification ready. Defendant claimed he pulled Leyva over as "a joke between friends." A month later, Leyva reported to her boss she felt Defendant was sexually harassing her. Her boss contacted UHP to report Leyva's complaints of sexual harassment. As a result, UHP conducted an investigation. Relevant to the issues on appeal, the investigation found Defendant did not improperly administer the HDTR but concluded his conduct revealed his desire to further his personal relationship with Leyva. It also determined that Defendant lacked reasonable suspicion when he stopped Leyva. The district court found that Defendant did not violate clearly established law. Defendant did not dispute for purposes of this appeal that he violated Leyva's constitutional rights. He argued only that the district court correctly determined the law was not clearly established for either alleged violation. Plaintiff alleged, and the district court found, that a jury could find Defendant violated Leyva's Fourth and Fourteenth Amendment rights. The Tenth Circuit concluded the district court erred by granting summary judgment on Plaintiff's Fourth Amendment and Fourteenth Amendment claims insofar as they related to Defendant's traffic stop of Leyva. But the Court agreed with the district court that Plaintiff's Fourteenth Amendment rights arising in connection with the administration of HDTR, were not clearly established at the time of the violation.

State v. Rosa
Court: South Dakota Supreme Court
Opinion Date: December 14, 2022

The Supreme Court affirmed Defendant's conviction of open container and driving under the influence (DUI) and imposing a suspended imposition of sentence, holding that the circuit court did not err in denying Defendant's motion to suppress.

Based on information obtained during a 911 call made by Defendant's daughter reporting that Defendant may be drinking and driving and providing Defendant's location officers conducted a traffic stop of Defendant's van and then arrested her for DUI. Defendant filed a motion to suppress, arguing that the traffic stop was an unconstitutional search and seizure. The circuit court denied the motion and found Defendant guilty. The Supreme Court affirmed, holding that, under the totality of the circumstances, the circuit court properly concluded that law enforcement had reasonable suspicion to believe that Defendant was driving under the influence of alcohol at the time of the stop.

23DEC2022

United States v. Gene Schave
Court: US Court of Appeals for the Eighth Circuit
Opinion Date: December 16, 2022

Defendant was convicted by a jury of his peers for possession of child pornography. Defendant challenged the district court's denial of his motion to suppress and admission of certain evidence. Defendant challenged the district court's denial of his motion to suppress, arguing the warrant was not sufficiently particular and lacked the requisite nexus.

The Fourth Circuit affirmed. The court explained In this case, multiple child pornography images were flagged by a search engine, those images were affiliated with four IP addresses, and those IP addresses were registered to the address that was searched. In addition, the state court was aware that Defendant had a previous conviction for possession of child pornography and lived at the address flagged for child pornography. Considering these circumstances, the court concluded there was a sufficient nexus between the evidence to be seized and the place to be searched. Further, the court agreed with the district court that Defendant's prior conviction for possession of child pornography has probative value because of its similarity to the charged offense.

Finally, the court explained that the non-Rule 414 evidence connecting Defendant to the child pornography on his tablet was overwhelming. And the government's case was only marginally strengthened by the excess propensity evidence. Accordingly, the court held any error in admitting evidence under Rule 414 was harmless.

USA V. JOSHUA FISHER
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: December 21, 2022

Defendants challenged their convictions for various sexual offenses against children, under the Fourth Amendment of the U.S. Constitution. Defendants first argued that the district court erred in denying their first motion to suppress because a detective's affidavit supporting a 2016 warrant to search the residence contained material, intentionally false and/or reckless statements and omissions that misled the issuing judge; specifically, that the affidavit misstated the contents of a CyberTipline Report, drew conclusions unsupported by the Report, and ignored exculpatory factors.

The Ninth Circuit affirmed the district court's orders denying Defendants joint motions to suppress evidence. The panel held that Defendants failed to show that the affidavit contained any materially false statements or omissions (much less any such statements knowingly or recklessly made). The panel wrote that Defendants misstated the factual record by insisting that only one IP address was relevant, and that Defendants do not substantively address the results from a Tumblr search warrant referenced in the affidavit, which further supports the probable cause determination.

Defendants further argued that the district court erred in denying their second motion to suppress evidence derived from a 2018 search. The panel held that the district court did not clearly err by finding that Defendants abandoned the devices. The panel wrote that Defendants' failure to ensure that their

brother recovered the devices before the home was sold, and their subsequent failure to take any additional action, is sufficient to support a finding of abandonment, even if Defendants ceased their efforts only because they feared detection by law enforcement.

United States v. Samilton
Court: US Court of Appeals for the Tenth Circuit
Opinion Date: December 20, 2022

Patrol Sergeant Mark Garrett seized a firearm from underneath David Samilton's passenger seat during a vehicle stop. Based on the firearm, (1) a jury convicted Samilton of being a felon in possession; and (2) the district court revoked his supervised release in an unrelated case. On appeal in both cases, Samilton challenged the district court's denial of his motion to suppress the firearm. Finding no reversible error in the district courts' judgments, the Tenth Circuit affirmed.

NOTE: This cursory summary really doesn't come close to explaining the legal issues in this case which include: what it takes to establish reasonable suspicion, extending a traffic stop, and reasonable duration of search. Read the case and create a better summary.

Washington v. State
Court: Maryland Court of Appeals
Opinion Date: December 19, 2022

In this case considering whether unprovoked flight in a high-crime area should no longer be considered a factor that gives rise to rebate articulable suspicion for a Terry stop, the Court of Appeals held that, under the totality of the circumstances, Defendant's rights under either the Fourth Amendment or Article 26 of the Maryland Declaration of Rights were not violated.

Defendant, who was standing in an high-crime area in Baltimore City, fled when he saw an unmarked vehicle. Ultimately, detectives stopped Defendant and found a gun in his waistband. Defendant filed a motion to suppress, arguing that the detectives lacked reasonable suspicion to stop him based solely on his unprovoked flight in a high-crime area. The Supreme Court affirmed the denial of the motion, holding that, under under the totality of the circumstances analysis, a court may consider whether unprovoked flight is an indication of criminal activity that, together with evidence of a high-crime area and any other relevant factors, establishes reasonable suspicion for a stop, or whether unprovoked flight, under the circumstances of the case, is a factor consistent with innocence that adds little or nothing to the reasonable suspicion analysis.

State v. Schubert
Court: Supreme Court of Ohio
Opinion Date: December 22, 2022

The Supreme Court reversed the opinion of the court of appeals affirming the trial court's denial of Defendant's motion to suppress evidence recovered as a result of a constitutionally-defective search warrant, holding that the good-faith exception to the exclusionary rule did not apply to the search of cell phones in this case.

At issue was a constitutionally-deficient search warrant authorizing the search of cell phones found at the scene of a car crash. Nothing in the affidavit connected the cell phones to the accident except a police officer's averment that evidence of how the accident occurred may be found on the phones. The court of appeals affirmed the denial of Defendant's motion to suppress for lack of probable cause, upholding the cell phone search under the good faith exception to the exclusionary rule. The Supreme Court reversed, holding (1) the warrant was constitutionally defective for want of probable cause in the warrant's supporting affidavit; and (2) the good-faith exception to the exclusionary rule did not apply.

State v. Morillo
Court: Rhode Island Supreme Court
Opinion Date: December 16, 2022

The Supreme Court vacated the order of the superior court granting Defendant's motion to suppress two statements to Warwick police detectives in the course of their investigation, holding that the superior court abused its discretion.

The trial justice suppress statements based on its findings that Defendant was in custody when he voluntarily accompanied the police detectives in an unmarked vehicle to search for evidence, that Defendant did not knowingly, intelligently, and voluntarily waive his Miranda rights, and that Defendant's video-recorded statement was inadmissible in accordance with Missouri v. Seibert, 542 U.S. 600 (2004). The Supreme Court vacated the superior court's order, holding (1) one of the statements at issue was admissible in evidence; and (2) remand was required for limited factual determination by the trial justice as to whether the other statement was a knowing, intelligent, and voluntary waiver of Defendant's Fifth Amendment rights.

Welters v. Minn. Dep't of Corrections
Court: Minnesota Supreme Court
Opinion Date: December 14, 2022

The Supreme Court affirmed the decision of the court of appeals reversing the district court's decision to grant summary judgment in favor of Cornelius Emily and Earnest Rhoney, Department of Corrections officers, and dismiss Plaintiff's claims of cruel and unusual punishment, holding that Plaintiff's 42 U.S.C. 1983 claim survived summary judgment.

Plaintiff, who was incarcerated in the Stillwater correctional facility, suffered serious injury in both of his wrists when Officers Emily and Rhoney improperly applied overtightened handcuffs on Plaintiff for three and one-half hours. Plaintiff brought this action seeking damages. The district court granted summary judgment, concluding that the officers did not act maliciously or sadistically. The court of appeals reversed. The Supreme Court affirmed, holding (1) the conduct of the officers should be assessed under the deliberate indifference standard applicable to conditions of confinement and medical care; and (2) qualified immunity did not bar Plaintiff's deliberate indifference claim.

CASES 30DEC2022

United States v. Corleto
Court: US Court of Appeals for the First Circuit
Opinion Date: December 28, 2022

The First Circuit affirmed the judgment of the district court denying Defendant's motion to suppress evidence collected during the investigation that led to his arrest, holding that the district court did not err in denying Defendant's motion to suppress.

Defendant pled guilty to one count of sexual exploitation of a minor. Defendant appealed, arguing that the district court erred in denying his motion to suppress evidence discovered after agents executed a warrant to search his residence. The First Circuit affirmed, holding

(1) the warrant's affidavit established a sufficient nexus between the criminal activity and the places to be searched

(the seizure and subsequent search of all such devices in the Corletos' residence and vehicles "was about the narrowest definable search and seizure reasonably likely to obtain the images.")

(2) the district court reasonably found that no search of Defendant's person *occurred*

(Adopting Corleto's own testimony on the encounter, it found that Corleto was already holding the phone in his hand as he exited the Equinox. Corleto further testified that the phone was within DeMann's view as Corleto got out of the car.)

(3) the district court did not err in denying Defendant's statements to law enforcement agents

. (Here, Corleto volunteered at his residence without interrogation the very statements he now seeks to suppress. Even in the absence of a Miranda warning, "volunteered statements of any kind are not barred.")

United States v. Harrington
Court: US Court of Appeals for the First Circuit
Opinion Date: December 28, 2022

Reasonable Suspicion
Terry Frisk

The First Circuit affirmed the judgment of the district court denying Defendant's motion to suppress the fentanyl discovered in his waistband during a pat-frisk conducted after an anonymous tip alerted the police department of two men passed out in a vehicle, holding that there was no error.

In denying Defendant's motion to suppress, the district court concluded that the investigatory stop did not violate Defendant's Fourth Amendment rights and that the officers had reasonable suspicion that Defendant could have been armed with a weapon to justify a Terry frisk. The First Circuit affirmed, holding that there was no Fourth Amendment violation because the arresting officer had reasonable suspicion for the initial encounter, for extending the stop, and to believe Defendant was armed and dangerous.

Officer Pittman was alerted via a phone call that two men were passed out at 8:30 a.m. on a weekday morning in a parked vehicle; observed two men passed out or sleeping in the vehicle identified in the phone call at an unusual time; knew that the vehicle was parked in a high-crime area known for illegal drug use; observed that the driver appeared lethargic and had bloodshot, glassy, pinpoint eyes; and noted that there was no smell of alcohol or marijuana, indicating that such behavior could be attributed to illegal drug use rather than a legal substance. Officer Pittman had more than a "hunch" that criminal activity was taking place given the totality of the circumstances. Using and possessing illegal substances constitute criminal activity. Taken together, these facts indicated that criminal activity was afoot, given the unusual time of day for a nap, the peculiarity of individuals napping on a weekday, the reality that the area was known for high drug use, and the obvious signs of drug impairment.

The reasonable suspicion standard for the pat-frisk is the same as that for the initial stop except it focuses on whether the individual is "armed and dangerous.". Thus, whether Officer Pittman's suspicions were reasonable is a "fact-sensitive task" which looks at the totality of the circumstances to determine whether there is a particularized, objective basis to suspect someone is armed and dangerous. Officer Pittman had observed multiple indications that Harrington was under the influence of drugs. Many cases have noted the connection between drug transactions and weapons. Further, when Officer Pittman asked Harrington to step out of the vehicle, he delayed exiting and reached around inside the vehicle, near the center console area. Once out of the vehicle, Officer Pittman instructed Harrington to place his hands on top of his head, but while Harrington placed one hand over his head, he moved the other toward his pocket. Finally, Officer Pittman knew that he was responding to a call in an area known for high drug use. These facts together create the reasonable suspicion required to conduct the pat-down frisk.

United States v. Chandler
Court: US Court of Appeals for the Second Circuit
Opinion Date: December 27, 2022

Defendant appealed from a judgment of conviction entered after a jury found him guilty on counts related to a drug distribution conspiracy, the discharge of a firearm during a drug trafficking crime, and the unlawful possession of a firearm. Defendant committed these crimes while on supervised release following prior convictions. On appeal, Defendant asserted that his Fourth Amendment rights were violated when the officer supervising Defendant during his period of supervised release coordinated a search of his residence and rental car and therefore the lower court should have excluded the evidence seized during the search of his residence and rental car.

The Second Circuit concluded that the district court properly denied Defendant's motion to suppress because the officer monitoring Defendant had reasonable suspicion to search his residence and rental car based on credible reports that Defendant unlawfully possessed a firearm and was engaged in drug trafficking.

Probation searches require reasonable suspicion.

Dustin Dyer v. Shirrellia Smith
Court: US Court of Appeals for the Fourth Circuit
Opinion Date: December 29, 2022

Appellee filed suit against two Transportation and Security Administration ("TSA") officers, alleging they violated the First Amendment by prohibiting Appellee from recording a pat-down search and the Fourth Amendment by seizing Appellee and seizing and searching his cell phone. To state a cause of action for damages, Appellee brought his claims pursuant to Bivens v. Six Unknown Named Agents of the Federal Bureau of Narcotics, 403 U.S. 388 (1971). Appellants moved to dismiss, challenging Appellee's reliance on Bivens and also asserting qualified immunity as to Appellee's First Amendment claim. The district court denied Appellants' motion, recognizing that both claims presented new Bivens contexts but finding that no special factor counseled hesitation in extending Bivens as to either claim.

The Fourth Circuit disagreed with the district court and concluded that Bivens remedies are unavailable in this case. The court explained that as "even a single sound reason to defer to Congress" will be enough to require the court refrain from creating a Bivens remedy, we decline to extend an implied damages remedy pursuant to Bivens against Appellants based on the existence of an alternative remedial structure and/or the interest of national security. And since Appellee has presented no cognizable claim for damages, we need not address Appellants' qualified immunity defense as to Appellee's First Amendment claim. Therefore, the court reversed the district court's denial of Appellants' motion to dismiss and remanded with instructions to dismiss.

No extension of Bivens: Discuss

US V JONATHAN ANDERSON
Court: US Court of Appeals for the Ninth Circuit
Opinion Date: December 29, 2022

Defendant was stopped for a license-plate violation, and deputies from the San Bernardino County Sheriff's Department discovered that he had an expired driver's license and a long criminal history. The deputies conducted an inventory search before towing Defendant's truck, and, after finding a handgun under the driver's seat of his truck, arrested Defendant for being a felon in possession of a firearm.

The Ninth Circuit affirmed the district court's order denying Defendant's motion to suppress a handgun found during an inventory search of his truck, vacated a condition of supervised release, and remanded. The panel held that the district court did not err in concluding that the government established that a valid community caretaking purpose existed for impounding and inventorying Defendant's truck before the search was conducted. The panel wrote that the deputies had an objectively reasonable belief that Anderson's truck, which he had parked in a private driveway, was parked illegally. The panel disagreed with Defendant's assertion that the deputies' inventory search was invalid because they failed to comply with the department's standardized inventory search procedures.

The panel wrote that the inventory search was conducted pursuant to a standard policy, and was performed in good faith, not solely for the purpose of obtaining evidence of a crime; therefore, the government's interest in the protection of property and protection of the police outweighed Defendant's expectation of privacy in the contents of his car, and the search was reasonable for Fourth Amendment purposes.

Caniglia – community caretaking exception only applies to the inventory searches of vehicles.

Conducted pursuant to policy
Executed in good faith
Not a ruse for criminal search
(not mentioned is the limitation of the search since not criminal)

Braun v. Village of Palatine
Court: US Court of Appeals for the Seventh Circuit
Opinion Date: December 29, 2022

Braun suffered a seizure and crashed into a telephone pole while driving. Palatine Officer Licari and other officers responded. Braun could not remember what happened. Licari suspected that Braun was intoxicated. The crash occurred late at night. Braun had slurred speech, bloodshot and glassy eyes, and difficulty balancing; he stated that he lived in “Chicago-Miami” and that he had consumed a beer earlier. After observing Braun struggle with field sobriety tests, Licari arrested him. Though an ambulance had been dispatched to the scene, Braun said he was fine and declined medical assistance. At the police station, Licari administered a Breathalyzer test. Braun passed but, based on other indicators of intoxication, Licari took him to a hospital to collect blood and urine samples for more sensitive testing. When the booking process was completed, Braun was released. He suffered another seizure while at the station.

Braun sued Licari and the village under 42 U.S.C. 1983, alleging false arrest and failure to provide medical care. The district judge dismissed a “Monell” claim about widespread police misconduct and later entered granted the defendants summary judgment on the other claims. The court found that Licari had probable cause to arrest Braun for DUI; Licari's failure to provide medical care was not objectively unreasonable. The medical-care claim against the village failed for lack of evidence. The Seventh Circuit affirmed. Licari neither knew nor had reason to know of Braun’s initial seizure or other medical needs.

People v. Tacardon
Court: Supreme Court of California
Opinion Date: December 29, 2022

The Supreme Court held that a law enforcement officer's act of shining a spotlight for illumination does not ipso facto constitute a detention under the Fourth Amendment, but rather, the proper inquiry requires consideration of the totality of the circumstances, including the use of the spotlight.

Defendant was charged with drug offenses after a law enforcement officer conducted a search of the car he was driving. At issue was whether the officer engaged in a consensual encounter when he pulled behind Defendant's car and turned on his spotlight. The court of appeal concluded that spotlight illumination and approach on foot did not "manifest a sufficient show of police authority to constitute a detention." The Supreme Court agreed, holding (1) under the totality of the circumstances, Defendant was not detained by the officer's use of a spotlight; and (2) remand was appropriate for a new factual finding as to whether the officer's detention of the vehicle's female passenger effectuated a detention of Defendant.